

TURKEY:

Progress on national IDP policy paves way for further reforms

A profile of the internal displacement situation

26 July, 2007

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OVERVIEW

Progress on national IDP policy paves way for further reforms

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Turkey's internally displaced people (IDPs) face uncertain prospects as a recent upsurge in violence in the south-eastern provinces threatens to undermine the positive impact of major human rights reforms which have been adopted since Turkey became a candidate for EU membership in 1999. Clashes between the Turkish army and Kurdish militants have raised fears of a return to the high levels of violence that led to the internal displacement of about one million people, most of them Kurds, at the height of the conflict in Turkey's south-east in the 1980s and 1990s. The government declared "security zones" in pockets of the south-east in June 2007 and the Turkish armed forces have talked of the need for an incursion into northern Iraq to tackle Kurdish rebels amid mounting tensions on the Turkey-Iraq border.

However, in the last three years, the government has made strides to address the internal displacement situation. It has undertaken a national survey on the number and conditions of IDPs; drafted a national IDP strategy; adopted a law on compensation for property damages; and put together a comprehensive pilot plan of action for IDPs at the provincial level. The long-awaited results of the government-commissioned national IDP survey were released in December 2006, confirming that the number of IDPs in Turkey is significantly higher than the previous government estimate of 355,807. According to the survey between 953,680 and 1,201,200 people were displaced for security-related reasons from the east and south-east of the country between 1986 and 2005. Since the June 2004 enactment of a law to determine compensation for displaced people, and following some unjust and inconsistent decisions by provincial commissions charged with the law's implementation, a number of reports have questioned its capacity to provide fair and appropriate redress. No systematic analysis has been carried out of the decisions taken so far, but the government has recently issued guidelines providing standardised guidance and training to the commissions to address problems of inconsistent and insufficient compensation payments.

These important steps indicate that the problem of internal displacement has become a national priority. There has been little progress however in addressing other issues key to the resolution of the problem of internal displacement in the south-east. No steps have been taken towards abolishing the "village guards", a paramilitary force created by the government to oppose the Kurdish Workers' Party (PKK), and a law adopted in May 2007 could even strengthen the village guards system, even though it has been widely identified as a principle obstacle to the return of IDPs and to the stability of the region. The national IDP survey also identified the perceived importance of regional development in the south-east, including improved public infrastructure, education and health services, and jobs in areas affected by displacement.

Background and main causes

During the height of the conflict in Turkey's south-eastern provinces between 1984 and 1999, around one million people, mainly Kurds, were forcibly displaced from their homes. The conflict is believed to have claimed tens of thousands of lives. The conflict originated to a large extent in decades of government policy that denied the existence of a distinctive Kurdish identity in Turkey. Beginning in the 1970s, a number of Kurdish political groups including the *Partiya Karkerên Kurdistan* (Kurdish Workers' Party, or PKK) began to actively protest against this policy. In 1984,

the PKK launched attacks against the Turkish state, with the declared intention of establishing an independent Kurdish state (Kirisci, January 1998). Part of the state's response to the attacks was to recruit paramilitary militia or "village guards". Village guards and their families were killed by the PKK in both targeted and arbitrary attacks, while villagers who refused to join the guard often faced reprisals such as forcible displacement by Turkish security forces (HRW, 30 October 2002). Government security forces were granted exceptional powers under a State of Emergency Decree declared in ten provinces in 1987, and later extended to 14 provinces, which led to a heavy military presence, martial law and severe restrictions on civil and political rights enforced by a special governor.

Internal displacement was caused by the evacuation of villages by the government under the emergency rule, by PKK pressure on villagers who refused to support the organisation, and by the lack of security for those caught between the PKK and security forces (Kirisci, January 1998). The PKK and also the security forces and government-employed village guards committed serious human rights violations including torture, arbitrary arrests, abductions, and the destruction of villages and crops. The 14 provinces most affected by internal displacement were Bingöl, Hakkari, Tunceli, Bitlis, Van, Mus, Elazığ, Adıyaman, Ağrı, Diyarbakır, Batman, Siirt, Mardin, and Şırnak. Since the arrest of PKK leader Abdullah Öcalan in June 1999, and his subsequent announcement of a unilateral cessation of armed activities by Kurdish armed groups, the level of violence in south-eastern Turkey has sharply decreased. In November 2002, the 15-year state of emergency was lifted in the last two provinces of Diyarbakır and Şırnak.

Forced internal displacement in Turkey is complemented by a broader rural-to-urban migration, and the latter has been encouraged by the violence in the south-east. The nature and extent of the displacement situation in Turkey has also been affected by large-scale development projects such as the South-Eastern Anatolia Project (GAP), and by natural disasters (UN CHR, 27 November 2002, p.8).

Survey reveals true scale of displacement

For many years the numbers of IDPs has been contested, with estimates ranging from 350,000 to four million. Government initiatives were criticised as based on an inaccurate picture of the displacement situation, which was not backed up by comprehensive and reliable data. In response, in 2004 the government commissioned a national IDP survey, of which the quantitative findings were released in December 2006. The survey, carried out by Hacettepe University Institute for Population Studies, provides valuable data on the internally displaced population, and includes an estimate on the numbers of persons displaced as a result of the actions of both the PKK and the security forces and also information on the causes of their displacement and their expectations for the future.

The survey's long-awaited results confirm that the number of IDPs in Turkey is significantly higher than the previous government estimate of 355,807 (GoT/UN Mission, 27 September 2005). According to the survey, between 953,680 and 1,201,200 people were displaced for security-related reasons from the east and south-east of the country between 1986 and 2005 (Hacettepe University, 6 December 2006). One reason for the discrepancy is that the previous government figure only included people evacuated by the security forces from settlements, and not those who were forced to flee due to generalised violence or for a combination of security and economic reasons (Kirisci, January 1998). The survey estimated that up to 124,000 people have returned to their places of origin.

New clashes between the Turkish army and the PKK

The general security situation in the south-east has greatly improved in the last five years, but the frequency of armed clashes between government forces and the PKK in the region has fluctuated since 2004. Clashes resurfaced when the PKK announced the end of a five-year ceasefire in June 2004. Another unilateral ceasefire was proclaimed by the PKK in October 2006 but armed clashes between the Turkish armed forces and the PKK have erupted again. In addition, Amnesty International also reported an increase in bomb attacks targeting civilians during 2006 (AI, 23 May 2007). Many people have been killed or injured by bomb attacks in cities and resorts including Ankara, Istanbul, Yozgat, Marmaris, Antalya and Van city. The government argues that the recent escalation of violence in the south-east and increased clashes between Turkish armed forces and the PKK is caused by PKK members operating in northern Iraq and infiltration of PKK members from the Iraqi border (EC, 8 November 2006; BBC, 8 June 2007). The dramatic change in the status of the Iraqi Kurds in Iraq since early 2003 has also raised fears of an increase in secessionist sentiments among the Kurds in south-east Turkey (ICG, 26 January 2005).

In response, the government significantly boosted the number of troops deployed along the border with northern Iraq. By the first week of July 2007, Turkey had deployed an estimated 140,000 troops to the Turkish-Iraqi border (BBC, 9 July 2007). The government also declared "temporary security zones" between the provinces of Sirnak, Siirt and Hakkari in south-eastern Turkey close to the Iraqi border in June 2007 (BBC, 8 June 2007). There has been talk of a Turkish incursion into northern Iraq (BBC, 30 May 2007 and 4 June 2007).

Security concerns deter return

Civil society organisations supporting IDPs express concern that the resumption of violence and clashes between the security forces and the PKK might undermine stability and discourage return movements to the south-east, or worse, cause new displacement. The increase in tension has prompted the government to bolster security measures, creating new temporary security zones and potentially consolidating the village guards system, raising concern among some NGOs that broader military measures against villages may be resumed.

There are some 57,000 village guards, armed and paid by the government to fight the PKK. They are still perceived as a security threat because of human rights abuses committed by the village guards up to only a few years ago. The continuing threat which they present to returning IDPs has been extensively documented. Village guards were often implicated in the original displacements; and many people were displaced specifically because they refused to join them. In the aftermath of displacement, village guards have hindered return by denying displaced villagers access to their fields, occupying people's homes or land. They have been deemed responsible for murder, attacks and intimidation of displaced people attempting to return home (HRW, January 2007; TESEV/IDMC, June 2006). Investigation and prosecution of crimes committed by the village guards have been largely inadequate. The European Court of Human Rights has issued several judgments against the government for violations which arose from abuses perpetrated by village guards (HRW, 8 June 2006).

Grave human rights violations committed by village guards are no longer reported but there continue to be reports of village guards illegally occupying displaced people's land or property (IDMC/TESEV, June 2006; HRW, 8 June 2006). Displaced villagers may still fear that upon their return they will face reprisals or be coerced once more to join the guards (HRW, 8 June 2006). In addition, although there is no legal requirement to join the village guards, Human Rights Watch found that the security forces often make village guard service an informal requirement for return. There is some indication that rates of return are particularly low in areas such as Sirnak province, where the village guard system is particularly ingrained (HRW, 8 June 2006).

The village guards system has also been widely criticised by human rights organisations for exacerbating mistrust and ethnic divisions in the south-east. Following his visit to Turkey in 2002, the Representative of the UN Secretary-General on internally displaced persons made a number of recommendations to the government to address the situation facing IDPs, including the disarming of village guards, the abolition of the system, and the finding of alternative employment opportunities for existing guards (UN CHR, 27 November 2002).

No progress has been made by the government to abolish the village guards. In 2005, the government announced that it was considering the gradual dissolution of the system; and recruitment of village guards was discontinued in accordance with a government decree adopted in 2000 (IDMC/TESEV, June 2006; UN CHR, 6 April 2005). In its national IDP strategy adopted in August 2005 (*Measures on the Issue of Internally Displaced Persons and the Return to Village and Rehabilitation Project in Turkey*) the government recognised problems relating to the guards and noted that, "Complaints concerning provisional village guards will be given priority within the framework of returns" (GoT, 17 August 2005). However, a new law relating to the village guards was adopted on 27 May 2007, which suggests that the government may be taking steps to bolster rather than abolish the system in response to security concerns in the region. Under the law, a Provincial Governor can request the approval of the Ministry of Interior for an additional 40,000 village guards, while this number may be increased to 60,000 upon the decision of the Council of Ministers.

Landmines also remain a security concern and a hindrance to the return of the displaced population in some areas. In May 2006, Turkey reported a total of just under one million mines within the country and in particular along the borders with Iraq and Syria (LMG, July 2006). A particularly affected area is Hakkari province, where villagers have been reluctant to return because of landmines (LMG, July 2006). While Turkey is party to international agreements relating to landmines, civil society organisations note the need for more mine risk education and more systematic marking of mined areas (IDMC/TESEV, June 2006). The national IDP strategy acknowledges the problem of landmines laid by the PKK but remains silent on the issue of landmines laid by the armed forces. On 18 July 2006, the PKK committed to a ban on antipersonnel mines by signing a "Deed of Commitment for Adherence to a Total Ban on Anti-Personnel Mines and for Cooperation in Mine Action", for which Switzerland and the Canton of Geneva act as guardians (MRG, 2006).

Restrictions to the freedom of movement continue, including roadblocks and checkpoints in certain parts of the south-east, restrictions which have increased during recent military operations. In March 2007, the US Department of State reported that local authorities in the south-east, citing security concerns, denied some villagers access to their fields and high pastures for grazing (US DoS, 6 March 2007).

Other obstacles to return

An important finding of the national IDP survey was that more than half of the displaced population (55 per cent) still wished to return to their areas of origin. The survey also found that half of them (50 per cent) were not aware of the government return assistance programme, the "Return to Village and Rehabilitation Project" (RVRP) (Hacettepe University, 6 December 2006).

According to official statistics collected at the provincial level, as of April 2007 an estimated 151,469 people have returned to their places of origin (GoT/UN Mission, 27 June 2007). This figure represents approximately 12 per cent of the total IDP population estimate of the national IDP survey (Hacettepe University, 6 December 2006; GoT/UN Mission, 27 June 2007). Research by national and international organisations indicates that apart from security concerns, the lack of economic opportunities, social services and basic infrastructure in south-eastern Turkey

constitute a hindrance to return. In its 2006 report, the European Commission underlined the need for a comprehensive national plan to address socio-economic problems in the south-east (EC, 8 November 2006). There is an overall absence of development in the former conflict areas, which suffer from inadequate basic infrastructure, including clean water, electricity, telephone lines, schools and roads (HRW, 7 March 2005; CoE PA, March 2004; Turkish Daily News, 10 July 2005). Many displaced villagers are reported to return only temporarily, usually in the summer months, commuting between their villages of origin and nearby cities (HRW, 7 March 2005).

Problems faced by the urban displaced

Most government programmes have focused on return and the government has only recently acknowledged the particular problems of internally displaced people living in urban areas, many of whom remain invisible (UN CHR, 27 November 2002). Most displaced people have been living for nearly ten years on the peripheries of cities including Istanbul, Ankara, Izmir and Adana, as well as in cities in the south-east such as Batman, Diyarbakir, Hakkari and Van (Kirisici, January 1998). IDPs are among the urban poor, sharing with other migrants the problems of acute social and economic marginalisation and limited access to housing, educational and health facilities. Problems particularly identified among forcibly displaced communities include the lack of psychosocial care despite a prevalence of psychological and emotional trauma, low levels of education and high unemployment among adults, and particularly among displaced women. Displaced children also have limited access to schooling, and child labour is reported to be an increasing problem in urban centres with significant IDP populations (MRG, December 2006; Turkish Daily News, 29 June 2005; CoE/PA March 2004; UNDP, Progress Report, 23 June 2006; IDMC/TESEV, June 2006).

While IDPs should benefit from a number of government programmes targeting the poorer segments of the Turkish population, these programmes have not taken into consideration the specific situation of the displaced. For instance, one criteria for determining poverty and eligibility to social assistance is not owning agricultural property. Many displaced people own rural property and therefore would be disqualified even if they have been unable to access their property for nearly a decade (IDMC/TESEV, June 2006).

Access to fair and just compensation

In July 2004, the government adopted the “Law on the Compensation of Losses Resulting from Terrorist Acts and the Measures Taken Against Terrorism” (Law 5233) to provide reparation for those who suffered loss or damage as a result of “action by terrorist organisations and measures taken by the government to combat it” during the period from 1987 to July 2004 (GoT, 17 July 2004). Compensation is provided for three types of damage: (i) loss of immovable and moveable properties, animals, trees and agricultural products; (ii) physical injuries, disabilities and death; (iii) access to property which has been restricted or hindered due to measures taken in the framework of the “fight against terrorism”. The law is implemented by “Damage Assessment Commissions” made up of civil servants. As of May 2007, 100 Commissions had been set up in 75 provinces. A total of just under 270,000 people had claimed redress under the compensation law by the end of June 2007, and the total awarded to applicants had reached close to 288 million Turkish lira (\$227m), according to the government (GoT/UN Mission, 27 June 2007).

In 2004, the compensation law was widely welcomed as a significant step to address the problem of internal displacement in Turkey. Applicants were required to submit their applications to the relevant authorities within one year of its coming into force, but the deadline for applications has since been extended twice, most recently on 30 May 2007, to allow people to make claims until 30 May 2008. The extensions have been necessary to give people adequate time to apply, as the

national IDP survey found that almost half (46.6 per cent) of the displaced population were unaware of the law. A recommendation which emerged from the survey was that the government should implement a nationwide information campaign on the law.

While recognising the compensation law as a highly positive step, national and international NGOs and legal experts have drawn attention to a number of problems in the law and its implementation which may undermine displaced people's right to just compensation. Criticisms include the lack of independence of damage assessment commissions and the absence of effective appeals procedures (HRW, December 2006; IDMC/TESEV, June 2006). In addition, concerns have been raised about the absence of a system to protect witnesses, many of whom may fear reprisals if they testify against the PKK, security forces or village guards over their role in house destruction and forced evacuation. Furthermore, the law contains no provision for legal aid to assist people in preparing their applications. It also does not provide for compensation for pain and suffering, whereas under European Court of Human Rights judgments (see e.g. *Akdivar and Others v. Turkey*, 1996) compensation has been paid to applicants for trauma suffered (HRW, 7 March 2005).

The government has made significant amendments to respond to some of the shortcomings in the law, and it has recently issued procedural guidelines to improve its implementation. In September 2005, the government adopted a regulation to alleviate the evidentiary burden of proof on applicants. The regulation is in line with the European Court of Human Rights' judgment in the case of *Dogan and Others v. Turkey*, which stated that the burden of proof regarding eviction lies with the state rather than the applicant (Decision No: 2005/9329, 22 August 2005, Resmi Gazete, no. 25937). The regulation is intended to address the practice among Damage Assessment Commissions of placing high importance on documentary evidence, primarily written documents, leaving many IDPs automatically ineligible for compensation. It should be noted however that there continue to be reports from NGOs that IDPs are reportedly still being required to present proof of their eviction by the gendarmerie in violation of the regulation (IDMC/TESEV, June 2006).

The other main concern is related to the consistency and fairness in the application of the law with regard to the damage calculation and compensation process. There have been reports of inconsistent and inequitable applications of the law, both between provinces and in certain cases within the same province, resulting in uneven compensation and eligible applicants being denied compensation altogether (HRW, December 2006; RSG on the Human Rights of IDPs, March 2006). In 2007, the Ministry of Interior issued standardised guidance on award levels to the Damage Assessment Commissions to address this problem. The Ministry has also sought legal advice from international experts, provided training to the Commissions, and developed a database to standardise and harmonise their decisions (GoT/Mission, 27 June 2007). A monitoring and oversight mechanism was established within the Ministry of Interior to oversee implementation of these measures.

Prior to the adoption of the law on compensation, there was no national mechanism for IDPs to obtain compensation for property and possessions lost during displacement, and many people had no other recourse but to take their cases to the European Court of Human Rights. In 2006, the Court found in the case of *Içyer v. Turkey* that the law on compensation provides adequate domestic remedy (ECtHR, 9 February 2006). Approximately 1,500 cases relating to the possibility of return to villages have been declared inadmissible by the Court following the decision (EC, 8 November 2006).

A report by Human Rights Watch notes that since the European Court for Human Rights announced its decision in the *Içyer* case, there has been a noticeable deterioration in the implementation of the compensation law. The report found that Damage Assessment Commissions increasingly appear to apply "arbitrary and unjust" criteria in calculating

compensation, resulting in low compensation amounts in numerous cases (HRW, 14 December 2006). There has however been no systematic analysis of decisions taken so far.

Progress in national policy

There was a shift in national policy towards IDPs following the visit of the UN Representative on IDPs, Francis Deng, to Turkey in 2002. Before that, the government had been for the most part unwilling to assist internally displaced people. National authorities long denied the role of government forces in displacement and claimed two decades of terrorism as the root cause of internal displacement in Turkey (UN CHR, 7 November 2003). Rather, local NGOs such as Göc-Der, the Human Rights Foundation of Turkey and the Human Rights Association of Turkey were instrumental in assisting IDPs in the aftermath of displacement. In a bid to meet the conditions of EU membership, the Turkish parliament has in recent years adopted extensive legislative reform relating to human rights protection, in areas such as religious freedom, freedom from torture, freedom of association and expression, and has permitted media outlets to broadcast in minority languages including Kurdish. The EU accession process has helped put the issue of minority rights, including the rights of the primarily Kurdish displaced population, on the political agenda (BBC, 7 September 2004).

Important progress has been made by the government in the last four years towards improving the overall national policy and legal frameworks and identifying and facilitating durable solutions for Turkey's displaced. A number of these measures have been outlined in the sections above, and include the adoption of a national IDP strategy in which the government commits itself to addressing the IDP situation in line with the international standards contained in the Guiding Principles on Internal Displacement. Other key steps include the government's efforts to collect data on the IDP population and the amendments and procedural guidelines adopted to improve implementation of the compensation law. At the provincial level, the province of Van has adopted a strategic policy framework for IDPs, the Van Action Plan, based on broad consultation with civil society.

In February 2007, the Ministry of Interior designated its General Directorate of Provincial Administration as responsible for all IDP-related policies and programmes. The Directorate is responsible for overseeing overall national IDP policy as well as the compensation law and the national RVRP return programme (GoT/UN Mission, 27 June 2007; UNDP, 18 July 2007). The establishment of such an office could facilitate a more coordinated response and facilitate the continued development of relationships with civil society organisations working with displaced people, though some of them have reportedly not yet been informed of the creation of this new role. Relations between NGOs and the authorities in relation to internal displacement in Turkey have improved generally, but interaction is often *ad hoc* and difficult (IDMC, October 2006). Civil society organisations have called for more transparency and the opportunity to participate meaningfully and systematically in the development and implementation of IDP policy and programmes (IDMC/TESEV, June 2006).

The government has stated its intention to formulate a national IDP plan of action, but it has not yet produced it. The current UN Representative on the Human Rights of IDPs has called for the plan of action to be developed in consultation with civil society and IDPs; and it should be based on the extensive new data on the displaced population provided by the IDP survey. The Van Action Plan provides a concrete model for addressing IDP needs at the provincial level, based on which the government plans to develop further action plans for the other provinces. Implementation of the Van Action Plan began in September 2006, and the government says that 84 planned projects (requiring funding of close to 92 million Turkish lira or \$72m) have been submitted to relevant national ministries (GoT/UN Mission, 27 June 2007; UNDP, 18 July 2007).

Some NGOs report however that implementation of projects has progressed slowly due to factors including insufficient resources.

The data provided by the national IDP survey provides a much fuller picture of the displaced population and their wishes and needs, which should also be taken as the basis to review the national return policy and the RVRP return programme. This programme, which was launched in 1994, has been extensively criticised on many grounds, including an overall lack of transparency and clear strategy and a lack of consultation with IDPs. The national return policy has also been found to be inconsistent, discriminatory, and underfinanced (HRW, 26 January 2004; CoE/PA, March 2004; EC, 5 November 2003). The national IDP survey found that 88 per cent of displaced people surveyed who had returned to their villages said that they did so without assistance from the government (Hacettepe University, 6 December 2006). Given that many IDPs will not return, there is also a need to provide concrete solutions for displaced persons who opt for local integration or resettlement. The government's national IDP strategy aims to explore "the possibilities to provide support and assistance in order to facilitate the new living conditions for those citizens who do not wish to return and their integration into their new places of settlement" (GoT, 17 August 2005).

There has also been a call by civil society organisations for reconciliation initiatives from the government to address the issue of past human rights violations against IDPs, including killings, abductions, torture and the burning and destruction of property, committed by the security forces, village guards and PKK during displacement. This recommendation is linked to the analysis that steps the government takes on the IDP issue should be part of a wider solution to the Kurdish issue in order to ensure success (Turkish Daily News, 11 July 2006; IDMC/TESEV, June 2006).

Increasing engagement with international community

Progress made in Turkey to address internal displacement issues has been substantially influenced by regional and international actors. The May 2002 visit of the UN Representative on IDPs, Francis Deng, brought national attention to the issue and resulted in a series of recommendations to the government. The current Representative has maintained this dialogue over several visits to the country and has made subsequent recommendations to the government.

Turkey was recognised as an EU candidate country in 1999. In successive reports assessing Turkey's progress in fulfilling the necessary criteria to start the accession negotiation process, the EU has called for the government to address the situation of IDPs, drawing attention to obstacles to return and calling for the improvement of socio-economic conditions in the south-east. The European Court of Human Rights has ruled against the Turkish state in a large number of cases for its involvement in the forced displacement of its citizens, particularly in judgments regarding property destruction and disappearances. In June 2005, the Council of Europe's Committee of Ministers adopted an Interim Resolution assessing Turkey's compliance with more than 70 judgments of the Court relating to a wide range of human rights abuses committed by the security forces, handed down between 1996 and 2004 (CoE, 7 June 2005). Other regional bodies such as the Council of Europe's Parliamentary Assembly have also issued a number of recommendations and reports relating to internal displacement.

A formal agreement was reached in February 2006 between the UN country team and the government to implement a project entitled "Support to the development of an IDP Programme in Turkey". The UN country team has established an IDP working group, through which it provides advice to the government. In the framework of the project, the United Nations Development Programme has translated the Guiding Principles on Internal Displacement into Turkish to increase the awareness and knowledge of international standards relating to internal displacement among the government and civil society. UNDP has also coordinated training to

government and civil society organisations and worked with the local authorities of Van province on a pilot return and reintegration strategy which can be replicated in other provinces.

CAUSES AND BACKGROUND

Background

The Kurds: history and profile

- Kurds constitute the largest minority ethnic group in Turkey but there are no accurate figures available
- They are traditionally organised in tribes with pastoral or agricultural activities
- Kurds do not represent a cohesive ethnic minority
- Kurds were not formally acknowledged as minorities under the 1923 Treaty of Lausanne
- Atatürk's secular state brutally prohibited any manifestation of Kurdish identity, including through mass killings and deportation (1925-1938)
- Nationalist ideas within Kurdish society reappeared in intellectual circles in the 1950s
- During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups and then created specifically Kurdish nationalist groups to challenge State denial
- The most successful of these was the Kurdistan Workers' Party (PKK) which steadily widened its sphere of influence during the 1980s

MRG, 2001

"Who are the Kurds?"

The Kurds are the descendants of Indo-European tribes who settled among the inhabitants of the Zagros mountains in various epochs, but probably mainly during the second millennium BC. The first mention of Kurds, as 'Cyrtii', occurred in the second century BC. At the time of the Arab conquest in the seventh century AD, the term 'Kurd' was used to denote nomadic people.

The Kurds today, numbering at least 26 million, struggle to obtain political recognition and rights as national communities within the state boundaries in which they find themselves. They form the largest ethnic community in the Middle East without a state of its own.

Population estimates (1993)*

Country	Total population	Kurds	%
Iran	61,000,000	6,100,000	10%
Iraq	19,300,000	4,400,000	23%
Syria	13,400,000	1,100,000	8%
Turkey	60,000,000	13,200,000	22%
Former Soviet Union		500,000	
Elsewhere		700,000	
Total		26,000,000	

(*Estimates are in rounded figures.)

Where do the Kurds live?

Although Kurds are to be found in Syria, the Caucasian republics of Armenia and Azerbaijan, Khorasan (in eastern Iran), and in Lebanon, the main concentration lives today where the Kurdish people have always lived - in the mountains where Iran, Iraq and Turkey meet. The heart of this area consists of the extremely rugged mountains of the Zagros range, running in ridges north-west to south-east. In the west these mountain folds give way to rolling hills, and to the Mesopotamian plain. To the north the mountains slowly turn to steppe-like plateau and the highlands of Anatolia. To the east the mountains fall away to lowlands onto which the Kurds have also spread.

Although the population is not exclusively Kurdish in much of this area, the dominant culture is Kurdish. From the early thirteenth century onwards much of this area has been called Kurdistan, although it was not until the sixteenth century, after the Kurds had moved north and west onto the Anatolian plateau, that the term Kurdistan came into common usage to denote a system of Kurdish fiefs. Since then, although the term Kurdistan appears on few maps, it is clearly more than a geographical term since it also refers to a human culture which exists in that land.

Nevertheless no map of Kurdistan can be drawn without contention, and for this reason the demographic map is not a political statement, but a statement of where large numbers of Kurds are found."

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, p. 1000

"In 1989 the average gross reproduction rate in the predominantly Kurdish provinces was 2.75 per cent, compared with that in the predominantly Turkish regions of the Republic of 1.49 per cent. Fifty per cent of the Kurdish population is under the age of 15 compared with only 35 per cent of Turks. Whereas Kurds probably constituted 19 per cent of the population in 1975, today they almost certainly constitute approximately 24 per cent."

UK Home Office April 2001, paras. 6.1-6.10

"Estimates of the number of Kurds in Turkey vary considerably; there may be 12 - 15 million Kurds in Turkey out of a total population of 64.4 million, making Kurds the largest minority ethnic group in Turkey. The Kurdish birth rate is high and the proportion of Kurds in the national population of Turkey is likely to increase.

In the 19th century most Kurds were tribal pastoralists, but a significant minority were peasantry. Religious feeling tended to be very strong among the Kurdish tribes, with devotion to particular local religious leaders who belonged to the brotherhoods of "folk-Islam". These leaders quite often became tribal chiefs in their own right, with secular as well as religious authority. At the end of the 19th century thinkers among the different ethnic groups within the Ottoman Empire began to think of themselves for the first time in ethnic terms. Both the Arabs and Turks evolved ideas of ethnic nationhood, but such ideas were slower to develop within Kurdish society, which remained fragmented and tribal.

Many Kurdish tribes supported Mustafa Kemal (Atatürk)'s war of independence in the expectation that they were repelling the infidel (Greeks, Armenians, and the Allies) to re-establish the Muslim Fatherland with its Sultan/Caliph. But Atatürk established an ethnic definition of the new Republic as "Turkish, secular and modern", and he set about suppressing all manifestations that contradicted that aim: tribal life, Kurdish language and culture, and the religious brotherhoods that were so strong in the Kurdish region. From 1925 to 1938 the Turkish Government ruthlessly suppressed Kurdish rebellions and resistance to the enforcement of this new ideology which denied their identity. Kurdish leaders tended to appeal to nationalist ideas, the rank and file probably simply wanted their old way of life back. Atatürk's measures involved mass killings, village destruction, and the forced deportation of hundreds of thousands of Kurds.

By the 1950s it seemed as if the Kurds had finally been hammered into Turks. The end of one party politics in the 1940s led the new opposition to woo the old tribal chiefs and the new landlord class in the Kurdish region to deliver the peasant vote. This became a key feature of Turkish electoral politics. The landlord class benefited in material ways and obeyed the State ideology. It was young middle class intellectuals in the 1950s who reawakened nationalist ideas within Kurdish society, challenging the State's view that Kurds were mountain Turks. (Kurdish is a member of the Iranian branch of the Indo-European family of languages. Kurds have no ethnic connection with Turks, whose language is a member of the Altaic family).

During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups which soon found themselves in armed conflict against right wing groups that frequently enjoyed the tacit support of the State. Counter insurgency operations routinely involved human rights violations against villagers in affected areas. With these disorders proliferating, the army intervened in September 1980. It is estimated that during the three years of military government probably over 100,000 Kurds were detained by the security forces. Many were tortured.

Many Kurds became disillusioned with Turkish leftist movements in the 1970s, and started to form specifically Kurdish nationalist groups to challenge State denial and repression. The most successful of these was the Kurdistan Workers' Party (PKK), which was given substantial help and facilities by Syria. The PKK matched Turkish Government ruthlessness, killing pro-government villagers and their families and also Turkish civil servants in rural areas, most notably teachers, who were suspected of being government informants. Thus both sides routinely violated the rules of war and other legal instruments for the protection of basic rights.

During the 1980s the PKK steadily widened its sphere of influence. Most Kurds were initially hostile to the PKK and hated its methods. But they had little time for a government that denied their identity and rights. When government forces made them choose sides, large numbers started to support the PKK, despite misgivings over its methods. Many were not interested in, or did not know about, its atrocities. They saw government atrocities on a far more widespread scale, and saw the PKK as defending the Kurdish corner. [...] Kurds do not represent a cohesive ethnic minority and range from persons tranquilly integrated in the larger society through political activists to committed terrorists. A significant number of historically ethnic Kurds have been completely assimilated into Turkish society and no longer even speak Kurdish."

The Kurdish conflict (1984-1999)

- Kurdish insurgency erupted in 1984 with the PKK, mainly in south-eastern Turkey
- In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting
- The conflict led to the displacement of Kurds from exposed villages, forcible evacuation and the destruction of villages
- The arrest of Abdullah Öcalan, the PKK leader in 1999 and his appeal for a cease-fire was followed by a considerable reduction of violence in south-eastern Turkey

UK Home Office April 2001, para. 3.3

"On 12 September 1980 the armed forces, led by General Kenan Evren, Chief of the General Staff, seized power in a bloodless coup. Martial law was declared throughout the country and the new government succeeded in reducing the level of political violence and in restoring law and order, but at the expense of compromising or suspending many democratic freedoms. A new Constitution was adopted in 1982."

UK Home Office April 2001, paras. 4.23-4.28

"Four years after the 12 September 1980 coup, which crushed the activities of urban insurgents and fundamentalists, Turkey faced a different threat from a similar source - rural insurgency, initially concentrated in the south east region along the borders with Iran, Iraq and Syria. Almost all the rural insurgent groups had their origins in the student groups based in the cities, one particular case in point being Abdullah Öcalan's PKK (Kurdistan Workers' Party). The separatist activities soon spread to the cities.

Following the coup, there was a sharp decline in the number of insurgent acts and resulting deaths. Official statistics showed a 70% decline in ordinary crimes while the number of political murders decreased by 82%. This downward trend continued in the three years following the coup, suggesting that the insurgent threat had been crushed. After 1983 there was a strong belief that the insurgent organisations would never come back to the Turkish scene. However, by 1984, this opinion proved baseless when insurgency (in the form of the PKK) resurrected suddenly. Instead of a resumption of armed activities in Turkey's main cities, the emphasis was on attacks concentrated in the south east.

In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting; Van, Bitlis, Tunceli, Diyarbakir, Siirt, Bingol, Batman, Hakkari, Sirnak, Mardin. The state of emergency was lifted in Mardin in November 1996, in Batman, Bingol and Bitlis in October 1997, in Siirt in November 1999, and in Van in July 2000. It continues in Diyarbakir, Hakkâri, Sirnak, and Tunceli provinces.

In a speech in December 1998, President Demirel stated that, since 1984, 23,638 PKK members, 5,555 security force members, and 5,302 civilians had lost their lives in the fighting between the security forces and the PKK, which fought, initially, for Kurdish self-rule in the southeast. The conflict has led to the migration of Kurds from exposed villages to district and provincial centres, or out of the southeast altogether. Forcible evacuations by the Turkish security forces are reported to have led to the destruction of 3500 villages in the region and the displacement of between 330,000 and 3 million people. As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year.

The situation in the southeast was reported to be calmer in 1998 than in previous years. In September 1998, rapporteurs from the Council of Europe Parliamentary Assembly said the region had started a process of 'normalization' in comparison to their last visit there. Since the PKK ceasefire in August 1999, there has, as of October 2000, been a 90% reduction in violence in the south-east.

In October 1998 the PKK's leader, Abdullah Öcalan, was expelled from Syria. Following his expulsion he unsuccessfully attempted to claim asylum in several European countries before being apprehended in Kenya and flown to Turkey. He was tried and convicted of treason and sentenced to death. After his sentencing he instructed PKK fighters to withdraw from Turkey, and a Turkish general confirmed that this was actually happening."

UK Home Office April 2001, paras. 6.8-6.9

"In 1999 Abdullah Öcalan, the PKK leader, was captured and brought to trial by a Turkish court. In June he was found guilty of treason, and was sentenced to death. In early August the PKK indicated its willingness to comply with Öcalan's request for a cease-fire in south-eastern Turkey. On 12 January 2000 the Turkish Government agreed to respect an injunction from the European Court of Human Rights calling for the suspension of Öcalan's execution, pending his appeal to the Court. In a written statement from prison, Öcalan said that the Government's decision was a step towards democracy. He pledged that the PKK would not exploit the move, and said that he

now believed that the PKK's war for a Kurdish state was a 'historic mistake'. A ruling from the ECHR could take up to two years from January 2000."

State of emergency in south-eastern Turkey: severe restriction of human rights (1987-2002)

- The state of emergency (OHAL) lifted in the last 2 provinces in November 2002
- The state of emergency was originally declared in 8 provinces in south-eastern Turkey in 1987
- Official figures put the number of casualties to 30,000 people during the OHAL period
- OHAL consisted of military presence, martial law, maintenance of the village guard system and other restrictions to normal economic and social life
- The emergency region governor had sweeping powers to restrict exercise of civil and political rights

HRW, 14 January 2003

"The state of emergency was lifted in the provinces of Tunceli and Hakkari in July [2002], and in the last two provinces, Diyarbakır and Şırnak, in November [2002]. The mainly Kurdish southeast had been under martial law or state of emergency since 1987."

US DOS, 31 March 2003

"At the beginning of the year, four provinces remained under a state of emergency; but the Government completed the phased lifting of the regime on November 30 [2002] and closed the State of Emergency Regional Governor's Office, which exercised authority over the governors of the emergency provinces, as well as the adjacent provinces. The Regional Governor held certain quasi-martial law powers, including the authority to impose restrictions on the press, remove from the area persons whose activities were deemed detrimental to public order, and order village evacuations. The Government continued to maintain a heavy security presence in the region, including numerous roadway checkpoints. The level of violence has decreased substantially since 1999."

HRFT, November 2002

"Due to a decision in the Grand National Assembly of Turkey (GNAT) of 19 June the state of emergency was lifted in the two remaining provinces of Diyarbakir and Şırnak. On 19 July 1987 the state of emergency had replaced martial law in the provinces of Bingöl, Diyarbakir, Elazığ, Hakkari, Mardin, Siirt, Tunceli and Van. The provinces of Adiyaman, Bitlis and Mus were included as neighboring provinces. When Batman and Şırnak became separate provinces they had been included in the region under a state of emergency (OHAL) on 6 May 1990. The whole time gross human rights violations were reported from the OHAL region. Official figures put the number of casualties as high as 30,000 people, who were killed during the 15 years. A large number of political killings were attributed to the radical Islamic organization Hezbollah. Large-scale operations against Hezbollah started in 2000, but many killings remain unclarified.

Even though Article 2 of the Decree 285 with the Power of Law allowed the Governor for the Region under a State of Emergency (OHAL) to evacuate, resettle and exile whole settlement most of the 3,500 settlements, were evacuated under the pressure to become village guards and/or burning down or destruction of houses by the security forces. The Parliamentary Research Commission stated in its 1998 report that 905 villages and 2,523 hamlets had completely or partly been evacuated. The number of displaced people was put at 'only' 378,335. The US State Department put this figure in its 2001 report to be around one million. Human rights

organizations estimated the number of displaced people to be around 4 million people from some 4,000 settlements.

Decree No. 430 with the Power of Law 'Regarding Additional Measures in the State of Emergency Governor's Office and during the State of Emergency Period' was introduced on 15 December 1990. Article 1 allowed the OHAL Governor to exile people from the region. The 'exiled' persons had no possibility to appeal against such a decision (Article 8). Article 3 of the Decree No. 430 allowed for prolonged periods of detention of 10 days each. Detentions of up to 40 days were reported in 2001 and 2002. Relying on the competences of Decree No. 430 the OHAL governor also banned some 30 newspapers and journals from entering and distribution in the region.

On 4 April 1985 Law No. 3175 amended the Village Law numbered 442 introducing the system of 'temporary village guards'. The system was introduced with 40 village guards in Erzurum district (Siirt) and became systematic with the introduction of OHAL. Throughout the 1990s the village guards became known for kidnapping, killing, torture and rape. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that the village guards were the part of society that had most intensely been involved in "dirty jobs". Even though the number of human rights violations in the OHAL region decreased after the armed clashes went down, the HRFT received information on 11 killings committed by the village guards in 2002."

Turkish Daily News 19 July 2001

"The state of emergency called Emergency Rule (OHAL) introduced on Jul. 19, 1987 is now into its 15th year, the Anatolia news agency reported yesterday. At first, martial law had been introduced into certain provinces in East and Southeast Anatolia on Jul. 12, 1980 because of escalating terrorist action, but was upgraded to OHAL in 1987 when separatist terrorists began mounting bloody attacks in eight provinces. OHAL has been extended 42 times since being declared by the late President Turgut Ozal.

The first provinces to be covered by OHAL were Bingöl, Diyarbakir, Elazığ, Hakkari, Mardin, Siirt, Tunceli and Van. The provinces of Adiyaman, Bitlis and Mus became covered by the definition 'neighboring provinces'. Later on Adiyaman, Bitlis, Batman and Siirt were to be covered by OHAL's scope. At its height, OHAL covered 13 provinces, but with the reduction in the terrorist threat, only four provinces: Diyarbakir, Siirt, Hakkari and Tunceli are still covered.

The OHAL region has been run by six 'super' governors with special powers above and beyond those of regular provincial governors. One governor, Aydın Arslan, died in office in 1999. The current OHAL Governor is Gökhan Aydıner.

To date, some 29,712 Kurdistan Workers Party (PKK) separatist terrorists have been caught or killed or have surrendered within the boundaries of OHAL. A total of 1,117 village guards and 5,040 security forces personnel have been martyred as a result of terrorist activity within OHAL."

COE 13 June 2001, para. 141

"This state of emergency implies military presence in full operation [endnote 23], martial law, maintenance of the village guard system [Endnote 24], regular roadblock, curfews, identity controls and many other impediments of a normal economic and social life. The Turkish authorities recalled that the source of the present difficulties of the region is the security problem resulting from the PKK terror since the 1980's rather than the present state of emergency. Should the decline of the PKK terror prove to be permanent, the state of emergency will also be abolished in the remaining four provinces. "

[Endnote 23]: During their trip to Siirt the co-rapporteurs did not see any potentially strategic mountain pass or hilltop without the presence of security forces.

[Endnote 24:] in March 2000, the number of village guards was said to be 65,000, with about 335 000 - 400 000 family members, who are paid by the State.

UNCHR 28 December 1998, para. 14

"In accordance with article 120 of the Constitution, the Council of Ministers, meeting under the chairmanship of the President of the Republic and after consultation with the National Security Council, may declare a state of emergency in one or more regions or throughout the country in the event of serious indications of widespread acts of violence aimed at the destruction of the free democratic order or of fundamental rights and freedoms, or serious deterioration of public order. The state of emergency is declared for a period not exceeding six months. This decision shall be submitted immediately to the Turkish Grand National Assembly, which may extend the period for a maximum of four months each time."

IHF 2001, p. 303

"Under the 1983 State of Emergency Law and supplementary decrees, the emergency region governor had sweeping powers to move populations, confiscate publications and limit the right of assembly. Maximum police detention periods could be extended from seven to ten days within the emergency region. The governor's extraordinary powers were still regularly exercised in 2000. For example, in May, the emergency region governor banned the distribution of twelve journals. Rights to compensation for acts carried out by the emergency region governor were limited, and there was no judicial review of such actions."

Info-Türk November 2001, "State of Emergency Extended in Southeast for 4 Months"

"Parliamentary General Assembly on Tuesday adopted the Prime Ministry Official Communication pertaining to the extension of the implementation of emergency rule in four provinces for another four months. The provinces are Diyarbakir, Hakkari, Sirnak and Tunceli.

According to the Official Communication Emergency Rule will be extended starting as of November 30, 2001."

PKK leader Ocalan calls for ceasefire (1999)

- There were reports of some clashes between security forces and PKK groups withdrawing to Northern Iraq (2000)
- PKK attacks against civilians and law enforcement personnel has virtually ended

HRW 2000, p. 326

"In 1999 the Kurdistan Workers' Party (PKK) declared that it would abandon armed activities in Turkey, thus reducing the armed turbulence, particularly in the southeast, although some units of the PKK continued sporadic attacks, and there were some clashes between security forces and PKK groups withdrawing to Northern Iraq. Other illegal organizations, including the Workers and Peasants' Army of Turkey (TIKKO), the Islamic Raiders of the Big East-Front (IBDA-C) and the Revolutionary People's Liberation Party/Front (DHKP/C), continued their armed activities. Nevertheless, the number of clashes diminished considerably. The Anatolia New Agency reported in May [2000] that armed incidents had decreased from 3,300 in 1994, to 1,436 in 1995, to 488 in 1999, to eighteen in the first five months of 2000."

U.S.DOS February 2001, sect. 1g

"During the year [2000], Turkish ground forces with air support conducted several operations in northern Iraq against the PKK. The Kurdistan Democratic Party and the Patriotic Union of Kurdistan cooperated with the Turkish Government in shutting down certain PKK facilities in northern Iraq. Turkish government policy is to target only PKK fighters in northern Iraq; however,

Turkish planes accidentally killed 38 civilians in Sedakan, northern Iraq, during an operation in August against the PKK. The Government is taking steps to compensate the victims' families. At the end of the year, an operation against the PKK involving hundreds of Turkish soldiers continued in northern Iraq, according to press reports.

In February [2000] Parliament renewed legislation allowing members of terrorist organizations (and criminal gangs) to apply for amnesty or reductions in sentences, if they provide useful information that helps lead to the dissolution of the organization. Government figures are not available for the number of persons who applied for the amnesty, but human rights attorneys speculate that the number is above 2,500. According to press reports, many applicants, including some who were members of Turkish Hizbullah, have obtained sentence reductions or release.

The PKK remained almost completely inactive during the year. There were reports of internal divisions over jailed PKK leader Ocalan's call for ending the armed struggle, but by year's end no rival faction appeared to have gained control of the group. Apparently on orders from the PKK leadership, several groups of 8 to 10 former militants turned themselves in to the authorities, asking for amnesty. They are all currently standing trial for charges relating to membership in the PKK. Although PKK attacks against civilians and law enforcement personnel in the southeast have virtually ended, the military did engage the PKK, killing several alleged terrorists. Government authorities acknowledge that the level of violent conflict is considerably lower than in the past and that the main reason is an absence of PKK activity and the fact that the security forces were able to effectively end Hizbullah operations.

Other terrorist organizations, most notably DHKP-C, conducted attacks mainly against police targets."

Human Rights Foundation in Turkey April 2001, sect. 3.10

"An armed clash broke out in the region between Kulp and Lice districts of Diyarbakir and Genç district of Bingöl on 13 and 14 April. 5 soldiers named nder Altay, Abdülkadir Kocatürk, Turgay Türmen, Kadir Altnöz and Kamil ngör lost their lives and another two were injured. The Emergency State Region Governor Office claimed that 9 PKK militants had lost their lives, whereas PKK declared 2 militants and 7 soldiers died, and 1 Militant had been caught.

In a statement the Emergency State Region Governor Office, alleged that 4 PKK militants died in the armed clash broke out on 24-25 April in the vicinity of Hakkari."

Human Rights Foundation of Turkey May 2001, sect. 3.10

"According to the information given by the PKK through daily zgür Politika on 7 May, 5 soldiers lost their lives during the operations deployed by the Turkish Armed Forces in Sirnak between 26 April and 3 May.

According to the information given by the Governor of the Emergency State Region, 200 PKK militants lost their lives during the operations started in Bingöl as of 21 May. Reports on the casualties stated that zgen Bingöl was among the victims."

State of Emergency ended in two of the four remaining OHAL provinces (July 2002)

- The State of Emergency in the Southeast was extended for 4 months in November 2001
- It ended on 1 July 2002 in the provinces of Hakkari and Tunceli and was extended a last time in Diyarbakir and Sirnak

Info-Türk November 2001, "State of Emergency Extended in Southeast for 4 Months"

"Parliamentary General Assembly on Tuesday adopted the Prime Ministry Official Communication pertaining to the extension of the implementation of emergency rule in four provinces for another four months. The provinces are Diyarbakir, Hakkari, Sirnak and Tunceli.

According to the Official Communication Emergency Rule will be extended starting as of November 30, 2001."

BBC 31 May 2002

"Turkey's National Security Council has agreed to lift the state of emergency which has been in force for the past 15 years in two predominantly Kurdish provinces.

The council - which groups Turkey's top generals and government leaders - said emergency rule in two other eastern provinces would be lifted in four months time.

The measure is one of the European Union's conditions for opening negotiations for Turkey's membership.

The council called on the EU to set out a timetable to start talks for Turkey's eventual membership before the end of the year.

[...]

In a statement, the council pledged to speed up other reforms needed to join the EU, but did not detail the measures it would adopt.

The EU has demanded that Ankara grant its 12 million strong Kurdish minority more rights and abolish the death penalty.

[...]

It is due to end on 1 July in the provinces of Hakkari and Tunceli, according to the council, and will be extended "one last time" in Diyarbakir and Sirnak.

Emergency rule was first imposed in 13 provinces in 1987, but was gradually lifted as fighting between Kurdish separatists and government troops died down."

OSCE: Parliamentary elections demonstrated vibrancy of Turkey's democracy yet public debate is limited (2002)

- Elections took place in a period of constitutional and legal reform
- The end of hostilities in the southeast led to a less highly charged political atmosphere
- Non-violent expression of political views is still restricted by a variety of laws
- Voter turnout 78.9%, DEHAP got 6.2% votes

OSCE, 4 December 2003

"The 3 November elections for the Turkish Grand National Assembly (TGNA) demonstrated the vibrancy of Turkey's democracy. A large number of parties campaigned actively throughout the country, offering the electorate a broad and varied choice. The sweeping victory of opposition parties showed the power of the Turkish electorate to institute governmental change.

The elections were held under election laws that establish a framework for democratic elections in line with international standards. Significant constitutional and legal reforms instituted over the past two years have further improved the overall legal framework under which the elections were carried out.

At the same time, the broader legal framework and its implementation establish strict limits on the scope of political debate in Turkey. Non-violent expression of political views beyond these limits is still restricted by a variety of laws and is rigorously enforced. Several parties faced action aimed at closing them down during the current elections, notably the Justice and Development Party (AK), the winner of the elections. Many candidates were also banned from running, including AK's leader and leaders of several other parties, generally as a result of past convictions for non-violent political speech. These restrictions on free speech and the practice of dissolving political parties and banning candidates stand in stark contrast to the otherwise pluralist election system in Turkey, as well as its international commitments.

Parties must win at least 10% of the vote to enter the TGNA; this is an exceptionally high threshold by European standards. Only two of the 18 parties running passed the threshold. As a result, 45% of the electorate cast votes for parties that will not be represented in the TGNA, and a party that drew less than 35% of the total vote will control almost two thirds of the seats in the TGNA. To avoid such distortions, the authorities should consider reviewing the level of the threshold. Other aspects of the law that might be reviewed are the absence of any judicial appeals against the decisions of the Supreme Board of Elections, and the absence of procedures for voting abroad.

[...]

The elections took place in a period of significant constitutional and legal reform in Turkey, during which human rights and fundamental freedoms have been substantially strengthened. Since the last elections in 1999, the government adopted a major constitutional reform package in October 2001, a new civil code in November 2001, and three additional legal reform packages in February, March, and August 2002. The adoption of these reforms was to a large extent in the context of the government's efforts to meet the Copenhagen political criteria for future membership in the European Union.

Several other factors also set the political framework for the elections. Since the previous elections, Turkey underwent a serious economic downturn, which continues to affect many sectors of the population. This was a major issue in the campaign and was reflected in the apparent disaffection of the voters for all parliamentary parties. The capture in early 1999 of Abdullah Öcalan, leader of the outlawed Kurdistan Workers Party (PKK), and the subsequent end of active hostilities by the PKK led to a less highly charged political atmosphere, particularly in the southeast. In addition, the question of Islamist influence in politics remained an election issue.

[...]

Many laws include restrictions on free expression. For example, Article 159 of the Penal Code provides possible prison sentences for 'insult to the State and to State institutions and threats to the indivisible unity of the Turkish Republic'. Article 312 of the Penal Code, mentioned above, was used to bar candidates for incitement of religious hatred. Articles 7 and 8 of the Anti-Terrorism Law include penalties for separatist propaganda or 'propaganda in connection with' a terrorist organization that can encourage the use of terrorist methods. Article 169 of the Penal Code, 'support for illegal organizations', has also been used in recent months to prosecute individuals for non-violent speech. Recent amendments to some of these laws as a result of the reform process may result in improvements in conditions for freedom of expression. Nevertheless, continuing restrictions and prosecutions had an effect on the election campaign, limiting the parameters of allowable legal debate.

Under Article 58 of the Law on Basic Provisions on Elections and Voter Registers, it is strictly forbidden to use any language other than Turkish in electioneering. As part of its reform process, a number of previous prohibitions on the use of other languages have been eliminated, and in August 2002 laws were changed to allow broadcasting and education in languages other than Turkish. The Democratic People's Party (DEHAP) asserted that the remaining restrictions interfered with its ability to communicate with many of the ethnic Kurdish voters who make up its primary base of support. A DEHAP candidate told the Election Assessment Mission that he had

four cases against him for speaking Kurdish at election meetings or rallies. Three DEHAP supporters were reported to have been detained in Sirnak for having played Kurdish music in a DEHAP bus; they have been charged with supporting an illegal organization. Abdulmelik Firat, Chairman of the Rights and Freedom Party, was detained briefly for greeting a crowd in Kurdish during the election campaign. The lifting of restrictions on the use of other languages than Turkish in the field of broadcasting and education should be extended to political campaigning.

[...]

On 9 November, the Supreme Board of Elections announced the final election results. As noted above, only two parties passed the 10% threshold. The Justice and Development Party (AK) won 34.3% of the vote and was awarded 363 of the 550 seats in the TGNA. The Republican People's Party won 19.4% of the vote and was awarded 178 seats. Neither of these parties had been represented in the outgoing Parliament. Nine independent candidates were also elected.

The outgoing Prime Minister Bülent Ecevit's Democratic Left Party (DSP) drew only 1.2% of the vote, while his governing partners, the National Movement Party (MHP) and the Motherland Party (ANAP) drew 8.3% and 5.1% respectively. Other notable results included the True Path Party (DYP) 9.55%, The Youth Party (Genç) Party 7.25%, DEHAP 6.2% and the Felicity Party (Saadet) 2.5%. Voter turnout was 78.9%."

Turkey's southeast emerges poor and devastated (2004)

- Rural depopulation is an inevitable phenomenon in Turkey, yet the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors
- The ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War that interrupted trade and trafficking with Iraq, and under-development of a region which lacks investment due to insecurity are also important factors
- Most NGOs consider that improving economic and social conditions is a primary condition for the return of the population
- Destruction of infrastructure, crops, houses and other resources made the majority of the region uninhabitable
- The conflict also paralysed the infrastructure of the rural economy and destroyed the culture of a constitutional state
- Death of bread-winners, lack of education of children and displacement have undermined the recovery potential of Turkish Southeast

COE PA Monitoring Committee March 2004, pp.44-45

"Rural depopulation is an inevitable phenomenon in Turkey as elsewhere, but the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors. The co-rapporteurs were told that the ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War, which totally interrupted trade and trafficking with Iraq, and the under-development of a region where insecurity means that no one wants to invest are just as significant as the destruction of villages and the enforced displacements imposed by the security forces. Most NGOs consider that improving economic and social conditions is a sine qua non for the return of the population, whether it left under compulsion or voluntarily."

CoE 22 March 2002

"The armed conflict has disrupted the region, which even before had been one of the poorest and least economically developed regions of Turkey with rates of illiteracy, poverty etc. much higher than in the rest of the country. Systematic destruction of the infrastructure, economic resources,

livestock, crops, houses, and farming machinery has made large areas of the region uninhabitable. The infrastructure of the rural economy has been paralysed. The cultivable land and the irrigation channels have fallen into disuse, numerous landmines add to the problem. Deprived of a market economy and industry, the region has also lost its more traditional forms of economic activity, namely livestock rearing and agriculture. Leaving their homes the peasants had to abandon all farming machinery and sell off their livestock at very low prices (if their animals had not been killed or taken away by the PKK beforehand). Unemployment in overcrowded cities and towns is disastrous.”

Info-Turk June 2002, “No Real Improvement in Living Conditions for Kurds”

“But it is unlikely that they will get the opportunity for a decent life. After 15 years of war and 25 years without rule of the law, the region is economically, socially and morally in ruin.

It is also still highly questionable whether an official lifting of the states of emergency can in practice effect a quick return to a normal life under a constitutional state. There will certainly be many gains with the lifting of the war-like rule by the authorities. Under state of emergency regulations, governors can clear whole villages, ban undesirable persons from the region, censor the media, authorize house searches without court permission, and to issue decrees without requiring any scrutiny by the Turkish courts. What cannot be restored by the security council's resolution is the culture of a constitutional state, something which has been completely destroyed. Because state and security authorities in state of emergency regions cannot have legal action taken against them, state despotism has established deep roots for itself.

Even when the special authorities have been disbanded, an immense tragedy will still be left behind. Villages have been devastated, the land has gone to waste, animals have been slaughtered. There are no opportunities in the regions devastated by war: in the province of Hakkari only 16,600 people are employed out 200,000 inhabitants.

Loans, funding and aid are needed for rebuilding the regions and this is where the problems begin: Tens of thousands of people have lost their bread-winners in the war, hundreds of thousands of children have not received any education, millions have fled to Istanbul, Izmir and Europe - all of these require support for a new beginning.”

PKK/Kongra-Gel announces end to cease-fire (June 2004)

- Kongra-Gel (formerly the PKK) announces an end to the five-year ceasefire (1999)
- In April 2002, the PKK changed its name to KADEK (Congress for Freedom and Democracy in Kurdistan)
- The group declared a ceasefire in September 1999 after the capture of Abdullah Ocalan, saying it would use political channels to resolve the conflict with Ankara

BBC 2 September 2003

“The Kurdish paramilitary group Kongra-Gel - once known as the PKK - has declared that its five-year unilateral ceasefire will end in three days' time.

The PKK declared a ceasefire in 1999 following the capture of its leader, Abdullah Ocalan, by the Turkish security forces.

For 15 years the PKK fought the Turkish state in a conflict which claimed more than 30,000 lives. Its successor has now said it will target Turkish security forces again.

The statement by Kongra-Gel (Kurdistan People's Congress) came through a channel often used by the PKK, the Mesopotamian News Agency.

It said that the ceasefire had become meaningless following what it called annihilation operations carried out against its fighters over the past few months.

Tourists, the statement said, should not choose Turkey and those considering investing should think again.

[...]

It is difficult to know how seriously to take the threat of renewed military action by Kongra-Gel.

For several months, deep divisions have been reported within the organisation, which is thought to have around 5,000 fighters in the far north of Iraq.

It is believed that a sizeable faction wants to renounce the armed struggle once and for all.

There has been an increase recently in activity in the south-east of Turkey which borders northern Iraq.

Some believe that this may have come about as a result of the American military presence in Iraq.

Turkey has been pressing the US to take action against Kongra-Gel, something which it has promised but, so far, failed to do." (BBC, 29 May 2004)

"More than 30,000 people were killed over a 15-year period as the Kurdistan Workers' Party (PKK) fought for autonomy in the overwhelmingly Kurdish south-east.

[...]

The PKK, which last year changed its name to Kadek (Congress for Freedom and Democracy in Kurdistan) said it had become impossible to maintain the ceasefire called after Abdullah Ocalan's arrest in February 1999.

The group declared its ceasefire in September 1999 after the capture of Abdullah Ocalan, saying it would use political channels to resolve the conflict with Ankara.

However Turkey - which along with the US and many European countries regards the PKK as a terrorist organisation - has repeatedly rejected calls to negotiate a solution to the Kurdish conflict."

See also "[Le PKK change de nom et devient le KADEK](#)" Info-Turk, April 2003

Developments in Iraq and their impact on Turkey (2005)

- One concern for Turkey is that the creation of a Kurdish state in north Iraq might serve as a model for Turkey's own Kurdish population

ICG, 26 January 2005

"In northern Iraq, largely unnoticed, a conflict is brewing that, if allowed to boil over, could precipitate civil war, break-up of the country and in a worst-case scenario Turkish intervention. Tensions in the oil-rich Kirkuk region, where the political ambitions, historical claims and economic interests of the principal communities -- Kurds, Arabs, Turkomans and Chaldo-Assyrians -- clash, have been escalating since U.S. forces toppled the Baathist regime in April 2003. Violence is assuming a troubling pattern. Turkey, with its own large Kurdish population, is watching with growing anxiety. The U.S. and EU need to do more to resolve the Kirkuk question

and help Ankara protect its vital interests without resort to increasingly hollow but destabilising threats of military intervention.

The situation has been aggravated by the worsening state of affairs in Iraq and by political actors, especially Kurds, who are seeking to undo the grave injustices that flowed from the ousted regime's policy of Arabisation, returning in numbers and laying claim to Kirkuk as the capital of a future Kurdish region -- or state. Tensions have been contained somewhat by the presence of U.S. troops and a U.S.-engineered interim political arrangement -- a provincial council broadly representative of the four communities -- that, against all odds, has held. But as Washington's attention is increasingly drawn to the instability in the rest of the country, things in Kirkuk might well get out of hand and the communities there find themselves in a violent stand-off.

From Ankara's perspective, chaos or civil war in Iraq, the creation of a Kurdish state in the north with Kirkuk as its capital that would serve as a magnet or model for Turkey's own Kurdish population, or a combination of the above, are nightmare scenarios. At the mercy of forces beyond its control, Turkey is anchoring its strategy in commitment to the political process in Baghdad and, as part of that, a peaceful solution to the Kirkuk question. It also is banking on progress in accession talks with the European Union to reduce any appetite for secession its Kurdish population might still harbour.

But it would be imprudent to rely on these as insurance against the threat of military actions should Turkish national interests seem to be in jeopardy. EU accession is, at best, years away. Public pressures resulting from Ankara's manipulation of the Iraqi Turkoman question and the continued deployment of Turkish troops on Iraqi soil could create a dynamic of their own, possibly precipitating military intervention in Kirkuk. Prospects for success in Iraq's political process are receding in the face of growing Sunni Arab alienation and a spreading insurgency. All in all, heightened threat perceptions could in themselves create an interventionist dynamic that more sober minds in Ankara might be unable to control.

Further improvement of relations between Turkey and Iraq's Kurdish leadership is the best hedge against the risks. Indeed, Turkey has already come a long way, accepting today a federal arrangement for Iraq's Kurds that even two years ago it considered an anathema. Economic ties and trade also have increased. But more steps should be taken, based on mutual interests: Turkey needs good relations with the Kurds to prevent chaos in the north, and the landlocked, vulnerable Kurdish entity, in turn, may have little choice but to rely on Turkey for protection.

Confidence-building measures are required to change the atmosphere, establish mechanisms to head off emerging conflicts and enable Turkey to play a more constructive role in the peaceful solution of the Kirkuk question. These include a mutual halt to inflammatory rhetoric, a lowering of tensions in Kirkuk, in particular through proactive international monitoring, and resolution of the nagging problem of the insurgent Kurdish Workers Party, the PKK (now called Kongra-Gel), remnants of whose forces remain holed up in northern Iraq.

The U.S., which remains Turkey's strategic ally, and the EU have a common interest in encouraging Turkey to play a constructive role. They should work proactively to resolve the Kirkuk question, strengthening relations between Ankara and the Iraqi Kurdish leadership, and promoting investments that would give the Kurdish population in southeastern Turkey evidence of the benefits it would gain from Turkish accession to the EU. Ultimately, the challenge is, through such measures, to give Turkey the means to exert a positive influence over the course of events in northern Iraq generally and Kirkuk in particular."

PKK/Kongra Gel calls for one month suspension of hostilities (August/September 2005)

- On August 20, the PKK/Kongra Gel called for a temporary ceasefire for a period of one month, after Turkish prime minister acknowledged the existence of a "Kurdish problem"

Reuters Alertnet, 21 Sept 2005

"Kurdish rebels in Turkey on Wednesday extended a one-month suspension of hostilities until Oct. 3, the day Ankara is due to begin long-awaited talks on joining the European Union.

Turkey has eased bans on Kurdish broadcasting and edged towards improving its human rights record under pressure from the EU, but baulks at negotiating with the Kurdistan Workers Party's (PKK) rebels it has fought for more than 20 years.

The PKK called for a month's 'inactivity' on Aug. 20 after Prime Minister Tayyip Erdogan acknowledged in a speech the existence of a 'Kurdish problem' and said democratic reforms were the answer.

But Turkey's army ignored the PKK call, just as it did a five-year ceasefire by the group that ended last year, and operations against the rebels have continued with full force.

'We call on the prime minister to act responsibly and evaluate the period until Oct. 3 for a democratic solution,' a PKK leadership statement said in an apparent attempt to press Erdogan to follow up on his speech before the EU talks begin.

The statement was quoted by the Germany-based Mesopotamian News Agency, which often carries rebel announcements.

More than 30,000 people, most of them Kurds, have been killed since the PKK took up arms for Kurdish home-rule in 1984 and there has been little let-up in violence in the last month -- some 40 rebels and soldiers have died in fighting.

Clashes have also occurred between PKK sympathisers and Turkish nationalists in some towns around the country. Turkish leaders have accused the PKK of trying to force itself onto the political agenda ahead of the Oct. 3 EU start date.

The PKK said it supported Turkey's EU membership, but if Turkey did not respond to its call by Oct. 3, 'we want everyone to know we will not hesitate to defend ourselves.'"

European Union opens accession discussions (October 2005)

- EU Commissioner for Enlargement Olli Rehn warned that efforts to improve democracy would now be under even closer scrutiny
- Rehn said the EU fulfilled its commitment to Turkey by opening talks and that it was now up to Ankara to do its share by implementing reforms in the areas of the rule of law, human rights, women's rights, the rights of religious communities and the rights of trade unions
- Turkey must fully implement the political criteria (of the EU), which means opening a clean sheet in terms of human rights and the rule of law

EC, 4 October 2005

"Today is a milestone in the relationship between the European Union and Turkey.

A stable, modern and democratic Turkey is an objective we should support actively in the European Union and in Turkey. This is why we are starting negotiations.

Of course the road towards Turkey's accession will be long and difficult.

Accession, as for every country, is neither guaranteed nor automatic.

The negotiations must be fair and rigorous. On behalf of the European Union I can guarantee this will be the case. Turkey must be treated in the same way as all other candidates. And it must strictly respect the requirements for democracy, human rights and rule of law if it is to join the club.

Europe must learn more about Turkey. And Turkey must win the hearts and minds of European citizens. They are the ones who at the end of the day will decide about Turkey's membership.

Turkey must be given a fair chance to demonstrate that it is capable of meeting all conditions for accession.

I hope it will; an open dynamic Turkey is in the interest of a European Union capable of assuming fully its responsibilities in the world."

Turkish Daily News, 7 October 2005

"Turkey must concentrate its energy on reforms to fully align itself with standards of the European Union after it opened accession negotiations with the bloc, EU Commissioner for Enlargement Olli Rehn said, warning that efforts to improve democracy would now be under even closer scrutiny.

'We have now started a new phase in EU-Turkey relations,' Rehn said after talks with Foreign Minister Abdullah Gül in his first visit to Turkey after a landmark decision on Monday to formally launch accession negotiations. 'This means that Turkey will be under even closer scrutiny by the EU and, especially, the public and member states' governments and parliaments.'

Public skepticism over Turkey's membership is high in Europe, and European officials have said in remarks in the wake of the Monday deal that Turkey must win the hearts and minds of the people of Europe to proceed on to full membership.

Rehn said the EU had fulfilled its commitment to Turkey by opening talks and that it was now up to Ankara to do its share by implementing reforms to 'make the rule of law an everyday reality in all walks of life' and in all parts of the country.

'This means vigorously implementing political reforms in the areas of the rule of law, human rights, women's rights, the rights of religious communities and the rights of trade unions,' the commissioner said.

'In order to conclude the negotiations and become a member of the union, Turkey must fully implement the political criteria (of the EU), which means opening a clean sheet in terms of human rights and the rule of law.'

Rehn's commission will release an annual assessment of Turkey's reform efforts on Nov. 9. The report is expected to highlight progress, as well as remaining deficiencies, in a number of fields."

Kurdistan Workers' Party declares a unilateral cease-fire (October 2006)

- The call was rejected by Turkish Prime Minister Erdogan, who demanded instead that Kurdish separatists lay down their arms

"Turkey's rebel Kurdistan Workers' Party (PKK) has declared a unilateral cease-fire in operations against the Turkish military.

The pro-Kurdish Firat News agency has quoted a rebel statement saying the length of the truce, which takes effect on Sunday, will depend on steps taken and developments that occur.

Arms will not be used as long as the Turkish army launches no attacks aimed at wiping out the rebellion, Firat News says.

The declaration comes two days after jailed Kurdish leader Abdullah Ocalan appealed to the PKK to call a cease-fire.

The call was rejected by Turkish Prime Minister Recep Tayyip Erdogan, who demanded instead that Kurdish separatists lay down their arms.

"A cease-fire is done between states. It is not something for the terrorist organisation," he said.

The PKK took up arms for self-rule in Turkey's predominantly Kurdish south-east in 1984.

The conflict has claimed more than 37,000 lives.

The rebel group, classed as a terrorist organisation by Turkey, the European Union and the United States, called a truce immediately after Ocalan's 1999 arrest.

But it took up arms again in 2004 and has significantly increased its attacks since, particularly this year."

Turkish military build-up on the northern Iraq border (July 2007)

- Turkey's armed forces chief said the army was prepared to start cross-border action to halt attacks inside Turkey by the PKK from Iraq
- The Turkish army deployed additional tanks and troops to the border area
- Turkish officials say their government's patience is exhausted with the rising level of PKK attacks
- Kurds in north Iraq and south-east Turkey say Ankara is to blame for a conflict that has claimed an estimated 37,000 lives since 1984
- The last big cross-border operation was 10 years ago when 40,000 Turkish troops entered Iraq

The Guardian, June 2007

"A Turkish military build-up on the northern Iraq border is fuelling fears of a confrontation between Ankara and Kurdistan's semi-independent government that could further destabilise the region as US forces begin to pull back.

Turkey's armed forces chief said yesterday the army was prepared at any time to start cross-border action to halt attacks inside Turkey by the separatist Kurdistan Workers' party, which has bases in Iraq.

"As soldiers, we are ready," General Yasar Buyukanit said.

But the general said Turkey's parliament must first agree the aims of any intervention. "The political authorities need to decide this. We can't know whether we will go there and fight only the PKK [Kurdistan Workers' party] or deal with [Iraqi Kurdish president Massoud] Barzani as well."

The Turkish army has deployed additional tanks and troops to the border area this week for "spring manoeuvres". But the military moves, although apparently limited so far, have been accompanied by a rising crescendo of public and political demands for action to curb PKK attacks. The government of the prime minister, Recep Tayyip Erdogan, is under pressure, following a suicide bombing, blamed on the PKK, which killed six people in an Ankara shopping

mall last week. Officials said the bombing marked an escalation in the separatists' campaign. Mr Erdogan's comment, after the Ankara blast, that he saw "eye to eye" with the army over future military action has raised expectations that an operation is imminent.

Mr Barzani, head of the Kurdistan regional government (KRG), which enjoys considerable autonomy from the Shia Arab-led Baghdad government, has warned that any Turkish intervention could meet with resistance, both in northern Iraq and in south-east Turkey.

Mr Barzani's fighting talk has been condemned by US officials who are urging Ankara to hold fire, too. They worry that the region could be destabilised if the two sides collide. But Turkey's inclination to take matters into its own hands may have been strengthened by this week's formal handover of the three northern Kurdish provinces of Iraq - Arbil, Dahuk, and Sulaymaniyah - to KRG security forces. Only a few US forces will now remain in the northern region.

Speaking on Turkey's Kanal D television channel this week, the US ambassador, Ross Wilson, said Washington was pursuing "a number of avenues" with Ankara to curb PKK attacks. "I am hopeful that they will produce results," he said. In the interview he had to explain why two US F-16 fighter jets had crossed the Iraq border and violated Turkish airspace this month. Turkey issued an official protest after the incident, which Mr Wilson termed accidental. But Turkish media suggested Washington was sending a none-too-subtle message to its Nato ally to keep out of Iraq.

Turkish officials say their government's patience is exhausted with the rising level of PKK attacks and US prevarication. "The military build-up has been going on for the past month," a Turkish diplomat said. "We are trying to get Iraq, the US, and the Kurdish regional government to act more responsibly. But unfortunately so far we have not had enough cooperation. We are trying to act with restraint. But public opinion is really boiling after the suicide bombing last week."

The diplomat said Mr Barzani's "irredentist rhetoric", appearing to assert a political and territorial claim to ethnic Kurdish areas of south-east Turkey, was exacerbating the situation. Media allegations that Kurdish authorities in northern Iraq were aiding the PKK and, like US forces, turning a "blind eye" to its activities, were widely believed, he said. "We know for sure that most of the explosives used by the PKK come from northern Iraqi territory," he added. "The US could help us a lot more. They could have captured leading figures in the PKK but instead they have given them safe haven. This is very harmful to public opinion and Turkey's relationship with the US."

Kurds in north Iraq and south-east Turkey say Ankara is to blame for a conflict that has claimed an estimated 37,000 lives since 1984. They point to systemic civil and human rights abuses and institutionalised discrimination against Turkey's ethnic Kurd minority. Despite reforms designed to ease Turkey's entry into the EU, many grievances remain unaddressed.

Several internal factors are stoking the pressure on Mr Erdogan, who may see limited military action as a way of distracting attention from home: these include the general election in July, an impasse over the next president, controversial constitutional reforms, and debate on preserving Turkey's secular character. The last big cross-border operation was 10 years ago, in Saddam Hussein's regime, when 40,000 Turkish troops entered Iraq. But some Turkish observers said that action was not a success and predict any new incursion would also be of limited utility."

See also a [report by the International Crisis Group](#) on relations between northern Iraq and Ankara, 2005

Causes of displacement

Study in Van province identifies village evacuations as primary cause of displacement (2006)

- The evacuation of the villages for security reasons was listed as the primary reason 66.6% whereas terror and violence comes second at 38%

Emin Yasar Demirci, Places of displaceds, July-August 2006, p. 30-32:

"As the term displaced suggests the primary reason of migration among the displaced persons is known to be evacuation of the villages for safety and/or security. In addition to that very basic reason we added our questioner some secondary reasons besides evacuation and asked participants mark them as multiple choices. The result is illustrated in the table below.

TABLE 35: REASON OF MIGRATION

<u>Reason of Migration</u>	<u>Frequency</u>	<u>%</u>
Terror and violence	200	38,0
Hopes for better life	46	8,7
Unemployment	89	16,9
Better education for children	11	2,1
Forced evacuation of the villages	351	66,6
Total responses	697	132,3

As seen on the table, the evacuation of the villages for security reason takes the first place with %66.6 whereas terror and violence comes second with %38. Cumulative percentage of other three reason, that is, hopes for better life, unemployment and better education for children, makes up %27,7 besides the most important two reasons. What this figure may suggest is that despite the trauma the process of displacement caused, %27,7 displaced persons gave credit to other reasons besides the primary cause, an indication that there were still some other reasons at work for migration even that this dreadful event would not happen. In other words, there are reasons to believe the strong trends of migration in the region, which was triggered by terror and related security issues and intensified within a short time period. This claim, however, should not be taken to belittle the burdens and the sufferings of displaced persons, which should never be forgotten if a lasting solution to their problems to be found. We should also look at the issue from wider perspectives giving us clues in developing more appropriate policies towards displaced persons and their problems. In search of those clues we asked displaced persons if they ever visit their villages after they fled."

Up to 3500 villages in south-eastern Turkey have been forcibly evacuated, mostly by the Turkish army (1984-1999)

- The authorities' objective was to deprive the PKK of any logistical support
- The evacuation of villages often took place following the refusal of villagers to join the village guard system
- Evacuations were carried out with extreme brutality, with reports of severe human rights violations, such as rape, property destruction, beatings and extrajudicial executions
- The responsibility of the Turkish authorities for the evacuation of most villages has been confirmed by national and international institutions
- The majority of villages and hamlets in the region were forcibly emptied between 1992 and 1995
- The rate of evacuations decreased considerably in recent years

Ayata Bilgin and Yüksek, Deniz, December 2005

"The evacuations were concentrated between 1992 and 1994.[...] This was the period when the armed forces had started to implement a strategy of domination over large swathes of rural territory. [...] According to testimonies of military commanders of the period, military personnel buildup, equipment upgrading, intensive and continuous operations, and cutting off the supply

routes of the PKK were integral parts of that strategy.⁴¹ Therefore, it can be conjectured that the rationale for the evacuation of especially mountainous rural settlements was to cut off logistic support to PKK militants. [...] Successive governments never explicitly conceded that the villages were evacuated by security forces. Instead, government officials claimed that the PKK was responsible for the majority of evictions, also arguing that some of the migration was economically motivated. [...] It is also significant that state authorities have always carefully avoided ethnically identifying displaced people as Kurds. [...]"

U.S. DOS 26 February 2000, sect. 1g

"The Government's states purposes for the evacuations were to protect civilians or prevent PKK guerrillas from obtaining logistical support from the inhabitants. Villagers and other observers alleged that the security forces evacuated them for refusing to participate in the paramilitary village guard program."

COE 3 June 1998, paras. 8-17

"The evacuation of villages refusing to join the village guard system is carried out by the army with extreme brutality and no civilian supervision. It is frequently accompanied by the destruction of property and further violation of human rights such as sexual assault and humiliation, beatings and extrajudicial executions.

The Turkish authorities until recently have denied responsibility for these operations, claiming that the PKK was to blame for the destruction of villages and that individuals had left voluntarily, or under pressure from the PKK. However the complicity of the Turkish authorities was confirmed in two recent rulings of the European Court of Human Rights: on 16 September 1996 in the case of Akdivar and others vs Turkey, and on 28 November 1997 in the case of Mentesh and others vs Turkey, in which Turkish security forces were found guilty of burning houses in villages in south-eastern Turkey, causing the villagers to flee.

Undoubtedly, the PKK has some responsibility for the burning of villages, in particular those run by village guards or refusing to support the PKK. [...]

However, the responsibility of both parties, the PKK on the one hand, and the Turkish armed forces on the other, should be viewed in appropriate proportions. In the Rapporteur's opinion the Turkish authorities bear more blame for the uncontrolled escalation of violence in the region, first because the provocative nature of their suppression of the rights of the Kurdish minority lies at the origin of the conflict, and secondly because they have at their disposal the whole machinery of the state, which they use abusively against the Kurdish population in the region.

A step towards the clarification of this important question has been undertaken by the Turkish Parliament. At the request of one of its members, Mr Algan Hacaloglu of the Republican People's Party (CHP), a former state minister for human rights, the Turkish Parliament set up a Committee on Migration in 1997 to investigate the causes of displacement and to provide aid to the displaced.

On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364 742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bülent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations."

USCR 1999, pp. 13-16

"Independent observers confirm that most displacement in the 1990s has been caught by government army and security forces, including the village guards. In its 1994 report, Turkey: Forced Displacement of Ethnic Kurds from Southeastern Turkey, Human Rights Watch concludes, 'According to our research, the vast majority of those displaced in south-eastern Turkey is largely the result of actions by Turkish security forces. Forced displacement usually comes as collective punishment for refusal to join the village guard system or for supporting the PKK, usually for giving food and a place to sleep (yardim ve yataklık), or for suspicion of committing such acts'. The U.S. Department of State has reached the same conclusion, characterizing forced displacement as a 'systematic process of evacuating and often burning villages throughout the southeast. The scale of evacuations and their continuance suggest that they are part of the Government of Turkey strategy designed to deprive the PKK of any logistical base in the southeast.'"

UK Home Office April 2001, para. 6.8

"From 1997 the rate of evacuation declined. By 1999 most human rights organisations reckoned there were in excess of 3500 villages evacuated and between 2.5 and 3 million people rendered homeless. These were not confined to the State of Emergency provinces; neighbouring provinces such as K. Maras, Sivas, Erzurum and Kangol were also affected."

COE 3 June 1998, para. 18

"According to Human Rights Watch the majority of villages and hamlets in the region were forcibly emptied between 1993 and 1995. After that the large-scale evacuations ceased, but smaller operations by the Turkish armed forces continued in 1996 and 1997. The most probable reason for the lower rate of evacuations is that there are now very few 'frontline' villages left outside the village guard system and the process of depopulation is virtually complete."

UK Home Office April 2001, para. 4.26

"As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year."

See also Human Rights Watch "[Weapons Transfers and Violations of the Laws of War in Turkey](#)", November 1995

The PKK is also responsible for significant internal displacement (1984-2000)

- The Kurdish armed group also has civilians among its targets, in particular village guards and their families
- The number of civilians whom the PKK arbitrarily killed declined after it announced that it would respect the Geneva Conventions
- Amnesty International continued to receive reports of indiscriminate killings of civilians even after the PKK declared to respect Article 3 of the Geneva Conventions

USCR 1999, pp. 27-28

"Although smaller armed opposition groups have operated in Turkey, the PKK has been the most significant, and most violent of them [110]. Although the numbers it is responsible for displacing is hard to quantify, the PKK is undoubtedly directly responsible for significant internal displacement that has occurred in Turkey. Among its civilian targets have been local political figures, such as mayors, and teachers, who teach the Turkish language [111]. The PKK's principal target appears to have been the village guards and their families."

[Endnote 110: Other violent opposition groups reportedly include the Revolutionary Left (Dev Sol/DHKP-C) and the Turkish Workers's and Peasants' Liberation Army (TIKKO).]

[Endnote 111: in the 1998, the PKK abducted three mayors in the southeast, killing one. (HRW, World Report 1999, p. 295)]

AI 1 October 1996, sect. 3 "Abuses by armed opposition groups"

"Armed opposition groups responsible for human rights abuses include the PKK, the DHKP-C, the Turkish Revolutionary Communist Party (TIKB), the Turkish Liberation Army of Peasants and Workers (TIKKO) and the Islamic Raiders of the Big East-Front (IBDA-C). Of these, the PKK is responsible for most deliberate and arbitrary killings. It is a bitter irony that during the 12 years in which the PKK has pursued its military objectives most victims of its deliberate and arbitrary killings have been Kurdish villagers. Reports from various sources show that armed PKK members killed at least 400 prisoners and civilians between 1993 and 1995. Most were killed because they had joined the government-armed village guard forces. Male village guards are frequently killed after being taken prisoner during PKK raids. Village guards Ramazan Baran and Habib Kaya were apparently abducted by PKK members on 11 September 1995. They were found dead near Saribalta village, Tunceli province, the following morning.

Armed opposition groups have an obligation to respect basic humanitarian principles. Yet they knowingly put civilians at risk and have murdered others who took no part in the conflict. Since the conflict began, both sides have treated villagers in southeast Turkey as a soft target. In the 1980s the PKK frequently massacred whole families. Many women and children are caught in the cross-fire and killed in the course of armed clashes when the PKK attacks village guards in their villages, but relatives of village guards are also sometimes deliberately and arbitrarily killed. Eleven children were apparently deliberately killed when PKK members attacked the village of Daltepe, near Siirt, in October 1993. In the same month PKK members abducted 32 males, including six juveniles, from Yavi, in the Çat district of Erzurum, and killed them. In August 1995 the PKK reportedly returned to the Çat district, and abducted and killed Zülküf Kiliç and his two young brothers, Kadir, aged 16, and Halim, aged 13, from the village of Aga.

In August 1994 a representative of the PKK told Amnesty International in a meeting in London that the organization had committed itself to abide by common Article 3 of the 1949 Geneva Conventions. This stipulates that people taking no active part in the hostilities, including members of the armed forces who have laid down their arms or who are out of action because of sickness, wounds, detention, or any other cause, must be treated humanely in all circumstances and should not be ill-treated or killed. Common Article 3 applies to all parties to an internal armed conflict, including armed opposition groups. The number of deliberate and arbitrary killings by the PKK fell after August 1994. However, Amnesty International continues to receive reports of such killings; there were 50 in 1995 and at least 16 in the first half of 1996.

Some individuals have been abducted and killed because they were suspected of being collaborators or informers.

[...] The PKK have also claimed responsibility for acts of indiscriminate violence in which civilians, including children, were killed and maimed. [...] The PKK have also planted bombs in public places, posing an indiscriminate threat to civilians. [...]

In March 1995 and again in April 1996, PKK leader Abdullah calan publicly threatened that the organization would intensify bomb attacks on certain civilian targets in Turkey and abroad. While claiming to respect common Article 3 of the Geneva Conventions, the PKK has continued to execute captured village guards, while its declared intention to attack civilian targets suggests that, contrary to the assurances given to Amnesty International, the PKK would be prepared to resume indiscriminate killings of civilians.

[...]The PKK has treated teachers as a military target on the pretext that state education is delivered only in Turkish and that education in Kurdish is forbidden. Ninety teachers have been

killed by the PKK since 1984. In late 1994 armed PKK members abducted and killed 19 teachers, most of whom were working in small villages in southeast Turkey."

Serious violations of human rights by security forces in the fight against the PKK (1984-2000)

- Since 1984, Police, Jandarma, village guards, and the armed forces have conducted an intense campaign to suppress PKK terrorism
- 4,460 civilians have lost their lives in the fighting since 1987
- Civilians have also been victims of forced disappearance, torture, extrajudicial executions
- Indiscriminate attacks on civilian populations by the armed forces have also been reported

U.S. DOS February 2001, sect. 1g

"Since 1984 the PKK has waged a violent terrorist insurgency in southeast Turkey, directed against both security forces and civilians. In response, police, Jandarma, village guards, and the armed forces conducted an intense campaign to suppress PKK terrorism. However, since 1999 almost all such violent activity by the PKK has ceased, although some armed clashes between the two sides continued to occur. Security forces continued to target active PKK units as well as those persons they believed supported or sympathized with the PKK. There continued to be few reports of government and PKK human rights abuses committed against noncombatants. According to statistics from the governor of the state of emergency region, 23,415 PKK members, 5,029 security force members, and 4,460 civilians have lost their lives in the fighting since 1987. During the year, 29 members of the security forces and 15 civilians died, according to the military.

Unlike in the previous year, there were no credible allegations of serious abuses by security forces during the course of operations against the PKK."

HRW, 30 October 2002

"Security forces forcibly displaced peasants in the 1980s and 1990s as a tactic to combat PKK insurgency. Founded by its leader Abdullah Öcalan in Diyarbakir province in 1978, the PKK drew its membership and logistical support from the local Kurdish peasantry. In its early years, the PKK mainly fought rival leftist and Kurdish organizations, but in August 1984 it attacked a gendarmerie post in Eruh, Siirt province, part of the mainly Kurdish southeast that had been a closed military zone since the 1920s. As the PKK stepped up its actions, the gendarmerie (soldiers carrying out police duties under the authority of the Interior Ministry) responded with widespread village raids and mass detentions. Detention almost invariably meant torture by beating, electric shocks, and sexual assault, as well as deprivation of food and water. Most of the nearly five hundred detainees who died in Turkey between 1980 and 2000 were villagers under interrogation in police stations and gendarmeries in the southeast. The security forces' repressive methods merely provoked ever larger numbers of disaffected youth to join the PKK, and within a few years the organization had grown to a substantial force, recruiting more than 30,000 between 1984 and 1999.

Turkish security forces failed to distinguish the armed militants they were pursuing from the civilian population they were supposed to be protecting, but whom they knew included people who were supplying and hiding the militants, willingly or unwillingly. The government resorted to a solution used by other states faced with similar adversaries in other parts of the world: they required the local populace to show their loyalty by bearing arms against the insurgents. After 1987, rural communities were expected to put up a sufficient number of men to form a platoon of 'provisional village guards,' armed, paid, and supervised by the local gendarmerie post. Communities could refuse to join the village guard system, but from then on the security forces

would view them as PKK sympathizers. Villages that did opt to join the system were angry when neighboring settlements refused, because this left their flank exposed to PKK attacks. The village guard corps was well armed, but they had no formal chain of command and usually wore no uniforms or means of identification. Where tribal bonds were strong, clan leaders used village guards as a private army to reinforce their local supremacy.

In response, the PKK declared Kurds who joined the village guard system to be traitors. When they caught them, they often executed them. The PKK also carried out massacres of village guards' noncombatant families, including women and children. When the PKK melted away into the mountains after such attacks, the state military's counter-operations routinely started by rounding up the inhabitants of any nearby non-village guard communities and torturing them in order to extract information about PKK movements, and government forces sometimes committed massacres in reprisal for PKK attacks and abuses. [...] The resort to outright lawlessness was reflected in the methods of the gendarmes in rural areas. Armed PKK members had been using the guerrilla tactic of swimming 'like fishes in the sea of the people,' as Mao Zedong had described, and the security forces used the counter-guerrilla tactic of 'draining the sea.'

Rather than simply harass and threaten villagers who refused to join the village guard system, they methodically destroyed recalcitrant settlements.

Helicopters, armored vehicles, troops, and village guards surrounded village after village. They burned stored produce, agricultural equipment, crops, orchards, forests, and livestock. They set fire to houses, often giving the inhabitants no opportunity to retrieve their possessions. During the course of such operations, security forces frequently abused and humiliated villagers, stole their property and cash, and ill-treated or tortured them before herding them onto the roads and away from their former homes. There were many 'disappearances' and extrajudicial executions. By 1994, more than 3,000 villages had been virtually wiped from the map and more than a quarter of a million peasants had been made homeless. Most of the displacements were from the ten southeastern provinces then under a state of emergency."

AI 1 October 1996, " A state of insecurity"

"Turkey is situated in a politically unstable region and has experienced two decades of intense political violence by armed opposition groups, principally the Kurdish Workers Party (PKK), which have attacked and killed civilians. The state has responded with a wide range of security measures which, by violating basic human rights, have further endangered the persona security of individual citizens. Despite all the promises of reform, Turkish citizens can still be swept off the streets and into a police station or gendarmerie post, where they may be held for up to a month. There they will be unprotected by even the most basic safeguards against torture, still a standard method of interrogation. Since 1980 more than 400 people have died in police custody, apparently as a result of torture. The exact status of security forces allegedly responsible for violations is sometimes hard to establish, particularly in the southeast, where security forces do not always wear standard uniform or insignia. In most reports of torture, the detainee was interrogated by plainclothes police officers of the Criminal Investigation or Anti-Terror branches or by gendarmes. Gendarmes are soldiers who carry out police duties in rural Turkey. Many allegations of extrajudicial execution have been made against members of Special Operations Teams. These are technically police officers under the authority of the Interior Ministry, heavily armed for close combat with the PKK. Special Operations Team members frequently accompany members of the paramilitary village guard force and gendarmes in security raids on villages. Regular army and air forces also participate in large operations in the southeast."

AI 1 October 1996, "Disappearances - how to torture a whole family"

"Ten years ago people did not disappear in custody in Turkey. In 1991 there were a handful of reports, and several more in 1992. In 1993 there were at least 26. In 1994 there were more than

50 reported disappearances, the highest number in any country reported that year to the UN Working Group in Enforced Disappearances, which expressed particular concern at this considerable increase. At least 35 people disappeared in 1995.

Most of the disappeared are Kurdish villagers with no history of political activity, detained during the course of security raids on suspicion of giving food or shelter to PKK members. Many families of the disappeared fear their relatives have died under torture, or that they were arbitrarily killed in reprisal of the deaths of soldiers in clashes with the PKK."

AI 1 October 1996, Extrajudicial execution in the southeast

"Repression has long been the response to security problems in Turkey, but in 1991 certain elements in the security forces went even further. They stepped outside the law and began to wage a full-scale dirty war. An unprecedented wave of political murder swept through the southeast but continued onto the streets of Ankara and Istanbul.

In the late 1980s Amnesty International had received occasional allegations of extrajudicial execution, but in the spring of 1991 the organization began to receive a large number of reports of death squad style killings of Kurdish villagers in the Midyat area of Sirnak province. The security forces were clearly involved in the killings. The perpetrators were able to pass through military check-points and were sometimes moved around using military vehicles and helicopters.

In mid-1999 Kurdish leaders began to be targeted and by early 1992 scores of people were being gunned down in the first of hundreds of street killings by small groups of assassins in the cities in the southeast. In most cases the killers were never identified but there is evidence that the security forces were orchestrating the killings by arming and paying the assassins. Most of the victims were perceived by the security forces as potential enemies of the state. They were people who worked for left-wing or Kurdish nationalist publications, and people who had previously been detained or imprisoned on suspicion of membership of the PKK or other illegal Kurdish groups.

More than 1,000 people have died in these political street killings since 1991."

U.S. DOS February 2001, sect. 1g

"Although the armed conflict in the southeast lessened in intensity, both government forces and the PKK continued to commit serious human rights violations. Village guards - ethnic Kurdish villagers who function as government-appointed civil guards in remote areas of the southeast - continued to be implicated in many abuses, and civilians remained particularly vulnerable in the region. During a parliamentary human rights commission hearing in February, the governor of Batman was reported to have said that 'methods beyond the accepted norms' were often used to convince villagers that they should not assist the PKK. Victims who petitioned the parliamentary commission described methods such as forcing villagers to walk on mine fields or torturing family members and neighbors. Several village guards stood trial during 1998 for crimes such as rape and the execution of civilians.

In addition to the village guards, Jandarma and police 'special teams' are viewed as those most responsible for abuses. However, the incidence of credible allegations of serious abuses by security forces, in the course of operations against the PKK, is significantly lower than in the past."

AI November 1995, sect. V

"Although indiscriminate fire by Turkish security forces is not the most consistent violation of international law in Turkey's southeast, it remains a persistent problem. In some cases, the security forces have grossly overreacted to actual or suspected PKK attacks. In these incidents, which have occurred primarily in the towns and cities, security forces appear to have taken

advantage of suspected or actual PKK activity to unleash a barrage of fire on civilian neighborhoods suspected of containing PKK sympathizers.

In some instances, the indiscriminate fire may have been due to negligence on the part of Turkish gunners seeking to hit PKK targets. But lack of intent to kill or cause destruction is no excuse for failing to care for the well-being of civilians.

In other cases, security forces have shelled, bombed or strafed villages, either as punishment for presumed PKK sympathies or as a method of intimidation aimed at forcing villagers from their homes. In the latter set of cases, the security forces appear to have relied on indiscriminate fire as a quick and easy way of evacuating villages in preparation for their later destruction. In some such attacks, civilians have been wounded or killed; in others, they fled their homes which were partially destroyed. Later, troops came and completed the destruction.

In a number of cases, Turkish security forces have targeted civilian settlements for serious attack with the intention of causing large numbers of civilian casualties. This is best exemplified by the March 1994 series of Air Force bombing raids on villages in the Öirnak area, in which dozens of civilians were killed and entire villages were destroyed. Other similar cases occurred in 1992 and 1993, however, suggesting that the March 1994 attacks, while remarkable in their scope and intensity, were not isolated events."

A source of insecurity: the "village guards" (1984-2001)

- More than 65,000 civilians in south-eastern Turkey have been pressured by the authorities to join "village guards", paramilitary militias set up to fight the PKK
- Villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force
- Village guards have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses
- No steps have been taken to disband the village militia which remain an obstacle to the return of the displaced

UK Home Office April 2001, para. 6.19

"The 'village guards' are armed and paid by the authorities to defend their villages against attack by the PKK and to deny them logistical support from the villages in the area. Although recruitment into the village guard corps is voluntary (indeed, some Kurdish tribes are pro-government and enthusiastic in their participation) refusal by individuals or entire villages to participate in the system is usually considered by the local forces as an indication of active or passive support for the guerrillas. The evacuation of the village, and its subsequent complete or partial destruction on security grounds, can follow a refusal to join."

U.S. DOS February 2001, sect. 1g

"The Government organizes, arms, and pays a civil defense force in the region of more than 65,000 persons, which is known as the village guards. Participation in this paramilitary militia is mainly voluntary, but villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force. Village guards have a reputation for being the least disciplined of the Government's security forces and have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses. Inadequate oversight and compensation contribute to this problem, and in some cases Jandarma allegedly have protected village guards from prosecution."

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 45-46

"It might be assumed that with the apparent end of the guerilla war, the village guard is in the process of disbandment. By 2000 there were probably in the order of 80,000 village guards under arms. This poses a major problem for the State, since they have become reliant on their village guard salaries. If they are disbanded it is feared this could unleashed massive criminal activity, backed with firearms. Not only, therefore, has the government taken no steps to disband them, but it has considered recruitment of 'penitent' PKK guerillas into the village guard there have been cases in 2000 of displaced villagers being refused permission to return to their villages unless they enrol in the village guard. In other words the current evidence indicates that the village guard militia may have become a long-term feature of the region."

See also: "[Les gardiens de village restent maîtres dans le sud-est](#)", AFP 4 Juillet 2000 (published in Info-Turk)

Internal exile: a discretionary decision of the state of emergency region's governor (1987-2001)

- The governor has the authority to remove citizens from the region for reasons of general security and public order
- Teachers, party officials and trade unionists have been affected by this practice

U.S.DOS February 2001, sect. 2d

"Although there is no legal internal exile, since 1990 the state of emergency region's governor in the southeast has had the authority to 'remove from the region,' for a period not to exceed the duration of the state of emergency (in place for 15 years), citizens under his administration whose activities 'give an impression that they are prone to disturb general security and public order.' Teachers, party officials, and trade unionists have been affected by this provision in the past, and dozens of unionists were kept out of the southeast this year, according to press reports. In July security officials in Batman took the passports of two visiting British parliamentarians who were looking into the issue of the Ilisu dam, and also took documents of a Republican People's Party (CHP) official and some accompanying journalists."

HRFT, February 2001, sect. 1

"A number of trade unionists were exiled from the State of Emergency Region starting from January [2001], reaching 33 in February. The practice targeted the executives of the Education Union (Egitim Sen) in particular. Since a discretionary act of the Regional Governor under the State of Emergency Legislation [1] cannot be challenged in courts, the unionists declared that they would petition the European Court of Human Rights. While the unionists were exiled to the western provinces, there have been no investigations launched against the persons affected. The unionists declared that the practice was a political one as the administration had not launched any investigation related to their participation in a one-day act of protest of the Confederation of the Public Labour Unions (KESK). Tunceli Governor Mustafa Erkal, answering questions in a press briefing on 30 January, said for his part that they did not dismiss the teachers, but 'changed their locations due to their behaviours that offended the quiet in the province as well as on the basis of the evidence that they commit crimes'".

[Endnote 1: State of Emergency Law, Article 11/c: [As amended by Decree 3076 dated 14 November 1984] Suspension of the activities or associations for periods not exceeding three months, after considering each individual case;]

Turkish authorities imposed food embargo on several Kurdish villages (1991-2001)

- The objective was to deny logistical support to the PKK
- Access to high pastures have been recently restored and the food embargo has been lifted by governors in several provinces

U.S. DOS 26 February 2000, sect. 1g

"In an effort to deny the PKK logistical support, the Jandarma during the year occasionally rationed food and other essentials in some rural areas in the emergency region. Security forces returned to evacuated villages and burned homes, to deny the PKK, and have shot livestock, burned forests and orchards, or denied villagers permission to harvest fields."

Graham Brown April 1998, sect. 3.1

"In Tunceli province, a food embargo imposed by the army was reportedly in effect in 1991. Sporadic food blockades have also been reported in parts of Bingol and in the village of Tepe, near Lice in Diyarbakir province. These have allegedly caused severe shortages and hardship among the inhabitants. The usual aim was to limit the amount of staple foods which villagers could obtain, and therefore reduce supplies available to the PKK, though in the case of Tepe, a two-month blockade was imposed in reprisal for the PKK murder of a village guard."

U.S. DOS February 2001, sect. 1g

In October [2000] the governor of Tunceli formally abolished the food embargo in that region, the last large-scale rationing in the region. Food rationing also had been justified as a means of denying logistical support to the PKK. Provincial authorities deny villagers access to some high pasture for grazing, citing security concerns, but have allowed other villages access to their high pastures."

Report stated that village guards served local landlords rather than state (November-December 2001)

- A report on 19 villages and rural settlements stated that village guards were serving local landlords
- The report also said that because the village guards were very familiar with the difficult terrain, they played an important role in the anti-terrorism drive of the state
- Village guards were charged on the basis of allegations that they helped the PKK

Turkish Daily News 21 December 2001

"A report prepared by the Yuzuncu Yil University and Van Gendarmerie Command underlined that village guards, once instrumental in fighting separatist Kurdistan Workers's Party (PKK) terrorism, were serving local landlords rather than the state.

Associate Professor Cahit Bagci, who administered the research into the subject by Yuzuncu Yil Science Faculty students, said during the study, 19 villages and rural settlements where village guards existed in the Van region were surveyed and the results were analysed.

The report, which was presented to local administration executives, underlined that the village guard system was instrumental in fighting separatist terrorism in an area where, because of rough geographical terrain, strong state tradition could not be developed.

[...]

The report stated that with the village guards system the central administration had tried to make best use of the pro-government local population in fighting separatist terrorism. Stressing that the

majority of local people were loyal to the state, the report stressed that that was a major factor in establishing and maintaining the village guard system, as well as utilizing it effectively in combatting terrorism.

Because the village guards were very familiar with the difficult terrain of the region, they undertook a very important role in the anti-terrorism drive of the state, the report said.

Besides this, the report said, the village guards system helped the state cut links between the local population and the separatist gang, provide effective security to local people and thus helped greatly with the consolidation of state rule in the troubled region.

On the other hand, the report said, while the income of the local people had suffered seriously because of separatist terrorism -- as they could not use their lands or continue raising animals because of the terrorist threat -- the paid village guard system provided an opportunity to keep the economic activity of the area.

However, the report said as separatist terrorism had subsided in the region, the village guard system had lost its importance, and now the village guards were serving their landlords rather than the state."

Turkish Daily News 8 November 2001

"Diyarbakir State Security Court (DGM) has finished work on an indictment against 31 suspects of whom 30 are village guards all accused of aiding and abetting the Kurdistan Workers Party (PKK) separatist terrorist organization, the Anatolia news agency reported yesterday. Of the 31 suspects, 28 are in remand.

The indictment accuses 13 of the suspects of setting a trap for the security forces in the district of Beytussebap in which one soldier was martyred and five maimed in two separate landmine explosions. Other suspects are accused of passing on intelligence to the PKK while working as temporary village guards, while others are accused of providing rations to the PKK and of hiding PKK weapons from the security forces. Other guards are accused of donating part of their wages to the PKK and of planting and growing marijuana in order to provide the PKK with funds.

The trial against the suspects will start this month with sentences being asked ranging from five years for five of them to death for 16 more."

Villagers were evacuated by force (August 2001)

- Four villages were forcefully evacuated on 3 August 2001
- Many villagers were detained, following a raid on villages in Baskale district at the end of August 2001

HRFT August 2001

"The evacuation of villages and forced migration that slowed down after 1999 came back to the agenda by evacuation of some villages in the province of Sirnak, Hakkari and Van.

It was reported that on 3 August the villages Sirangêl (Tokagaç), Memiste (Ikizli), Sêgizan (Cevizli) and Glort (Bostaniçi) in Yüksekova district of Hakkari province were raided by soldiers and that the population had been forced to leave the settlements. Abidin Enis, member of the general assembly of Hakkari province said that they had to contact the commander with the headmen of the four villages concerned, but had not been able to meet. They had asked the governor of Yüksekova to stop the initiative.

During a raid on the villages Salidere, Samandöken, German and Baris in Baskale district (Van) at the end of August many villagers were detained. Among them the names of Hüseyin Durmaz, Hamit Kiliç (80), Hamza Kiliç, Bülent Koç, Vedat Ayhan, Nihat Ayhan, Nejat Ayhan and Baykal Ayhan were mentioned."

Village evacuations and food embargo imposed (August 2001-March 2002)

- Four villages were raided following the death of one soldier and the injury of two others in Beytüşsebak district
- Ortali and Asat villages were evacuated
- Tivor, Ilicak and Hisarkapi villages were under siege with villagers close to starvation because of a food embargo
- On 11 August 2001, the weekly paper "Yedinci Gündem" published a document confirming the application of a food embargo in Dagalti and Ilicak villages
- The president of the association MAZLUM-DER contradicted official state reports and reported the obstruction of its journalists by the authorities
- The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance
- The national media totally ignored the events in Betussebak

HRFT August 2001

"Following the death of one and injury of two soldiers by a mine explosion near Ilicak (Germav) village in Beytüşsebak district (Sirnak province) on 9 July Germav village and the surrounding villages of Bêzal (Ortali), Tivor (Dagalti) and Çemêpîrê (Asat) were subjected to intense pressure. These four villages were raided and 32 people were detained. They were held in custody for 10 days and at the end 10 of them were arrested in charges of „aiding and bedding PKK members“. All of the villagers belonged to the Gevdan tribe. They alleged that they had been tortured in detention. The names of the arrested villagers are: Cafer Aslan (78), Kerim Acar (66), Isa Abi (61), Yakup Ceylan (55), Fahri Ceylan (30), Seyhmus Abi (25), Isa Abi (30), Yasin Abi (23), Hadi Abi (30), Keser Acar (49), Hamit Acar (78), Orhan Abi (239), Kemal Acar (25) and Semsettin Abi, Turan Aslan, Bahattin Aslan, Mirza Aslan and Hekim Aslan.

On 28 July Kasim Aslan from Ulucak village could escape, despite the blockade against the village and reported to the Diyarbakir branch of the Human Rights Association (HRA). He told the Human Rights Association (HRA) that Ortali and Asat village had been evacuated, Tivor, Ilicak and Hisarkapi villages were under siege and that the villagers were close to starvation because of an embargo on food. Some 250 villagers were living in tents outside Beytüşsebak and 70 villagers, who had been working as village guards had been deprived of their arms.

First a delegation of Abdulvahap Ertan, from the Human Rights Association (HRA) in Van, Abdulbasit Bildirici from Mazlum-Der in Van and Sirin Aslan went to Beytüşsebak and talked to the villagers and the prisoners Turan Aslan, Bahattin Aslan, Cafer Aslan, Kerim Acar, Mirza Aslan, Yakup Aslan and Hekim Aslan. In their report they stated that the villagers had been beaten, suspended on hooks, hosed with pressurized water, raped with truncheons and forced to eat excrements. They were being subjected to an embargo on food and their families were under severe pressure. The mine explosion had happened some 30 to 40 kilometers away from the village in an area that had mainly been used by soldiers.

On 5 August the Sirnak Governor paid a visit to Hisarkapi village in an attempt to deny the news on food embargo. Soldiers, who cursed at the population and tried to force them to deny the

existence of an embargo, accompanied him. It was reported that 35 members of the Temel family had to leave the village within 24 hours.

On 8 August a second delegation with members of the Human Rights Association (HRA), Mazlum-Der, the Chamber of Architects and Engineers, HRFT, Turkish Medical Association, Göc-Der and the Democracy Platform of Diyarbakir went to the area and investigated the situation over two days. The results were announced during a press conference at the Human Rights Association (HRA) Diyarbakir on 10 August. On 11 August the weekly 'Yedinci Gündem' published a document confirming the application of a food embargo in Dagalti and Ilıcak villages."

CoE 22 March 2002

"The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance. A number of male villagers were arrested and allegedly tortured."

Info-Türk August 2001

The reaction of the Turkish media and authorities:

"Yilmaz Ensaroglu, président de l'association MAZLUM-DER, comparant les deux événements de la semaine impliquant la responsabilité de la gendarmerie [ndlr: l'intervention de la gendarmerie dans la commune d'Akkise (Konya- centre) et les faits du district kurde de Beytussebap] a dénoncé les réactions à géométrie variable de la presse et des autorités civiles et militaires turques: 'Nous avons envoyé des observateurs pour les deux événements. Pour le premier [Konya], ils ont pu s'y rendre aussitôt et rédiger un rapport alors que pour le second le temps que les observateurs puissent se rendre sur place sains et saufs, nous étions plein d'inquiétudes. Ils sont arrêtés à tout bout de champ et leurs cassettes et documents leur sont confisqués. Cela prouve bien évidemment, les différences manifestes dans les pratiques administratives et judiciaires existantes dans le pays. Les partis et une bonne partie des media ne franchissant pas les frontières tracées par la politique de l'Etat, l'opinion publique ne connaît pas la situation. En fait, le régime d'exception (OHAL) ne veut pas dire un régime sans droit, mais seulement que certains droits sont temporairement limités. Cependant dans notre OHAL, il n'y a ni droit et ni justice'.

Les quotidiens nationaux ont totalement ignoré les événements de Betussebap, les observateurs des organisations de défense des droits de l'homme ont été, au cours de leur enquête, bousculés et brutalisés par les autorités sur place. Les villageois, peu loquaces du fait des pressions, ont par l'intermédiaire de leur maire déclaré qu'ils avaient quitté leur terre par leur propre volonté, les seuls dont Cafer Aslan et Rasim Acar, qui se sont risqués à parler ouvertement avec les observateurs se trouvent toujours en détention, accusés d'"incitation de la population à la colère". Après le témoignage de Rasim Acar, les avocats composant la délégation d'observateurs ayant peur pour sa vie l'avaient pourtant pris sous leur protection mais les gendarmes prétextant que ses papiers d'identité étaient susceptibles d'être des faux, ont réussi à l'arrêter et le placer en garde-à-vue.

Ses avocats ont d'ores et déjà dénoncé les tortures (chocs électriques) subies par leur client au cours de sa détention. Contrairement à Konya, les commandants en poste à Sirnak ne semblent nullement inquiétés par les autorités judiciaires turques. Pis encore, le colonel Levent Ersoz, en poste à Sirnak, directement mis en cause pour ses brutalités par Cafer Aslan et par la population de Sirnak, a été récompensé en devenant général (effectif le 30 août) et prendra le commandement de la gendarmerie de Diyarbakir."

Summary of the main causes of internal displacement in Turkey (2002)

- Main causes relate to eviction, local violence, food embargoes, mines, village raids, human rights violations, village guards, guerrilla groups, and expelling by the authorities

- Turkish authorities maintain that internal displacement is part of a larger migratory phenomenon

B. Peker, in Turkey and Refugees, April 2002, p.35

"Furthermore, a majority of the people who should be included in this category of displacement (conflict-related Kurdish IDPs) are those affected by:

partial or total eviction and destruction of human settlements (towns, e.g. Lice, Diyarbakir and Cukurca, Sirnak, and villages and sub-villages) by security authorities, mainly the Jandarmy or paramilitary forces, including the village guards, in connection with 'internal security operations' or as punitive measures in retaliation to the guerilla attacks against security or paramilitary groups; generalized local violence and constant threat to safety due to armed clashes between the two sides;

effects of the preventive or punitive practices of the Government on daily life such as food embargoes (which affected the entire region of Tunceli/Dersim between 1991 and 2000, road blocks, village raids, creating forbidden zones in areas of production (e.g. pastures), and the implantation of land mines around the habitats;

gross human rights violations connected with the above points, including disappearances, punitive detention, torture, sexual abuse, deprivation of health services;

enforcement of the village guard scheme which carries the threat of gross human rights violations and other punitive measures; and

attacks or threats by guerilla groups, mainly by the PKK, on people accused of joining the village guards scheme or for rejecting provisions of food and shelter to these groups. Many of these cases occurred in combination with each other.

However, this category includes also

the people or families expelled from their villages, sub-villages or towns (including big towns such as Diyarbakir), people individually expelled from their habitats by the orders of regional, provincial or district governors, or local security forces or the village guards through written or oral instructions. This groups includes pro-Kurdish political activists, local trade unionists, well-known professionals or other public people.

Moreover, considering the destructive effects of the conflict on the regional economy, including in particular, practices such as the destruction of forests, grazing areas, live stock, or the imposition of production quotas (as in Batman in 1997 and 1998), and the associated destruction of the regional economic networks or the general effects of the conflict on small-scale industries and commercial activities, we should also include in this category

a large number of the ostensibly economic migrants in the affected areas.

COE, 22 March 2002

"The Turkish authorities on their part maintain the position that internal displacement as a result of conflict and fear is only a part of a larger migratory phenomenon occurring throughout Turkey which has resulted in the dramatic growth of urban populations in recent years. Moreover, during the visit numerous interlocutors drew the Rapporteur's attention to the fact that the displacement of the population in south-eastern Turkey concerns not only Turkish citizens of Kurdish origin but also other ethnicities, in particular Turks and Arabs. For that reason, the Turkish authorities have expressed their conviction that the word 'Kurdish' should be taken away from the title of this report. However, despite the Rapporteur's repeated requests, no concrete statistics supporting this information have been provided. The findings of his visit have not confirmed the fact that other ethnicities have been concerned by the displacement.

In the Rapporteur's opinion undoubtedly, economic factors account for some of the migration, and even persons fleeing mainly because of the conflict often have a mixture of motives difficult to

distinguish, including seeking of employment. However, there is no doubt that a major displacement and migration to towns concerns those caught in the crossfire of the conflict: on one hand the Turkish security forces have targeted villages suspected of supporting the Kurdish Workers' Party (PKK). On the other hand the PKK has assassinated inhabitants of the villages 'collaborating' with state authorities (i.e. belonging to the village guard system) or refusing to support the PKK. This vicious circle of violence forced many people to flee their homes."

Returning refugees join ranks of the internally displaced (2002)

USCR, 2002

"Although the government has not extended an amnesty to the Kurdish refugees who fled in 1994, it has said that it would not prosecute them for illegal departure from Turkey. Some Kurds have been arrested upon return, mostly charged with membership in (or support of) an illegal organization.

Upon arrival, the Turkish authorities bring the returnees to the 'Haji' camp in Silopi where they are registered and undergo security clearances. Nearly 90 percent of the returnees originate in the war-torn southeastern provinces of Sirnak and Hakkari, where many former villages are destroyed or still sealed off for security reasons. If unable to return to their places of origin, the returnees join the ranks of the internally displaced, usually living with relatives. Because of the war devastation and economic stagnation in the southeast, few returnees were able to find work upon return."

Göc-Der's Migration Survey showed causes of displacement (January 2002)

- Göc-Der listed the actions of security forces, the village guard system, fear of death, evacuation, the ban on mountain pastures, food embargoes, and living conditions as the main reasons for displacement

Göc-Der 2002, pp.48-49-I

"One of the most important factors in shaping the migration under investigation is found to be The Emergency State Rule and the activities of the security forces (83.7 %).

In the narratives told by the immigrants it is clearly observed that the events taking place between the security forces and the villagers after armed-conflicts is a significant factor giving rise to migration.

The findings in this research indicate that the five most important reasons for migration in their order of significance are the following:

Practices of Security Forces and Emergency State Rule Practices
Insistence on the Village-guard System
Fear of Death
Evacuation of Villages and Hamlets
Ban on Mountain Pastures

The results of our first level analysis point to the fact that the tension and the armed conflict based on the Kurdish problem which shaped the last 15 years of Turkey, the destruction caused by the armed-conflicts and the policies of the state imposed on the Kurdish citizens living in the Eastern and Southeastern regions gave rise to a forced mass-displacement.

At the second level analysis, the unified effect of the factors leading to migration has been calculated in the computer environment. The findings indicate that, Practices of Security Forces and Emergency State Rule, Insistence on Village-guard System, Fear of Death, Evacuation of Villages and Hamlets, Ban on Mountain Pastures, Food Embargo are the most significant factors giving rise to migration, and Bad Straits, Lack of Educational Opportunities and Lack of Health services is the facilitating factor in the migration under investigation.”

NGOs’ report some cases of ongoing displacement in the south-east provinces (2003)

- There were reports of villagers being displaced from their villages
- In September 2003, it was reported that Turkish soldiers raided the village of Cigli and informed villagers not to return
- Villagers' food and livestock was confiscated
- In the Cemisgezek District of Tunceli, soldiers told villagers to evacuate the highlands for ‘military operations’ although the villagers rely on food supplies from the highlands

KHRP/Goç-Der/HRA September 2003, p.25

“Goç-Der reported in a press release on 16th September 2003 that more villagers had recently been displaced from their villages. On 7th and 8th September 2003, Turkish soldiers raided a village called Cigli, in the Curkurca District of Hakkari. The villagers were taken to a gendarme station and told not to return to their village. Food and livestock were confiscated, as the soldiers claimed they had been illegally ‘smuggled’ into the country.

Similarly, in the Cemisgezek District of Tunceli, soldiers told villagers to evacuate the highlands for ‘military operations’ and return to their homes. This was done despite the fact that there was little food in the villages and the community relies on food supplies from the highlands for 7 months of the year.

It is evident therefore, that despite some reforms, very recent cases show that village evacuations are still taking place in the Southeast.”

NGOs report village evacuation (July 2004)

- Human Rights organisations reported a case of village evacuation in the village of Ilıcak (Sirnak province) in July 2004
- The local governor responded that the villagers had left their homes voluntarily after attacks by Kongra-Gel
- The villagers were returned to their homes with military assistance end August

Kurdistan Observer, 24 August 2004

“Turkey's main human rights watchdog on Tuesday accused security forces of forcibly evacuating a village in the southeast of the country, a practice widely used in the past in the fight against armed Kurdish rebels.

Paramilitary troops swooped down on the village of Ilıcak, near Beytussebab in Sirnak province last month, and ordered villagers to leave their homes on security grounds, the Human Rights Association (IHD) said in a statement after sending a team to investigate the incident.

'The soldiers said that if the villagers stayed in their homes they might give supplies to the rebels,' the IHD's Reyhan Yalcindag, who was on the mission, told AFP.

The 343 village residents were now living in squalid conditions in tents set up a short distance away from the village, the IHD said.

Yalcindag said villagers, after being driven from their homes, were slowly being forced to move further and further away from their properties.

'The real aim to force the villagers to leave the region completely,' she said.

The IHD called for the villagers to be allowed back to their homes.

'The security-conscious state view cannot take priority over rights and liberties. Ilıcak villagers should at once be compensated, allowed to go back to their homes and be given aid,' the group said.

The IHD also called for legal action against those responsible for the action.

Local officials were not immediately available for comment.

Forced evacuation of villages was part of a systematic drive by the Turkish army to isolate rebels from the outlawed Kurdistan Workers Party (PKK), now known as KONGRA-GEL, and cut off their supplies in the 1980s and 90s.

[...]

Clashes in the region nearly ceased after rebels announced a unilateral ceasefire in 1999 and withdrew from Turkish territory to seek a peaceful resolution to the conflict.

But fighting has been on the increase since June when the rebels called off their truce, warning foreigners and investors to stay away from Turkey."

HRW, 4 October 2004, p.5

"Villagers who have established a foothold in the cities are unlikely to risk an expensive and dangerous return to their former homes while there is a risk that they may be displaced a second time. A number of villages have been evacuated in recent years, including one during 2004. Villagers expelled in the 1990s from Ilıcak village, near Beytussebab, in Sirnak province, who returned in 2001, told the Diyarbakir branch of the Turkish Human Rights Association (HRA) that they were again forcibly expelled by gendarmes in July 2004. In response to protests by the Turkish Human Rights Association the local governor responded that the villagers had left their homes voluntarily after attacks by Kongra-Gel. The villagers were returned to their homes with military assistance in late August."

"The HRA, Mazlum-Der and Goc-Der reported that village evacuations or other operations by the security forces compelling villagers to leave their homes restarted in 2003 in connection with a limited resurgence in the activities of the PKK. [14]

IHF, 27 June 2005

In August, it was reported that 343 villagers from a village in Beytussebab, Sirnak, were evicted and forced to live in tents and in destitution."

[Footnote 14] Press statement of 24 August 2004[...] and "Report of Investigation Concerning Allegations of Pressures on Villagers Living in Tasnacak (Xrabedar) Hamlet of Oguldami Village, Gurpinar District, Van, to Join Village Guards" (in Turkish), dated 16 December 2004 [...]

HRFT, August 2004

Human Rights Foundation of Turkey report of the July 2004 evacuation

Ilicak (Germav) village of Beytüssebap district (Sirnak) was reportedly forcibly evacuated. HRA chair for Diyarbakir Selahattin Demirtas made a statement regarding the subject and told that it was the first incident of the evacuation of a village in the last three years. "Villagers from Ilicak (Germav) village applied to HRA by fax and telephone and stated that at the end of July commander of regiment headquarters came to their village and gathered everyone at village square. He threatened villages that they may not be able to enter their houses again and told that 30-40 houses located at the other side of the brook should be evacuated for security reasons. Those villagers had to leave their houses."

Demirtas added that Beytüssebap Mayor Faik Dursun also verified the incident on the phone and he stated that those villagers who were trying to survive in tents and nylon sheds were forced to leave their houses.

On the other hand Sirnak Governor stated on 17 August that Ilicak village was not evacuated by the security forces but, "the villagers moved to a safer place due to the pressures of the terrorist organization". "With this aim, together with the headman of the village 14 persons applied to Beytüssebap district governorate on 11 August and demanded 20 tents. Sirnak governorate provided those tents on 14 August. In addition, their electricity and water needs were met by the governorate and the Social Help and Solidarity Foundation helped the citizens."

Beytüssebap district governor Cihan Demirci alleged that the villagers were sent a more secure place on the grounds that they were threatened by PKK.

Meanwhile, A HRA delegation including the vice chair for the HRA Reyhan Yalçındag, Reginal Representative of HRA Mehdi Perinçek, Chairman of HRA Diyarbakir branch Selahattin Demirtas, chairman of HRA Mardin branch Hüseyin Cangir, member of Sirnak Lawyers Bar Idris Tanis, Secretary of Diyarbakir Democracy Platform Necdet Atalay and Secretary General of Göç-Der Hacı Karakuzu went to Ilicak (Germav) village of Beytüssebap district of Sirnak to make an investigation on 18 August. The delegation announced its report on 24 August at HRA Diyarbakir branch. Reyhan Yalçındag, who spoke at the press conference, stated that they fixed that the village was evacuated by gendarmerie by force. The following statements of Beyrüssebap Mayor Faik Dursun were give place in the report:

"By the information reached us and the investigation we made, we have learned that Ilical village was evacuated by force by the soldiers on charge at Beytüssebap Gendarmerie Commandership. The villagers were compelled to live on the other side of the river that pass near the village. They live under very poor conditions without water and electricity. Our municipality has very limited sources so that we cannot meet the demands of the villagers."

HRA delegation also met Beytüssebap district governor Cihan Demirhan. Demirhan stated that villagers left the village upon their own consent and no forcible evacuation happened: "Villagers did not bring such a problem. Previously PKK-KONGRA-GEL had seriously pressured them. It is true that they have problems about their living conditions. I have met with the %60 of the head of the family. They told that they had no problems concerning the evacuation of the village. The villagers were given tents. They can return their villages whenever they want. There is no pressure or hindrance. If they return their village it will not be my duty to deal with their security. This is the duty of the security forces."

According to the report the villager X. A. announced that their village was evacuated by force and told the followings:

"4 or 5 weeks ago, soldiers from the Beyrüsebap Gendarmerie Commandership came to the village and wanted us to leave the village on the allegation that we helped the members of illegal organization that came to the village. They threatened us to evacuate the village by force if we would not leave it. They had also evacuated our village by force in the past years. Lastly, we returned to our village four years ago. They allow us to go to the village in daytime for irrigating our lands. However, they threatened us for bombing the village if we would go after 18.00. Gendarmerie officials sometimes come here and they inspect whether we are in the tents or not."

According to the report F.A. told the followings:

"The soldiers who came to the village 3 or 4 weeks ago threatened us to evacuate the village. From then on we are trying to survive in nylon and cloth tents. Soldiers also made pressures on our village before. My spouse is disabled, s/he has been detained four times on the allegations of aiding illegal organization, subjected to torture and was imprisoned unjustly for two years before. My father-in-law died due to torture. My brother-in-law was disabled because of the same reason. Now, they took our village. We are living under inhuman conditions, without food and water. We want to return to our village immediately".

The villagers could return to Ilicak on 25 August. After Beytüssebap Mayor Cihan Demirhan and District Gendarmerie Commander announced that the villagers could return, villagers loaded their properties to the vehicles that the soldiers brought and returned to their village.

The village guards, who had been settled to the Sariköy village of Idil district in Sirnak, reportedly did not leave the village despite the demands of Assyrians for returning their village. Sirnak Governor Osman Günes announced in August that Assyrians, who immigrated to various European countries before, asked them to return to their village and they ordered gendarmerie to evacuate the village upon the order of the ministry. Günes stated the followings:

"I assigned two different places near Idil and Karalar towns for these village guards. I also said them that I would give them materials to make their houses. I even had projects of houses that had stables designed. When they did not accept these, I offered them to allocate already built houses in Cizre district. They did not want to go there either. These people were settle here extra-legally. I ordered gendarmerie to evacuate the village when I got an order from the ministry. We want them to leave here legally. I may dismiss these village guards from duty if they do not respect laws."

On the other hand, chief village guard Mehmet Ali Bulut put the followings: "When we were working as village guards in Yayalar village, the governors of Sirnak and Idil district ordered us to work in Sarikoy village. First 22 and later 6 village guards started to work here. We do not want to leave this village on the grounds that it is not possible for us to live with a salary of TL 300 million in Cizre. 240 persons are living in this village. If they build houses we can evacuate the village. We do not have any place to go at the moment. We do not want to take anybody's land. We do not threaten anybody."

A HRA delegation with 7 persons including the vice chair for the HRA Reyhan Yalçındag, who investigated the evacuation of Ilicak (Germav) village of Beytüssebap district of Sirnak, announced its report. According to the report, the villagers reportedly told that the tents supplied by the authorities were insufficient and not serviceable. Villager Salih Aslan reportedly told the followings:

"Soldiers brought 8 more tents when they heard a committee is coming to the village. One tent is used by three families sometimes. 15 of the 60 families still do not have tents. Our problem here is not only about tent. It is very hot during the daytime and very cold at nights. The soldiers told us that we can return our village only in the fall." Kerim Acar (39), who told they are afraid being detained again on the grounds that they told the committee and the journalists the facts, put the followings in the report: "Men went to the district when they heard journalists and a committee are coming here as they were worried. We are seen as the responsible of any incident. We are prohibited to go to the village before 06.00 in the mornings and after 18.00 in the evenings. Soldiers threatened us for burning our village if we go there. It had happened before, this is the third time we have to leave our houses." Headman of the village Isa Abi did not want to meet the delegation due to threats. HRA delegation also met Beytüşsebap district governor Cihan Demirhan. Demirhan stated that villagers left the village upon their own consent and no forcible evacuation happened: "Villagers did not bring such a problem. Previously PKK-KONGRA-GEL had seriously pressured them. Although Ilica is the poorest village, the organization still bothering them. They take their animals, wheat." Demirhan also added that villagers applied to the governorate on 2 August with a petition signed by 30 persons demanding tent and water. He told that together with the regiment headquarters, they gave villagers tents and they would return to their village in October.

Meanwhile, according to a news appeared on the website of the newspaper Özgür Politika published in Germany on 1 September, soldiers reportedly wanted to evacuate Sin village and Dikenlitarla (Vengül) hamlet of Geyiksu village. It was reported that soldiers wanted the villagers to leave the village in a week but the villagers denied to evacuate the village."

Other causes of displacement

Development induced displacement

- The construction of dams and pipelines has also been a significant source land expropriation and displacement in Turkey
- It is difficult to estimate how many people have been displaced for development projects

See for example, "[Turkey Dam Project back to haunt Kurds](#)", BBC, August 2006

For background information, news and relevant links see:

[The Ilisu Dam Campaign website](#) which provides background information and news updates

[The Baku-Ceyhan Campaign website](#) which provides background information

[The Kurdish Human Rights Project website](#) provides regular updates on the dam and pipeline projects affecting Kurdish populations in Turkey

Further information is also provided in the Sources below

Natural disaster-related displacement

- Turkey is situated across three tectonic plates which creates a high potential risk of earthquakes
- Government statistics indicate that between 1995 and 1999 over 800,000 people were displaced by earthquakes and floods

For more information on natural disaster induced displacement, see the website of the IFRC which provides assistance to victims of natural disasters and maintains regular and updated information on natural disasters in the country. See the [website of the IFRC](#)

The [UN Office for the Coordination of Humanitarian Affairs \(OCHA\)](#) also provides regular updates and situation reports on natural disaster related emergencies in Turkey

IFRC 1 January 2004

“Turkey is in a region that is politically vulnerable and prone to natural disasters [1]. It is at risk from a range of complex emergencies. Statistically, a large-scale disaster happens every seven to eight years. Earthquakes account for 97 per cent of deaths and injuries caused by natural disasters. In 1999, two earthquakes killed 19,000 people and caused massive destruction. Seismic activity frequently causes panic among the population. Floods occur regularly too.

Government statistics on damage caused by disasters (see table below) demonstrate how vulnerable the country is.

Turkey’s disaster toll 1995-1999

(Source: General directorate of disasters affairs of Turkish Government)

Year	Type of disaster	No. of people killed	No. of people Injured	No. of people Displaced	No. of people affected	Economic Damage USD
1995	Earthquake Floods	231	403	2,000	10,000	65 million
1996	Earthquake	0	6	9,000	17,000	30 million
1998	Earthquake Floods	155	1,647	128,000	1,500,000	500 million
1999	Earthquake	18,243	48,901	675,000	15,000,000	20 billion

[Footnote 1] Turkey is situated in the cross line of three tectonic plates – Eurasian, Arabic and African – which creates a potential risk of earthquakes.”

POPULATION FIGURES AND PROFILE

Global figures

New national IDP survey estimates that 953,680 - 1,201,200 people were displaced between 1986-2005 (December 2006)

- Survey discloses figure near 1 million displaced (December 2006)
- The scale of displacement in Turkey is extremely controversial and figures range from hundreds of thousands of people to millions of displaced people
- The official figure as of August 2005: around 355,807 people displaced of which, 127,000 have returned
- Permanent Mission notes that the number of displaced is 353, 978 (April 2005) and declares readiness to discuss source and accuracy of claims made by NGOs that millions have been displaced
- Government officials stated the number of people displaced as a result of "terrorism" in the 80s and 90s and the evacuation of some settlements by Turkish authorities is 352,576 (March 2004)
- US DOS reported 378,000 as the official government figure and 1 to 3 million IDPs as the NGO figure for the displacement of villagers forced to flee as a result of government evacuations and the conflict
- The number of displaced could be as high as three million, according to various NGOs
- The Council of Europe cited "independent credible" estimates at 1 million in its report yet underlined that the figures concerning displacement are subject to controversy
- Independent sources claim the official figure of 378,000 displaced persons includes only those displaced as a result of village and hamlets evacuations
- According to the U.S. Department of State, the most credible estimate of displaced persons is as high as 1 million
- The U.S. Committee for Refugees gives a range of 400,000 to 1 million, reflecting evacuations and spontaneous movement from and within the southeast

Note:

The government funded a survey conducted by Hacettepe University, which is aimed at documenting the situation of IDPs from a qualitative perspective as well as providing insight through quantitative research on the estimated numbers of displaced. The findings of the survey were publicly released on 7 December 2006, and estimate that 953,680- 1,201,200 people were displaced by conflict in the south east between 1986-2005.

Background:

The survey is an important step at getting a more realistic picture of the scale of displacement in Turkey which has been the subject of controversy for many years. Until December 2006, the government had said that 355,807 people were displaced from the south-east; outside observers and Turkish NGOs put the total of IDPs at between 1 and 4.5 million. One reason for the discrepancy in the official figure is that the government only included people evacuated by the security forces from settlements, and not those who were forced to flee due to generalised

violence or for a combination of security and economic reasons. Internal displacement in Turkey is also part of a broader rural-to-urban migration, which was exacerbated by the violence in the south-east. The nature and extent of the displacement situation in Turkey has also been affected by large-scale development projects, such as the South-Eastern Anatolia Project (GAP) and natural disasters.

(NRC-Internal Displacement Monitoring Centre, Updated December 2006)

IDMC Note on figures: The quantitative findings of the Hacettepe Survey commissioned by government is publicly released on 7 December 2006, and estimate that 953,680- 1,201,200 people were displaced by conflict in the south east between 1986-2005. [Click here for more information on how the survey was carried out.](#)

Official figure: 355,807 (end August 2005)

Permanent Mission of Turkey to the UN, 27 September 2005

"The official number of IDPs as of the end of August 2005 is 355, 807. Of these, 127,050 have returned under the Return to Village and Rehabilitation Project"

Official figure: 353,978 (April 2005)

UN CHR, 6 April 2005, p.2

"The number of people affected by the displacement is 353,978. Some sources, as is the case in the written statement by the above-referred NGO, take the liberty to ill- intentionally stretch this figure to millions. Turkey has repeatedly declared its readiness to discuss the source and accuracy of these claims."

Official Figure: 353,576 (18 March 2004)

Permanent Mission of Turkey to the UN GVA 18 March 2004

"The cause of the internal displacement in Turkey has been terrorism that afflicted the country for two decades in the Eighties and Nineties. In this period, a sizable number of Turkish citizens in the south east were compelled to leave their homes. Also some settlements were evacuated by the Turkish authorities to ensure the safety of the civilian population against terrorist activity.

The number of Turkish citizens affected from this displacement is 353.576. The Turkish authorities are ready to discuss the sources and the accuracy of this figure. The phenomenon of economic migration to major urban areas is a separate issue, seen in several regions of Turkey, and it has been going on since the end of the Second World War. These two movements of population need to be looked at separately, as they are caused by different factors"

Official figure: 378,000

NGO estimate 1 to 3 million (25 February 2004)

US DOS 25 February 2004, Sect.2d

"During the height of the PKK conflict from 1984 to 1990, the Government forcibly displaced a large number of residents from villages in the southeast. Many others left the region on their own. The Government reported that 378,000 residents 'migrated' from the southeast during the conflict, with many others departing before the fighting. Various NGOs estimated that there were from 1 to 3 million IDPs."

Official figure: 378,000

NGO estimate 1 to 3 million (31 March 2003)

US DOS 31 March 2003, Sect.d

“Between 1984 and 1999, and particularly in the early 1990s, the Government forcibly displaced a large number of persons from villages in the southeast. The Government justified the practice as a means of protecting civilians or preventing PKK terrorists from obtaining logistical support from the inhabitants. The Government reported that 378,000 persons had ‘migrated’ (it disputed the term ‘evacuation’) from 3,165 state of emergency region villages between 1994 and 1999; many left before that due to the fighting. Various NGOs estimate that from 1 to 3 million persons were displaced. The Interior Minister confirmed that in 25 provinces in the former state of emergency region, 4,455 villages and hamlets have been destroyed or deserted.”

Official figure: 336,000 to 380,000

NGO estimate as high as three million

US Department of State notes a 'credible estimate' is as high as one million (30 October 2003)

HRW, 30 October 2002

"Estimates of the numbers of displaced people vary widely. Some government officials deny that any people in Turkey are internally displaced. Some local nongovernmental organizations put the number of displaced persons as high as three million. In its human rights report for 2000, the U.S. Department of State said that 'credible estimates' of internally displaced people in Turkey range as high as one million. By year's end, the government appeared not to have updated its official figure for 'evacuated persons' of about 336,000 at the end of 1999.

“According to official figures, 380,000 people were displaced from southeast Turkey during the fifteen year conflict between government forces and the illegal armed Kurdish Workers’ Party (PKK). Nongovernmental organizations estimate the number of displaced, mainly Kurdish villagers, at least a million and a half. Most displaced persons were driven from their homes by government gendarmes and by “village guards”—that is, their own neighbors, whom the government armed and paid to fight the PKK but did little to train or control. This was not an orderly and lawful resettlement program but an arbitrary and violent campaign marked by hundreds of “disappearances” and summary executions. Villagers’ homes were torched, their crops destroyed and their livestock destroyed before their eyes.”

Official figure: 378,000

Independent credible estimates 400,000 to 1 million (22 March 2002)

COE, 22 March 2002

“There is no official statistics on the total number of Turkish citizens of Kurdish origin living in Turkey. (The last population census in Turkey was carried out in 1997 but it did not include any information or indication (e.g. mother tongue) about the citizen’s origin). Consequently, there are no official figures on the internal displacement of this group of population. According to the 1997 population census approximately 8 million people lived in the provinces under emergency rule and in their immediate neighbourhood. Around 7 million Turkish citizens of Kurdish origin live outside this area (including over 1 million in Istanbul). These two figures correspond to a widely accepted estimate of 15-16 million Turks of Kurdish origin constituting up to 26 % of the total population living in Turkey. Figures concerning the displacement are much more subject to controversy. Turkish authorities’ official figure for ‘evacuated persons’ amounts to 378 000 originating from 3 165 villages at the end of 1999 (Report of the Parliamentary Migration Commission, Parliament of Turkey). Independent credible estimates [US Department of State Human Rights Report 2000] concerning the population displaced as a result of the conflict in south-eastern Turkey range from 400 000 to 1 million as of December 2000. The independent sources claim that the official figure of 378 000 displaced persons includes only those displaced as a result of village and hamlets evacuations. It does not include those who have felt compelled to flee, for example, because of the conflict with ‘the village guards’ even if the village itself had not been evacuated.”

USCR figure: 400,000 to 1 million (2001)

USCR 2001, p. 263

The government's count of internal displacement includes only persons displaced as a result of village and hamlet evacuations; it does not include people who felt compelled to flee, for example, because of conflict with Village Guards (a Kurdish paramilitary group created by the government to oppose the Kurdish Worker's Party, PKK, in the southeast), even if the village itself was not evacuated. Therefore, the figure based solely on evacuations must be regarded as below the baseline for an estimate of the number of internally displaced persons in Turkey.

The U.S. Committee for Refugees (USCR) therefore prefers a range of 400,000 to 1 million as reflecting evacuations and spontaneous movement, as well as displacement from the southeast to the central and western parts of Turkey and rural to urban movement within the southeast itself."

Official figures indicate between 362,000-560,000 are forcibly displaced (1998-1999)

- In 1999, the Government reported that through 1999, the total number of those displaced was 362,915 persons from 3,236 villages and hamlets
- The Government claimed 26,481 IDPs had been resettled with government assistance in 176 villages and hamlets and 61,987 had applied to return by 1999
- A Member of Parliament reported 560,000 as an estimate of those forcibly evacuated (1999-2000)
- In June 1998, the Parliamentary Commission released figures, reporting that 401,328 people were displaced from 3,428 areas, of which 905 villages and 2,523 hamlets
- The 1998 Parliamentary Commission reported 517 villages and 1,614 hamlets evacuated in the State of Emergency region, displacing 251,366 persons and another 126,969 IDPs outside the OHAL region, evacuated from 303 villages and 2,345 hamlets
- According to the 1998 report, 22,993 of IDPs have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced
- The Commission's own parliamentary members however disputed the figures of the 1998 Parliamentary Commission report
- The USCR found the figures to be unreliable as the Commission's does not include people who fled from towns or cities in the southeast, or villagers compelled to flee, because of conflict with village guards, even if their village itself was not evacuated
- The 1998 US State Department cited 560,000 as "a credible estimate" of the number of people evacuated from their homes
- According to the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million

U.S. DOS February 2000, sect. 1g

"The exact number of persons forcibly displaced from villages in the southeast since 1984 is unknown. Human rights NGO's tend to attribute most rural-urban migration to evacuations, whereas some persons move to escape the violence or conflict-caused economic depression, or to pursue opportunities in western cities. Government statistics tend to minimize the number of persons who left against their will. Observers agree that 3,000 to 4,000 villages and hamlets have been depopulated. The Government reported that through 1999 the total number of those evacuated was 362,915 persons, from 3,236 villages and hamlets, of whom 26,481 have been resettled with government assistance in 176 villages and hamlets. Another 61,987 have applied to return. A figure given by a former Member of Parliament from the region--560,000--appears to be the most credible estimate of those forcibly evacuated. However, observers in the region

estimate that the total number of displaced persons is approximately 800,000, and a few NGO's put the number as high as 2 million."

USCR 1999, p. 6

"The most recent figure for internal displacement in Turkey comes from the report of the Parliamentary Commission, released in June 1998. All of the statistics used in the report originate with the State of Emergency Region (OHAL) governor's office, so these should be regarded as the official government count. It reports that 401,328 people were forced to migrate from 3,428 residential areas, of which 905 were villages and 2,523 hamlets. Of these, 517 villages and 1,614 hamlets were evacuated in the State of Emergency region, resulting in the displacement of 251,366 persons. Another 126,969 persons were displaced outside the OHAL region, having been evacuated from 303 villages and 2,345 hamlets. According to the report, 22,993 of these displaced persons have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced.

The Commission's own parliamentary colleagues dispute these figures, however. Deputy Orhan Yildirim, the MP from Tunceli, voiced his dissent to the Commission's findings (noted in the Commission report), saying, 'the number of evacuated villages given in the official statistics is wrong. For example, Balik Village is my village; it is entirely empty of people. It is listed as not evacuate.'

Even if the Commission's count of evacuated villages were accurate, by limiting that count to persons displaced as a result of village and hamlet evacuations, the Commission's figure does not include people [...] who fled from towns or cities in the southeast, or of villagers who felt compelled to flee, for example, because of conflict with village guards, even if their village itself was not evacuated. As such, the figure based solely on evacuations must be regarded as the minimum baseline for an estimate of the number of internally displaced persons in Turkey."

COE 3 June 1998, para. 17

"On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364 742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bülent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations."

COE 3 June 1998, para. 17

"According to Mr Nezan, President of the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million. The population of Diyarbakir, for example, rose from 380 000 in 1990 to 1 million in 1996. Concerning displacement throughout the rest of Turkey, the figure is approximately 8 million, of whom some 3 million are in Istanbul alone."

Comment on figures of displacement (2005)

- Figures for the number of people displaced in the 1990s range from 370,000 to two million
- Neither number is based on a systematic estimate or count
- A parliamentary investigation report in 1998 put the figure of the internally displaced at 378,335, based on numbers provided by the State of Emergency Governorship

- This figure reflected the evacuation of 905 villages and 2,523 hamlets by the security forces and the PKK

Ayata Bilgin and Yüksek, Deniz, December 2005

"During the 1990s, several hundred thousand people were internally displaced in the Kurdish-populated southeastern and eastern provinces of Turkey in the course of the "low intensity conflict" between Turkish security forces and Kurdish militants.[...] A parliamentary investigation report in 1998 put the figure of the internally displaced at 378,335, based on numbers provided by the State of Emergency Governorship (*Olağanüstü Hal Valiliği*). [28] This figure reflected the evacuation of 905 villages and 2,523 hamlets by the security forces and the PKK. Domestic human rights organizations, on the other hand, estimated the number of Kurdish forced migrants [30] as high as three million.[...] Neither number is based on a systematic estimate or count, but the discrepancy is foremost due to an inconsistency in definitions. The "official" numbers were based on the 1990 general population census figures for villages and hamlets whose residents were subsequently completely evicted. NGOs, on the other hand, consider as forced migrants all people forced or compelled to leave their homes because of feelings of insecurity, armed clashes, military imposed food embargoes as well as threats by the security forces, the PKK and government-employed village guards (*köy korucuları*).[...]

[28] This was the report of the Parliamentary Investigation Committee set up in 1997 for finding solutions to the problems of citizens who migrated because of village evacuations. See "Doğu ve Güneydoğu Anadolu'da Boflaltılan Yerleflim Birimleri Nedeniyle Göç Eden Yurttaflarınmızın Sorunlarının Arafltırılarak Alınması Gereken Tedbirlerin Tespit Edilmesi Amacıyla Kurulan Meclis Arafltırma Komisyonu Raporu," *T.B.M.M. Tutanak Dergisi* 53 (Dönem 20), June 2, 1998. But as of 2005, the Ministry of the Interior has lowered the number of evicted people to about 353,000 from 930 villages and 2,018 hamlets, arguing that the previous figure erroneously included some economic migrants, see *Çiftçileri Bakanlığı, Köye Dönüfl ve Rehabilitasyon Projesi Bilgi Notu* (May 2004).

[30] The parliament report stated that the numbers it provided did not include partially evacuated villages and it conceded that the official figures might have understated the actual extent of the evicted population. See, "Boflaltılan Yerleflim Birimleri." Moreover the "official" figure does not include forced migration from town centers, but only from rural settlements. In fact, towns such as Lice (Diyarbakır), Cizre and its provincial center fırnak were largely depopulated after intense military operations between 1992 and 1996.

HRW, March 2005, pp. 14-17

"Nobody knows for sure how many people were displaced in the 1990s. In 1998, the governor of the south eastern provinces—then under state of emergency—stated that 378,335 villagers had been displaced from 820 villages and 2,345 smaller settlements. [...] The Turkish government rounded this down to 350,000 in the figures supplied to the European Commission for the 2004 Regular Report. The U.S. State Department report for 1998 considered 560,000 a credible estimate. [...] The Diyarbakir Bar Association suggests that as many as two million may have been displaced. [...] At any rate, the estimate of 377,882 derived from provincial displacement figures is almost certainly too low.

In almost every case, inhabitants of villages and village muhtars interviewed by Human Rights gave a much higher figure for the number of inhabitants at the time of displacement than was indicated in the government list. [...] The following are some examples of such discrepancies:

• Çalıskan village in Gercüs, Batman province, is recorded in the government list with twenty-two households prior to displacement, whereas local sources assert that there were one hundred and forty households.[...]

- Dereli village in Gercüs, Batman province. According to the government list: twenty-two households; according to local sources: one hundred and forty households.
- Gündüz village in Kozluk, Batman province. According to the government list: eighteen households; according to local sources: forty-six households.
- Seman hamlet of Beskonak village in Kozluk, Batman province. According to the government list: five households; according to local sources: thirty-five households.
- Saggöze in Genç, Bingöl province. According to the government list: 133 households; according to local sources: three hundred households.[...]
- Kursunlu village in Dicle, Diyarbakir province. According to the government list: thirty-eight households; according to local sources: at least one hundred and twenty households.³¹
- Kirkpinar village in Dicle, Diyarbakir province. According to the government list: sixty-four households; according to local sources: one hundred and ten households.
- Kayas hamlet of Kirkpinar village in Dicle, Diyarbakir province. According to the government list: ten households; according to local sources: twenty-five households.
- Küpetasi hamlet of Kirkpinar village in Dicle, Diyarbakir province. According to the government list: eight households; according to local sources: twenty households.

Local inhabitants interviewed by Human Rights Watch agreed that the government figures for Laleyran, Valdere, and Vankom hamlets of Kirkpinar were correct. It is difficult to account for the discrepancy between official statistics and local estimates in such a large number of cases. There is no reason why villagers and muhtars should exaggerate the predisplacement figure. They are relying on memory, but insisted that their accounts of pre-displacement figures were correct and could be verified by records of electricity supplies in the year of the displacement.

In some cases, settlements whose populations were displaced were omitted from the government list altogether. The Bismil district section of a 2003 survey carried out by the Diyarbakir branch of Göç-Der gives details of temporary and permanent returns to twenty-six evacuated settlements. [...] The government list shows only seventeen such settlements. The Göç-Der list for Silvan district shows twenty-six evacuated settlements while the government list shows twenty-two.

Other examples of villages that were forcibly evacuated but which do not appear on the list include: Erenköy village, near Eruh in Siirt province, where there were approximately one hundred households prior to displacement, and Çölköy village, near Eruh in Siirt province, where there were approximately fifty households prior to displacement. Both villages are now reportedly occupied by village guards. [...] In Hakkari central district, further examples of villages evacuated but not included in the government list include the villages of Agaçdibi, Akkus, Baykoy, Boybeyi, Demirtas, Doganyurt, Geçimli and its four hamlets. The town of Uzundere and its associated villages of Alkan, Çiftkonak and Haydaran in Hakkari were evacuated in 1995, and formally abolished on December 30, 1998, and therefore do not appear on the government list. [...] Some villages are not included in the list because they occurred in provinces outside the emergency zone, including for example, Yastik village, near Tercan, Erzincan province and which was evacuated and bulldozed flat in 1994, together with its hamlets Kurubey and Mazan. [...]

The failure to correctly record settlements on government records as having been evacuated was identified as a problem as early as 1998. In that year, Orhan Veli Yildirim, parliamentary deputy for Tunceli province, informed the Turkish Parliamentary Migration Commission that: 'The official statistics on the number of evacuated villages are wrong. For example, Baylik village [in central Tunceli] is my own village and it is currently empty....it is shown as full. But it is empty. Çemçeli, another central village, is also supposed to be full, but that is empty also. Yesilkaya is close to where the mayor [of Tunceli] comes from, and it is shown as full, but it is empty.' [...] The three villages identified by Yildirim in 1998 as having been wrongly recorded were not included on the government list of evacuated settlements.

Some villages are recorded as having had no inhabitants at all prior to displacement. In the case of Siirt province, the underrecording of the original population seriously distorts the picture for the province as a whole. Siirt suffered heavy displacement. Local sources indicate that the rate of permanent return has been low. Yet according to the government figures, 53.36 percent of the inhabitants have returned. The illusion of a respectable return rate derives from inaccurate government statistics. The government list shows returns to the following villages in Siirt with a zero population prior to displacement:

- *Central district:* Aktas.
- *Baykan district:* Çevrimtepe/Ulukapi.
- *Eruh district:* Bilgili; Cintepe; Çizmeli; Dagdösü; Dikbogaz; Kekliktepe/Karabiyik; Üzümlü; Yanilmaz; Yelkesen; Yokuslu.
- *Kurtalan district:* Karabag; Uluköy.
- *Pervari district:* Asagibagcilar; Ayvalibag; Belemoluk; Begendik; Çatköyü; Çavuslu; Çobanören; Çukurköy; Doganköy; Dolusalkim; Dügüncüler; Ekindüze; Gümüsören; Güleçler; Gölgei, Gökbudak; Karasüngür; Kocaçavus; Köprüçay; Köprüçay/Yenimahalle; Merkez; Narsuyu; Okçular; Ormandali; Saridam; Sögütönü; Tasdibek; Tuzcular; Yapraktepe; Yeniaydin;Yukaribagcilar.
- *Sirvan district:* Demirkapi; Kömürlü/Yelken; Özyurt; Suluyazi; Yedikapi.

These settlements account for a total of 1,111 households and 7,249 individuals within the return figure. The failure to include the populations of these villages in the total pre-displacement population in Siirt province, creates a misleading impression about the rate of the return in the province. When this error is discounted, the average return rate for Siirt falls to 29.76 percent even before other patterns of inaccuracy noted in this evaluation are taken into account. The figures for Bingöl show the same form of inaccuracy, listing several villages as having had zero population prior to displacement. For example, Yenyazi village in Bingöl province is shown on the government list as having no inhabitants prior to displacement, and yet 487 inhabitants are shown as having returned there.”

Geographical Distribution

Government figures by province of displacement (2005)

Hacettepe University, 4 May 2005

PROVINCE	DISTRICT	VILLAGE	HAMLET	BEFORE RETURN TO VILLAGE			
				VILLAGE		HAMLET	
				HOUSE HOLD	POPULATION	HOUSE HOLD	POPULATION
ADIYAMAN	4	0	0				
AĞRI	8	8	0				
BİNGÖL	7	137	299	4.914	15.617	2.743	12.127
BİTLİS	6	125	127	3.752	27.615	0	0
HAKKARİ	4	45	177	3.538	30.155	2.355	16.611
MUŞ	6	31	54	277	1.965	379	3.543
TUNCELİ	8	100	470	6,944	25.824	0	0
VAN	5	33	137	1.059	10.043	1.757	14.316
ELAZIĞ	5	3	3	64	464	23	124
BATMAN	6	36	136	1.178	8.064	1.335	10.594
DİYARBAKIR	12	134	304	4.789	26.966	2.775	16.698
MARDİN	11	129	140	5.553	32.158	565	2.427
SİİRT	6	96	45	3.251	20.592	1.508	10.127
ŞIRNAK	7	61	126	6.474	43.912	3.165	26.036
TOPLAM	95	938	2018	41.793	243.375	16.605	112.603

PATTERNS OF DISPLACEMENT

General

Hacettepe University's population survey assesses twenty-year displacements (2006)

- 80% of security-related migration between 1986-2005 is rural originated and 20 urban originated
- Approximately 100,000 security-related migrants may have returned to their places of origin
- Among security-related migration in the last twenty years, 87% occurred without migrants' will

Hacettepe University, 30 November 2006, pp.1-2:

"If previous migrations are generally evaluated in the context of Turkey's total population, it is seen that about 1.8 percent of Turkey's population has migrated due to security reasons. The share of security related migration originating from the 14 provinces in Turkey's population is 1.53 percent [14 provinces: Adiyaman, Agri, Batman, Bingöl, Bitlis, Diyarbakir, Elazig, Hakkari, Mardin, Mus, Siirt, Sirnak, Tunceli and Van].

This proportion for security related migration is found to be 1.19 percent for the rural areas of these 14 provinces. These findings show that a significant part of the security related migration is originated from the 14 provinces, and especially the rural areas of these provinces.

When the estimates of the numerical size of migrants originating from the urban areas of the 14 provinces are taken into account as well, it is seen that the size of the migrant population originating from the 14 provinces due to security related reasons may be between 953,680 and 1,201,200. These results indicate that 80 percent of the security related migration that took place in twenty years between 1986-2005 is rural originated, and 20 percent is urban originated.

Among the security related migration originated from the rural areas of the 14 provinces in the last twenty years, 61.3 percent has taken place between 1991-1995 period when terrorist acts were most frequent, and 31.6 percent between 1986-1990 period, 5.0 percent between 1996-2000 period and the remaining 2.1 percent between 2001-2005 period, which is the five year period before TMIDPS.

TMIDPS's data show that at least 91,000 and at most 101,200 of the security related migrants of the last twenty years originating from the 14 provinces may have returned to their origins. When the migrants originating from the urbans are taken into account as well, the estimation of the numerical size of the return migrants increases to the interval 112,000-124,000. The numerical size of the return migrant population is estimated to be between 10.9 and 12.1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons.

In Turkey, 10.7 percent of the population at the age group of 18-69 have a tendency to migrate in the future. The share of those stated they do not wish to migrate in the future is 84.5 percent, and the share of those undecided is 4.7 percent."

See also [Statement of the RSG at the Launch of Migration and Internally Displaced Population Survey](#) and [Survey: IDP numbers triple those acknowledged by the state](#) and [Research reveals huge population of IDPs](#).

Impact of conflict-induced displacement on Turkey's urbanisation (2001)

- Migratory movements to urban areas have also been caused by the conflict-caused economic depression in south-eastern areas
- Many of the displaced have crowded into the south-eastern provincial cities, such as Diyarbakir and Batman, more than doubling their populations
- It is estimated that as many as 3.5 million Kurds have left south-east Turkey since 1984 and have settled mainly in large cities in the west

USCR 1999, pp. 4-6

"Internal displacement as a result of conflict and fear in part of a larger migratory phenomenon occurring throughout Turkey that has resulted in the dramatic growth of urban populations in recent years. Undoubtedly, economic factors account for some of the urbanization, and even persons fleeing for political reasons often have a mix of motives, including seeking employment, or even, reportedly, food.

Rural to urban movement has often been the first step in a migratory pattern that has taken large numbers of Kurds from the east to the west. Diyarbakir, the unofficial capital of Turkish Kurdistan, grew from 30,000 in the 1930s to 65,000 by 1956, to 140,000 by 1970, to 400,000 by 1990, and swelled to about 1.5 million by 1997. Most Turkish cities have developed impoverished, overcrowded, ramshackle slums on their outskirts, *gecekondular*, 'huts built in one night'. Many of the displaced Kurds in provincial cities and towns crowd into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family.

Although the desire for economic betterment has motivated some to migrate, it is not clear that migrants have responded to the pull of opportunity in western cities as much as to the push of conflict-caused economic depression in the rural southeast. While some of the displacement has been spontaneous, the Turkish military systematically expelled Kurdish villagers in the country's southeast between 1993 and 1995. The Turkish army's campaign to evacuate villages suspected of supporting the PKK began in February 1993. Army and security forces have depopulated mountainous, rural areas, and pushed the village populations into urban centers, creating economic hardship for large numbers of displaced persons, most of whom had been herders or otherwise tied to the pastoral economy. Many of the displaced have crowded into the provincial cities, such as Diyarbakir, mentioned above, and Batman, more than doubling their populations."

UK Home Office April 2001, para. 7.27

"The ongoing conflict between the Turkish armed forces and the PKK guerrillas, and the poor economic situation in the southeast, have caused considerable migration away from the rural areas in the southeast. Many have remained in the southeast and moved to cities such as Diyarbakir, Siirt, Tunceli and Cizre, whose populations have doubled or trebled as a result of the migration. The large cities in the west have also been major recipients of this migration. It is estimated that as many as 3.5 million Kurds have left southeast Turkey since 1984. Istanbul, Izmir and Ankara have received the most migrants, with Istanbul accommodating almost 1.5 million new immigrants. Between one-half and almost two-thirds of the Kurdish population now live in peaceful assimilation in western Turkey and on the southern coast (3 million in the Istanbul conurbation, 2 - 3 million on the southern coast, 1 million on the Aegean coast, 1 million in central Anatolia and the remaining 6 million in east and southeast Turkey)."

Kirisci June 1998, pp. 198-199

"Three patterns of migration can be identified:

The majority of internally displaced people from the rural areas have moved into the nearest urban centres. Provincial capitals such as Batman, Diyarbakir, Hakkari, Sanliurfa and Van have been particularly affected;

Those internally displaced people with greater economic resources and the right contacts have moved further away to cities such as Adana, Gaziantep, Kahramanmaras and Mersin, outside the emergency law provinces; and

Many members of the middle class in the provincial cities have moved to western cities in Turkey such as Ankara, Antalya, Bursa, Istanbul and Ismir.

[...]

The short-term economic and humanitarian consequences of this massive migration have been disastrous. The already depressed regional economy has deteriorated even further. The cities have become overwhelmed with people swelling the ranks of the unemployed and stretching municipal services. Starvation is reported among the poorest of the internally displaced living in makeshift housing in the cities of eastern and southeastern Turkey. Villagers have been forced to slaughter their herds to finance their move into urban centres. The tourist industry has virtually disappeared from this locality. Furthermore, there has also been a flight of capital from the region as the relatively well-off have closed their businesses and small factories before moving to the west of Turkey. Inevitably, these developments have aggravated the employment situation and resulted in further pressure for groups to migrate out of eastern and southeastern cities."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Overall human rights record: progress needed in implementation of reforms (2007)

- Key reforms necessary to further human rights progress not implemented
- Security situation still poses risks especially in the east and south-east provinces, despite decrease in fights after PKK ceasefire
- There were continued prosecutions of people expressing their peacefully held opinions
- In spite of a general decrease in allegations of torture or ill-treatment, there were reports that such abuses were widespread in police custody against those detained during the protests
- Human rights violations in the Southeast and the problem of impunity remain of concern

HRA, February 2007

Violations of Right of Life during 2006

	D e a t h	Injured
Extrajudicial Executions	44	914
Using Excessive Power in Interference to Public Demonstrations	12	869
Disobey to "Stop Warning" and Violation of authority on arm use by officials	32	45
Unknown Killings/Attacks	20	105
Attacks by Illegal Organizations	8	63
Deaths in Custody	4	-
People, who attacked because of their Beliefs	3	3
Deaths/Injured People in Prisons	17	3
Clashes	345	321
Security Force Members	196	274

Armed militants	147	1
Civilians	2	46
Incidents of Landmine and Unidentified Ordinance	4 0	138
Violence against Children	58	175
Attacks based on honour reasons	78	58
Doubtful Deaths	82	-
Women	32	-
Men	27	-
Children	23	-
Official Negligence and Fault	8 1	1582
Women, who subjected domestic violence	126	108
Suicide of Police and Gendarmerie and Attempts to Suicide	2 1	2
TOTAL	927	3472

See also, [HRA's Full Human rights report \(2007\)](#)

HRW, January 2007

“The government of Prime Minister Recep Tayyip Erdogan failed during 2006 to implement key reforms necessary to consolidate the human rights progress of the past years. Entrenched state forces, including the military, continued to resist reform. Illegal armed groups, as well as rogue elements of the security forces, conducted violent attacks that threaten the reform process, although clashes decreased after the Kurdistan Workers’ Party (PKK) declared a ceasefire in October.”

AI, 2007

“After the introduction of new legislation in previous years, there was little evidence of progress in the implementation of reforms. There were continued prosecutions of people expressing their peacefully held opinions. Human rights further deteriorated in the eastern and south-eastern provinces in the context of an increase in fighting between the security forces and the armed Kurdistan Workers' Party (PKK); there was an increase in attacks on civilians in other areas by armed groups. There were reports of excessive use of force against demonstrators by law enforcement officers during violent protests in the city of Diyarbakir in the south-east of the country. In spite of a general decrease in allegations of torture or ill-treatment, there were reports that such abuses were widespread in police custody against those detained during the protests. There were continued concerns about unfair trials and conditions in "F-type" prisons. Little progress was made in creating shelters for women victims of violence.”

EC, 8 November 2006

"As regards *torture and inhuman or degrading treatment or punishment*, the implementation of the legislative framework has continued. Reports of torture and ill-treatment have diminished compared to the previous year. However, cases are still reported outside detention centres. Further, human rights violations in the Southeast and the problem of impunity remain of concern. The First Optional Protocol to the ICCPR, signed in 2004, and the Optional Protocol to the UN Convention against Torture (OPCAT), signed in September 2005, still await ratification."

Attacks by armed groups increase (2007)

- A series of bomb attacks in Turkey's major cities as well as in parts of the east/south east were reported
- The PKK announced a ceasefire from 1 October 2006
- The situation in the South-East has deteriorated since the resumption of violence by the PKK
- During the period between November 2005 and June 2006, there were 774 terrorist attacks reported

AI, 23 May 2007

"Bomb attacks targeting civilians increased. An armed group, the Kurdistan Freedom Falcons, claimed responsibility for bomb attacks including in Istanbul, Manavgat, Marmaris and Antalya, in which nine people died and scores were injured. In March, in the city of Van in the east of the country, a bomb exploded next to a minibus, leaving two civilians and the bomber, a PKK member, dead.

The PKK announced a unilateral ceasefire with effect from 1 October, and there was a subsequent decrease in armed clashes.

In May, an armed attack on judges at the Council of State (the higher administrative court) resulted in the death of a judge, Mustafa Yücel Özbilgin, and the wounding of four other judges. The trial of the gunman and of eight others for the attack and for three bomb attacks on the premises of the newspaper, Cumhuriyet, began in August in Ankara.

In February, former PKK executive Kani Yılmaz, one of the founders of the Patriotic Democratic Party of Kurdistan (PDK), and PDK member Sabri Tori were assassinated in a car bomb attack in Suleymanieh, northern Iraq, continuing a pattern of assassinations allegedly carried out by the PKK against the PDK."

EC, 8 November 2006

"The situation in the South-East has deteriorated since the resumption of violence by the PKK, which is on the EU list of terrorist organisations. During the period between November 2005 and June 2006, there were 774 terrorist attacks reported, which led to 44 military, 5 police and 13 civilian casualties."

Clashes between PKK and Turkish army resurface in southeast (2007)

- There have been major improvements in the security situation during the last five years, but an increase in clashes between Turkish military and Kongra-Gel militants have been reported since June 2004
- Clashes continued despite a ceasefire proclaimed by the PKK on 1 October

- According to the government, 32 civilians, 93 members of the security forces, and 118 terrorists were killed in armed clashes through October
- The Human Rights Association's Diyarbakir office reported that 294 persons died in such clashes and 303 were injured during the year
- Turkey argues that there is a link between the recent escalation of violence in the Southeast of Turkey and increased clashes between Turkish Armed Forces and the PKK and "infiltration of PKK members" from the Iraqi border
- A significant number of troops were deployed along the Iraqi border in order to prevent infiltration by PKK terrorist from Northern Iraq

BBC, 4 June 2007

"Kurdish separatist rebels killed at least seven Turkish soldiers when they opened fire on a military outpost in eastern Turkey, officials say"

BBC, 8 April 2007

"Eight soldiers and a Kurdish "village guard" have been killed amid ongoing violence between Kurdish separatists and the government in Turkey."

Turkish Daily News, 16 January 2007:

"Turkish troops killed three Kurdistan Workers' Party (PKK) members in separate clashes in rural areas of southeastern Turkey, officials and news reports said on Monday.

The Anatolia news agency said two were killed in fighting near the town of Lice, in Diyarbakir province, where battles between Turkish soldiers and PKK members are common. The agency did not say when the clashes took place or give any further details. Authorities in Lice were not immediately available to confirm the report.

The Bingöl Governor's Office said another was killed when troops fought PKK members in a rural area near the town of Genç on Monday.

The PKK have been fighting Turkish security forces in eastern Turkey for more than two decades, often slipping across the mountainous border from bases in northern Iraq. The clash occurred despite a unilateral cease-fire proclaimed by the PKK on Oct. 1."

US DOS, 6 March 2007

" According to the government, 32 civilians, 93 members of the security forces, and 118 terrorists were killed in armed clashes through October. The Human Rights Association's (HRA) Diyarbakir office reported that 294 persons died in such clashes and 303 were injured during the year. Most of the clashes occurred in the southeast."

EC, 8 November 2006

"Turkey has taken concrete initiatives to promote stability in Iraq by facilitating dialogue between US authorities and Sunni Arabs. Turkey argues that there is a direct link between the recent escalation of violence in the Southeast of Turkey and increased clashes between Turkish Armed Forces and the PKK and "infiltration of PKK members" from the Iraqi border. A significant number of troops were deployed along the Iraqi border in order to prevent infiltration by PKK terrorist from Northern Iraq."

International Herald Tribune, 6 April 2006:

"Violent clashes between Kurds and security forces reignited in Turkey over the last week, jolting memories here back to an old problem that still stands as a dangerous block on the nation's path toward greater prosperity and democracy.

After a decade of calm, at least 20 people were killed in protests, most in the guerrilla battleground of the Kurdish southeast but also in cosmopolitan Istanbul. Among the dead were a 6- year-old boy and a 78-year-old man, Halit Sogut, whose relatives asked on Tuesday how this was still possible in a nation that saw its rightful place in the European Union.

... The roots of the current protests are complicated, fed slowly by low-level incidents in the last two years since the PKK called off what had been a six-year unilateral truce. Last week, funerals in Diyarbakir for 14 PKK members killed in fighting with Turkish soldiers the weekend before swelled into large protests.

The next day, those protests turned violent: Shopkeepers, urged to do so by a Kurdish satellite station, rolled down the shutters of their shops, and gangs of youths and soldiers began clashing. Three people, including the 78-year-old Sogut - whose own family could not agree if he was a bystander or had joined in the protests against Turkish soldiers - were killed.

In the following days, the protests spread to the city of Batman to the southeast, where one person was killed and to Kiziltepe - home to tens of thousand of Kurds displaced by the fighting a decade ago - where two others died. On Sunday, protests ignited in Istanbul, where protesters hurled gasoline bombs at a bus and three people were killed, apparently crushed by the bus. By early this week, at least 9, and possibly 10, were dead in Diyarbakir, along with more than 500 people detained."

See for example [Lethal clashes continue in Turkey](#), and [Two injured in Instabul explosion](#), and [Kurd unrest escalates in Turkey](#), and [Turkish press laments Kurd unrest](#). Further reports included in sources below.

EC, 10 October 2004, p. 19

"The security situation in the Southeast has considerably improved since 1999, although there have recently been a number of incidents which resulted in casualties"

EC, 10 October 2004, p.50

"Despite a general improvement in the situation in the Southeast, the security threat has increased since the Kongra-Gel (formerly PKK) announced the end of the ceasefire in June 2004. Terrorist activities and clashes between Kongra-Gel militants and the Turkish military have been reported."

HRW, 4 October 2004, p.6

"Political violence resumed in the countryside after Kongra-Gel called off its ceasefire in June, creating a further obstacle for those attempting to return to the region. Clashes between security forces and armed militants, though at a lower level than in the early 1990s, risk damaging the increasing sense of stability in the region which had facilitated reform generally, and poses a threat that earlier brutal and widespread security operations against villages may be resumed."

See for example ["Turmoil revisiting southeastern Turkey"](#), Aljazeera, 17 July 2005; ["Turkey kills 21 Kurdish fighters"](#), BBC News, 15 April 2005; and ["Turks attack Kurdish rebels"](#), The Guardian, 1 September 2004

Investigations into violations by members of the security forces continued to be flawed (2007)

- Investigations into violations by members of the security forces continue to be deeply flawed and there was a general unwillingness among elements of the judiciary to bring those responsible to justice

- The US Department of State reported that the security forces killed a number of persons during the year.
- The Government continued to organize, arm, and pay a civil defence force mostly in the southeast region, known as the "village guards"
- Village guards continued to be accused repeatedly of corruption and human rights abuses including rape, corruption, and theft
- The village guards, Jandarma, and police special forces are viewed as those most responsible for abuses
- A petition containing over 30 000 signatures protesting against the village guard system was registered with the Petitions Committee in the Parliament in October 2003

AI, 23 May 2007

"Investigations into violations by members of the security forces continued to be deeply flawed and there was a general unwillingness among elements of the judiciary to bring those responsible to justice.

- In February, a decision was made not to pursue an investigation into the alleged torture of five male teenagers in October 2005 in the town of Ordu.

• Two gendarmerie intelligence officers and an informer received prison sentences of over 39 years for the bombing of a bookshop in the town of $\pi\pi\pi$ emdinli in November 2005, in which one man died. The court's verdict stated that the men could not have acted without the involvement of their seniors. Pending appeal at the end of the year, the case exposed the serious obstacles to bringing to justice senior members of the security forces suspected of committing violations."

US DOS, 6 March 2007

"The government or its agents did not commit any politically motivated killings; however, security forces killed a number of persons during the year.

The Human Rights Foundation (HRF) reported that, in late March and early April, the police and military killed 14 persons, including five children, when they fired into crowds of demonstrators during rioting in the southeastern city of Diyarbakir [...].

According to the HRF, security forces caused three deaths when they raided houses during the first eight months of the year.

According to the HRF, police and Jandarma killed 9 persons during the year when they did not obey warnings by security forces to stop their vehicles.[...]

A civil defense force known as the village guards was less professional and disciplined than other security forces and was concentrated in the southeast. The village guards were accused repeatedly of drug trafficking, rape, corruption, theft, and other human rights abuses. Inadequate oversight and compensation contributed to this problem, and in many cases Jandarma allegedly protected village guards from prosecution. Although the security forces were generally considered effective, the village guards, Jandarma, and police special forces were viewed as those most responsible for abuses. Corruption and impunity from prosecution were serious problems.

Courts investigated many allegations of abuse and torture by security forces during the year; however, they rarely convicted or punished offenders [...]. When courts did convict offenders, punishment generally was minimal and sentences were often suspended. Authorities typically allowed officers accused of abuse to remain on duty and, in occasional cases, promoted them during their trials, which often took years.

The TNP and Jandarma received specialized training in a number of areas, including human rights and counterterrorism. According to the government, the armed forces emphasized human rights in training for officers and noncommissioned officers.

During the first nine months of the year, 715 administrative or judicial cases were opened against security personnel and other public officials on torture, maltreatment, or excessive use of force charges. The decision of "acquittal" or "no need to punish" was reached in all 85 maltreatment or torture cases. Out of 630 "excessive use of force" cases, 10 resulted in prison sentences, one resulted in a temporary suspension, 598 resulted in acquittal or no need to punish, and 21 remained ongoing."

US DOS, 28 February 2005

"The Turkish National Police (TNP), under Interior Ministry control, has primary responsibility for security in urban areas, while the Jandarma, paramilitary forces under joint Interior Ministry and military control, carries out this function in the countryside. The Government maintained a heavy security presence in parts of the southeast. A civil defense force known as the village guards was less professional and disciplined than other security forces and was concentrated in the southeast. Civilian and military authorities generally maintained effective control of the security forces. Some members of the security forces committed serious human rights abuses.

[T]here were credible reports that security forces committed a number of unlawful killings. Police, Jandarma, and soldiers killed a number of persons, particularly in the southeast and east, for allegedly failing to obey stop warnings. The Human Rights Foundation (HRF) estimated that there were 18 killings by security forces between January and September, including shootings by village guards and border patrols. For example, in August, security forces in Van Province shot and killed Senol Kizil after he allegedly failed to heed a stop warning. In November, Jandarma officers shot and killed Fevzi Can in Hakkari Province, also alleging that he failed to heed a stop warning. One officer was arrested in the case and was awaiting trial at year's end. HRF estimated there were 43 killings by security forces in 2003.

The courts investigated most alleged unlawful killings by security forces; however, the number of arrests and prosecutions in such cases remained low compared with the number of incidents, and convictions remained rare.

[...] Court proceedings continued in the trial of 10 village guards arrested in connection with the 2002 killing of 3 internally displaced persons (IDPs) returning to their homes in Ugrak village. One defendant remained in detention during the trial while the others were released pending a verdict.

[...] In April, a prosecutor in Mus Province opened a case against seven village guards in connection with the 1994 killing of Ramazan Oznarci. The case continued at year's end.

The Government, as well as the PKK/KADEK/KHK, continued to commit human rights abuses against noncombatants in the southeast. According to the military, 18 civilians, 62 members of the security forces, and 79 terrorists died between January 1 and October 7 as a result of armed clashes.

The Government continued to organize, arm, and pay a civil defense force of approximately 58,000, mostly in the southeast region. This force, known as the village guards, was reputed to be the least disciplined of the security forces and continued to be accused repeatedly of drug trafficking, rape, corruption, theft, and other human rights abuses. Inadequate oversight and compensation contributed to this problem, and in some cases Jandarma allegedly protected village guards from prosecution. In addition to the village guards, Jandarma and police special teams were viewed as those most responsible for abuses."

US DOS, 28 February 2005

"The Turkish National Police (TNP), under Interior Ministry control, are responsible for security in large urban areas. The Jandarma, paramilitary forces under joint Interior Ministry and military control, are responsible for policing rural areas. The Jandarma are also responsible for specific border sectors where smuggling is common; however, the military has overall responsibility for border control. There were allegations of police corruption.

[...] Courts investigated many allegations of ill-treatment and torture by security forces; however, they rarely convicted or punished offenders. When courts did convict offenders, punishment generally was minimal; monetary fines did not keep pace with the rate of inflation, and sentences were sometimes suspended. The rarity of convictions and generally light sentences in torture cases contradicted the Government's official policy of zero tolerance for torture. Authorities typically also allowed officers accused of abuse to remain on duty and, in some cases, promoted them during their trial, which often took years."

HRW, 15 December 2004

"Human Rights Watch recommends that the Turkish government ensure that the recent attacks on civilians in return areas are thoroughly and independently investigated, that the methods and findings of that investigation are made public, and that any members of the security forces found to be responsible for the killings are prosecuted and punished."

EC, 6 October 2004, p.51

"The issue of the village guards remains unresolved. Notwithstanding the judicial procedures against village guards involved in murders, official figures state that 58 416 village guards are still on duty (as opposed to 58 551 last year). Moreover, although the Turkish authorities state that no village guards have been appointed since 2000, NGOs suggest that new village guards have been recruited in response to the increasing number of clashes between security forces and illegal armed groups. In many cases, authorisation to return to villages is reportedly conditional on the willingness of the returnees to serve as village guards. A petition containing over 30 000 signatures protesting against the village guard system was registered with the Petitions Committee in the Parliament in October 2003."

IHF, 27 June 2005

"The visiting human rights delegation observed that the IDPs had faced health and nutrition problems as well as daily harassment by the gendarmes.

In December, a human rights delegation reported that returnees in a small village in Van were harassed and threatened by the gendarmerie with eviction if they did not join the ranks of village guards. The villagers alleged that they were kept under detention repeatedly, without any charges and for prolonged periods."

HRFT, November-December 2004

"Inhabitants of Tasnacak hamlet, Oguldami village, Gürpınar district (Van), who had been forced to leave in 1997, but returned on their own means, stated that they were put under pressure to become village guards. On 29 November they complained to the HRA in Van and told the human rights activists that the soldiers had threatened them with another evacuation, if they did not accept to become village guards."

AI 12 February 2004

"There has been a notable failure to address the legacy of human rights violations from the past - including torture, 'disappearances', extrajudicial executions, unfair trials, destruction of property and forcible evacuation from villages in the southeast of the country - as the number of cases against Turkey in the European Court of Human Rights bears out. Focus on Turkey entering a new era in the protection of human rights should not mean that this legacy remains unaddressed and forgotten by the Turkish authorities. The introduction of a draft bill in January 2004 intended

to offer the possibility of compensation for those who lost property and livelihoods as a result of the forcible emptying of villages during the conflict in southeast and eastern provinces of Turkey in the late 1980s and 1990s is one step, but the authorities should not ignore their responsibility to bring the perpetrators of such violations to justice.

Laws recently adopted have aimed to combat some aspects of impunity by removing some of the obstacles to the investigation of claims of torture and ill-treatment, by requiring that trials of those charged with such crimes are given priority and that hearings take place at no more than 30-day intervals, and by stipulating that prison sentences for such crimes cannot be converted to fines, suspended or postponed.

Amnesty International notes one recent decision to expel a senior police official from the police force on the grounds that he had wilfully ignored the crimes of torture and ill-treatment committed by officers in units under his command. The dismissal from the police force in September 2003 of Adil Serdar Saçan, former Head of the Organized Crime Branch of Istanbul Police Headquarters, represents one of the few instances of a senior official being disciplined in this way in connection with the crimes of torture and ill-treatment.

At the present time, however, the ratio of reports of torture and ill-treatment to investigation and prosecution of alleged perpetrators remains extremely low. While this state of affairs continues, it is unlikely that law enforcement officials will really internalize the sense that brutality against detainees is unacceptable."

See also:

The section on "Police Abuses" in ["Overview of Human Rights Issues in Turkey"](#), Human Rights Watch 26 January 2004

["Turkey Still Represses Kurds, Despite EU-Oriented Reforms: Rights Group"](#), Kurdistan Observer, 30 July 2003

["From Paper to Practice: Making Change Real: Memorandum to the Turkish Prime Minister on the occasion of the visit to Turkey of a delegation led by Irene Khan, Amnesty International's Secretary General, February 2004"](#), 12 February 2004

["Turkey: Human Rights in the Kurdish Southeast: Alarming Situation despite extensive reforms"](#) FIDH International Investigative Mission, July 2003

["Concerns in Europe and Central Asia: January to June 2003: Turkey"](#), AI, 1 October 2003

Landmines in the southeast provinces pose threat to physical security (2007)

- Human Rights Association, a Turkish human rights NGO reported 138 deaths and injuries from landmines and unexploded ordnance in 2006
- Landmines laid by the government along the borders, and by both sides in the conflict between the security forces and the PKK, continue to cause
- On 18 July 2006, the Kurdistan Workers' Party committed to a ban on antipersonnel mines by signing the Geneva Call Deed of Commitment
- There were at least 220 new landmine/UXO casualties in 2005, a significant increase from 168 in 2004 and 67 in 2003.
- A total of 2,171 mines were cleared from 300,000 square meters of land in 2005
- During interviews Landmine Monitor conducted with people living in the Diyarbakir and Mardin in the southeast of the country, they said they had the impression that security forces sometimes purposefully leave unexploded debris in areas endangering civilians and that security forces may be responsible for mine casualties that occur near police stations.
- Landmine Monitor reported that there is no evidence to support these claims, but noted that these are widely held impressions among local populations

HRA, 27 February 2007**INCIDENTS of LANDMINE and UNIDENTIFIED ORDNANCE**

	Death	Injured
Children	5	32
Women	1	5
Men	34	101
TOTAL	40	138

Landmine Monitor Report, 2006

"Turkey is affected by landmines and unexploded ordnance (UXO). The problem derives mainly from antipersonnel mines laid by government forces on Turkey's border with Syria in 1956-1959, as well as around security installations and on some sections of the borders with Armenia, Iran and Iraq to prevent illegal border crossings. Landmines were also laid by government forces in the east and southeast of the country during and after internal armed conflict in 1984-1999, with "the purpose of hindering terrorists from moving into central regions." During the same period and subsequently, PKK/Kongra-Gel and associated armed groups also used mines in these areas.[...]

In May 2006, Turkey reported that a total of 984,313 mines, of which 164,497 were antivehicle mines emplaced on the Syrian border and 819,816 were antipersonnel mines emplaced in an unspecified number of areas within the country and along the border with Syria.[...] In its Article 7 report submitted in May 2005, Turkey had reported a total of 919,855 mines in known mined areas across its territory, and at least 687 mines in locations suspected to be mine-contaminated.[...] Turkey explained that the increase in the numbers reported in 2006 was due to the fact that, "fields which were suspected of being minefields, indeed, turned out to be minefields." [...] Turkey reported previously that it had laid 936,663 antipersonnel landmines between 1957 and 1998.[...]"

"Key developments since May 2005: Turkey declared a stockpile of 2,979,165 antipersonnel mines, a larger figure than reported before; for the first time it included 22,788 artillery-delivered ADAM mines in the total. Turkey reported that in December 2005, the NATO Maintenance and Supply Agency and a company signed an agreement to establish a new facility to destroy stockpiled mines. In May 2006, Turkey said that the victim-activation components of M18 Claymore mines will be destroyed. On 18 July 2006, the Kurdistan Workers' Party committed to a ban on antipersonnel mines by signing the Geneva Call Deed of Commitment. There were at least 220 new landmine/UXO casualties in 2005, a significant increase from 168 in 2004 and 67 in 2003. A total of 2,171 mines were cleared from 300,000 square meters of land in 2005. The process of inviting national and international companies to tender for clearance of mined areas, in return for their free use of the land, was contested in parliament.

During interviews Landmine Monitor conducted with people living in the Diyarbakir and Mardin provinces of the region of southeastern Anatolia, they said they had the impression that security forces sometimes purposefully leave unexploded debris in areas endangering civilians. People living in the conflict-affected areas also believed that security forces may be responsible for mine casualties that occur near police stations. While there is no evidence to support these claims, Landmine Monitor noted that these are widely held impressions among local populations.[...]

In June 2004, PKK/Kongra-Gel and HPG ended a unilateral cease-fire they called in 1999 in favor of a future, bilateral cease-fire. However, in 2005-2006 numerous mine incidents were reported in the media as armed attacks intensified, with the PKK/Kongra-Gel usually cited as responsible for using the mines. As reported in the media, most incidents involved antivehicle mines, including command-detonated mines. At least some incidents appear to have been the result of victim-

activated antipersonnel mines or improvised explosive devices, but the date of their placement cannot be confirmed.

The Turkish government reported that 39 military personnel were killed and 155 injured in 2005 by mines laid by PKK/Kongra-Gel.[...] The Initiative for a Mine-Free Turkey recorded 220 casualties from mines and unexploded ordnance in 2005, with most occurring during a period of increased armed clashes in the latter part of the year.[...] In July 2005, General Ilker Basbug, the army second-in-command, said that PKK violence had claimed the lives of 105 soldiers and 37 civilians over the past year, and claimed that the rebels used mostly explosives and landmines in their attacks.[...]"

Landmine Monitor Report, October 2004

"In 2004, attacks against government forces by the PKK increased, including reported use of mines."

US DOS, 28 February 2005

"According to the HRF [NGO Human Rights Foundation], landmines and unattended explosives killed 31 civilians and injured 78 during the year. Both security forces and the Kurdistan Workers Party (PKK)--a terrorist organization that in 2003 changed its name to the Kurdistan Freedom and Democracy Congress (KADEK) and later to the Kurdistan People's Congress (KHK, or Kongra-Gel)--used landmines; it was not possible to verify which side was responsible for the mines involved in the incidents."

HRW, 14 January 2003

"Landmines laid by the government along the borders, and by both sides in the conflict between the security forces and the PKK, killed eleven people, including four children. Following Turkey's 2001 declaration that it would join the Ottawa Convention banning antipersonnel mines, it took important steps toward accession but had not completed procedures by late October [2002]."

Turkish MFA, 15 March 2002

"In view of the human sufferings and casualties caused by anti-personnel land mines, the international community has long been endeavoring to take effective measures in order to prevent their use. The resolutions of the United Nations General Assembly calling on Member States to implement a moratorium on the export of anti-personnel land mines constituted an important part of these efforts since 1993. In light of these resolutions, Turkey unilaterally declared on 17 January 1996 a comprehensive moratorium on all anti-personnel land mine exports and transfers for a renewable term of three years.

Moratoriums on the export of anti-personnel land mines were superseded on 1 March 1999 by the entry into force of the Ottawa Convention, which provides for the total prohibition of the use, stockpiling, production and transfer of the said mines as well as their destruction. The security situation around Turkey precluded her from signing the Ottawa Convention at the time of its conclusion. Nevertheless, as an expression of her commitment to the humanitarian objectives of the Convention, Turkey extended her national moratorium on the export and transfer of anti-personnel land mines on 17 January 1999 for another three years. Turkey also concluded agreements with Bulgaria in March 1999 and with Georgia in January 2001, with a view to establishing regimes for keeping the common borders free from these mines.

After careful consideration, Turkey has now decided to accede to the Ottawa Convention. Moreover, Turkey and Greece have agreed to concurrently start the procedures that will make both countries parties to the Ottawa Convention. Turkey has come to the stage of submitting the Convention to the Turkish Grand National Assembly for finalization of the accession procedures.

In the meantime, the duration of Turkey's national moratorium on the export and transfer of anti-personnel land mines expired in January 2002. Turkey has decided to extend once again her moratorium on the export and transfer of anti-personnel land mines, this time indefinitely, as an expression of her sincere commitment to becoming party to the Ottawa Convention."

Fewer reports of torture (2007)

- Amnesty International and the US Department of State note continued reports of torture and ill treatment by security enforcement officials in 2006
- Courts rarely convicted security officials accused of torture and generally issued light sentences when they did convict
- Detainees alleged that they had been beaten, threatened with death, deprived of food, water and sleep during detention

AI, 23 May 2007

"There were continued reports of torture and ill-treatment by law enforcement officials, although fewer than in previous years. Detainees alleged that they had been beaten, threatened with death, deprived of food, water and sleep during detention. Some of the torture and ill-treatment took place in unofficial places of detention.

- In October, Erdal Bozkurt reported that he was abducted in Alibeyköy in Istanbul by men identifying themselves as police officers, put into a car, blindfolded and handcuffed, beaten and threatened with death, and taken to a place where he was tortured and interrogated for a whole day about his and other people's involvement in a local group which had been protesting against drug dealers and social problems in their neighbourhood. He was released the following day.

There were widespread allegations by adults and minors of torture and ill-treatment during the mass detentions in the course of riots in Diyarbakir in March.

- Two 14-year-old boys reported that they were held for around nine hours at the Çarô¹ police station, stripped naked, made to pour cold water over each other, were threatened with rape, made to lie on a concrete floor, and were forced to kneel down with their hands tied behind their backs while being repeatedly beaten with fists and truncheons and kicked by police officers. Medical reports showed signs of their ill-treatment. They were later transferred to the Children's Department of the Police in another district."

US DOS, 6 March 2007

"The constitution and law prohibit such practices; however, members of the security forces continued to torture, beat, and otherwise abuse persons.

Incidents of torture and abuse declined during the year but remained a problem. There was a decline in the severe ill-treatment that prisoners encountered in prior years, but incidents of ill-treatment during police/gendarmerie custody continued, according to the Council of Europe's September 6 report on the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment (CPT). Courts rarely convicted security officials accused of torture and tended to issue light sentences when they did convict [...].

[Further information available in the USDOS Report](#)

US DOS, 28 February 2005

“The Government implemented a number of reforms adopted in 2003 and 2002. While security forces applied torture and ill-treatment widely, particularly in the southeast, the overall use of torture appeared to decrease during the year.

[...]

The Constitution prohibits such practices; however, members of the security forces continued to torture, beat, and otherwise abuse persons regularly, particularly in the southeast. Security forces most commonly tortured leftists and Kurdish rights activists.

According to the HRF, there were 918 credible cases of torture and mistreatment reported at its 5 national treatment centers during the year. Human rights advocates claimed that hundreds of detainees were tortured during the year in the southeast, where the problem was particularly serious, but that only a small percentage of detainees reported torture and ill-treatment because they feared retaliation or believed that complaining was futile.

During the year, senior HRF and HRA officials stated that there had not been a significant change in the frequency of torture over previous years. However, officials at a number of HRA branch offices, including in the southeast, said they had observed a decline in the practice. A number of attorneys in the southeast and other regions also reported that torture and ill-treatment had become significantly less common. Observers reported that police demonstrated greater restraint in their treatment of detainees and protestors during the year due to legal reforms and government directives.”

For a general background, see [report from the Council of Europe](#) (2007)

See also the monthly reports of the Human Rights Foundation of Turkey [[Internet](#)]

Majority of enforced disappearances affect ethnic Kurds in south-east Turkey (2003)

- The government continued to investigate some reported cases of disappearances, however most cases had not been resolved
- The UN Special Rapporteur for Missing and Disappeared Persons expressed her view that the security forces were responsible for some cases of disappearances (2001)
- Most cases concern persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia
- Most of the missing persons have allegedly been arrested and mistreated by the police on charges of belonging to the PKK
- Members of the security forces who are allegedly responsible for most cases of enforced disappearances have rarely been prosecuted for these acts
- Abductions by PKK terrorists of local villagers and state officials has virtually ended since the capture of the PKK leader Ocalan (1999)

UK Home Office October 2003, paras.6.21-6.24

“[T]he government continued to make efforts to investigate and explain some reported cases of disappearance. [...] However, many cases of disappearances in Turkey are not resolved. The majority of these cases reportedly occurred in south-east Turkey, in areas where the State of Emergency was in force. [...]

In February 2001 the U.N. Special Rapporteur for Missing and Disappeared Persons, Asma Jihangir, visited Turkey and met with government officials and non-governmental contacts. She expressed her view that the security forces appeared to be responsible for the disappearances of two HADEP officials [...], but she did not have sufficient information to comment on other alleged cases. She stated publicly that conditions regarding disappearances had improved greatly, but that security force impunity continued. [...]

Although members of the security forces are said to be responsible for most cases of enforced disappearances, they are rarely brought to trial or prosecuted for these acts. Although arrests of police and other law enforcement personnel increased in cases of extrajudicial killings, the number of arrests remained low, and punishment for those persons convicted remained insufficient. The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort, and of abductions by PKK terrorists of local villagers and state officials, has virtually ended, due to reduced PKK capabilities in the south-east and calls by its captured leader Öcalan for the PKK to withdraw from its former operating areas in the country.[...]"

UK Home Office April 2001, paras. 5.16-5.23

"In January 1998, the Commission on Human Rights reported to the UN Working Group on Enforced or Involuntary Disappearances that 153 cases of disappearance had been transmitted to the Turkish Government since 1990. The majority of these occurred in the southeast, in areas where a state of emergency is in force. In February 1999 Amnesty International reported that of these 153 cases, 83 remained unresolved.

The United Nations Working Group on Enforced or Involuntary Disappearances (UNWGEID) visited Turkey in September 1998, and reported their findings at the end of December 1998. Since its creation, 166 cases of enforced disappearance have been reported to the UNWGEID, of which 79 have been clarified, most of them by the Turkish government. The highest number of cases occurred in 1994 (72 cases). The numbers dropped to 17 in 1995, to 12 in 1996 and to 9 in 1997. During 1998, 13 cases were reported. The victims included members of political opposition parties, journalists working for newspapers opposed to the government, trade unionists or villagers suspected of supporting subversive organizations. The UNWGEID also received allegations of disappearances imputed to the PKK and other armed groups. However, these cases do not fall within the mandate of the UNWGEID.

Most of the disappearances concerned persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia. There were some disappearances in Antalya, Izmir and Istanbul. Most of the cases followed the same pattern: the missing persons had allegedly been arrested at their homes on charges of belonging to the PKK and taken to the police station, but their detention was later denied by the authorities, in most cases police officers or state prosecutors. In many cases, torture or ill-treatment at the hands of the security forces was reported or feared. Some of the disappearances occurred during raids conducted by gendarmes accompanied, at times, by village guards.

It has been reported by some Turkish human rights groups that some Turkish law enforcement officials do not register suspects when they are initially taken into detention, the allegation being that if the suspect should die during questioning then there will be no record of them having been detained. There is also the problem concerning the effective incommunicado detention available to the authorities in relation to suspects held for crimes covered by the State Security Courts.

The Turkish government has sought to remedy these problems by introducing new detention procedures in August 1998. Suspects now have the ability to notify his family of his detention, even in cases covered by the State Security Courts, provided there is no harm to the outcome of the investigation. Full detention registers are to be kept and suspects are to be medically examined before they are taken into detention as well as after. Turkish NGOs have complained that the provisions are frequently ignored.

The UNWGEID was of the opinion that, comparatively speaking and taking into account the number of outstanding cases of disappeared persons, as well as the decrease of allegations in the past few years, mainly since 1994, enforced disappearances in Turkey should not be

evaluated as a massive or systematic practice of governmental agencies. Such an assessment does not exclude the existence of such a practice. "

U.S. DOS February 2001, sect. 1b

"The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort and abductions by PKK terrorists of local villagers and state officials has virtually ended, due to reduced PKK capabilities in the southeast and calls by its captured leader Ocalan for the PKK to withdraw from its former operating areas in the country."

See also: "[Report on the visit to Turkey by two members of the Working Group on Enforced or Involuntary Disappearances \(20-26 September 1998\)](#)," UN Working Group on Enforced or Involuntary Disappearances , 28 December 1998

"[Human Rights in the Kurdish Southeast: Alarming Situation despite extensive legal reforms](#)", FIDH International Investigative Report, July 2003, pp. 9-11 on disappearances and pp. 12-13 on extra judicial killings

Access to justice: fear of retaliation prevents the displaced from reporting abuses (2003)

- International NGOs report that Turkey has actively intimidated internally displaced people to prevent them from testifying about their situation
- The European Court of Human Rights has established in several cases that displaced persons had been discouraged by Turkish authorities to exercise their right to justice
- 1,125 cases were brought to the ECtHR in 2002, including the right to fair trial and destruction and loss of property

HRW, 30 October 2002

"Most displaced villagers are reluctant to seek judicial remedies, since they believe that there is no chance of a result in their favor. They find it extremely difficult to find a foothold for legal action, since the whole process of displacement has been kept off the record. Few villagers have received any documentary evidence to show that they are unable to return to their property. It is a curious paradox that for years the displaced farmers, most of whom are only semi-literate, have been diligently petitioning government and judicial authorities in writing, while the state bureaucracy has preferred to do business by word of mouth. Local governors generally give or withhold permission to return verbally, and thereby avoid committing administrative acts that might subsequently be challenged in court.

Moreover, villagers fear that legal action may simply aggravate the security forces' disfavor and further distance their main goal of reoccupying their homes. The persecution and violence experienced by the few who sought a remedy through the law justifies such trepidation. Armed hostilities are over in the southeast, but those who were internally displaced are still infected with profound fear. Most informants would only speak to Human Rights Watch on condition that their identity would be withheld."

USCR 1999, p. 10

"The USCR researcher found most Kurds he encountered in the southeast to be fearful of being discovered speaking to him about their situation. Finding internally displaced persons willing to talk was not easy. Often, assessing whether or not they were speaking forthrightly was even more difficult. In a few instances, where USCR was able to visit the displaced in private quarters where they felt secure, they sharply criticized the government, blaming it (soldiers and police) for their displacement, and expressed discontent with their current situation. More often, it was not

possible to establish such interview conditions. Under circumstances where people were interviewed in more public surroundings without adequate confidentiality, they praised the government, condemned the PKK, and expressed satisfaction with their situation. This is not to say that their testimony was untrue. Given the radically different testimonies, however, caution is needed in assessing any claims.

Turkey has actively intimidated internally displaced people to prevent them from testifying about the causes and consequences of their displacement. In particular, the European Court of Human Rights has determined that the Turkish government has sought to prevent displaced persons from testifying before the European Commission of Human Rights (ECHR) regarding allegations that Turkey violated the European Convention for the Protection of Human Rights and Fundamental Freedoms. On September 16, 1996, in the case *Akdivar et al. v. Turkey* (Council of Europe-European Court of Human Rights document 99/1995/ 605/693), the Court ruled that the Turkish authorities exerted 'illicit and unacceptable pressure' on the applicants to withdraw their petitions. The applicants were villagers who alleged that Turkish security forces evacuated and destroyed their village following a PKK attack.

Human Rights Watch has encountered similar difficulties. HRW has documented the problem of convincing internally displaced persons whose rights have been abused to report such abuses. In bringing complaints of human rights violations before the ECHR, HRW cites the Commission as saying that applicants' fears of retaliation for reporting abuses cannot be discounted. HRW quotes Mahmut Sakar, chairman of the Human Rights Association of Diyarbakır about a complaint brought to the ECHR on the burning of the village of Lice and the expulsion of its inhabitants:

We apply to the Commission, which sends the application to the government. For ex-ample, we file an application on the burning of the village of Lice, they send the application to the Gendarme, who then call the villagers. They ask them, "Did you do this?" and they reply, "No, we love the state." We claim that the Gendarme has burned a village, and it is the Gendarme that is asked to assist in the investigation. In my opinion, 90 percent of the applicants from this region have been threatened. I know most of the cases from around here. Most realize the best way to survive is to shut up.

During USCR's site visit, another lawyer spoke to this issue. 'My own village was burned, it is now empty,' he said. 'I tried to get the people from my village to apply to the European Commission. They refused out of fear and because of threats.' Closely related to the sense of fear, are other forms of psychological trauma associated with loss and failure. Passing an elderly man in traditional dress sitting alone on a sidewalk stool in Van, a local resident traveling with the USCR researcher commented, 'That man, in normal times, would be in his home, surrounded by family, supported by his children and grandchildren.' The loss of dignity takes an enormous toll. The man who ran a local humanitarian organization devoted to assisting displaced persons (until the authorities closed it down) spoke bitterly about this:

After forced migration, people feel alone, left out. A person who was a leader in his own village now sells tomatoes in the street. He sends his daughter or wife to an-other house as a servant. He has no more pride. All he does is try to make ends meet. People look for food in the garbage. They live in barns and tents. The authorities have achieved their aim to strip away their personalities and their pride. They are trying to create a nation of bowed heads, like sheep.

The fear does not end after fleeing one's village or town. Most displaced persons interviewed by USCR had fled multiple times, usually citing a pervasive sense of insecurity as the reason for moving on."

See also following judgements of the European Court of Human Rights regarding violations of the individual right of petition:

- Akdivar et al. v. Turkey (Application no. 21983/93), 16 September 1996 [[Internet](#)]
- Dula v. Turkey (Application no. 25801/95), 30 January 2001 [[Internet](#)]

U.S. DOS, 31 March 2003

"The Government recognized the jurisdiction of the ECHR. Between October 2001 and July [2002], applications regarding Turkey were made to the ECHR. The majority of these--1,125 cases--involved the right to a fair trial; 304 concerned the right to liberty and security; 246 concerned the prohibition of torture; 104 concerned freedom of assembly and association; and 95 concerned freedom of expression. According to the European Commission, the Government's failure to execute ECHR judgments remained a serious problem. The Commission reported in October that there were 90 outstanding cases in which the Government failed to fully make payments ordered by the ECHR and 18 cases relating to freedom of expression in which the Government failed to erase the consequences of criminal convictions overruled by the ECHR. In July the Council of Europe adopted an interim resolution regarding Turkey's lack of compliance with approximately 40 ECHR judgements on violations by Turkish security forces issued since 1996.

During the year [2002], the ECHR ruled against the Government in 54 cases—including 22 cases involving the right to a fair trial and 21 involving dispossession of property (from villages in the southeast)--and in favor of the Government in 2 cases. The Government accepted a friendly settlement in 43 cases, and the ECHR dismissed one case.

In August [2002] Parliament passed an amendment under which rulings of the ECHR could be grounds for a re-trial in a Turkish court. Previously, those who won their cases at the ECHR were only entitled to financial compensation. Re-trial applications must be approved by the General Legal Council of the Court of Appeals. The measure was not retroactive; it applied only to cases to be brought to the ECHR starting in 2003. At year's end [2002], Parliament was reviewing a bill that would allow the measure to be applied to most past cases."

Women

Multiple vulnerabilities of displaced Kurdish women (2007)

- Socially attributed gender roles make an additional impact on displaced Kurdish women
- A group of problems concern survival and reconstruction of life project and the social fabric in the place of arrival, especially language and health problems
- Destruction of lives, possession and social life cause isolation, despair and hopelessness, destruction of social fabric and vulnerability to violence
- Employment necessity puts displaced women under moral pressure, cultural and language barriers keep them from labour market

Demirler, Derya, Gender Dimensions of Internal Displacement in Turkey, January 5-7, 2007:

"Comprising the 50 percent of IDPs, women suffer from a bunch of interrelated problems, including poverty and joblessness, inadequate access to education, health care, and psychosocial care. Those problems are similar with the experiences of IDP men.

However, the "gender roles" attributed to women and men socially, make the difference.

When we give up thinking about the internal displacement issue for a while, we see that the experience of being a Kurd is not same for Kurdish men and women in access to public sphere (education, justice, social services, healthcare etc.). All of those can be evaluated as a consequence of the ethnicity and gender-differentiated practice of citizenship which allows Kurdish men to become breadwinners and to be more accustomed to use public services while confining women to the households as primary caretakers. Hence we can say that Kurdish women are doubly marginalized, first because they are of Kurdish origin, second they are women. The combination of the burden of ethnic identity and gender roles make women more vulnerable in the course and aftermath of the internal displacement process.

At this point I want to group the gender differentiated effects of the displacement process around two key moments:

1. Survival and reconstruction of the life project and of the social fabric at the place of arrival
2. Destruction of Lives, possessions and social ties cause isolation, despair and hopelessness and

Men and women have experienced these processes differently. The gender differentiated effects of internal displacement can be outlined as follows:

1. Survival and reconstruction of the life project and of the social fabric at the place of arrival
 - a. Language Problems [...]: As my field study conducted with IDP women shows that language problems make access to social services including health services, social aid programs, and justice for Kurdish women more difficult. When they have migrated all of them had known only Kurdish language; where to remind the official language is Turkish. Women said that after the displacement, they have experienced difficulties to live in a big city, first because of language problem.
 - b. Health Problems: Researches show the fact that displaced women were the most affected group suffering from emotional problems, depression and psychosomatic disorders [...], as well as suicidal tendencies [...]. There are no services specifically designed for psychosocial care for displaced women and children.

Moreover, the data presented about the pregnancy and parturition periods of women together with the data on whether they apply to a doctor for gynecological diseases show the fact that the level of women's access to health services is very low. This is much related with what my interviewees shared with me. They are avoid of being confronted with discriminatory behaviors of health personnel because of their ethnic identity.

2. Destruction of Lives, possessions and social ties
 - a. Isolation, despair and hopelessness: Displaced men have more opportunity to socialize with other people and have more freedom while women faced more difficulties in adapting to urban life [...]. The combination of the lack of Turkish language with the "legacy of mistrust between state and citizens" as a consequence of forced migration, women's marginalization led to getting the worse, from the existing socio-economic circumstances surrounding IDPs in general. The finding of a research carried out by Batman Bar Association in March 2001, asserted forced displacement [as] one of the main reasons for the suicide acts that have been intensified in the region for a while. The report said that there is a connection between the suicide attempts and the feelings of isolation, despair, hopelessness and alienation. Those who immigrated to the big cities feel that they do not belong to their new habitats. Southeastern women who immigrated to bigger cities believe that in their small villages they had their own identity and their own way of living.
 - b. Destruction of Social Fabric and Vulnerability to Violence: Many displaced Kurdish women are either widowed or wives of "disappeared" or "missing" men. During the 1990s, thousands of men were killed or 'disappeared'; others are in prison or have migrated to Europe. IDP women, who have unexpectedly become the "heads of households" are coming from agricultural backgrounds

and hence lacking skills for urban employment. The combination of the neo-liberal socio-economic policies with the internal displacement process, high rate of poverty negatively affected IDP women.

While within the existent patriarchal norms women's employment is not positively evaluated, high rate of poverty led women's *involuntary employment*. Especially young generation of IDP women work in the informal sector (house cleaning, textile workshops etc.) and have not any social security assurance. However this new phenomena have not changed the gender hierarchy automatically as it is expected. On the contrary unexpectedly fluctuated gender relations by reason of forced migration; make working women much more under the moral pressure of their families. While the households demands on their labor led women's employment in informal sector, inability to speak Turkish and cultural barriers often keep displaced women from labor market."

Turkish Daily News 5 April 2001

" Compulsary migration had a negative impact on women. Some of the consequences are follows.

- They were stripped away from agriculture, and their activities were limited to their homes.
- They have problems associated with level of literacy and language.
- Adverse migration conditions exacerbated health problems.
- They were distanced from the traditional environment and relatives and were alienated from the social environment.
- Collective living arrangements increased with migration.
- Women lost their expectations after being stripped from their homes and with the future being shrouded in ambiguity.
- Expectations are backward-oriented (like returning to the village)
- They are torn between the conservation of old values and their transformation.

Under these unusual, cruel and isolated conditions, women experience fear, suspicion, depression and tension.."

"Poverty, urbanisation, displacement and internal migration are the contexts within which suicides occur" (2007)

- Women's rights groups report that there remained dozens of honour killings every year, mainly in conservative Kurdish families in the southeast or among migrants from the southeast living in large cities
- Human rights organisations reported a high rate of suicides among young girls, particularly in the southeast and east
- Language problems make access to social services for Kurdish women more difficult
- High levels of unemployment, poverty, language difficulties and inadequate shelter seriously affect women's health
- Research done among displaced women revealed symptoms such as headaches, sleeping disorders and extreme timidity
- The Batman Bar Association identified forced displacement as one of the main reasons for the increasing suicide rates among women in south-eastern Turkey
- Displaced men have more opportunity to socialize with other people and have more freedom while women faced more difficulties in adapting to urban life

US DOS, March 2007

"The government undertook a major campaign during the year to end the practice of honor killings--the killing by immediate family members of women suspected of being unchaste;

however, the practice remained a problem. The government reported that there were 1,806 honor killings between 2001 and 2006. During the same period, 5,375 women committed suicide. After the government increased penalties for honor killings, family members increasingly pressured girls to kill themselves in order to preserve the family's honor, according to women's rights groups. Broaching the formerly taboo topic, Prime Minister Erdogan condemned the practice of honor killings at the Organization of the Islamic Conference in November. In July the Prime Ministry issued to all ministries and provincial governments a circular that reminded each government institution of its responsibility to prevent domestic violence, including honor killings. In December the interior ministry issued a circular to provincial governors instructing them to form special committees to prevent honor killings. Turkish imams joined pop music stars and soccer celebrities to produce television and billboard ads declaring honor killing a sin and condemning all forms of violence against women. The State Ministry for Women began a prevention of violence against women educational program for all soldiers doing their mandatory military service. Government officials worked with advocacy groups such as KAMER, the leading women's organization in the southeast, to hold town hall meetings and set up rescue teams and hotlines for endangered women and girls. Under the Penal Code, honor killings require punishment of life imprisonment. Women's rights groups reported that there remained dozens of such killings every year, mainly in conservative Kurdish families in the southeast or among migrants from the southeast living in large cities. Because of sentence reductions for juvenile offenders, observers noted that young male relatives often were designated to perform the killing."

EC, 6 November 2006

"Crimes in the name of honour and suicides committed by women due to the influence of the family continue to occur, especially in the regions of the East and Southeast. Nonetheless, there is still a lack of reliable data on such events as well as on domestic violence more generally. According to the preliminary results of the UN Special Rapporteur on Violence against Women, causes of suicides are early and forced marriages, domestic violence and denial of reproductive rights. Poverty, urbanisation, displacement and internal migration, and thus changing socioeconomic situation of women are the contexts within which suicides occur. Women's suicides are not always properly investigated, especially in the Southeast. In parts of the South East it still occurs that girls are not registered at birth. This hampers the fight against forced marriage and crimes in the name of honour since these girls and women cannot be properly traced.

There is still a need to further increase the provision of shelters for women subjected to domestic violence. The provision in the Law on Municipalities, adopted by Parliament in July 2004 is not yet fully implemented. All municipalities with a population greater than 50 000 should provide a shelter.

Women remain vulnerable to discriminatory practices, due largely to a lack of education and a high illiteracy rate. The girls' education campaign conducted by the Ministry of National Education and UNICEF ensured the enrolment in primary schools of 62 000 girls in 2005, which would otherwise have been out of school. In 2006 the campaign was extended to all 81 provinces. Private sector campaigns to increase school enrolment and to improve the physical condition of schools have continued. [...] Overall, there has been growing public attention on the issue of women's rights in Turkey. However, full respect of women's rights remains a critical problem, particularly in the poorest areas of the country. While the legal framework is overall satisfactory, its implementation remains inadequate."

UNIFEM, 2005

The UN Committee on the Elimination of all forms of discrimination against women (CEDAW) issued its concluding comments regarding Turkey's obligations under the CEDAW treaty in February 2005. While the Committee does not specify issues related to internally displaced women in particular, the Committee calls upon the national authorities to undertake a number of

measures to ensure equality and access to basic services for all women. See CEDAW'S [Concluding Comments](#)

KHRP, November 2004

"Saadet Becerikli, Chair of the Batman branch of IHD and representative of the Women's Platform underscored the plight of displaced women. She spoke of their inability to adjust to urban life, their problems of identity, lack of language and their vulnerability to sexual violence and exploitation.[...] She also referred to the high incidence of depression, which can result in attempted or actual suicide and/or mental illness. [...] Many displaced Kurdish women are either widowed or wives of "disappeared" or "missing" men. During the 1990s, thousands of men were killed or 'disappeared'; others are in prison or have migrated to Europe. The resulting destitution forces many women into prostitution. They are also vulnerable to sexual trafficking, which operates in the region, forcing young women and girls to work in the sex-trade in Europe and the Gulf States. In Diyarbakir there are an estimated 8,000 prostitutes, mainly believed to be women expelled from the villages.[70] In Batman, walking down the streets of the town centre, one sees young mothers and babies begging or offering themselves. IHD's Batman branch estimates that there are over 6,000 prostitutes among the displaced and that the numbers continue to increase. Batman itself only has 200,000 inhabitants.[71]

Although Kurdish families are typically close-knit, years of oppression have weakened the family unit. Many women now find themselves victims of domestic violence from male relatives. Women in the southeast are in need of specialised support to aid their return to their villages and to enable them to take up their traditional livelihoods. They require guarantees of individual security, compensation, repair or reconstruction of their houses, and gender-sensitive agricultural extension services (for example, in rural crafts, animal husbandry and farming) so they can become economically independent. Göç-Der research reveals substantial inadequacies of the health care system in Diyarbakir. Significantly the Diyarbakir Governor's office indicates that the systems are working and in place. Often Kurdish women do not have adequate knowledge of the Turkish language and are thus prevented from communicating with health care professionals. Consequently, displaced Kurdish women have poor reproductive and gynaecological health. Their conditions are exacerbated by inadequate nutrition, housing and sanitation. [72]"

Footnotes

[70] KHRP FFM interview with Epi-Dem, Selis and Dikasum, Diyarbakir, 16 March 2004

[71] KHRP FFM interview with IHD's Batman branch, Batman, 18 March 2004

[72] KHRP FFM interview with Epi-Dem, Selis and Dikasum, Diyarbakir, 16 March 2004

Human Rights Foundation of Turkey March 2001, sect. 2

High level of suicide rate among women in southeastern Turkey

"The finding of a research carried out by Batman Bar Association in March, asserted forced displacement [as] one of the main reasons for the suicide acts that have been intensified in the region for a while. In the research it was found out that, most of the people who committed suicide were those who have been forced to migrate to Batman since 1985."

In 2001, two reports by the Turkish Daily News highlight research indicating high incidences of social and psychological problems, poverty and suicide among Kurdish women, see sources below.

UN Expert says internal displacement has contributed to high rate of suicides among women in Southeast (2006)

- High rates of suicide are reported in areas affected by internal displacement

EC, 8 November 2006

"Poverty, urbanisation, displacement and internal migration, and thus changing socioeconomic situation of women are the contexts within which suicides occur. Women's suicides are not always properly investigated, especially in the Southeast."

UN, 31 May 2006:

"During the course of my mission, I had the chance to personally meet with families of suicide victims as well as with women who survived a suicide attempt. I would like to express my gratitude to these families and women for having the courage and strength to talk to me about the very personal tragedies they had to live through. I also spoke with a number of social services officials and women's rights groups who had worked on individual cases. The causes of a suicide are hard to understand, not least because the victim cannot be asked about her motives. Typically, personal, family and societal factors interlink. I have found that the patriarchal order and the human rights violations that go along with it – for example, forced and early marriages, domestic violence, and denial of reproductive rights - are often key contributing factors to suicides of women and girls in Southeast and Eastern Turkey. Additional pressures result from the fact that women have to navigate between the multiple demands imposed by the traditional order and rapid socioeconomic change in the context of urbanization and internal migration as well as having to cope with poverty, displacement and the ambiguities created by the political tensions often experienced in the region. Reportedly, in some suicide cases, child sexual abuse in the family circle also appears to be a major factor. Therefore, there is an urgent need to overcome social taboos and openly discuss study and address this problem."

Children and adolescents

Survey in Van province suggests high rates of child labour in areas where displaced live (2006)

- IDP children in cities display lower rates of schooling in comparison to IDP children living in villages
- Extensive use of child labour a survival strategy of IDPs living in the city
- Use of child labour in domestic setting not always considered as labour
- Child labour linked to the culture of poverty reproduced on the blueprints of traditional rural culture within the settings of squatter life

Emin Yasar Demirci, Place of displaceds, July-August 2006, p.11:

"But when we look at the level of education and school attendance for school age boys and girls who live all the time in the city the figure unexpectedly got worse for both sexes. In contrast to 10% illiteracy and 80% schooling rate for the girls in the villages the figure is 20% and 73,3% in the city respectively. The result is no better for the boys living in the city. Although there is no illiterate among them the schooling rate dropped to 86,7% as compare to virtual 100% schooling rate of their peers in the villages.

How that happens? A number of reasons can be raised to explain these striking features. The first and the foremost important explanation is the continuity of migration. That is, when the people were displaced Van is the first phase of their forced migration. Not all the displaced stayed in Van. Some 20% migrated further which drained the displaced off educational skills. The remaining settled in poor quarters of the city and have developed survival strategies based extensively on use of child labor leading to high level of school absentees and dropped outs. We will return that issue in next section."

pp. 13-15:

“...Attention should be paid to the use of child labor within and/or outside domestic works. As mentioned in passing in previous section, use of child labor caused low level schooling rate in the city whereas, it causes high level of school absentees during high time of seasonal works in villages.

TABLE 16: USE OF CHILD LABOUR IN THE HOUSEHOLDS

		Frequency	Percent	Valid Percent	Cumulative Percent
Valid	None	378	84.7	70.0	70.0
	One child	92	17.0	18.4	88.5
	Two children	47	8.1	8.8	97.2
	Three children	7	1.2	1.3	98.5
	Four children and more	8	1.4	1.5	100.0
	Total	537	92.4	100.0	
	Unanswered	44	7.6		
	Total	44	7.6		
Total		581	100.0		

According to Table 16, 70% of the households have no child labor in the family. 18,4% has one child, 8,8% has two children, 1,3% have three children and 1,5% have four and more children working. In another words 30% of the households exploit child labor as a way of their survival strategies. It should be cautioned that not all the families who mark no child labor on the Questionnaires are genuine in their answers. During the fieldwork, in our qualitative survey some cases with no child labor encountered actually used child labor. Their families have not considered use of child labor in domestic works, particularly works done by teenage girls, such as baby sitting and cleaning within or outside the household, as child labor.

The reason of child labor is of course poverty. But poverty alone cannot explain the exploit of child labor. As shown in Table 14, the use of child labor does not correspond with the household income in a linear fashion. In contrast, as the level of income rises the rate of child labor use in the households rises accordingly. We should therefore look at, not to the poverty itself, but to the culture of poverty reproduced on the blueprints of traditional rural culture within the settings of squatter life. In a traditional rural life, children mean household labor and the term child labor does not make any sense to their families as it does to us.[...] Inherited from their traditional way of rural life, displaced persons brought with them this traditional culture and reconstructed it in poverty stricken districts of the city. In other words, use of child labor has become part and parcel of newly constructed habitus akin to their ages old tradition they adapted as survival strategies in the poor districts of the city.”

Protection issues for displaced children (2006)

- Displaced children have suffered greatly due to the violence in the south-east
- Data from the Human Rights Association of Turkey indicates that 43.4% of displaced children have cut formal relations with schools and are forced to work in inadequate conditions
- The UN Committee on the Rights of the Child recommended in 2001 that Turkey assess the situation of displaced children in more detail
- In particular, the Committee called for the collection of data and statistics on displaced children

US DOS 25 February 2004

"There were reports of abuse of children. Children have suffered greatly from the cycle of violence in the southeast. In the past, the migration--forced or voluntary--of many families, past terrorism against teachers, and school closings uprooted children and moved them to cities that were hard pressed to find the resources to provide basic, mandatory services such as schooling."

HRA/OMCT May 2003, Sect.IV

"According to HRA data, 43.4 % of the displaced children have cut their formal relations with the schools and had to work under very bad conditions. For instance, a lot of children, as their parents cannot afford to send them to school (paying school books and clothes), end up in working in textile shops, in the construction sector, as shoe shiners or as street sellers."

Committee on the Rights of the Child 8 June 2001, paras. 59-60

"The Committee expresses its concern at the higher number of internally displaced children in Turkey, who were forced to leave their homes towns in the 1990s owing to the high level of violence in the south-east region. The Committee is also concerned about their limited access to housing, health services and education.

In line with the Guiding Principles on Internal Displacement (E/CN.4/1998/53/Add.2), the Committee recommends that the State Party ensure that internally displaced children and their families have access to appropriate health and education services and adequate housing. Further, it invites the State party to collect data and statistics in order to know how many children are displaced and what their needs are with a view to developing adequate policies and programmes."

[UNICEF Turkey](#) does not focus its work specifically on displaced children, but provides broader information on children in Turkey

See also, [Concluding Observations from the UN Committee on the Rights of the Child](#), with regard to the Optional Protocols on the sale of children, prostitution and pornography (June 2006)

Freedom of movement

Some restrictions in freedom of movement in parts of the southeast (2007)

- Some restrictions reported, including heavy security presence in southeast (in response to increasing "terrorism") and villagers denied access to fields and pastures for grazing
- Amendments to anti terror law adopted in June 2006
- Civil society organizations reported that movement to villages in the southeast depended on official permission, bans on going to mountains, villagers are subjected to ID controls at police check points (2004)
- Although the Government lifted the State of Emergency (OHAL) in the southeast in 2002, it has continues to retain a heavy security presence in the region
- Provincial authorities in the southeast denied some villagers access to their fields and high pastures for grazing, citing "security reasons"
- The government maintained that there were 4,500 to 5,000 armed PKK/KADEK/KHK militants at the border in northern Iraq and another 1,000 in the southeast of the country (2003-2004)
- The International Federation for Human Rights, following a mission to the country in May 2003, reported numerous checkpoints in the South eastern provinces and restricted circulation

US DOS, 6 March 2007

"The law provides for these rights; however, at times the government limited them in practice. The law provides that a citizen's freedom to leave the country could be restricted only in the case of a national emergency, civic obligations (military service, for example), or criminal investigation or prosecution. The government maintained a heavy security presence in the southeast, including numerous roadway checkpoints. Provincial authorities in the southeast, citing security concerns, denied some villagers access to their fields and high pastures for grazing."

EC, 8 November 2006

"A number of security measures have been reinstated as a response to the escalation of terrorism, such as road blocks and checkpoints in some provinces of the Southeast. On the legislative side, amendments to the anti-terror law were adopted in June 2006."

HRFT, August 2004

"The report titled 'Return to Village After Forced Internal Migration' by the Turkish Economic and Social Studies Foundation (TESEV) was made public at the end of August. The report, prepared by Prof. Füsun Üstel emphasized that the return to villages should be carried out while respecting human dignity. Civil society organizations that were consulted during the preparation reportedly stated that a permanent solution for migration was only possible with bringing a general solution for the Kurdish question.

These organizations reportedly alleged that a normalization was not realized wholly on the grounds that departures from and arrival to the villages were subjected to official permissions, there were still bans on going to mountains, villagers are subjected to ID controls at police check points although two years passed after the lifting the OHAL."

COE PA Monitoring Committee "Report of the Co-Rapporteurs" March 2004, para.217

"The co-rapporteurs were relieved to learn that the state of emergency had finally been lifted in Hakkari and Tunceli provinces on 30 July 2002 and in the last two, Diyarbakir and Sirnak, on 30 November 2002. However there were still gendarmerie road blocks and check points, as the co-rapporteurs saw when they travelled from Diyarbakir to Bingöl in May 2003."

US DOS 25 February 2004, Sect.2d

"Although the Government lifted the state of emergency in the southeast in 2002, it maintained a heavy security presence in the region, including numerous roadway checkpoints. The Government estimated there were 4,500 to 5,000 armed PKK/KADEK/KHK militants across the border in northern Iraq, and another 1,000 in the southeast of the country."

FIDH July 2003, p.15

"Despite the lifting of OHAL (State of Emergency Rule), numerous checkpoints are still in place. They make circulation in the region considerably difficult, and sometimes hazardous with apparent discretionary power left to the security forces. FIDH's delegation itself faced numerous checkpoints during the mission in May, and in particular on the road from Diyarbakir to Bingöl and Sirnak."

A fact-finding mission by the Kurdish Human Rights Project, together with the Bar Human Rights Committee of England and Wales and Human Rights Association Diyarbakir branch in August 2002 and June 2003 found a general failure to secure the safe return of displaced villagers; an effective police state dominating all aspects of daily life; and an increase in human rights violations. See ["In the Wake of Lifting of State of Emergency Rule-Report of a Fact-Finding Mission to Southeast Turkey"](#) KHRP

Other concerns

Some local human rights groups faced government obstruction and restrictive laws, particularly in the southeast (2007)

- There continued to be reports that a number of NGOs faced government obstruction and restrictive laws regarding their operations, particularly in the southeast
- On April 12, a Human Rights Watch researcher conducting research in the southeast was detained by authorities and subsequently deported

US DOS, 6 March 2007

"A number of domestic and international human rights groups operated in many regions but faced government obstruction and restrictive laws regarding their operations, particularly in the southeast. Government officials were generally not cooperative and responsive to their views. [...] Human rights organizations and monitors, as well as lawyers and doctors involved in documenting human rights violations, continued to face detention, prosecution, intimidation, harassment, and formal closure orders for their legitimate activities. [...] The government generally cooperated with international governmental organizations such as the CPT, the UNHCR, and the International Organization for Migration (IOM); however, some international human rights workers reported that the government purposefully harassed them or raised artificial bureaucratic obstacles to prevent their work.

Unlike the previous year, police did not harass or intimidate human rights activists in the southeast after they met with foreign diplomats.

On April 12, a HRW researcher conducting research in the southeast was detained by authorities and subsequently deported. The researcher, Jonathen Sugden, had been documenting abuses by police, jandarma, and the village guards. Authorities claimed that Sugden did not have valid authorization to be carrying out human rights work in the country; however, HRW stated that Sugden was present in the country on a three-month visa, which authorities had confirmed provided a legitimate basis for him to carry out such research."

HRW, 8 June 2006

"In March 2006 our researcher Jonathan Sugden travelled to Karlıyova, Bingöl province, in order to seek further information concerning allegations of abuses by village guards and gendarmerie officers in that district. He immediately went to Karlıyova Gendarmerie, gave them details of the allegations and said that he would like to learn their views about the alleged episode. The gendarmes took him immediately to the Police Headquarters where he was told that he would not be permitted to conduct any research in Karlıyova because he had not received permission from the local governor. As you know, no such permission is required to conduct research. Mr. Sugden tried to get an appointment with the Bingöl governor, but was told that this would be impossible for at least two days. He attempted to conduct interviews in Tunceli, but was turned back at the provincial border by gendarmerie.

On the morning of April 12, 2006, Mr. Sugden was detained by regular police in the town of Bingöl, in southeastern Turkey and deported on the grounds that he had entered Turkey on the wrong visa. As your ministry must be aware, over the past seven years, Jonathan Sugden has entered Turkey more than twenty times in order to carry out research for Human Rights Watch—each time on exactly the same three month visa that he had on this occasion. On two occasions, indeed, he met you personally at the Interior Ministry. He had also previously confirmed with the Turkish embassy in London that this visa was appropriate for this work.

Mr. Sugden was treated with courtesy while in police custody, but the fact remains that his researches were interrupted. Furthermore, in the days following his departure, various Turkish newspapers published allegations about supposed activities on his part that would have been not only illegal but also serious infringements of the impartiality which is fundamental to our work. Those newspapers said that they had been given the “information” by “diplomatic and security sources.”

See also, [HRW Researcher Detained in Southeast](#) (12 April 2006)

IDMC, October 2006

“One essential condition for a more efficient engagement of NGOs is the existence of an adequate legal framework protecting their right to freedom of expression and association. In recent years, legal reforms in Turkey undertaken in the context of Turkey’s preparation to EU accession have ended decades of arbitrary restrictions imposed on Turkish civil society actors.

Although these reforms have been undertaken to satisfy EU democracy and rule of law principles, there continue to be gaps in the protection of NGOs. For instance, the Penal Code has been recently amended to remove arbitrary limitations to freedom of expression. However, there have been reports of cases where individuals expressing non-violent opinions have been prosecuted and convicted under the provisions of the new Penal Code. The new Law on Associations, which entered into force in November 2004, reduces the possibility of state interference in the activities of associations. However, March 2005 regulations continue to restrict the registration of associations whose names and/or objectives are considered to be contrary to the Turkish Constitution. These restrictions are seen to particularly affect associations promoting a certain cultural identity, including the Kurdish culture.

Furthermore, NGOs in Turkey seem to be continuously subject to close surveillance, if not harassment, from the authorities. This is particularly the case for human rights organisations and monitors who, according to the US State Department annual human rights report for 2005, “continued to face detention, prosecution, intimidation, harassment, and formal closure orders for their legitimate activities”. This is also the case for NGOs working for the protection and assistance of IDPs in Turkey. Some NGOs met by the IDMC claim that they have been exposed to harassment because of suspected links with Kurdish political movements, which are themselves under constant harassment by the authorities. Political activities or affiliations of one individual member are often used by the authorities as a pretext to suspect the entire NGO, or at least their concerned provincial branch offices, of political affiliations with Kurdish movements. Anti-terror legislation has been used against NGOs and remains a constant threat to NGOs’ freedoms of expression, assembly and association.

To the satisfaction of NGOs, the responsibility for associations has been transferred from the Directorate-General of Security to the Department of Associations in all provinces. However, the personnel for the local associations desks are often the same as those who had previously worked for the Directorate-General of Security. It should also be noted that the authorities’ attitude towards NGOs is not uniform and consistent throughout the country. NGOs whose branch offices face considerable pressure from the authorities in southeastern provinces, have often been able to establish a constructive dialogue with authorities in western urban centres. In some regions, NGOs are still required to notify associations desks before they can conduct cultural activities or meetings, although not required by the law.”

SUBSISTENCE NEEDS

General

After his mission to Turkey, UN expert recounts concerns on IDPs' enjoyment of economic and social rights (2006)

UN GA, 16 November 2006

"Interlocutors both within Government and from the non-governmental sector voiced concern over the numerous obstacles for IDPs in the enjoyment of their economic and social rights. Many work in the informal sector or are unemployed, which means that they are often excluded from social security, which in turn excludes them from most forms of health care, although IDPs frequently have increased health-care needs, e.g. because of malnutrition. These circumstances render IDPs particularly vulnerable to child labour. Access to education is a problem for many IDP children. Non-governmental actors underlined the grave psychological consequences of the violence and displacement: many IDPs still suffer from post-traumatic stress syndrome and depression, and do not receive adequate treatment."

Multiple and interrelated problems experienced by IDPs living in cities (2006)

- Housing and basic physical needs of IDPs not met
- IDPs in cities face economic, social and cultural problems and limited access to services
- Lack of adequate programmes
- Decrease in child education and increase in child labour
- Language barrier an impediment to social relations leading to social exclusion and discrimination

IDMC/TESEV, June 2006

"The majority of the IDP population in Turkey has been living in urban centres for nearly ten years. Since there are no programmes specifically addressing the current conditions of the displaced, they have had to face enormous problems such as endemic unemployment, abuse of child labour, lack of access to education and health care services, and almost no psychosocial care for women and children. The government, UNDP and civil society organisations urgently need to cooperate in order to develop projects that would specifically target the problems of urban IDPs. These projects should address children's education, adult literacy and skills training as well as employment creation and preferential loans for small business startups. The numbers of community, women's and children's centres should be increased and they should be given capacity building training to serve the particular needs of the displaced."

MRG, 2006, pp.10-11:

"a. Housing and Basic Needs

The basic physical needs of IDPs have never been met, either at the time of their displacement or in the following years. The IDPs did not migrate in an organized and orderly manner, and were not provided with appropriate or adequate shelter. In order to meet the cost of renting accommodation, displaced people have had to endure extreme overcrowding. There have been frequent reports of large groups living in insanitary conditions in single rooms.[...]

b. Economic, Social and Cultural Problems

Because IDPs were forced to use their own resources to migrate to towns and the suburbs of major cities, they began to experience serious problems in accessing healthcare, education, transport, employment and, above all, housing. This in turn triggered other problems, including the inability of the youth living in impoverished districts, most of whom were migrants, to access education, and subsequently criminality arising from unemployment experienced by the same group. The extremely harsh conditions in which IDPs have subsisted persists.[...]

Local authorities and central government were also caught off-guard by this wave of migration and failed to provide IDPs with the assistance they needed. The only social assistance programmes were assistance funds intended for the poor, and the 'green card' system, which entitles the bearer to free medical care operated by the Social Solidarity and Assistance Foundation. IDPs certainly had poverty related problems, but because the few programmes available were not designed with them in mind, did not meet their needs. For example, during the displacement, home owners were forced to abandon their property owing to armed clashes, but because they remained property owners albeit of property they had no access to they were not eligible for a green card.[...] Under the existing assistance programmes, grants to people living in poverty can only be given once; they are not ongoing. For this reason such grants are not an appropriate solution to the economic problems of IDPs.[...]

Meanwhile, burdened by economic difficulties, some families cannot afford to send their children to school and have to send them out to work. This in turn has resulted in a sharp increase in child labour.[...] Due to their dire economic circumstances, many families are finding it more or less impossible to participate in social and cultural life.

Many displaced people especially women do not speak Turkish well or do not speak it at all, because it is not their mother tongue. This was not a serious problem when they were living in their home villages, but the language problem becomes a serious disadvantage in their social relations, and in their relationship with the authorities, when they are attempting to establish a new life in the towns, and can give rise to discrimination. Sometimes, for example, IDPs who do not speak Turkish are unable to communicate their own or their children's needs when shopping or dealing with hospitals or other institutions. This can result in social exclusion or discrimination against IDPs in social life. It can even lead to them being labelled 'terrorists'.[...] The problem also has psychological impacts since displaced people suffer a sense of alienation arising from the long-term obstacles to integration. The mental and physical trauma which began with the migration becomes an endemic condition in the locations to which they have fled.[...]"

See also MRG Press Release, [International support needed to help Turkey's displaced people](#).

Situation for IDPs remains an "issue of concern" (2006)

- Large numbers of displaced persons live in extremely poor conditions on the periphery of cities and in larger villages
- IDPs face severe social and economic problems and unemployment rates amongst the IDP population is high
- Displaced women and children face difficulties in accessing educational and health facilities and psychosocial care
- Displaced children are particularly exposed to physical, sexual and drug abuse, as well as police brutality

EC, 8 November 2006

"The situation of **internally displaced persons (IDPs)** remains an issue of concern."

EC, 9 November 2005

The situation of *internally displaced persons (IDPs)* remains critical, with many living in precarious conditions."

EC, 10 October 2004, p.50

"The situation of internally displaced persons (IDPs) is still critical, with many living in precarious conditions."

HRW 26 January 2004

"The majority of the displaced are still living in poverty and hardship in urban areas throughout the country"

European Commission 5 November 2003, p.40

"The situation of internally displaced persons is still critical. A large number of those displaced live in extremely poor conditions on the periphery of cities and larger villages. Social and economic problems remain acute and unemployment rates are very high. Other concerns include the improvement of housing conditions, greater access to educational and health facilities and psychosocial care for women and children. Children are particularly exposed to physical, sexual and drug abuse as well as to police brutality. It is estimated that there are 10000 'street children' in the Diyarbakır area."

See also, "Section IV The Current Situation of the victims: destitution, poverty and precarious living conditions" and Annex II of ["House Demolitions and Forced Evictions Perpetrated by the Turkish Security Forces: A Form of Cruel, Inhuman or Degrading Treatment or Punishment Against the Kurdish Population, Notes presented to the Committee against Torture \(CAT\)"](#), HRA and OMCT, May 2003

Basic problems of displaced after migration (2002)

Göc-Der 2002, pp.61-62-II

"The basic problems encountered by the migrants in the post-migration period can be classified as the following:

Employment-income-economic problems,

Educational-nutrition-health problems,

Adaptation problems and the problems that are based on linguistic-cultural differences,

Fear-psychological uneasiness because of the very nature of the migration and the constant activation of such feelings due to being treated/regarded as potential criminals,

Problems of loneliness that requires immediate attention."

CSCE, 10 June 2003

"During our research, I talked to many displaced villagers in Turkey's major cities where they had sought refuge. And all described frankly miserable lives and expressed a bitter sense of the injustice inflicted on them. If you go to Turkey, you won't see big refugee camps, because the displaced have made themselves invisible by crowding in with relatives and neighbors and finding work where they can. But they are farmers, not urban entrepreneurs. They are living in great poverty, in conditions prone to disease and social exclusion, and the overwhelming majority are longing to go home. For some, this is impossible, because the local governor has forbidden their village to be reoccupied. Others are turned back by the gendarmerie. And even if both the local governor and gendarmes allow return, the displaced often face obstruction by village guards, who have occupied the land in their absence."

Health

Research assesses social security and health situation of IDPs in Van (2006)

- Almost all the displaced entitled to free health care, though of questionable quality
- Additional social aid - “conditional cash payments” - available to mothers, but the benefit not commonly known
- High blood pressure, respiratory problems and epidemic diseases related to hygiene identified as three major health problems among IDPs

Emin Yasar Demirci, Places of displaceds, July-August 2006, p.16-17:

“In its simplest meaning, a truly welfare system should, at least, three complementary dimensions: Entitlement to free health services, certain degree of job security, or unemployment benefit when it is not possible, and right to retirement in old age. Looking at from these perspectives, % 91,2 of displaced persons seems to have access to basic health services, although its quality is rather questionable. Adding that figure %7 of those who have full time employment as public sector workers, civil servants and village guards which automatically entitle them to free health care the rate of displaced persons covered by free health care rose to %98,2. In other words, as far as free health care concern virtually almost every displaced are entitled to free health care except for those who were not qualified because of the level of income and/or for those who were not applied for green card for some other reasons as an old man from Keçilioba village said in an interview: “I used to be the richest and most prosperous person in the village before the migration. I had hundreds of sheep and many people used to work for me. I had the privilege of helping needies. I sold all my properties and belongings as fled to nearby town Baskale. Now I am back to the same village as a poor man working for someone as a shepherd. I do not have my green card although I very much need it because I feel ashamed of applying for it. But I used friends’ and relatives’ green card to get free medicine when I need it.” (From the interview by Hüseyin Aras in Keçilioba, 22.07.2006)

Financed by World Bank “conditional cash payment” known as child money by ordinary people is a type of social aid paid to mothers for children in three categories on certain conditions. It is paid for 0-6 age group children on condition of their regular immunization. The conditions for primary school age children and high school age children aim to secure their school enrolments and attendance. The amount paid for 0-6 age children is 17 YTL per month. The figure for the primary school children is 18 YTL for boys and 22 YTL for girls whereas it is 29 YTL and 39 YTL for high school children respectively. According to official figure, around 24000 families are receiving conditional cash payment regularly a figure that contradicts our findings which is only %9,7 as seen on the table above. For example, according to the same official figure the total number of households receiving coal aid in winter is 14000 as reflected %55 in our survey whereas 24000 households receiving entitled to conditional cash is only represented by a tiny %9,7. The reason is that the official term “conditional cash” is used in the questioner which came out not to be well known by ordinary people so that the question was not understood well.”

p. 18:

“In the survey participants were asked about three health problems as multiple choices most frequently encountered in the family. According to their answers high blood pressure and prolonged headache occupies the first place with 36.2%. The second most frequently encountered health problem among the displaced is related with respiratory system with 35.8% Epidemic disease related to hygiene, particularly food hygiene, and poor living conditions such as typhoid, hepatitis, diarrhea and Brusella occupies the third place with 24%. Cardiovascular problems takes the fourth place with 23.8%, followed by 20.8% of gynecological complaints,

16,2% of ulcers, 8.1% of diabetes, 7.9% of cancer, 6.5% of ophthalmic disease, 6.3% of rheumatism, 5.5% of orthopedic problems and 3.2% of physical and mental handicapped.”

Consequences of internal displacement on child health (2005)

- IDPs suffer from less vaccination and nutrition, acute respiratory infection, fever, and less antenatal care compared to overall population
- Children of IDPs likely to suffer from changing conditions and many health indicators reflect that they are disadvantaged compared to overall population

Koç and Unalan, July 2005, pp.16-17:

“In different parts of the world, the experiences and circumstances of children in conflict situations and in forced migration are diverse and cannot be easily generalized. In many situations the health of children may be endangered through malnutrition, poor housing, hygiene and sanitation, and lack of access to basic health care. In order to assess the effect of displacement on children in Turkey context, information collected for children under age five in the woman’s questionnaire was analyzed. As presented in Table 10, IDPs suffer from less vaccination, less nutrition, acute respiratory infection, fever, and less antenatal care compared to overall population. Although IDPs are not very different from Kurdish speaking population with respect to the vaccination indicators, they are slightly better with respect to some other indicators. Another important but indirect indicator of the wellbeing of children is the coverage of birth registration. The findings also indicate that Kurdish speaking population and IDPs are disadvantaged.

Table 10. Basic Health Outcomes of Under-5 Children

Health outcomes	Turkey	Kurdish	IDPs
Vaccination			
BCG	87,7	65,5	52,3
DBT-3	64,4	40,5	36,4
Polio-3	69,1	49,3	40,9
Measles	79,4	47,2	43,5
Full vaccination	54,2	29,2	25,8
Never vaccinated	2,8	7,9	8,2
Nutritional status			
Height-for-age	12,2	22,0	31,1
Weight-for-age	3,9	7,5	11,1
Symptoms of ARI			
Fever	28,8	33,0	33,8
	40,1	47,7	50,2
Antenatal care			
Antenatal visits	81,4	51,6	41,3
Place of delivery: Health facility	78,2	49,4	41,5
Assistance during delivery: Health staff	83,0	55,8	48,0
Coverage of birth registration (Under-5)	84,3	70,4	68,6

Regarding early age mortality indicators, the findings in Table 11 presents the disadvantaged condition of Kurdish speaking population and IDPs. Except for child mortality rate, Kurdish speaking population has higher rates compared to overall population and IDPs have higher rates compared to all other groups. Expectation of life at birth and at age 5 (in years) present a disadvantage of 3-4 years for both groups compared to overall population.”

Table 11. Early Age Mortality Rates, TDHS-2003

Early Age Mortality Indicators	Turkey	Kurdish	IDPs
Neonatal Mortality Rate	17	28	30
Post-neonatal Mortality Rate	12	18	17
Infant Mortality Rate	29	46	47
Child Mortality Rate	9	8	11
Under-5 Mortality Rate	37	54	58
e_0	71,5	67,7	67,5
e_5	72,6	69,9	69,8

(*) Life expectation at birth and at five were based on the infant mortality rates calculated from TDHS-2003 and East model life tables.

p.18:

“Children and women IDPs are especially more vulnerable to changing circumstances during displacement and improved access to, and utilization of, community-based primary and reproductive health care services for them is always vital. This study indicated that children of IDPs are likely to suffer from changing conditions and many health indicators reflect that they are disadvantaged compared to overall population.”

IDPs face health and psychological problems (2005)

- Research by Turkish Economic and Social Studies Foundation (TESEV) indicates “serious trauma” among displaced residents of the east and southeast
- The TESEV research was undertaken in the Batman province and found that displaced women were the most affected suffering from emotional problems, depression and psychosomatic disorders, as well as suicidal tendencies
- IDPs face unhealthy conditions in new settlement areas, increasing their risk of contracting diseases such as tuberculosis and malaria or mental illnesses
- The level of women’s access to health services is very low
- Reasons for limited access include economic problems, lack of health and social insurance and cultural differences
- Lack of adequate infrastructure and shortage of medical personnel, in particular Kurdish-speaking personnel also make it difficult to combat the health problems linked with poverty
- The displaced have also been denied green-cards which would entitle them to get free health consultation and hospital accommodation

See also, [“Effects of internal displacement and resettlement on the mental health of Turkish children and adolescents”](#), March 2005, European Psychiatry

Turkish Daily News, 29 June 2005

“Kocaeli University Faculty of Medicine Emotional Trauma Center psychologist Öznur Acicbe said displaced residents of the impoverished East and Southeast are under serious trauma. He was referring to a Turkish Economic and Social Studies Foundation (TESEV) research project in Batman on the re-establishment of rights as a citizen and social rehabilitation after being internally displaced.

Acicbe, TESEV Program Manager Dilek Kurban, Sabanci University's Dr. Betül Çelik and Koç University research assistant Harun Ercan conducted the study in Batman and its environs, focusing on the Sason region where a number of internal refugees are being sent. The research team interviewed officials from the Batman Governor's Office, municipal government, the Sason and Gercüs administrative offices and local gendarmerie as well as doctors and nongovernmental organizations that work in the area.

Acicbe, speaking to the Dogan News Agency, said negative developments in the region affect women the most and that they are experiencing serious psychological problems. “The study in Batman is continuing. According to our analysis, the region's people are under severe trauma because of emotional and psychological problems. The emotional problems are mainly depression and psychosomatic disorders. Depression usually results in anger, fear about the present and future and, occasionally, suicidal tendencies and withdrawal from society,” said Acicbe.

‘Women the principal sufferers’:

Acicbe said most psychosomatic symptoms are seen among women, noting a high incidence of complaints about aches and pains in the back, neck, head and gastrointestinal system.

“Additionally, some people said they were a little hesitant to talk about past experiences. Some said they get physically ill when someone else talks about the past. As tension increases in the region from time to time, they said their pains increase. We believe the complaints are attributable to worsening economic and living conditions. Their social fabric has been damaged and they encountered more problems after migrating from their homes.”

TESEV's Kurban said the study's objective is to find out what the economic, legal, social and psychological results are of being forced from one's home and subsequently returning.”

HRW, March 2005, pp.31-32

“That IDPs have suffered psychological trauma is well documented. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression. [74] Another survey recorded that 9.5 percent of displaced were suffering from mental illness arising during or after displacement. [75]”

Footnotes

[74] Dr Aytekin Sir, Dr Yener Bayram and Dr Mustafa Özkan, “A preliminary study on PTSD after forced migration,” Turkish Journal of Psychiatry, 1998, pp 173-180.

[75] Göç Edenler Sosyal Yardimlasma ve Kültür Derneği, “Sociological Analysis of the Migration Concept, Migration Movements in Turkey and Their Consequences,” April 2002, prepared by Mehmet Barut, Mersin University, based on a survey of 2,139 households comprising 17,845 persons. Table 243.

HRA/OMCT May 2003, Annex II

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates health problems after forced displacement

Health Problems After Forced Migration	No of Families	%
Yes	1,762	82.4
No	377	17.6
Total	2,139	100.0

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates psychological problems due to forced displacement

Psychological Damages	Number of Families	%
Yes	1,208	79.9
No	431	20.1
Total	2,139	100.0

Göç-Der 2002, p.68-II

"The analysis reveals that the unhealthy conditions in the new settlement areas lead to the spread of many different diseases within the migrant population. Existence of diseases such as tuberculosis and malaria, which are in a continuous trend of decrease both in Turkey in general and in the world, and the spread of mental diseases should be taken into close consideration and serious and permanent measures have be taken to prevent them, since these contagious and mental diseases not only affect the migrants but also threaten the health conditions in the social environment and wider society.

The data presented about the pregnancy and parturition periods of women together with the data on whether they apply to a doctor for gynecological diseases or not uncover the fact that the level of women's access to health services is very low."

Göç-Der 2002, p.79-II

"The low rate of migrants' access to health services can largely be accounted for by economic problems, lack of health and other social insurance, the difficulties encountered due to linguistic and cultural differences and faith in traditional and religious values. On the other hand, there exist several factors that have particular effects on the increase in health problems, such as infra-structural insufficiencies, non-hygienic conditions of the new living areas, nutrition problems, the pressure the migrants have been subjected to both during and after the migration, fear, psychological uneasiness and anxiety stemming from living in a alien environment."

COE, 22 March 2002

"Inadequate health care is a big problem for the displaced persons. The region is far behind the rest of the country in several important indicators of health care. Lack of adequate infrastructure, and shortage of doctors and nurses (in particular those speaking Kurdish) make it extremely difficult to efficiently combat health problems resulting from poor living conditions. Moreover, prescribed medicines are usually unaffordable for the displaced. A number of communicable diseases such as typhoid, para-typhoid, trachoma, brucellosis and amoebic dysentery are endemic throughout the region."

HRW, 30 October 2002

"The very poor can apply for a 'green card' that enables them to get free consultation and hospital accommodation, although it does not cover the cost of medication. According to the Emergency Region governor, 26 percent of the population in the region qualifies for a green card. However, displaced people have difficulty in getting their green cards. Since only indigent people can receive a green card, villagers who own substantial property may not qualify in spite of the fact

that they are denied access to that property, which could otherwise provide them with income to finance their own health care. If they do qualify, the security forces can still obstruct their application, because a series of officials, including the local security force chief, must sign the application. This necessitates an anxious journey back to their village in order to obtain a signature from the nearest gendarmerie commander. A villager told Human Rights Watch that a gendarmerie commander had written on his green card application form: 'PKK member but not on the wanted list.' Another was unable to obtain a green card after soldiers tore up his application file and ejected him from the gendarmerie station. Older villagers spoke of deep depression, a sense of alienation due to their changed circumstances, and listlessness arising from long periods of unemployment. The violence of their original uprooting frequently aggravated these symptoms. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression."

See also: ["The Wall of Denial: Internal Displacement in Turkey,"](#) US Committee for Refugees (USCR), 1999, p.21

["Humanitarian Situation of the Kurdish Refugees and Displaced Persons in South-East Turkey and North Iraq,"](#) Doc 8131, Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 3 June 1998

Shelter

Displaced live in precarious and crowded housing conditions (2005)

- Post displacement housing conditions for displaced Kurds includes squatting in settlements, homelessness
- Overcrowding is also reported to be common among internally displaced families who are forced to live together due to economic problems
- A Council of Europe report indicates that the government has generally failed to provide emergency assistance to those displaced in the southeast, including provision of shelter
- Many IDPs fled from rural areas to provincial cities, crowding into homes of relatives, resulting in single family dwellings housing up to thirty people
- The majority of the displaced rural population of Kurdish origin live in urban centres in extreme poverty, with inadequate heating, sanitation and general infrastructure
- A Turkish Daily News article reports families living in sheds made from nylon sheet, plastic and tin plates (July 2005)

Turkish Daily News, 10 July 2005

"For the second time in 30 years, the Kekilik brood are rebuilding their family home in this village in southeast Turkey -- it was first destroyed by an earthquake in 1975, then burned down by the army in 1995 during the 15-year war with Kurdish separatist militants.

Now, in 2005 and six years after Ankara allowed evacuated villagers to return home following a lull in fighting, much of the settlement still looks like an archaeological dig and some families live in sheds made of nylon sheet, plastic and tin plates.

[...]

The four sons live and work in Diyarbakir, the central city of the region, to feed the crowded household whose farmland and fruit trees also perished when soldiers set Tuzla on fire one night in 1995 and herded its dwellers away.

'This is our home. We want to live here,' said Feride Kekilik as her daughters washed pans in a makeshift kitchen made of nylon sheets with branches for cover outside their roofless two-room house."

HRA/OMCT May 2003, Sect. IV

"Post displacement housing conditions indicate that the life style of the victims is often transformed from, one based on detached private housing to one based on squatter settlements or homelessness. In general, squatter settlements lack basic infrastructure and basic household equipment. Moreover, after the forced displacement, most of the families have begun to live together in the same house because of economic problems."

Testimonies by internally displaced people, HRA/OMCT May 2003, Sect. IV:

"I am unemployed. I don't know how to survive with my 6 children and wife. We are not used to concrete streets. This is not the place to live for us. If I can find a job and earn money for bus tickets and if the conditions in the village are improved we will return to our village' Extract from the testimony of Mehmet Hadi Karakaya

'In 1996 we also moved to Istanbul. We lived in a humid basement floor for a long time. Now, we live in an apartment in Kocamustafapasa. We even don't have enough bread to eat. Now my two sons work as porterbut since we cannot survive with that money, my two daughters, who are only 11 and 15 years old started to work in a textile shop. In case one child gets ill, we do not have enough money to pay for his/her medical care, because we don't have a social coverage or health insurance.' Extract from the testimony of Neriman Cicek"

HRA/OMCT May 2003, Annex II

Statistical survey carried out by Göç-der on 2,139 families (17,845 people), shows number of IDP families who have faced housing problems after forced displacement

Shelter Problem After Forced Migration	No of Families	%
Yes	1,162	54.3
No	977	45.7
Total	2,139	100.0

COE, 22 March 2002

"It has to be made clear that generally, the Turkish Government has failed to provide emergency assistance to people forcibly displaced in the south-east, including persons displaced directly as a result of the actions of Turkish military and security forces. These people have not been provided with any shelter or food in the immediate aftermath of the displacement. The Government has not arranged for any temporary accommodation in tents or collective facilities and the displaced persons could count only on their relatives or scarce assistance from humanitarian organisations. As a result, the majority of the displaced persons have flooded the provincial cities (mainly Diyarbakir, Batman, Sirta, Hakkari) crowding into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family and setting up shanty towns in the outskirts.

The absence of affordable housing for people who have been rendered homeless by the conflict and for different reasons cannot return is still a critical problem. Although the Government has constructed some housing in the towns, the numbers are far from sufficient. At the end of 1997, the OHAL governor stated that 5 524 houses had been built to accommodate displaced persons, including 693 in Diyarbakir, 932 in Hakkari, 2 767 in Sirnak, 175 in Tunceli, 152 in Van.

The majority of the displaced rural population of Kurdish origin live in urban centres in dramatic conditions and extreme poverty, creating specific integration problems for local communities. Overcrowded places have usually inadequate heating, no sanitation and inadequate infrastructure. Malnutrition, insufficient and dirty drinking water, improper disposal of sewage and garbage are common problems.

On average, all regional cities in the south-east have doubled or tripled in size in the past decade without a commensurate increase in services such as schools or hospitals. Diyarbakir, the main city of the region, grew from 400 000 in 1990 to about 1,5 million in 1997. Many people from the area have left for the west parts of the country. Istanbul hosts a big number of Kurdish Turks (estimates vary from 1 to 3 millions)."

Göc-Der 2002, pp.72-74-I

Kinds of residences before and after migration (January 2002) based on a survey by Göc-Der amongst 17,845 displaced Kurds

Table 91: The Kinds of Residences Before Migration

The Kinds of Residences Before Migration	N	%
Slum	45	2.1
Shed	27	1.3
Detached Village House	1682	78.6
Rented Appartment Flat	19	0.9
Appartment Flat Owned by Himself/Herself	117	5.5
Detached House	228	10.7
Other	21	1.0
Total	2139	100.0

Table 93: The Kinds of Residences After Migration

The Kinds of Residences After Migration	N	%
Rented Slum	621	29.0
Slum Owned by Himself/Herself	610	28.5
Shed	93	4.3
Tent	30	1.4
Rented Appartment Flat	386	18.0
Owner Appartment Flat	232	10.8
Basement Floor	30	1.4
Other	137	6.4
Total	2139	100.0

Housing initiatives favour former village guards (2002)

- In some areas, authorities have provided housing to displaced villagers
- Most initiatives have been intended for former village guards

HRW, 30 October 2002

"In some cities, the authorities provided some housing for displaced villagers, but these initiatives are mainly intended for former village guards. In Van, for example, provision was made for a

group of eight hundred villagers, mainly former village guards and their families, who were told to leave by the authorities because their settlements, near the Iraq border, could not be protected from PKK attacks. The 285-unit Yalým Erez Lodgings outside Van were a major central government investment and generally appreciated by residents. As a rather ad hoc and temporary arrangement, however, it suffered a number of shortcomings. Funding ran out before the sewage disposal system was completed and news reports, confirmed by the residents interviewed by Human Rights Watch, said that at least four children had drowned in cesspools flooded during the winter months."

Shelter needs of the displaced have not been addressed adequately (2002)

- Evicted villagers were rarely provided with emergency shelters by authorities
- The displaced have often concentrated in slums in outskirts without adequate infrastructure and services
- Construction plans rarely benefit the displaced population
- Extended kinship relations of Kurds in south-eastern Turkey have allowed the displaced to find a shelter with extended family members

USCR 1999, pp. 19-20

"Along with unemployment, the absence of affordable housing is a critical problem. A Kurdish lawyer commented, 'There is no public housing in Turkey; there are no housing rights here. The migrants are forbidden to live in the slums, but if someone has no money, he has no choice. They cannot build houses on state property.'

Housing and shelter needs should be examined in two phases: First, as the urgent need for shelter in the immediate aftermath of displacement, including accommodation in tents or collective facilities; second, the longer-term needs for decent housing for people rendered homeless by the conflict who cannot return in the foreseeable future. Because the violence in populated areas decreased significantly in 1998 and 1999, the need for emergency, temporary housing has declined as well, compared to several years ago. In its study of displacement in 1994 in Tunceli and western Bingöl, the Netherlands Kurdistan Society observed:

According to Minister [of Interior Nahit] Mentefle's statement in parliament, the government had in 1993 supplied 500 families with substitute housing. He was probably referring to the pre-fabricated emergency dwellings that are commonly sent to the region following earthquakes (which occur frequently in eastern Turkey). We are not aware of any group of evicted villagers before the autumn of 1994 being given such dwellings, nor other forms of compensation. Virtually all evacuees of whom we are aware had to find a new place to stay by themselves. (In this respect, the village evacuations in Tunceli were exceptional, for here the government did provide some of the evacuees with shelter and even compensation...).... Some families were reported living in tents around the town of Ovacýk, others were lodged in a few public buildings. The government erected emergency dwellings for some of the homeless near Ovacýk, but it was doubted whether these simple structures would be able to withstand the severe winter.⁷⁰

Emergency shelter per se—or even more permanent dwellings—is only part of the problem. Since the displaced congregate in the *gecekondular* ['huts built in one night', in slums in the outskirts of cities], which, by their very nature, the government seems to consider a blight unworthy of efforts to improve them, a host of infrastructural needs go unmet. In the quarter of Mersin where the displaced live, USCR heard complaints of uncollected garbage, potholes, and mosquito infestations. In April 1996, the Habitat International Coalition (HIC) sent a fact-finding mission to Turkey to assess housing conditions for the displaced. The report found:

The urban areas to which the displaced Kurds have fled are completely neglected by the Turkish authorities. In both Diyarbakır and Istanbul, HIC found neighborhoods without access to potable water, adequate sanitation facilities, and electrical connections.

The 1997 Turkish Parliamentary Commission report includes a letter from the OHAL governor, dated November 11, 1997, stating that 5,524 houses were built to accommodate displaced persons, including 693 in central Diyarbakır, 932 in Hakkari, 2,767 in Sirnak, 175 in Tunceli, 152 in Van, 258 in Bingöl, 62 in Bitlis, 465 in Mardin, and 465 in Mufl. Although the government has constructed some housing, displaced persons and others told USCR that occupancy is part of the reward system tied to the village guard structure. A man in Diyarbakır told USCR that in his city 'the government built 500 cottage houses for migrants, but they gave them all to village guards. Some flats were built that were supposed to be for poor people, but now professionals who can afford the rents are living in them. Rents are astronomical.'

USCR observed a construction boom in areas on the periphery of the conflict zone, particularly in Sanliurfa, on the outskirts of Mersin, and in Mersin itself. USCR noted scores of apartment buildings in various stages of construction. Although the city is overcrowded and has a teeming slum of Kurdish migrants, it is unclear whether the construction boom will benefit the displaced population. Mersin, located on the Mediterranean coast, is establishing itself as a tourist center, attracting busloads of Syrians."

HRW June 1996

"[T]he forced migration connected with the conflict in southeastern Turkey has been chaotic and unorganized. Only the extended kinship relations of Kurds in southeastern Turkey have prevented a larger crisis, allowing the displaced to find a shelter with extended family members. Individuals who flee or are forced out of their villages in southeastern Turkey haphazardly sought refuge in already overburdened provincial towns and cities within the region or in Turkey's teeming western urban centres."

HRW, 30 October 2002

"When gendarmes destroyed their homes and drove them from their lands, villagers sold off whatever livestock they had managed to save from the fires and shooting and went in search of shelter. Some camped by highways near enough to their villages to tend their crops. Others went to the nearest town or city and put up makeshift dwellings of tarpaulins and packing cases on vacant ground. Villagers crowded in with relatives or into rented accommodation, agricultural buildings, or construction sites with neighbors from the same village.

If displaced villagers had remained clearly visible in tent settlements, the authorities might have felt under more pressure to remedy their plight. But the displaced are resourceful and have turned to extended family and community structures to pool resources and find work and housing. According to a 2002 survey carried out by the Migrants' Association for Social Cooperation and Culture (Göç-Der), a Turkish nongovernmental organization, more than half of the displaced villagers had found accommodation in gecekondus, or shantytown dwellings but, ten years after the worst of the displacements, some 5.7 percent of respondents were still living in tents or sheds.

Language problems exacerbated the difficulty of finding accommodation and integrating in the cities of the west. Göç-Der's study among the displaced found that 17.6 percent of the sample reported that their poor command of Turkish had created problems in finding housing. Only 11.4 percent of adult males spoke Turkish as their mother tongue, and 60.9 percent of displaced women spoke no Turkish at all."

ACCESS TO EDUCATION

General

Children whose mother tongue is not Turkish cannot learn their mother tongue in the public school system (2006)

EC, 6 November 2006

“There has been limited progress as concerns education. The 2005 recommendations of the European Commission against Racism and Intolerance (ECRI) on school curricula and textbooks as well as on the functioning of minority schools remain valid. Further efforts are needed to remove discriminatory language from textbooks. [...] Children whose mother tongue is not Turkish cannot learn their mother tongue in the Turkish public schooling system. Such education can only be made by private education institutions. As concerns Kurdish all such courses were closed down in 2004. Therefore, there are no possibilities to learn Kurdish today in the public or private schooling system. Furthermore, there are no measures taken to facilitate access to public services for those who do not speak Turkish.”

Research study among IDPs in Van province reveals that education is a major concern (2006)

- Study shows significant percentage of illiteracy and miniscule percentage of university qualifications of IDPs in Van
- Education-related problems one of major issues for IDPs
- Illiteracy among women more prevalent than among men
- Educational level worse in the city than in the villages

Emin Yasar Demirci, Place of displaceds, July-August 2006, pp.5-7:

“The educational situation of the participants is shown in tables 4, 5 and 6 [*sic* 7,8,9]. As in the tables %53,5 of the participants are illiterate, %9,1 are only literate, %25,3 are primary school, %6,5 secondary school, %4,5 are high school and only 3 participants, %0, 5 are university graduates. Another 3 participants left this question unanswered. In other words, the problem of educational level, illiteracy, schooling rate of age population and school attendance, not to mention the quality of education they received, occupies foremost important place concerning the problems of displaced people. If we take the fact that some people tend to pretend themselves as literate out of embarrassment or some other reasons and, in addition, literacy of some literates does not necessarily refers to functional level of literacy, into account the percentage of illiteracy can rise to well above %60. Similar suggestion can be made for other categories of educational level. As observed in the field through interview conducted concurrently with Questionnaires, participants tended to either push their educational level upward or include it in the category that they still continue, not in that they were graduated. This problem in mind it may be claimed that educational level of displaced seems to be worse than the figures in the tables suggest.

TABLE 7: EDUCATION

	Frequency	%	Valid %	Cumulative %
Illiterate	311	53,5	53,5	53,8
Literate	53	9,2	9,2	53,0
Primary	147	25,3	25,4	55,4
Secondary	38	6,5	6,5	25,0
High School	26	4,5	4,5	22,5
University	3	,5	,5	100,0
Total	578	99,5	100,0	
Missing	3	,5		
Total	581	100,0		

As we take a close look at the tables and analyze the data according to sexes the picture gets worse than the general figure. As in table 5 below, % 53, 8 of general illiteracy rate rises to %69, 2 for women, in consistent with the general situation of women in society reflecting their low status, impoverishments and second class, dependent position. Low educational level with high illiteracy rate and low status are both cause and consequence of each other. In other words, low status generated low educational level and this, in return, deprived women of the skills and the qualifications to improve their situation.

TABLE 8: SEX/EDUCATION CROSTABULATION

	Education Level						Total
	Illiterate	Literate	Primary	Secondary	High School	University	Total
Female	227	26	53	15	7	0	328
	69,2%	7,9%	16,2%	4,6%	2,1%	,0%	100,0%
Male	39,3%	4,5%	9,2%	2,6%	1,2%	,0%	56,7%
	84	27	94	23	19	3	250
Total	33,6%	10,5%	37,6%	9,2%	7,6%	1,2%	100,0%
	14,5%	4,7%	16,3%	4,0%	3,3%	,5%	43,3%
Total	311	53	147	38	26	3	578
	53,5%	9,2%	25,4%	6,6%	4,5%	,5%	100,0%
Total	53,5%	9,2%	25,4%	6,6%	4,5%	,5%	100,0%

As we go further in analysis and compare the educational level with the place of living we get a striking result not in favor of city, as common sense knowledge suggests, but that of the village.”

TABLE 9: AGE/EDUCATION CROSSTABULATION

Age	Education Level						Total
	Illiterate	Literate	Primary	Secondary	High School	University	
7-14	4 5.3% .7%	6 8.0% 1.0%	56 74.7% 9.7%	9 12.0% 1.6%	0 .0% .0%	0 .0% .0%	75 100.0% 13.0%
15-25	57 41.1% 11.6%	16 9.8% 2.8%	32 19.6% 5.6%	21 12.9% 3.6%	25 15.3% 4.3%	2 1.2% .3%	153 100.0% 25.2%
26-35	76 55.0% 13.1%	8 5.1% 1.0%	29 34.8% 5.0%	4 3.4% .7%	1 .9% .2%	1 .9% .2%	117 100.0% 20.2%
36-50	23 73.2% 15.6%	6 4.9% 1.0%	23 18.7% 4.0%	4 3.3% .7%	0 .0% .0%	0 .0% .0%	123 100.0% 21.3%
51 and plus	74 74.0% 12.8%	19 19.0% 3.3%	7 7.0% 1.2%	0 .0% .0%	0 .0% .0%	0 .0% .0%	100 100.0% 17.3%
Total	311 53.8% 53.8%	53 9.2% 9.2%	147 25.4% 25.4%	36 6.6% 6.6%	26 4.5% 4.5%	3 .5% .5%	575 100.0% 100.0%

Displacement's impact on child educational attainment (2005)

- School attendance of Kurdish speaking population and IDPs consistently lower compared to overall population
- The difference is bigger in university ages
- Trends more alarming for females
- Considerable resources and sustained commitment by governments and donors are necessary to ensure full and equal participation of women and girls in educational programs

Koç and Unalan, July 2005, pp.13-15:

"Basic education is essential for all population and especially in the case of IDPs, children and youth could easily find themselves deprived of education opportunities due to change of residence and poorer social and economic conditions following the displacement. Figures 1 and 2 present the school attendance ratios for different population groups and by sex. Figure 1 implies that the school attendance ratios of Kurdish speaking population and IDPs are very similar across different ages and at the same time consistently lower compared to overall population. The difference becomes slightly larger in university ages.

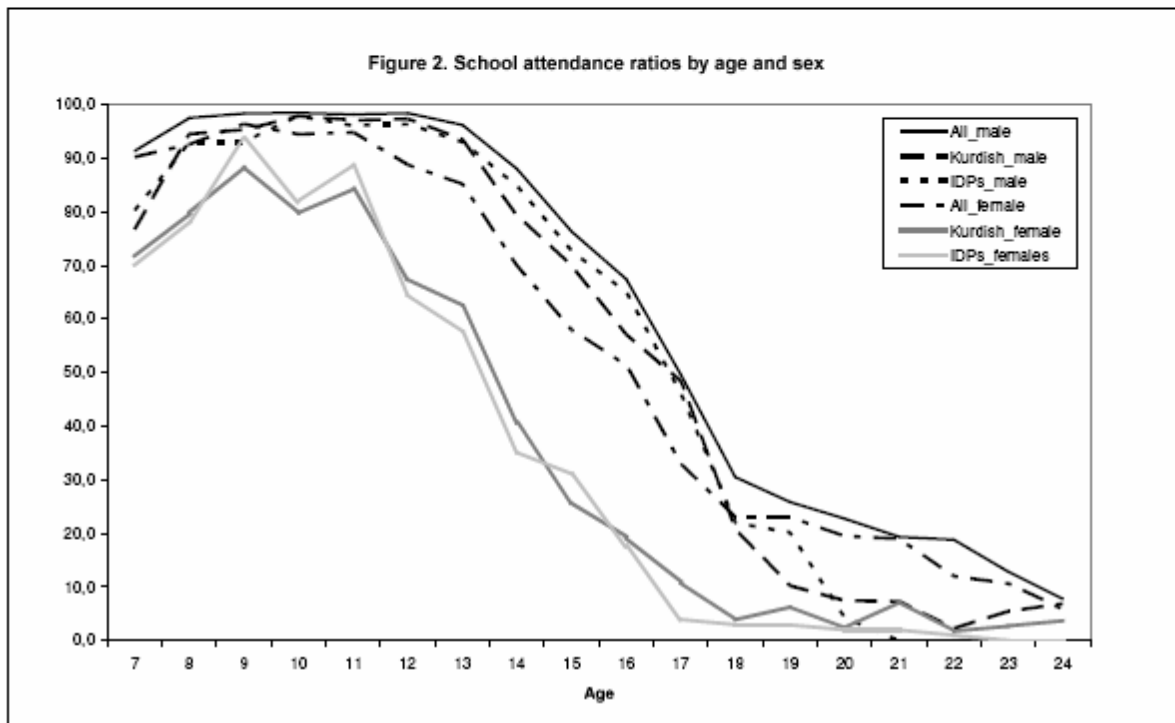
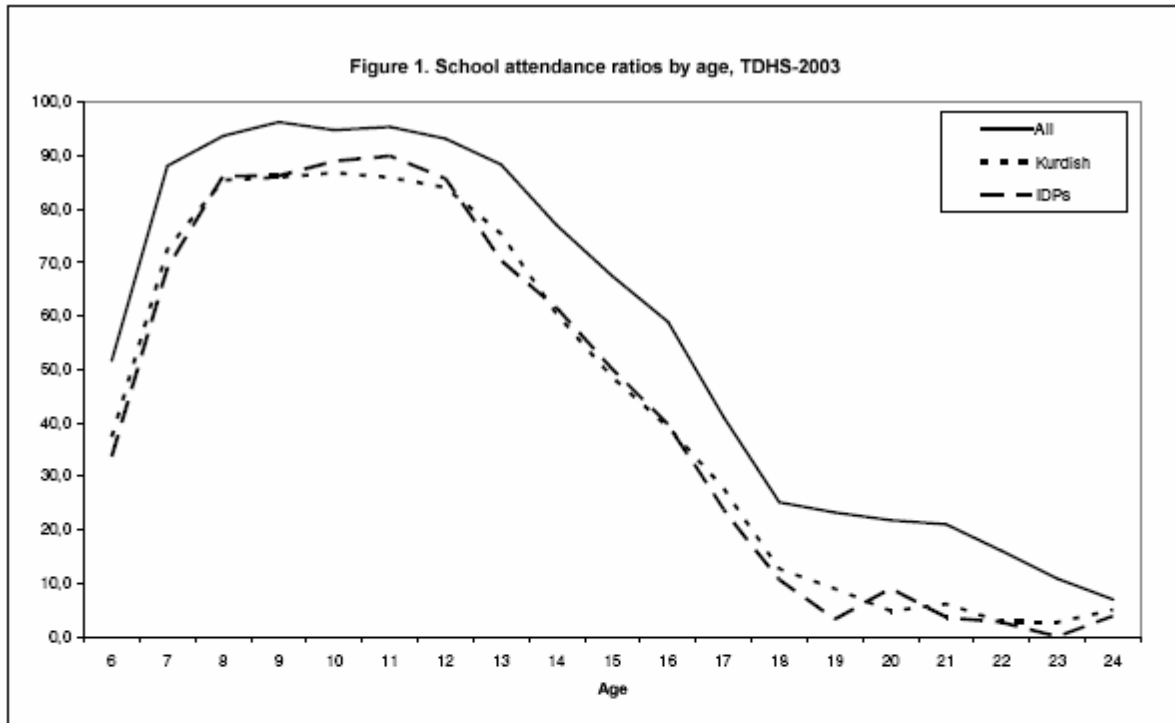


Table 9. Basic Educational Outcomes of Children

Educational outcomes	Turkey	Kurdish	IDPs
Net school attendance ratio (Primary)			
Male	90,6	85,6	86,9
Female	87,0	71,2	70,3
Total	88,8	78,6	78,6
Net school attendance ratio (Secondary)			
Male	53,0	29,1	28,6
Female	46,9	13,3	9,3
Total	50,0	21,6	19,6
Gross school attendance ratio (Primary)			
Male	100,4	99,8	100,8
Female	92,2	76,3	74,2
Total	96,3	88,2	88,5
Gender Disparity Index	0,92	0,77	0,74
Gross school attendance ratio (Secondary)			
Male	80,4	48,7	47,7
Female	63,0	19,6	10,3
Total	71,8	34,9	30,3
Gender Disparity Index	0,78	0,40	0,22
Grade repetition rates			
1	3,1	6,1	7,9
2	1,8	1,1	2,5
3	0,8	1,7	3,5
4	1,4	1,0	2,2
5	0,9	1,6	4,4
Mean years of schooling (age 6+)	5,7	3,6	3,1
Median years of schooling (age 6+)	5,2	3,7	2,5

A closer examination of school attendance ratios by sex reflects more alarming trends for females. Even though the overall school attendance ratios are lower for females compared to males, the difference deepens for Kurdish speaking population and IDPs. It is also interesting to note that being an IDP does not worsen the school attendance ratios of females compared to Kurdish speaking females. Among males, on the other hand, the differentiation between different population groups is not evident.

Table 9 presents some of the important indicators of education for different population groups and by gender. Even though the primary school net and gross attendance ratios implies relatively smaller differences owing to differences among females, the secondary school net and gross attendance ratios clearly reflect that Kurdish speaking population and IDPs are disadvantaged; the ratios decline severely in secondary education and especially among females. Grade repetition rates and mean or median years of schooling are also the other indicators reflecting the same disadvantaged picture."

p.18:

"It is clear that educational differences are more frequent after primary school and for females. As indicated by the guiding principles on internal displacement, special efforts should be made to ensure the full and equal participation of women and girls in educational programs and education and training facilities should be made available to internally displaced persons, in particular adolescents and women. To ensure that, considerable resources and sustained commitment by governments and donors are necessary. Priority should be given to the planning of adequate measures to ensure that access to education is available for IDPs."

HRW, 30 October 2002

"Children are frequently not sent to school because the family cannot afford the fairly minimal cost of books and school clothing or the loss of income that children bring in to the family by working on the streets or as "apprentices" in workshops and textile sweatshops. The Migration and Humanitarian Assistance Foundation (GIYAV), a nongovernmental organization, offers support to internally displaced people in the large coastal city of Mersin. It runs a mother and child group, evening activities for young people, and meets the educational costs of thirty children."

See also report by USCR and Goc Der in sources below

Low levels of school attendance particularly among girls in parts of the Southeast (2006)

- High levels of illiteracy among women and girls in rural areas is reported
- low levels of school attendance, in particular in rural areas of the South East

EC, 6 November 2006

"With respect to **children's rights**, the right to education for children, particularly girls, remains a problem in some areas. The newly initiated 'conditional cash transfer' programme implemented by the Social Support and Solidarity Fund provides incentives and compensation to targeted families by offering cash transfers on the condition that they send their children to school if they are of school age. Enrolment campaigns need to be sustained and consolidated to address the low level of school attendance, in particular in rural areas of the South East.

US DOS, 28 February 2005

"Government-provided education through age 14 or the eighth grade is compulsory. Traditional family values in rural areas placed a greater emphasis on education for sons than for daughters. According to the Ministry of Education, 95.7 percent of girls and 100 percent of boys in the country attended primary school; however, a UNICEF report released during the year indicated that, in the rural areas of some provinces, over 50 percent of girls between 7 and 13 and over 60 percent of girls between 11 and 15 did not attend school."

EC, 6 October 2004, p.46

"Women remain vulnerable to discriminatory practices, due largely to a lack of education and high illiteracy rate (19% of women in Turkey are illiterate and in the Southeast this figure is considerably higher). In some provinces of the Southeast, 62% of girls are reportedly enrolling in primary education and 50% in secondary. The widespread practice of the non-registration of girls in some parts of the Southeast contributes to this situation. Moreover, the portrayal of women in school text books reinforces such discrimination."

HRW, 29 June 2004, pp.22-23

"The CEDAW committee expressed deep concern at the high level of illiteracy among women and girls (especially in rural areas), the drop-out rates of girls in schools owing to family practices, the impact on girls of early marriages and the prioritization of boys in school enrollment, and other

gender discriminatory practices in education.[...] 22.4 percent of girls and women more than twelve years old are illiterate, as compared to 5.9 percent of boys and men.[...] Even this striking figure understates the problem of access to education by women in less developed regions. In its study of women in east and southeast Turkey, and a district of Istanbul that is largely populated by migrants from those regions, WWHR found that 62.2 percent of the sample had never been to school or had not been permitted to complete primary education. Only 9.8 percent had completed middle school."

Survey identified causes of school absence of displaced Kurdish children (2002)

- Reasons of school absence are mainly poverty, work, absence of school, gender, cultural differences, family pressure, and costs

Göc-Der 2002, pp.22-23-III

"When the unified effects of such variables are analyzed, the reason of not attending the school after migration can be counted as the following:

75.4 %; Poverty

6.7 %; Children's Working

5.4 %; Absence of Any School in the Neighboring Area

3.6 %; Being Female

1.2 %; Linguistic and Cultural Problems

3.1 %; Pressures on Family After Migration

1.2 %; Being Unable to Afford the Educational Expenses (Göc-Der 2002, p.14-15-III)

When unified effects of these problems are analyzed, the basic problems for the families and children can be ordered as the following:

Being unable to speak mother tongue is a problem for 36.5 % of the children

Not knowing Turkish is a problem for 30 % of them

Both working and attending school at the same time is a problem for 9.2 % of the children

Being abused because of ethnic origins is a problem for 6.4 % of them

The absence of any school in the neighboring area is a problem for 5.6 % of them

Being unable to afford educational expenses is a problem for 2.5 % of the families"

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Poverty and rates of unemployment high among displaced (2006)

- The displaced have often joined the ranks of the urban poor in south-eastern cities as well as western metropolises
- Urban IDPs suffer from a host of interrelated problems, including poverty and joblessness; inadequate access to education for school-age children; use of child labour as a coping strategy; poor housing; and insufficient access to health and psychosocial care
- Various surveys conducted among IDPs in Diyarbakir and other cities reveal unemployment ratios between 60 and 80 percent

TESEV/IDMC Special Report, June 2006

"IDPs received almost no aid during the initial years of displacement from the authorities for resettlement in other areas in terms of assistance for housing, food, cash, access to education, health care, and employment opportunities.[121] Therefore, the displaced have often joined the ranks of the urban poor in south-eastern cities (such as Diyarbakir, Batman, Hakkâri and Van) as well as western metropolises (such as Istanbul and Ankara).[...]

Urban IDPs suffer from a host of interrelated problems, including poverty and joblessness; inadequate access to education for school-age children; use of child labour as a coping strategy; poor housing; and insufficient access to health and psychosocial care. [...] Coming from agricultural backgrounds and hence lacking skills for urban employment, the majority of displaced adult men and women are unemployed. [124] Household demands on their labour, inability to speak Turkish and cultural barriers often keep displaced women away from the labour market. The available types of work for both men (such as construction and street vending) and women (for example childcare and piecework at home) are sporadic, informal and therefore lack social security benefits. Adult unemployment forces displaced families to send their children to work, either on the street as peddlers or in sweatshops (such as small, informal garment workshops in Istanbul). Having to contribute to household income keeps many children away from school, although some of them have been enrolled in the past few years, partly as a result of the conditional cash transfers mentioned below. Working on streets and in sweatshops also puts children's health and safety at risk and hampers their physical and psychological development.

Lack of access to education is a broader problem for IDPs irrespective of child labour. Especially in the early years of displacement, many families could not send their children to school due to financial problems. Many displaced children grew up without any formal education, and cannot find jobs in the urban labour market. Furthermore, lack of access to education is also a problem for returnees and those considering return, as many rural settlements where returns are taking place do not have operating schools. [...]

Lastly, the trauma of displacement and ensuing poverty in cities has triggered psychological and other health problems. Most families the TESEV Working Group visited lived in unhealthy, inadequate, overcrowded and small living spaces. These living conditions facilitate the outbreak of disease and make recovery difficult. Children suffer from malnutrition. Despite the existence of a free health care programme for the poor (see the section below) and also because most urban displaced do not have social security, [126] they do not have adequate access to public health

institutions and services. Furthermore, there are no services specifically designed for psychosocial care for displaced women and children. In some women's and children's support centres in the districts of Istanbul, Batman, Hakkâri and Diyarbakir, where IDPs are concentrated, there was awareness of their specific conditions; however there were no particular services designed to help them."

Footnotes

121 The only apparent exceptions are the settlement of a limited number of IDPs in the mid-1990s in the Tunceli and Diyarbakir provinces in vacant housing built after earthquakes, and the building of some urban housing for IDPs in the provincial centre of Van several years after displacement. This information comes from TESEV interviews with IDPs in Istanbul and Diyarbakir as well as some newspaper reports. See also, Leyla Sen, "Poverty Alleviation, Conflict and Power in Poor Displaced Households: A Study of the Views of Women in Diyarbakir", *New Perspectives on Turkey*, 32 (2005): 113-136.

124 The majority of male household heads interviewed by TESEV in Istanbul and Diyarbakir were unemployed. Various surveys conducted among IDPs in Diyarbakir and other cities reveal adult unemployment ratios between 60 and 80 percent. For instance, see Mehmet Barut, *Zorunlu Göçe Maruz Kalan Kürt Kökenli T.C. Vatandaşları* (op. cit.) for a survey conducted in several provinces among IDPs; and R. Dag, A. Göktürk and H.C. Türksoy, *Bölgeiçi Zorunlu Göç* (op. cit.) as well as M. Ersoy, and H. T. Sengül (editors), *Kente Göç ve Yoksulluk: Diyarbakir Örneği* (2000, ODTÜ, Ankara) for surveys of IDPs in Diyarbakir.

126 In Turkey, social security benefits are not universal; one needs to be legally (self-) employed or be the dependent of a legally (self-) employed person in order to be covered under a social security programme. Although lack of social security is a broader social problem and hence far from being unique to the displaced population, the fact that most adult IDPs are either unemployed or sporadically employed in the informal sector has the consequence that most of them do not have social security.

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 24-25

"Displaced Kurds also believe they face economic and social discrimination. They are identifiable by their speech and by their demeanour. We repeatedly heard that displaced families were turned down by Turkish landlords or employers, and were dependent on Kurds for lodging or employment. We met approximately 20 displaced villagers. Most of these displaced villagers expressed either extreme difficulty in finding work, or in several cases they reported discrimination whereby employers/landlords preferred to employ or rent to Turks rather than Kurds. The upshot was that several reported that they were street vendors (of whom there is already a serious glut) or that they sifted through rubbish to find something recyclable. Or that they finally were only able to rent a dwelling (all too frequently simply a shanty) through someone also 'from the East'. We saw examples of wood and plastic shanty dwellings. Research reportedly carried out by IHD Istanbul in 1994 or 1995 indicated that barely 5 per cent of those displaced by war acquire an income above or on a level with subsistence. We greatly doubt that the situation for the displaced has improved since then. [...]

It goes without saying that those forcibly displaced from the countryside are among the worst-off economically in Turkey. They are often reduced to penury, particularly since they lack the skills for urban life. An IHD delegate from Iskenderun informed us that many displaced persons had been driven out of the city by a prohibition on unlicensed street vendors some four or five years ago. They simply could not survive, so they moved to Adana, Mersin and similar places. The 20,000 or so displaced persons still in Iskenderun remain closely watched by the security forces. 'They cannot say they are Kurdish, they do not dare say who they are, or that their villages are burnt.' "

USCR 1999, pp. 18-19

"Most of the displaced persons USCR encountered had been engaged in husbandry and small-plot agriculture before their displacement, but are now living in urban settings. USCR visited slum areas in several cities that were comprised almost entirely of Kurdish migrants. Although some migrants have adapted and found work in construction, transportation, or other urban pursuits, many others, particularly among those who were adults when they were displaced, have not been able to adapt. The conflict has disrupted the region's economy. Agriculture and husbandry served the region's cities, and city dwellers commented on high prices and shortages of meat and other staples that once were plentiful.

One man told USCR, 'Old people are especially poor. No charities help them. There are no private organizations that work on their behalf. We have no money to eat meat. We never eat meat.' Meat is central to the diet in this region, but the husbandry sector has been decimated.

No welfare system appears to operate on behalf of destitute internally displaced persons and other vulnerable, unemployed people."

Study suggest 40 per cent live below poverty line in rural areas (2006)

- According to the same study, the child poverty rate (below 6 years of age) is 34% and almost 40% in rural areas
- Other reports suggest that Turkey's unemployment rate is about 10 percent, but in the southeast the figure is closer to 60 per cent

EC, 6 November 2006

"According to the results of a poverty study conducted by TURKSTAT, 1.29% of the population live below the hunger line, while 25.6% live below the poverty line. The percentage of the latter increased to 40% in the rural areas. According to the same study, the child poverty rate (below 6 years of age) is 34%, while this rate reaches almost 40% in rural areas."

CSM, 31 August 2005

"Outside a post office in this southeastern Turkish town ringed by cotton and wheat fields, men and women jostle for position, eager to read a list of names posted near the window. The names are of poor families with school-age children eligible for financial support from a World Bank program, giving each \$7-14 per child every month.

Sakir Yasarer, a father of three, says he couldn't find his family's name on the list. "I'm very poor. I'm in a very tough position," says Mr. Yasarer. His children, he says, sometimes go to the dump to find scrap metal or plastic to earn extra cash for the family. "I need a factory job, something steady, something I can go to everyday."

Yasarer's story is not unusual in Turkey's largely Kurdish southeast, a region that lags behind the rest of Turkey in virtually every economic indicator.

Turkey's unemployment rate is about 10 percent, but in the southeast the figure is closer to 60. And while some cities in western Turkey, where much of the country's industry is located, have per capita incomes that rival parts of Europe, many cities in the southeast have per capita incomes more in line with parts of India.

Some economists attribute this gap to decades of official neglect and the effects of the 15-year war fought between the Turkish military and the separatist Kurdistan Workers Party (PKK) in the 1980s and 1990s. A recent increase in PKK activity after a lull of six years - some 120 Turkish

security personnel have been killed in the past year - is causing concern that the southeast will again be torn by violence, further damaging its fragile economy.[...]

In an apparent response to the growing PKK activity, Turkish Prime Minister Recep Tayyip Erdogan visited Diyarbakir earlier this month. He declared that the Kurdish problem would be solved through greater democratization. But business leaders and officials here insist that any effort aimed at settling the Kurdish issue must go beyond political and cultural rights to include economic development.

Despite a month-long cease-fire called for by the PKK following Prime Minister Erdogan's speech, violence in the region continues. In clashes last week with PKK guerrillas in a remote part of Batman, another southeast province, Turkish soldiers killed three members of the Kurdish rebel group.

In Diyarbakir, where the population has tripled over the past 15 years, fed by the arrival of hundreds of thousands of villagers who had fled the fighting between the PKK and the military, local officials say poverty and unemployment have led to a host of worrying trends, including prostitution and drug use. The city of 1.2 million also has what some estimate to be Turkey's largest population of street children.

"The people in this region are asking why this region has no factories. They look at other regions and ask why they have state-sponsored industries and irrigation," says Firat Anli, a district mayor in Diyarbakir.

The government, with help from the European Union (EU) and the UN Development Program, has set up several offices throughout the southeast to assist local businesses. But Bulent Yuce, a field officer with the program, says economic growth here is kept in check by deep-rooted problems that are difficult to surmount. "Investors from the west [of Turkey] don't think about investing here, not because of terror but because of a lack of infrastructure, trained personnel, and the distance from raw materials."

COE 3 June 1998, para. 37

"Another serious problem results from the disastrous economic and social situation of the whole region. Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, tractors etc. have made large areas of the region uninhabitable. The region has always suffered from a lower level of economic and social development than other parts of Turkey; the conflict has much increased this gap. The rate of illiteracy is 35 % in the Kurdish regions, whereas at the national level it is 19,3%; over 60% of the Kurdish population in the south-east region live below the poverty line compared to approximately 30 % in other regions, and the mortality rate is 50% higher than in other parts of the country. Before mass return could be foreseen, measures to revive the local economy would have to be undertaken."

Research reveals that over 45% of IDPs in Van declare themselves as unemployed (2006)

- 45% of IDPs declared themselves as unemployed, 7% as employed with regular income and 31% as living on 'free occupation'
- High level of unemployment also reflects expectations from employment with part-time jobs not considered as such
- Expectations from officials and NGOs make people display their situation worse off than it is

Emin Yasar Demirci, Place of displaceds, July-August 2006, pp.12-13:

“Of the 581 participants of the research 45.1% declared themselves as unemployed. The rate of those who work on a regular basis that entitles them to regular monthly incomes such as working in public sector as laborer or civil servant is 2.5%. Another 4.5% of the participants defined their job as village guards. Although it is termed as “temporary village guards” the job seems to become permanent since its inauguration in 1980s securing its holders a minimum but a regular monthly income around the year. In other words, with that category of job the rate of employment based on regular income and job security makes up 7% of the total workforce of the displaced people. 31% of the displaced used the vague term of free occupation to define their mostly temporary, irregular, seasonal work ranging from street peddlers to small shop keepers to construction workers. It should be noted that temporary, low status seasonal jobs were consciously included within this category. In fact, only a few portion of the jobs in this category deserved the term “free occupation”. A total 32 person, 5.5%, fell into the category of student whereas another 5.5% left this question un answered. The breakdown of the answers is given in the table below.

TABLE 14: OCCUPATION

	Frequency	%	Valid %	Cumulative %
Unemployed	262	45,1	47,7	47,7
Worker	6	1,0	1,1	48,8
Unskilled Worker	26	4,8	5,1	53,9
Seasonal Worker	6	1,0	1,1	55,0
Civil Servant	9	1,5	1,6	56,6
Free Occupation	180	31,0	32,8	89,4
Student	32	5,5	5,8	95,3
Village Guard	26	4,5	4,7	100,0
Total	549	94,5	100,0	
Missing	32	5,5		
Total	581	100,0		

Notice that there is no category in the table as farmers or farming related economic activities although nearly 40% of the Questionnaires conducted in villages and majority of participants in the city has short term relations with farming and related activities For example, asked in the interviews in villages all children except three answered their fathers' job as unemployed while their fathers in the Questionnaires answered the same question as unemployed despite they live all the time in villages do farming and related works such as sheep breeding.[...]. This figure in fact reflects people' general approaches to and expectation from job and employment. People in general, and displaced persons in particular, describe job and employment in terms of regular income it provides, social security it entitles its holders including job security during the working period and retirement in the old age. Part time, seasonal jobs, jobs without social security, including job security, self employments including farming are not considered as jobs and employment. This is the most important reason that explains the high level of unemployment among the displaced persons. In addition, expectations from officials and NGOs make people display their situations much worse than they are actually in.

As the level of employment is taken together with the number of working persons in the family in order to eliminate this problem the level dropped dramatically to 14,3%, a much more reliable figure than the previous one.”

HRA/OMCT Survey finds high rates of unemployment among IDPs (2003)

- Statistical data indicates that the majority of household heads have found themselves unemployed or performing jobs in the informal sector, such as street-sellers

- Unemployment is often aggravated by lack of social insurance, restricted access to health services, cultural problems due to cultural/linguistic conflict
- Prior to their forcible displacement, around 87% of household heads based their survival on agriculture
- The government has provided very limited services

HRA/OMCT May 2003, Sect. IV

"[F]ollowing the destruction of their houses and forced evictions, the victims had often no other solution than to leave and resettle somewhere else, notably in urban centres where they are living in destitution, precarious conditions and extreme poverty, a situation that particularly affects women, children and the elderly.

Overall, most of the victims are confronted, in their resettlement place, to high levels of unemployment, lack of income to provide for themselves and their families, poor housing conditions, restricted access to health services, restricted access to education for the children, increased health and nutrition problems, epidemic diseases, as well as to cultural problems caused by cultural and linguistic conflict. The inadequate rate of social security coverage among the victims reinforces this situation, as the most important problem encountered is decreasing levels of income due to unemployment without social insurance. Such a situation has led to a serious state of hopelessness among the victims and makes it difficult for them to become integrated with and participate in the public sphere in urban social settings. In general, the authorities' answer to this situation has been unsatisfactory and often limited to the provision of services, such as housing, to former village guards.

The statistical data released by the Immigrants Association for Social Cooperation and Culture highlights that following the forced displacement, the majority of household heads either found themselves unemployed or performing jobs in the informal sector such as street-sellers. These figures sharply contrast with the fact that the 87.1 % of the household heads based their survival on agriculture before forcible displacement."

HRA/OMCT May 2003, Annex II

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates employment of household heads after forced Displacement

Employment of Household Head After Forced Displacement	No of Families	%
Land owner farmer	2	0.1
Wealthy farmer	2	0.1
Wealthy peasant	1	0
Middle-size peasant	2	0.1
Petite peasant	8	0.4
Poor peasant	31	1.4
Agricultural labourer	64	3.0
Rentier	25	1.2
Unemployed	623	29.1
Retired	35	1.6
Skilled wage-earner	1	0.0
Civil servant	16	0.7
Unskilled servant	203	9.5
Blue collar worker	10	0.5
Artisan	62	2.9
Petite employer	14	0.7
Average-grand employer	3	0.1
Peddler, seller-workman	451	21.1
Others	553	25.9

No response	33	1.5
Total	2,139	100.0

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates loss of employment due to Forced Displacement

Loss of Job	Number of Families	%
Yes	1,514	66.1
No	725	33.9
Total	2,139	100.0

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates employment of household head before forced displacement

Employment of Household Head Before Forced Migration	No of Families	%
Land owner farmer	12	0.6
Wealthy farmer	87	4.1
Wealthy peasant	149	7.0
Middle-size peasant	619	28.9
Petite peasant	301	14.1
Poor peasant	316	14.8
Agricultural labourer	377	17.6
Rentier	10	-
Unemployed	31	1.4
Retired	9	0.4
Skilled wage-earner	3	0.1
Civil servant	13	0.6
Unskilled servant	20	0.9
Blue collar worker	3	0.1
Artisan	41	1.9
Petite employer	15	0.7
Average-grand employer	4	0.2
Peddler, seller-workman	37	1.7
Others	91	4.3
No response	10	0.5
Total	2,139	100.0

GocDer Survey highlights difficult socio-economic conditions for the displaced (2002)

- Displaced earn significantly less than other Turks and often have temporal employment without social insurance or are unemployed
- These problems make integration and participation in society difficult
- After displacement, the household has often been transformed in a unit of consumption rather than production

- Difficulties in social adaptation are linked to unemployment, shelter problems, children's educational problems, health problems, environmental pollution, cultural differences, and feelings of exclusion

Göç-Der 2002, p.34-I

"52.7 % of the respondents earn less than 100 million TL, 29.5 % of them earn between 101-200 million TL, 4.6 % of them earn between 201-300 million TL per month. 13.3 % of the respondents do not have a regular income. Considering the general income standards in Turkey, the data reveals that the forcibly displaced Kurdish population has to survive under very difficult conditions. [...]"

After migration the most important problem encountered is decreasing levels of income due to temporal employment without social insurance and unemployment. This leads to a serious state of hopelessness among the migrants that makes it difficult for them to become integrated with and participate in the public sphere in urban social settings.[...]"

One of the most significant conclusions arrived in this research indicates that the experience of migration has resulted in the decrease of production within the household. In the period following the migration many members in the household ceased to participate in income generating public activities. In other words, the household has been transformed from a unit of production to a unit of consumption. The figures pertaining to employment within the households (18.1 % employed, 82.9 % unemployed) reveal the economic difficulties faced by them after migration. Any type of social security covers only 4.9 % of the people living within these households. Most of the employed work in unsecured, temporary and irregular jobs. [...]"

The data reveals that the number of people who received help in finding a job is proportionally very small. According to the data provided by the State Statistics Institute Survey in 2000 on laborpower, the already poor employment opportunities became poorer after the forced mass-displacement. Furthermore, migrants' lack of occupational-technical skills and knowledge, their low education levels, linguistic and cultural problems make it more difficult for the migrants to find a job. These migrants are generally employed in seasonal-periodical jobs with low salaries and without job security. In this sense, there emerged a great loss of labor-power after migration, which also means exploitation of cheap labor.[...]"

The basic reasons underlying the migrants' being unable to adapt to their new social environment can be counted as follows:

Bad straits, unemployment, shelter problems

Children's educational problems, increase in health problems after migration, environmental pollution, life security problems, problems based on linguistic and cultural differences

The monotonousness of life in the new living environment

The feelings that they are excluded and that they are despised."

DOCUMENTATION NEEDS AND CITIZENSHIP

Documentation needs

Some people faced difficulties registering their newborn babies with Kurdish names (2005)

- There seemed to be fewer complaints that authorities prevented parents from registering their children under traditional Kurdish names in 2004
- Numerous citizens reported being prevented from registering their newborn children with Kurdish names, and in some cases, charges were filed against the parents (2003-2004)
- In July Parliament amended an article to the Census Law that had been used to prevent the use of Kurdish names
- The amended article removed the restriction which had prevented the use of names contrary to national culture, customs and traditions
- The new article places a prohibition on names contrary to “moral norms” or names that “offend the public”
- While the revised wording was intended to ease restrictions, human rights advocates claimed local authorities failed to adjust their practices

US DOS, 28 February 2005

“During the year, the HRF recorded fewer complaints that authorities prevented parents from registering their children under traditional Kurdish names.”

US DOS 25 February 2004, Sect.5

“There were numerous reports of citizens of Kurdish origin being prevented from registering their newborn children with Kurdish names. In some cases, charges were filed against the parents. In August, authorities in Mersin reportedly refused to allow Ali Aksan to register his children with the names ‘Mihriyan,’ ‘Zozan,’ and ‘Berivan.’ In September, authorities in Istanbul reportedly prevented Sevkett Gasgar from naming his son ‘Deral.’

In July, Parliament amended an article of the Census Law that had been used to prevent the use of Kurdish names. The amendment removed language that had prohibited the use of names contrary to the ‘national culture’ or ‘customs and traditions,’ instead prohibiting names contrary to ‘moral norms’ or names that ‘offend the public.’ The revised wording was intended to ease the restrictions; however, human rights advocates claimed local authorities failed to adjust their practices. In September, the Interior Ministry issued a circular notifying local officials of the new regulations. However, the circular prohibited the use of letters used in Kurdish but not found in Turkish. In December, the Diyarbakir Province Jandarma commander asked the Diyarbakir chief prosecutor’s office to provide a list of persons who had applied to change their names under the amended law. The prosecutor’s office reportedly complied. The Diyarbakir Bar Association protested the request.”

High proportion of Kurds who moved to cities were not registered (2000)

- The procedure to obtain ID cards exposes the displaced to security forces

- Remaining unregistered means having no access to health or education services

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 16-17

"Registration of residence All Turkish citizens are required by law to register with the neighbourhood *muhtar* or headman immediately on arrival in a new neighbourhood. We were struck by the number of informants in Istanbul, Adana and Gaziantep who told us either that they were unregistered, or that they had registered in one location but actually lived incognito elsewhere [...]. In other words they sought to be invisible.

It is an offence not to carry one's ID card, rendering one liable to three days' detention. If it is lost, another one must be obtained immediately from the ID office. A chit from the *muhtar* is necessary for this. According to a *muhtar* (see paragraph below), the ID office has a list of 'wanted' persons, supplied by the police. If a name comes up as 'wanted' the police are informed. Notification is also passed to the police or gendarmes at the place of birth. It is not only the officially 'wanted' category that is liable to detention. Many others are detained on suspicion. *Not* being on the 'wanted' list in no way implies one is safe.

Gaziosmanpasa is a well-known area of Istanbul with an Alevi and Kurdish concentration. We met Nevzet Altun, the *muhtar* [...]. He informed us that the registered population is approximately 80,000, but he reckoned the real population was in the order of 100,000, with 20 per cent of the population unregistered. He reckoned that the Alevi proportion of the population is between 40 and 50 per cent, while the Kurdish population is between 30-40 per cent. Presumably there is a large overlap between the two categories. Bearing in mind that it is those who *fear* the police who choose to remain unregistered and that these are most likely to be those displaced by the exigencies of war and have already seen plenty of police excesses, the unregistered population is like to be overwhelmingly Kurdish, with a minority of leftists, probably Alevi Turks also. One may conjecture therefore that the proportion of *Kurds* who are unregistered is well in excess of the *muhtar's* 20 per cent overall estimate, and may even exceed 40 per cent. It is not the role of the *muhtar* to submit registration rolls to the police. Rather, the police scrutinise these rolls whether the *muhtar* desires it or not. We received anecdotal confirmation of this in the offices of Goç-Der (The Migrants' Social and Solidarity Association). One staff member said of her arrival in Istanbul as a displaced person 'When I came to Istanbul I registered with the *muhtar* and gave my address. Then the police came and told me to sign every month at the police station.' Another said, 'I am here [Istanbul] eight years. I am still not registered with the *muhtar*. I cannot register as they will get my address and torture me. My family are military service evaders in Germany.'

People do not take the decision to remain unregistered lightly. Failure to register is not simply a means of remaining 'off the record', excluded from the population census, nor merely a matter simply of remaining excluded from the electoral roll. Remaining unregistered means having no access to health or education services. That price may not seem high for a bachelor in rude health. We repeatedly met families where children were not in school because the parents felt unable to take the risk of registration. If there was a health problem they had to find the money to go to a private clinic. The loss of education for one's children is a very high price indeed to pay, and it is not logical to think that displaced people would take this course of action unless they had real grounds for fear."

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Kurds are not recognised as an ethnic minority (2007)

- Kurds who publicly or politically asserted their Kurdish identity or publicly espoused using Kurdish in the public domain risked censure, harassment, or prosecution
- Turkey signed the Additional Protocol No. 12 to the European Convention of Human Rights on prohibition of discrimination by public authorities but has not yet ratified the Protocol
- In February 2005, the OSCE High Commissioner on National Minorities visited the country
- Turkey has ratified the UN Covenant on Civil and Political Rights with a reservation regarding the rights of minorities

US DOS, February 2007

"The law provides a single nationality designation for all citizens and does not recognize ethnic groups as national, racial, or ethnic minorities. Citizens of Kurdish origin constituted a large ethnic and linguistic group. Millions of the country's citizens identified themselves as Kurds and spoke Kurdish. Kurds who publicly or politically asserted their Kurdish identity or publicly espoused using Kurdish in the public domain risked censure, harassment, or prosecution."

EC, 6 November 2006

"Turkey's approach to minority rights remains unchanged. According to the Turkish authorities, under the 1923 Treaty of Lausanne, minorities in Turkey consist exclusively of non-Muslim religious communities. The minorities associated in practice by the authorities with the Treaty of Lausanne are Jews, Armenians and Greeks. However, there are other communities in Turkey which, in the light of the relevant international and European standards, could qualify as minorities.

The February 2005 visit of the OSCE High Commissioner on National Minorities (HCNM) to Ankara has not been followed up and no progress has been made in starting a dialogue on the situation of national minorities in Turkey. The deepening of such a dialogue between Turkey and the HCNM is necessary. It needs to include relevant areas such as minority education, minority languages, the participation of minorities in public life and broadcasting in minority languages. This would facilitate Turkey's further alignment with international standards and best practice in EU Member States to ensure cultural diversity and to promote respect for and protection of minorities.

Turkey's reservation towards the UN Covenant on Civil and Political Rights (ICCPR), regarding the rights of minorities – to which a number of EU Member States objected as being incompatible with the object and purpose of this Covenant – and its reservation to the UN Covenant on Economic, Social and Cultural Rights (ICESCR), regarding the right to education, are of concern.

Turkey has not signed the Council of Europe Framework Convention for the Protection of National Minorities or the European Charter for Regional or Minority Languages."

Separate identity creates integration problems for displaced Kurds (January 2002)

- After displacement, the formation of ethnic groupings is encouraged by several factors which increases ethnic tensions
- Social exclusion has created a new multi-structural urban space

Göc-Der 2002, p.26-III

"The forcibly displaced Kurdish citizens of Turkish Republic are perceived and treated as 'potential criminals' in certain times and places by public and local administrators, security forces and the police. In their new environment, there exist several reasons that encourage the formation of ethnic groupings and increase ethnic tensions. Among these reasons are the negative effects of the armed conflicts and ethnic tension on the psychology of urban masses, nationalistic prejudice that dates back to the foundation of the Turkish Republic, the problems in establishing relationships between these people and other settled groups of the urban space. It is known that even the Kurdish citizens who had migrated to such places voluntarily long before the emergence of armed conflicts in the region and integrated with the urban social life have fears to get into contact with these forcibly displaced migrants. Obviously, they do not want to become the target of national prejudices."

Göc-Der 2002, pp.32-33-III

"Being unable to integrate with the settled groups of the cities or public and local administrators's failure in estimating the extent of such a mass-displacement and its consequences, not employing any settlement policy for the large migrant population are important factors leading the migrants use their own possibilities and kinship relations in settling in their new living environments. This resulted in considerable destruction in the urban structure and brought about a 'multi-structural' urban space. In many places, except for agricultural activities, migrants tend to maintain their former ways of life and this divided the urban space into different parts by 'unseen borders'. The migrant population concentrated in certain regions of the cities; the settled population could not absorb the huge migrant population. Thus, rather than an integration with the settled population, new divisions and segregation emerged within the urban space.

See also, "[Turkey: Treatment by Turkish authorities of Kurds who assert their Kurdish identity...](#)" Immigration and Refugee Board, Canada, May 2003

Culture

Limited broadcasting in Kurdish allowed, but other restrictions on minority languages in public arena remain (2007)

- The government maintained restrictions on the use of Kurdish and other minority languages in radio and television broadcasts

US DOS, February 2007

"The government maintained significant restrictions on the use of Kurdish and other minority languages in radio and television broadcasts. RTUK regulations limited minority-language news broadcasts to 45 minutes per day; however, RTUK ended time restrictions for minority-language cultural shows or films. Previously such broadcasting was limited to 45 minutes per day and four hours per week for television broadcasting, and 60 minutes per day and five hours per week for radio. RTUK maintained that its regulations require non Turkish radio programs be followed by the same program in Turkish and that non-Turkish television programs have Turkish subtitles.

Start-up Kurdish broadcasters reported that these were onerous financial obligations that prevented their entry into the market. The state-owned TRT broadcasting company provided limited national programming in Kurdish and three other minority languages.”

HRW, January 2007

“The Supreme Council for Radio and Television finally took the important step of permitting television and radio broadcasting in Kurdish, although only for one hour a day. Other restraints on minority languages in the public arena remain. In April, for example, a Diyarbakir court closed the Kurdish Democracy Culture and Solidarity Association (Kürt-Der) for infringing the Associations’ Law by conducting its internal business in Kurdish.”

European Commission calls on Turkey to significantly improve minority rights (2006)

- The European Commission found that little progress was made in respect for and protection of minorities
- A number of reforms were adopted since 2002

EC, 6 November 2006

“Overall, Turkey made little progress on ensuring cultural diversity and promoting respect for and protection of minorities in accordance with international standards. [...] As regards *fundamental rights*, limited legislative progress was made, while implementation of reforms of previous years continued. Turkey needs to significantly improve the situation of fundamental rights in a number of areas and address the problems that minorities are facing.”

EC 5 November 2003, pp. 37-38

“With regard to cultural rights, the sixth reform package introduced a number of changes. As previously indicated [...] it provided for radio and television broadcasting in languages and dialects traditionally used by Turkish citizens in private stations, as well as by the public broadcaster. The Civil Registry Law was amended to permit parents to name their children as they desire, provided that such names are considered to comply with ‘moral values’ and do not offend the public. The reference to ‘politically’ offensive names, has been removed from the law. However, a circular was issued in September 2003 restricting the scope of this amendment by banning the use of names including the letters q, w and x, commonly used in Kurdish.

The fourth reform package amended Article 6 of the Law on Associations by giving associations the possibility of using foreign languages in their non-official correspondence [...]. The use of languages and dialects other than Turkish in the areas of film, the arts, festivals, cultural events and radio broadcasts is nevertheless still subject to legal restrictions and judicial prosecution. However, there has been a degree of relaxation: judicial procedures and administrative sanctions against petitioners for optional Kurdish language courses at university level have been dropped; various cultural festivals with the participation of Kurdish music groups have taken place and a wide range of religious books and cassettes in Kurdish have been provided by publishing companies.

No progress was made on the implementation of the August 2002 reform package on the learning of the different languages and dialects traditionally used by Turkish citizens in their daily lives. A number of applications to establish such language courses have been rejected by the authorities on the grounds that the curricula focus on culture and history and not on language teaching. Moreover, there are certain stringent regulatory requirements, which in practice prevent the classes from being established. These relate, in particular, to the nationality and the qualifications required from the teachers, as well as to the level of education required from the students.

The seventh reform package eased restrictions on the location of teaching establishments. It also amended the legislation on teaching of foreign languages and learning of different languages and dialects by prescribing that the Council of Ministers alone will regulate and decide which languages are to be taught (without having to get the approval of the National Security Council). A regulation is to be issued in order to implement the amended law.

When ratifying the UN Covenant on Economic, Social and Cultural Rights, Turkey issued a reservation to Article 13 paragraph 3 and paragraph 4 concerning the right to education. As a result, the scope of parents' right to choose schools for their children (other than those established by the public authorities) and to ensure the religious and moral education of their children (in conformity with their own convictions) has been limited."

PROPERTY ISSUES

General

UN Expert commends Compensation Law, but points to concerns related to its implementation (2006)

- inclusion of victims of counter-terrorism measures in the scope of Compensation Law commendable
- inconsistencies in the implementation of the law carry risks of discrimination against certain applicants
- vulnerable groups without access to information risk being omitted by the compensation process.

UN, 16 November 2006:

"Implementation of the law

The Special Rapporteur commends the inclusion of victims of counter-terrorism measures in the scope of the beneficiaries of the Compensation Act. However, there have been complaints about inconsistent implementation of the Act: official statistics show that, with 181,147 applications filed under the Compensation Act in the whole country, by April 2006, 18,612 cases had been concluded. Among the concluded cases, there were 11,123 rejections. In Diyarbakir Province, where a large number of cases has been decided since autumn 2005, there were many fewer rejections and the sums awarded were more than double the average, which suggests that better use of the potential of the act might have been made than other provinces. However, there were also indications that the sums awarded in different provinces varied widely and that some provinces paid out larger sums than Diyarbakir. The above demonstrates the lack of consistency in implementing the act, which means that the chances of victims in different parts of the country of receiving compensation are unequal. Such inconsistent implementation not only carries the risk of discriminating against certain applicants, it also means that IDPs might perceive the process as being biased. Similarly, the Special Rapporteur received allegations of inconsistencies with regard to the admissibility of claims.[...] A related issue of concern is that there is no appeal for decisions of inadmissibility. Composition of the loss assessment commissions and the appeal process

The loss assessment commissions are chaired by Deputy Governors and mainly consist of officials from government authorities (six out of seven members). The members may include representatives of the Ministry of the Interior, whose officers may have been involved in the acts for which compensation is being awarded. The only non-governmental representative is an attorney appointed by the local bar association. The Commissions work in the premises of the Governor, which reinforces the impression that they are part of the executive. The loss assessment commissions as such do not have an appeal instance.

However, in cases of disagreement, a case can be brought before the administrative court, and appeals can be made to the Council of State. These legal proceedings constitute an entirely new process, which - as officials admit - is extremely slow and few people want to wait so long for the money to be paid out. If an applicant accepts an offer from the loss assessment commission for compensation, this means that no other remedies can be pursued.[...]

The mechanism under the Compensation Act offers pecuniary compensation, including for damage to the life and body of the person.[...] An innovative aspect is that article 7 (c) provides for compensation for the time during which displaced persons were unable to access their homes and lands (including lost revenues). The act does not foresee any compensation for the “moral damages”, contrary to the jurisprudence of the European Court on Human Rights.⁷ Many victims may feel that this means that the State does not acknowledge the trauma experienced by them. Whereas the Special Rapporteur is aware of the fact that, in legal terms, the compensation procedure in no way precludes criminal liability, some of his interlocutors voiced the concern that the ultimate aim of the Compensation Act is to “replace” the process of bringing to justice the State actors who committed human rights violations while evacuating or even destroying villages and settlements.

Access to loss assessment commissions

Reports indicate that some vulnerable groups who do not have constant access to sources of information through broadcast and print media risk being omitted by the compensation process. This may include women, single mothers, children, the elderly and handicapped, if information on the act and how to file claims is not widely available and conscious efforts are not made to reach out to such groups.”

EU Progress report outlines problems relating to compensation law (2006)

- Divergences in methods used by compensation commissions
- Payments of amounts due slow
- Concerns about the level of compensation
- Conditions on eligibility for compensation could leave a large number of potential beneficiaries outside the scope of law
- Heavy burden of proof on applicants

EC, 8 November 2006, p. 22

“In spite of the ECtHR ruling in the *Içyer vs. Turkey* case of January 2006, the implementation of the Law on Compensation of Losses Resulting from Terrorist Acts raises several concerns. Overall, there seems to be divergences in the methods used by the compensation commissions. They have large discretionary powers and procedures are often cumbersome.

As a result, the payment of the amounts due is slow. There are concerns about the level of compensation. Furthermore, the conditions attached to the eligibility for compensation could leave a large number of potential beneficiaries outside the scope of the Law. There is also a heavy burden of proof on applicants to provide documentation, including property titles, which in many cases have never existed.”

Human Rights Watch report finds deterioration in implementation of compensation law since İçyer decision (2006)

- Arbitrary reductions and/or denial of compensation to the displaced
- HRW urges the Turkish government to suspend the commission and revise operating methods
- ECHR’s finding that Compensation Law is effective domestic remedy causes dismissal of 1,500 cases and brings about deterioration in the implementation of the Law

- The report outlines methods used by damage assessment commissions to reduce or avoid payment

HRW, 14 December, 2006

“Although a compensation law aimed at providing fair and appropriate redress to the displaced was adopted by the Turkish parliament in 2004, provincial assessment commissions have arbitrarily and unjustly reduced compensation amounts or denied compensation altogether to those displaced during counterinsurgency operations in the 1980s and 1990s. Human Rights Watch urged the Turkish government to suspend the commissions until their operating methods can be revised.

‘Turkey’s compensation law offered hope that the government would finally compensate hundreds of thousands of displaced people for their losses at the hands of the military,’ said Holly Cartner, Europe and Central Asia director at Human Rights Watch. ‘Now these displaced villagers have been victimized yet again by the arbitrariness of a compensation process that was supposedly established to help them.’ [...]

Provincial assessment commissions travel to remote villages to evaluate families’ loss by examining the rubble of torched homes and scarce paperwork. The sums proposed by assessment commissions had never fully compensated displaced persons for the losses they had suffered. But until this year, the sums in some cases were comparable with compensation sums for displaced families ordered by the European Court for Human Rights. This all changed in January, when the court rejected the application of a Tunceli villager in *Içyer v. Turkey* on the grounds that the Compensation Law was an effective domestic remedy. Thereafter, the more than 1,500 cases pending before the court were dismissed on the grounds that the applicants had not exhausted the effective domestic remedy provided by the Compensation Law.

Since the European Court for Human Rights announced its decision in the İçyer case, there has been a noticeable deterioration in the implementation of the Compensation Law. Increasingly, damage assessment commissions appear to apply arbitrary and unjust criteria in calculating compensation, resulting in absurdly low compensation amounts in many cases. These calculations consistently seem to favor the government and appear to be biased against the victims of government abuse.

‘A compensation process to benefit the displaced has now become a way to relieve the state of its liability,’ said Cartner. ‘The derisory sums offered are not only unjust, but they also undermine any possibility for the villagers to rebuild their lives.’

In a briefing paper submitted to the Turkish government today, Human Rights Watch listed some of the methods used to drive down compensation payments: calculating house values on the basis of values for cowsheds; underestimating the extent of landholdings; and arbitrarily excluding any payments for livestock – in a region where animal husbandry was the main industry. The Compensation Law provides no viable opportunity to appeal assessments, and the mainly Kurdish peasants have no alternative but to accept whatever is offered.”

The report outlines methods used by damage assessment commissions to reduce or avoid payment, including

- o House price scales manipulated to reduce property values
- o Arbitrary reductions in valuations
- o Underestimation of land holdings
- o Insufficient compensation for orchards
- o Exclusion of stock and stockkeeping
- o Exaggeration of compensation or assistance already received
- o The single-person “rule”

- o The “rule” concerning children born away from the village
- o Exclusion of applicants displaced prior to July 1987
- o 1999 closure of conflict “rule”
- o Exclusion of rent from conciliation payments

See full report by HRW, [Unjust, Restrictive, and Inconsistent. The Impact of Turkey's Compensation Law with Respect to Internally Displaced People](#) (December 2006)

MRG raises serious concerns on the implementation of the Compensation Law (2006)

- MRG raises problems with the letter of the law coupled with serious implementation issues

MRG, 2006, pp.12-14

“Statute 5233 was unquestionably an important and positive step righting patterns of grave injustice, but NGOs nevertheless had some criticisms of it, which they raised while the law was in draft form.[...] After partial amendments in response to these criticisms, the law entered into force with serious defects in its text and subsequent implementation.[...]”

...In addition to problems in the actual text of the law, current implementation is proving unsatisfactory in a number of respects:

- The level of compensation proposed by the Commissions in most cases does not correspond to the damages actually suffered.[...] In some cases, there are wide discrepancies in levels of compensation ruled by different Commissions for comparable losses.[...]
- Some Commissions are acting arbitrarily in their assessment of applications. This has become more pronounced since the İçyer judgment. On 12 January 2006 the Third Chamber of the ECtHR gave an inadmissibility judgment in the application of Aydın Çıyer v. Turkey.[...] The Court took the view that the Damage Assessment Commissions established under statute 5233 provided a reasonable and effective domestic remedy in spite of problems with the law and its implementation and that the complaint could therefore be referred to the relevant Commission. It has been clearly noted that the İçyer judgment has had a negative effect on the operation of the Commissions.[...]
- It has been frequently observed that while Damage Assessment Commissions go to great lengths to procure, from various sources, documents that challenge displaced people's claims, they do not show the same diligence in collecting evidence that supports such claims.
- Applicants are sometimes coerced into accepting compensation figures on the basis that if they do so, their application will be dealt with sooner.
- Displaced people represented by an attorney are sometimes encouraged by Commission officials to dismiss their legal counsel.
- The Commissions often operate in a partial manner. Conciliation proposals are prepared unilaterally by the Commissions, and neither displaced people nor their legal counsel are included in the preparatory stages.
- Lawyers are prevented from inspecting the files. Commissions do not respond to written statements and requests submitted applicants or their attorneys.
- Conciliation 'proposals' are presented to the applicant or their attorney as a fait accompli and amendments are not accepted. When counterproposals are suggested, the Commission treats these as a de facto rejection and the file may then be subject to endless delays and postponements. Site surveys are usually carried out in an irregular manner, contrary to proper procedures. [...]
- When conducting surveys, the Commissions frequently make no effort to establish the circumstances in which the damage took place. Lawyers are frequently not notified that surveys are to take place.
- Applicants are sometimes not notified of surveys, and it has been reported that in some cases Commission staff carrying out surveys ignore applicants' statements.

- Experts serving on Commissions are given unduly broad powers of discretion, and in some cases these powers have led to arbitrary practices.
- The issue of ownership and land registration has been a significant difficulty. In villages where the Land Registry Office has carried out a cadastral (i.e. land registry) survey after the date of application and before the Commission's site survey, lands which the villagers have used, cultivated and harvested, have reportedly been recorded as Treasury land or national forest. During site surveys Commission officials ignore the disputed status of the landholding and rely exclusively on the cadastral map. Where land is marked as Treasury land or national forest on such maps, villagers' statements are flatly ignored and a substantial further loss of property is inflicted.[...] This practice is in reach of ECtHR precedents to the effect that land registry records cannot be regarded as the sole test in assessing ownership."

Concerns related to the Compensation Law and its implementation (2006)

- There is concern that the commissions assessing claims lack independence—they are composed of five state employees and one NGO representative
- The Interior Ministry the state will be giving the compensation, yet most displacement occurred at the hands of state forces who work within the Interior Ministry
- Limitations in who may receive compensation may unfairly exclude certain IDPs
- There is no system of protection for witnesses who provide information, many of whom may fear reprisals if they implicate security forces or village guards in house destruction and forced evacuation
- Damage assessments made so far have been conditional on contemporary documentary, particularly official documents, leaving most IDPs automatically ineligible for compensation
- The law excludes payment of compensation for suffering and distress
- The law contains no provision for legal aid to assist applicants in preparing their claims, or assessing an amount of compensation proposed by a commission
- The Commission does not have the capacity to address the expected volume of claims
- There is concern that no allocation has been made in the government budget for payments under the Compensation Law, and that the law provided no time limit for the government to settle agreed claims
- No appeals mechanism has been included in the law to challenge the amount of compensation awarded or for those who miss the deadline for applications

IDMC/TESEV Special Report, June 2006

"The shortcomings in the Compensation Law and the problems in its implementation undermine its significance. The time-scale and scope of the law should be extended so as to cover all IDPs who were forcibly evicted or were obliged to flee due to the armed conflict. The law should be amended to provide non-pecuniary damages in accordance with European Court of Human Rights (ECtHR) case law, in order to compensate the pain and suffering of IDPs whose rights to life, liberty and security, and property have been violated. The government should initiate a public information campaign on the law in Turkish and Kurdish, in collaboration with NGOs and local administrations. The Turkish Bar Association and local bar associations should advise their members on codes of professional conduct and monitor their implementation of the law. The commissions should be allowed to determine all types of damages on a case-by-case basis, taking into account the subjective circumstances of each case. The two-year period for evaluating petitions should be extended to a more realistic timeframe. To ensure unity in implementation, the government should develop a clear position on the law; send the commissions binding implementing guidelines and instruct them not to abide by strict formal evidentiary rules in processing claims; and cooperate with civil society to provide training not just to the governors

and their deputies, but to all members of the commissions. As a first step, the government should publicly express its political support for the effective and just implementation of the law. The Commissions should not attribute evidentiary weight to the information provided by the *jandarma* (security forces). An administrative appeal body should be set up to evaluate the decisions of the commissions within a time limit of two-three months. To ensure their access to courts, IDPs should be exempted from legal fees in administrative courts and be provided with legal aid upon need. The structure of the commissions should be changed in favour of a balanced representation of civil society and the public sector. The commissions should be professionalised, their numbers should be increased, and their working conditions should be improved.”

TOHAV, February 2006

“On 25 February 2006 a meeting was held at the headquarters of TOHAV (the Foundation for Social and Legal Studies) to discuss Law 5233 and the European Court of Human Rights (ECtHR) judgment in *Aydın Döçer v Turkey*. Participating were TOHAV Director Sehnaz Turan; Meral Danis Bestas, Board Member of Diyarbakir Bar; Mahmut Kaçan president of Agri Bar, Baki Boga, Board Member of the Istanbul Branch of the Human Rights Association, Jonathan Sugden of Human Rights Watch, Meryem Kavak of Goc-Der, and TOHAV members M. Selim Okçuoglu, M. Ali Kahraman, Dnan Akmeşe, Yasar Aydın, Hakan Gündüz as well as the lawyers M. Ali Kirdök, Hasan Kemal Elban, Ayşe Bingöl and Hasip Kaplan.

The meeting reached the following conclusions:

Law 5233 is not effective in meeting the needs of Turkey’s internally displaced. · Obstacles and limitations in the law and associated regulations exclude a substantial number of victims from compensation. For example, village evacuations before 1987 are not covered by the law. · The law does not provide mechanisms to tackle return issues such as lack of infrastructure, the village guard system, removal of mines etc. · The law contains no provisions for non-pecuniary compensation contrary to established precedent at the ECtHR.

The structure and working methods of damage assessment commissions prevent them from providing just compensation.

Out-of-court settlements are imposed on the injured parties”

[Click here for the full report](#)

EC, 10 October 2004, p.50

“A Law on Compensation of Losses Resulting from Terrorist Acts was adopted in July 2004. This represents recognition of the need to compensate those in the Southeast who have suffered material damages since the beginning of the Emergency Rule period (19 July 1987). Although the criteria on which applications will be accepted and assessed may allow for the possibility of restricting considerably the scope of the law, provision is made for judicial recourse.”

HRW, March 2005, pp.28-34

Lack of independence in assessment commissions

The ability of assessment commissions to reach fair conclusions depends very much on whether they are principally motivated to award compensation to people who suffered damage during the relevant period or concerned more with reducing state liability for such claims. Clearly, with a membership of six state employees and just one nongovernmental representative, independence will be a problem. The lawyer Abdullah Alakus of the Bingöl assessment commission observed that an executive commission staffed with civil servants is not a particularly appropriate body to fulfill what is essentially a judicial process, and thought that there was a risk that injustices might result. [...] In most cases of internal displacement, state security forces working under the authority of the Interior Ministry inflicted the damage. The Interior Ministry will also be footing the bill. This conflict of interest may encourage assessment commissions to underestimate the extent of a loss or to suppress information about security force responsibility for damage during the displacement.

In some cases, the sums for damage and loss of income are very large. The lawyer Ahmet Kalpak, president of the Diyarbakir branch of Göç-Der, described a client whose loss amounted to 16,000 poplar trees and 1,000 fruit trees destroyed by fire. At a conservative estimate of \$24/tree, the value of the poplars alone would be \$384,000. [...] The Diyarbakir lawyer Cihan Avcı described the case of a local farmer who was unable to access his fields of 2,000 hectares for a decade. The lawyer calculated that if sown with barley during that period it could have provided an income of five million dollars. [...] Civil servants may feel that disbursing large sums of state funds to displaced Kurds from the southeast, a group long viewed with official suspicion, is not going to advance their career, and may seek ways to force payments down unfairly. As detailed below, the law and regulation provide a variety of mechanisms that would permit such reductions.

Automatic exclusions from compensation

The law prohibits the provision of compensation to those who damaged their own property; for damage arising from offences under the Anti-Terror Law committed by the claimant; and for 'damage arising from economic or social factors not connected with terrorism.' [...] In some cases, these ostensibly justifiable reservations may result in unfair exclusions.

If there were any official records of the destruction of villages, they would have been kept by local gendarmerie units who were in most cases responsible for the displacement. It is not known whether such records exist or what they might contain, but in order to cover up their abuses, it is possible that gendarmes may have recorded that villagers destroyed their own property intentionally or negligently. In some cases, gendarmes forced villagers to destroy their own property. Çiftlibahçe villagers, for example, told Human Rights Watch that gendarmes made them pull up their extensive and valuable tobacco crop with their own hands.[...]

The destruction of a village generally followed frequent large scale security operations in which the males of the village were detained and interrogated under torture, and then tried in state security courts for 'sheltering members of an armed organization.' The pattern of torture and unfair trial was extensively documented by nongovernmental organizations and in judgments at the European Court of Human Rights. As a consequence of these judgments, state security courts were abolished in June 2004. Automatic exclusion of an applicant simply on the grounds of a conviction in a state security court for 'sheltering' would be unfair.

After the Return to Village and Rehabilitation Project was established in 1999, villagers who wanted to apply for assistance were required to sign a special printed form, and tick a box indicating the reason for their original migration, choosing alternatives ranging from 'employment' and 'health' to PKK-instigated 'terror.' There was no option for indicating that the reason was intimidation or forced evacuation by state forces. Many villagers resisted signing this form, and as a consequence some were threatened, beaten, and denied access to the village.[...] Ridvan Kizgin, president of the Bingöl branch of the Human Rights Association, believes that some villagers may have checked boxes indicating social or economic reasons simply to regain access to their property. [...] Automatic exclusion on the basis of these unreliable documents would be unfair.

Inappropriate limitations on acceptable forms of evidence

The implementing regulation for the Compensation Law requires that information about the extent of damage should be collected from 'public bodies and organizations,' [...] 'the declaration of the person who has suffered the loss, and information from judicial, administrative and military bodies.' [...] It also states that, in cases of property damage, assessment commissions will work on the basis of 'incident reports describing how the damage occurred and its extent...and all forms of document relating to the assessment of damage.' [...]

Since the testimony of fellow villagers who were eye-witnesses to the destruction is potentially excluded from this list because such evidence is not mentioned explicitly in the regulation, the

testimony of the muhtar (the government representative elected in all villages) will be critical. There is, however, a long history of muhtars being subjected to various forms of pressure by gendarmerie and governors. At the peak of the displacements, several muhtars were murdered. Mehmet Gürkan, muhtar of Akçayurt in Diyarbakir province, forcibly evacuated on July 7, 1994, held a press conference and reported that gendarmes had tortured him to tell television journalists that the PKK had destroyed his village. In fact, he said, security forces had burned Akçayurt. When he returned to the village a month later an eye-witness saw soldiers detain him and take him away in a helicopter. He was never seen again. [...] Since that time, pressures ranging from threats of violence to withdrawal of official favour and funding have remained common. As a result, some muhtars may be reluctant to provide evidence to the commissions concerning the destruction of villages by state security forces.

Assessment Commissions should be aware that witnesses who give evidence may fear reprisals if they implicate security forces or village guards in house destruction and forced evacuation. Commissions should offer appropriate protective measures for witnesses, and investigate thoroughly any allegations of intimidation.

The regulation requires assessment commissions to use documentary evidence to establish the nature and extent of damage. In its initial work, the Bingöl assessment commission appears to be taking an approach which may result in unfairly restrictive assessments. The lawyer Abdullah Alakus, bar association representative on the commission, told Human Rights Watch that the provision of documentary evidence was being treated as a requirement for damage assessment. The commission expected some form of certification of displacement, and an incident report on the destruction of property. [...] But applicants had no such documentation. They had initially tried to obtain documents from the gendarmerie who had refused to issue them. Alakus emphasized that the assistant governor presiding over the commission had made positive and constructive efforts to resolve this by writing to the gendarmerie asking that they make any documentation available, but Alakus added that he doubted that the documentation the commission was looking for existed at all. All of the villagers Human Rights Watch interviewed in Bingöl province said that they had been forced out of their homes by the gendarmerie, and it seems unlikely that the gendarmerie kept an accurate record of their own unlawful acts. Making damage assessments entirely conditional on contemporary documentary evidence, particularly if the preference is for official documents, will leave the vast majority of IDPs automatically ineligible for compensation.

No compensation for suffering and distress

In judgments against Turkey for house destruction, the European Court of Human Rights has ordered what it describes as non-pecuniary damages as compensation for the suffering and distress of the plaintiff and their family in consequence of the violation. In *Akdivar v Turkey*, for example, it awarded £8,000 in non-pecuniary damages to each plaintiff. [...] The Compensation Law excludes the payment of compensation for suffering and distress. This distress was substantial for IDPs who saw their homes and crops burned and their livestock machine-gunned, quite aside from the ill-treatment, torture, and 'disappearances' which often accompanied the clearances.

That IDPs have suffered psychological trauma is well documented. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression. [...] Another survey recorded that 9.5 percent of displaced were suffering from mental illness arising during or after displacement. [...]

Lack of legal support for applicants

The Compensation Law contains no provision for legal aid to assist applicants in preparing their claims, or assessing an amount of compensation proposed by a commission. It expects poorly educated farmers from a region with 35 percent illiteracy to assemble comprehensive and

complex documentation in order to establish their eligibility for compensation. [...] Unsurprisingly, the standard of applications is poor. The lawyer and commission member Abdullah Alakus told Human Rights Watch that most of the petitions received by the Bingöl assessment commission were improperly submitted.[...]

The Sezgin Tanrikulu, president of the Diyarbakir bar association, and Erdal Aydemir, president of the Bingöl bar association, have strongly criticised the Compensation Law for failing to include any provision for representation by a lawyer to the commission. [...] In fact, some villagers have appointed lawyers to handle their claims. Others have asked for their applications to be handled by the Human Rights Association or Göç-Der in spite of official advice to community leaders not to involve nongovernmental organizations. A group of muhtars in the Genç district of Bingöl province told Human Rights Watch that the local sub-governor had called them to a meeting where he suggested that they help villagers to apply independently rather than with the assistance of civil society organizations.[...]

Limited capacity to process claims

It seems likely that the commissions—if they take their work seriously—will be overwhelmed by the volume of work. By November 2004, for example, the Bingöl assessment commission had received 3,000 applications, and expected up to 10,000. It had completed four meetings and looked at (but not necessarily resolved) 150 cases. [...] The Compensation Law requires the commission to complete its work on each application within nine months. At this rate, it will take five years to examine the full 10,000 claims made in Bingöl. This situation is likely to be mirrored elsewhere, particularly since commission members who have other jobs can only work part-time.

Lack of clarity regarding payments

The Diyarbakir and Bingöl bar presidents have both expressed unease that, to their knowledge, no allocation has been made in the central government budget for possible payments under the Compensation Law, and that the law provided no time limit for the government to settle agreed claims. [...] They also raised concerns as to whether the requirement in the legislation that payments of more than 20,000 YTL (\$15,000) require Interior Ministry approval is likely to cause delays or obstruct payments, particularly since most claims are likely to exceed that figure.

Inadequate appeals mechanism

There is no appeals mechanism built into the Compensation Law, either to challenge the amount of compensation awarded or for those who miss the deadline for applications. However, it is open to an internally displaced family to bring an action directly against the government through the courts.

In order to find for a claimant, the court must be satisfied that the state is criminally liable for the damage suffered, and that the sum proposed by the commission is insufficient to cover that damage. However, it is unlikely that assessment commission rulings will conclude any criminal liability on the part of the state, and villagers will therefore have to prove such liability in court, as well as demonstrate the need for a higher level of compensation. Moreover, villagers will have to pay a substantial sum to pursue their court challenge, a factor likely to discourage many from going to court.

The risks are illustrated by the story of the Kirkpinar village association. Kirkpinar was forcibly evacuated in 1993. The villagers brought a criminal action against the state for the destruction of their homes, but the court ruled that the villagers themselves, and not the state, was responsible for the damage. The villagers then planned to bring an action in the local administrative court for compensation for their lack of access to their homes and lands in the subsequent decade. They prepared 260 files in respect of losses between \$35,000 and \$55,000. However, under the rules of the administrative court, each plaintiff was required to pay into court approximately U.S. \$1,000 before the action could go ahead. In the event that the suit is unsuccessful, the court will seize the

deposit to meet costs. This is a nearly prohibitive sum for IDPs who are already close to destitute. The Kirkpinar villagers were relieved when, just as they were deliberating this grave step, parliament passed the Compensation Law.[...]

Any Kirkpinar villager with a strong case for substantial compensation that is not recognized by the assessment commission, and whose claim was unfairly rejected by the administrative court might be able to bring an action at the European Court of Human Rights. However, given the inevitable delays of law and administration, it seems likely that yet another decade would have passed before justice was done.

These villagers cannot afford to wait. They need to get back to their lands with sufficient capital to re-establish their homes and livelihoods. By far the most practical and satisfactory result would be to ensure that the assessment commissions operate fairly, with an adequate mechanism for appealing against their decisions. Ensuring this will require great vigilance throughout 2005 from the Turkish Interior Ministry, villagers' legal representatives, nongovernmental organizations, intergovernmental organizations involved in return issues and the E.U., which has asked Turkey to address the problem of internal displacement. In view of the critical importance of the Compensation Law, it would seem advisable for the government to conduct a review after provincial assessment boards have processed an initial group of assessments."

NGO's criticise draft compensation law (2004)

- In January 2004, the Justice Ministry forwarded the draft compensation law on damages as a result of terror or the fight against terrorism to the Prime Minister
- It is foreseen that a commission will be established to oversee its implementation
- The Dizarbakir Bar Association points out that the draft would only cover events in the past 10 years and that villages destroyed between 1989 and 1994 would remain outside the regulation
- Lawyer Mahmut Vefa also criticised the bill on the grounds that the Commission is planned to be composed only of officials, thereby excluding representatives of the victims and relevant NGOs
- "Damages" in the bill are also limited to material damages and do not take into account trauma and rehabilitation
- GÖÇ-DER chairwoman Sefika Gürbüz demanded that the draft should at least cover the last 15 years
- Ms. Gürbüz added that the victims had been put under pressure to sign declarations that the PKK or bad weather conditions were responsible for the destruction of their houses
- GÖÇ-DER has prepared an alternative bill which the organisation plans to try to present to the Ministry

HRF January 2004

"In January the Justice Ministry forwarded the draft law on Compensation of Damages as a Result of Terror or the Fight against Terrorism to the Prime Ministry. The draft provides for compensation of damages of individuals and institutions stemming from actiony described in Articles 1, 3 and 4 of the Law to Fight Terrorism and the fight against terrorism. The draft foresees the establishment of a commission to determine the amount of damages.

Lawyer Mahmut Vefa, board member of Diyarbakir Bar Association, pointed out that the draft would only cover events over the past 10 years and in particular the villages that were destroyed between 1989 and 1994 remained outside the regulation. Mahmut Vefa also criticized that only officials would be in the commissions and no representatives of the victims and NGOs were

included. The damages would only be restricted to material damages and not account for traumas and rehabilitation.

GÖÇ-DER chairwoman Sefika Gürbüz also demanded that the draft should at least cover the last 15 years. Under the current form mainly village guards and soldiers would benefit from the law. She added that the destruction of villages had never been admitted and the victims had been put under pressure to sign declarations that the PKK or bad weather conditions were responsible for the destruction of their houses. Mrs. Gürbüz reminded of a large number of cases at the ECHR and stated that her association had prepared an alternative draft that they would present to the Ministry, if she got an appointment."

See also reports included in sources below

Systematic destruction of properties and possessions continued through 2001 (2001)

- In most cases, evacuations of villages were followed by destruction of houses, crops and livestock by the security forces
- House demolitions and forced evictions have been reported as late as 2001 in the Sirnak province in south-eastern Turkey
- A report prepared by the Parliamentary Commission on Migration (1997) indicated that 3,423 rural residential units had been evacuated
- The Human Rights Association, a Turkish NGO, monitoring the situation has documented over 4000 evacuations
- Settlements of Turkish citizens of Kurdish origin were primarily targeted, ranking from individual dwellings to small villages
- In addition to destruction of houses, basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed
- The European Human Rights Court in Strasbourg released several judgements against Turkey regarding village destruction

HRA/OMCT May 2003, Sect.VI

"While the policy of house demolitions and forced evictions stopped in 1999, villages forced evictions were reported, in 2001, in the Sirnak province, South Eastern part of Turkey. The resurgence of new forced evictions following 1999, along with harassment and implementation of measures such as food embargoes, restriction on freedom of movement to go in and out of villages is of particular concern to HRA and OMCT.

A population of 600-700 villagers living in the villages of Asat (15 households) and Ortakli (30 households), located in the Sirnak province, have been evicted by the Turkish Security Forces on 20 July 2001. An investigation carried out by HRA in August 2001 highlighted that the forced eviction of the Asat and Ortaki villages could be related to a mine explosion that caused deaths and wounds of some soldiers during a military operation in July 2001. Interviews with villagers of Asat and Ortakli underlined that they had no relation with the mine explosion and that the whole area has been mined for some time, with mines being located at 25 or 40 kilometres from their villages.

The mission conducted by HRA in August 2001 reported that the 600-700 evicted villagers, whose majority are women, children and elderly people, were living nearby the Beytüşebap municipality borders in about 80 tents in destitute conditions characterised by poverty, deprivation, uncertainty and fear. HRA reported that the victims did not receive any health care service and that they were subjected to serious health problems. Testimonies from the victims

recorded that about 600 animals, beehives, orchards and garden were destroyed due to a lack of maintenance following their forced eviction, cutting the villagers' production veins."

HRA/OMCT May 2003, Sect.II

"The practice of house demolitions and forced evictions, resulting in massive forced displacement and destruction of villages, gained momentum during the 1990s and lasted until the end of 1999. They occurred on a large scale and were mostly carried out by the Turkish Security Forces and administrative authorities against the rural Kurdish population living in the South Eastern and Eastern region of Turkey.

According to the 1997 report prepared by the Parliamentary Commission on Migration, 3428 rural residential unites were evacuated. The Human Rights Association (HRA), which continued to monitor the situation until today, received many other applications by victims following 1997, allowing saying that around 4000 places of settlement were evacuated.

According to the annual balance sheets published by the Human Rights Association (HRA) (years 1994 to 1999), 1500 villages have been burned down and evacuated in 1994, 243 in 1995, 68 in 1996, 23 in 1997, 30 in 1998 and 30 in 1999. The statistical data released by the Immigrant's Association for Social Cooperation and Culture highlights that on a period running from 1970 to 2000, the bulk of forced displacement took place between 1990 and 1995 (71,6%), with the highest number of forcible displaced families (258) recorded for the year 1994. The same statistical data show that 98.8% of the locations where forcible displaced families come from have been located in the Eastern and South Eastern regions of Turkey. Overall, these figures clearly indicate that the demolition of houses and forced evictions are directly related to a massive forcible displacement of the Kurdish people out of their homelands.

During the period running from 1989 to 1999, besides the demolitions of houses, forced evictions and burning of villages, the use of highlands were banned and thousands acres of forestry were set on fire. Basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed in the evacuated villages. Gardens were destroyed, trees were cut down and most of the arable fields are no longer in use. The ban on the use of highlands caused the destruction of animal husbandry. Fields and possessions in the evacuated villages were seized by the village guards, or were destroyed.

People whose houses and villages were destroyed had to migrate to city centres in the region or to metropolitan areas in the West on their own without any support from the authorities.

Besides the loss of all their belongings, property and pecuniary resources, these people were often deprived of basic welfare facilities like shelter, job, health, and education in their new place of settlement, living under the level of poverty. Because of their identities, they were subject to many attacks and pressures in their new living surroundings."

HRW September 2000, "Contributing to Stability in the Southeast"

"According to the Turkish Parliament's Commission on Migration, 401,328 villagers have been displaced since 1984. Many other observers claim a much higher figure. The population of Diyarbakir, the regional capital, increased by 600,000 during the 1990s. In most cases, these villagers were not evacuated in an orderly fashion, resettled, or compensated. Rather, they were driven from their homes by security forces who left burned houses and destroyed crops and livestock in their wake. A large number of petitions have been filed with the European Court of Human Rights in respect of village destruction, and three important judgment have already been reached against Turkey. [1]

The findings of the European Commission on Human Rights in the Mentes case eloquently describe the officially sanctioned lawlessness that broke out all over southeast Turkey in the

1990s: 'The Commission considered that the burning of the first three applicants' homes constituted an act of violence and deliberate destruction in utter disregard of the safety and welfare of the applicants and their children who were left without shelter and assistance and in circumstances which caused them anguish and suffering. It noted in particular the traumatic circumstances in which the applicants were prevented from saving their personal belongings and the dire personal situation in which they subsequently found themselves, being deprived of their own homes in their village and the livelihood which they had been able to derive from their gardens and fields.' [2]"

Endnote 1: European Court of Human Rights, *Mentes and others*, November 28, 1997[7]; *Akdivar and others*, December 18, 1996; *Selçuk and Asker*, April 24, 1998.

Endnote 2: European Court of Human Rights, *Mentes and others*, November 28, 1996, paragraph 76.

COE 13 June 2001, para. 144

"During the military actions (1984-1999), the Turkish army is said to have evacuated and destroyed thousands [1] of settlements of Turkish citizens of Kurdish origin, ranking from individual dwellings to small villages, to prevent the PKK militants from finding refuge [2]. Rather than restoring these settlements, most of which were situated in remote and isolated areas, the Turkish authorities prefer to rebuild new villages in safer and more accessible places. In the area of Sirnak, six villages have thus been resettled whilst resettlement of five others was planned for the year 2000. The 2000-2001 Plan foresees also the construction of 4 boarding schools and 19 primary schools."

Endnote 1: On 28 July 1997, the Chairman of the TGNA Committee on Migration confirmed that 364 742 inhabitants of 3185 villages and hamlets had been forced out since 1990 in the framework of the fights against terrorism (Doc 8131, §17)]

Endnote 2: In a number of judgements, the European Court has ruled that some practices of the security forces in south-east Turkey, including the burning of houses, constituted violations of the European Convention on Human Rights.

National Property Compensation Law

Number of applications to compensation law reach 269,938 applications (as of June 2007)

Government of Turkey, 27 June 2007

"To date, a total of 269,938 persons have claimed redress under the Compensation Law"

US DOS, 6 March 2007

"The interior ministry reported that the review commissions had received a total of 255,339 applications for compensation under the law through December. The commissions have processed 48,723, approving 25,628, rejecting 16,837, and ruling that compensation had already been provided in 6,258."

EC, 8 November 2006

"The process of compensation is ongoing. The Damage Assessment Commissions established to process the compensation claims have so far received around 215 981 applications. Approximately 33 299 have been processed as of September 2006."

Time period for filling claims under Compensation law extended second time (2007)

**TERÖR VE TERÖRLE MÜCADELEDEN DOĞAN ZARARLARIN
KARSILANMASI HAKKINDA KANUNDA DEGISIKLIK
YAPILMASINA DAIR KANUN**

Kanun	No.
<u>5666</u>	<u>Kabul Tarihi:</u>
<u>24/5/2007</u>	

MADDE 1 – 17/7/2004 tarihli ve 5233 sayili Terör ve Terörle Mücadeleden Dogan Zararlarin Karsilanmasi Hakkinda Kanuna asagidaki geçici madde eklenmistir.

"GEÇICI MADDE 4 – Bu Kanunun yürürlüğe girdigi tarihten itibaren bir yıl içinde ilgili valilik ve kaymakamlıklara basvurmaları halinde, 19/7/1987 tarihi ile bu Kanunun yürürlüğe girdigi tarih arasında islenen 3713 sayili Terörle Mücadele Kanununun 1 inci, 3 üncü ve 4 üncü maddeleri kapsamına giren eylemler veya anilan tarihler arasında terörle mücadele kapsamında yürütülen faaliyetler nedeniyle zarar gören gerçek kişiler ile özel hukuk tüzel kişilerinin maddi zararları hakkında da bu Kanun hükümleri uygulanır.

Bu maddeye göre yapılan başvurular, başvuru tarihinden itibaren iki yıl içinde sonuçlandırılır. Bu sürenin de bitmesi ve başvuruların sonuçlandırılmamış olması halinde, Bakanlar Kurulu bu süreyi her defasında bir yılı asmamak üzere uzatabilir."

MADDE 2 – Bu Kanun yayımı tarihinde yürürlüğe girer.

MADDE 3 – Bu Kanun hükümlerini Bakanlar Kurulu yürütür.

29/5/2007

Parliament grants Damage Assessment Commissions more time to conclude their assessment of petitions (2006)

- Amendment to Compensation law which extended by one year the two-year period for the assessment of applications

**"THE LAW AMENDING THE LAW ON COMPENSATION OF LOSSES RESULTING
FROM TERRORIST ACTS AND MEASURES TAKEN AGAINST TERRORISM**

Law No. 5562 Adoption Date: 13/12/2006

ARTICLE 1 – The following interim article is inserted to the Law No.: 5233 on Compensation of Losses Resulting from Terrorist Acts and Measures Taken against Terrorism of 17.07.2004.

"INTERIM ARTICLE 3 – The term for the resolution of the application filed pursuant to interim article 1 hereof and to interim article 1 inserted to this Law with the Law No. 5442 dated 28/12/2005 , has been extended one year beginning from the end of the term for the resolution of the applications stipulated in the said articles. The Council of Ministers may extend this term further by not more than one year in each year should the applications have not been resolved by the end of that term."

ARTICLE 2 – This Law shall become effective on the date of promulgation of the same.

ARTICLE 3 – The Council of Ministers shall execute provisions of this Law."

15/12/2006

Reports of compensation paid to some displaced under new law (2006)

- Some progress with compensations, but unresolved issues remain
- The Turkish Daily News reports the first instances of compensation being paid under the new Compensation Law

BBC News, 31 March 2006:

"Ahmet is one of a growing number of villagers helped to return home by a new law on compensation.

The law was passed by the Turkish parliament two years ago, but the residents of Saklat are among the first to receive payouts. The legislation was enacted after the European Court of Human Rights was flooded with claims from Kurds in the south-east who lost their homes and their livelihoods in the fighting. Those applications have now been shelved, while the court watches to see how Turkey's own law is implemented.

Anxious to leave city life behind, Cuma Yalcin borrowed money to rebuild his house in Saklat a couple of years ago. He could not afford to replace the same rustic stones, so the new house is concrete, painted salmon pink. Builders are currently putting the finishing touches to a large barn for his cattle beside it. "Without the compensation money I would never have been able to build this barn," Mr Yalcin says. "The money really helped. It felt like dressing on a wound." There are grumblings of discontent even here.

Mr Yalcin says his cattle alone was worth three times the compensation he received for his property. Another neighbour is so furious at the low value placed on his home by the state assessment team that he has refused the cash. But the villagers are worried about more than bricks and mortar. [...] Almost every man here has a tale to tell of repeat arrests, interrogation and torture during the conflict. They were accused of supporting the PKK - though no charges were ever brought. Then torn from their land and their livestock, they were crammed into slums in nearby Diyarbakir. Everyday survival became a struggle.

The European Court paid compensation for moral and psychological losses. The Turkish law does not. "We will fight for damages for all the losses we suffered," Mr Yalcin says, sipping tea on the floor of his pink house. "After everything we went through in the village, our children started sniffing glue in the city; people became prostitutes out of poverty. The moral damage we suffered is so much more than our physical losses."

There are dozens of piles of rocks dotted around Saklat, marking the spots where families plan to rebuild their homes once their payments come through. They could have a long wait. Thirty-two thousand people have filed claims in Diyarbakir region alone: only 10% have been processed; other regions are far slower still. "We expect to have finished processing all applications by the end of May and complete all payments by August," explains the governor of Diyarbakir, Efkân Ala. He hopes the compensation will be seen as a positive gesture by the state. "We've only been slow so far because we've been working very carefully to avoid mistakes."

[...] Local lawyers call his estimate too optimistic. They say the law has improved greatly on paper - removing the need for claimants to provide detailed proof of damage, for example. But they still have serious concerns about its implementation. "The commission dealing with the claims is not neutral," argues Mahsuni Karaman of Diyarbakir Bar Association. "It is staffed by civil servants who work directly for the governor - and includes several members of the counter-terror department. These are the very people who inflicted damage on my clients in the first place."

Turkish Daily News, 27 August 2005:

"Mardin Governor Temel Koçaklar expressed hope yesterday that residents will be able to lead peaceful and prosperous lives far from terrorism, the Anatolia news agency reported.

The governor attended a ceremony held to provide the residents of the city with compensation for damages sustained as a result of terrorism. Nine people applied for compensation and received a total YTL 49,041.

Speaking at the ceremony Koçaklar said the Governor's Office had received 14,404 applications and that two commissions had examined all the files.

He said the commissions have made decisions on 478 claims, 62 of which were accepted, while 416 were rejected. Koçaklar said the commissions were examining the remaining applications."

Turkish Daily News, 28 June 2005:

"Diyarbakir Governor Efsan Ala has made the first compensation payments to victims of terrorism and an anti-terrorist campaign to five individuals whose gardens were damaged during a military operation against terrorist Kurdistan Workers' Party (PKK) members last year.

Speaking at the ceremony, Ala said they had received 17,000 applications for compensation since the law came into effect on July 27, 2004, noting that four commissions had assessed 350 of the cases and had awarded YTL 335,000 in 85 of them.

Metin Tekin, one of those being compensated, said he was prevented from entering his garden during the operation and as a result his vegetables had dried up. 'I have received YTL 300 for the damages I incurred, even though it was much more. The figure was calculated by an expert. There's nothing else I can do,' he said."

Turkish Daily News, 6 May 2005:

"Commissions formed to assess applications filed by victims of terrorism and anti-terrorist activities have dealt with 205 cases up until now and have awarded YTL 160,000 in damages in 65 cases. Some 140 applications were rejected."

Turkish Daily News, 28 July 2005:

"Inhabitants of the village of Gömeç in Hani have decided to withdraw their lawsuit at the European Court of Human Rights because they were awarded TL 1.6 trillion in damages by the local compensation assessment committee. [...]Deputy Governor Erol Özer told the Dogan News Agency they were about to come to an agreement with the inhabitants of another village, Saklat in Kocaköy. Özer said that 23,000 people had applied to the court on grounds that they had suffered from terrorism and anti-terrorism measures. He added that after evaluating 662 files, the court decided to pay 338 people TL 4.6 trillion in compensation..."

Time period for filling claims under Compensation law extended (2005)

- The law is extended one year, giving people the chance to claim compensation until 27 June 2006
- The Commission has only been able to review 1,500 of 69,832 applications so far reports the Turkish Daily News in June 2005
- Of these, only 342 have been approved

Permanent Mission of Turkey to the United Nations Geneva, 27 September 2005

"A decision has been taken to extend the deadline for application under this Law. This decision is expected to be incorporated into the Law by the Parliament in the next legislative session."

Turkish Daily News, 27 July 2005

“The Turkish government extended the law on compensation for damages incurred from terrorism and anti-terrorist efforts for another year on Monday to allow more time for claimants to submit their applications.

The law stipulates that applications be submitted to the governor's office of the province in which the incident occurred. The costs of processing the cases will be covered by the Interior Ministry and from special city administration budgets.

According to changes to the law, the extended deadline for compensation claims is now July 27, 2006.”

Turkish Daily News, 18 June 2005

“The extension is considered necessary because a commission tasked to oversee administration is far behind in processing claims.

Within almost one year, the commission could only review 1,500 of 69,832 applications, deciding to approve only 342. CNN said these numbers could be regarded as low by Europe's top human rights court.”

The application deadline amendment was passed by parliament on 28 December 2005 and came into effect in January 2006. Click on the Amendment in Sources below.

Overview of Law on Compensation for Damage Arising from Terror and Combating Terror (Law 5233)

- The Law on Compensation for Damage Arising from Terror and Combating Terror (Law 5233) was passed by the Turkish parliament on July 17, 2004
- The law is intended to provide compensation to displaced people for material damage caused between 1987 – 2004 by armed opposition groups and government security forces
- Commissions have been established at provincial level to investigate deaths, physical injury, damage to property and stock, and loss of income arising from inability of the owner to access their property between July 19, 1987, and July 17, 2004
- The commissions comprise of: a deputy provincial governor, five civil servants and a board member of the local bar association
- Damage assessment commissions will propose a figure for compensation on the basis of principles laid down in tables of compensation levels and, for damage to property, levels established in laws on compulsory purchase.
- The commission will deduct any state payments or benefits already received in respect of the losses, and produce a detailed account with a proposed figure for compensation
- A deadline of 20 days is imposed on applicants who wish to reject the Commission's proposal, upon which the claim will be counted as void
- Claimants have one year from the introduction of the law to submit their claims, and commissions must process claims within nine months
- Claimants can challenge the ruling in the courts if they regard the sum offered by the commission as insufficient

[Click here to read the english version of the Law on Compensation](#) (14 July 2004)

Background information:

[Click here for presentation outlining the terms of the law, presented by a representative of the Directorate General of Provincial Administration](#)

[Click here to access presentation by an international property expert on international standards and Law 5233 \(July 2006\)](#)

[See also another background paper: Observations on Turkey's Compensation Law in an International Context \(February 2006\)](#)

HRW, March 2005, pp.27-28

"The Turkish government's implementation during 2005 of its new Compensation Law will be a key test of its commitment to a new approach toward IDPs. Introduced as a reform to meet the political requirements for E.U. candidacy, the law is intended to provide compensation to displaced persons for material damage caused between 1987 and 2004 by armed opposition groups as well as by government security forces.

The Law on Compensation for Damage Arising from Terror and Combatting Terror (Law 5233) was passed by the Turkish parliament on July 17, 2004. Regulations for implementing the law were published in the Official Gazette on October 20, 2004.

Villagers interviewed by Human Rights Watch view the Compensation Law with a mixture of hope and trepidation. On the one hand, it offers the possibility of full compensation for material losses in the context of the displacement, potentially a far more powerful and effective mechanism for restitution than anything previously offered. On the other hand, the law and regulations provide ample scope for claims and payments to be avoided, minimised, and delayed.

The Compensation Law compensates for material damage inflicted by armed opposition groups and security forces combatting those groups. Damage assessment commissions established on a provincial level will investigate deaths, physical injury, damage to property and stock, and loss of income arising from inability of the owner to access their property between July 19, 1987, and July 17, 2004. The commissions comprise of: a deputy provincial governor, five civil servants responsible for finance, housing, village affairs, health, and commerce, and a board member of the local bar association. Damage assessment commissions will propose a figure for compensation on the basis of principles laid down in tables of compensation levels and, for damage to property, levels established in laws on compulsory purchase.

The commission will deduct any state payments or benefits already received in respect of the losses, and produce a detailed account with a proposed figure for compensation. The claimant may accept or reject the proposal. If the claimant rejects or fails to respond within twenty days, the proposal will be counted as void. Claimants have one year from the introduction of the law to submit their claims, and commissions must process claims within nine months. Although the mechanism lacks any internal appeals procedure, claimants can challenge the ruling in the courts if they regard the sum offered by the commission as insufficient."

COE Office of the Commissioner for Human Rights 19 December 2003, pp.31-32

"I should also like to emphasise the importance I attach to the declared commitment of the Turkish authorities to compensating the population for harm suffered during anti-terrorism operations. I fully understood the need for this during my conversations with representatives of civil society as well as with the representatives of the local authorities in Diyarbakir since it is local authorities that carry the heavy burden of caring for those who have had to leave their villages or lost their property during the state of emergency. I should like to encourage the authorities to redouble their efforts to enable displaced populations to return to their homes and to speed up the compensation process.

Moreover, we were informed that in spring 2000 the Government had submitted to the Cabinet a Bill on compensation for harm caused by the security forces during anti-terrorism operations which provides for the possibility of compensation without bringing judicial proceedings. Compensation would be awarded on the basis of assessments made by multilateral commissions with the participation of government civil servants and members of chambers of commerce and industry. The Bill provides that compensation will be awarded from a fund derived from various taxes. Compensation will be awarded for pecuniary loss, bodily harm or death resulting from anti-terrorism operations.

This Bill has not yet been passed by Parliament but Mr Gül said in his address to the Parliamentary Assembly of the Council of Europe on 27 January 2003 that the Government was putting the final touches to it.

I consider it equally essential for the Government to care for the victims of terrorist acts and their families, including by paying them compensation where necessary. The Council of Europe is studying the question of compensating victims of terrorism as part of an initiative at European level and I hope that this work will be completed as soon as possible for the benefit of everyone.”

European Court of Human Rights

İçyer v. Turkey: ECtHR rules that compensation law allows for provision of adequate redress (2006)

- Approximately 1 500 cases relating to the possibility to return to villages have been declared inadmissible by the Court following this decision

EC, 8 November 2006

“In relation to the situation in the Southeast, the ECtHR found in the İçyer v. Turkey [5] case that the Law on Compensation and Losses Resulting from Terrorist Acts provides adequate redress to the extent that it is undisputed that the applicant could today return freely to his village. Approximately 1 500 cases relating to the possibility to return to villages have been declared inadmissible by the Court following this decision. The reforms undertaken by Turkey in 2004 and 2005 have had positive consequences on the execution of judgments of the ECtHR. However, Turkish cases still represent 14.4% of the cases pending before the Committee of Ministers for execution control. [...] As regards the **situation in the East and Southeast**, progress has been made with regard to the compensation of losses resulting from terrorist acts. The ECtHR ruled that the compensation law allowed for the provision of adequate redress for persons who were denied access to their possessions in their place of residence.”

[5] Case of İçyer v. Turkey (Application no 18888/02).

UNDP, Rhodri Williams presentation, July 2006

“In the İçyer decision, when Law 5233 had been passed but not yet implemented in very many cases, the law was deemed to provide an effective remedy. This meant that applicants would have to try to pursue their rights using Law 5233 before the Court would consider the merits of their claims.”

ECtHR ruling established possession of land and property in the absence of title deeds (2005)

- The Court ruled in favour of the applicants in June 2004, forcibly displaced from their villages in the South east in the mid 1990s

EC, 9 November 2005

"In 2005 the Council of Europe also began to consider the case of *Dogan and Others v. Turkey*, [7] which concerns the issue of the return to villages in the Southeast. In June 2004 the ECtHR ruled in favour of the applicants, who had been expelled from villages in the Southeast in the mid-1990s. The ruling established possession of land and property in the absence of title deeds, which many displaced individuals from the Southeast do not have. A large number of similar applications against Turkey are currently pending before the Court."

[7] *Dogan v. Turkey* (Application nos. 8803-8811/02, 8813/02 and 8815-8819/02)

ECtHR judgements put displacement and property evacuations on the european agenda (2005)

- ECHR judgements in house destruction cases have since 1996 drawn national and international attention to the issue of forced displacement (25 per cent of all cases pending against Turkey) (2005)
- There are approximately 1,500 applications pending to the ECtHR regarding displaced persons
- On February 24, 2004 the European Court of Human Rights found the Turkish State responsible for disappearance, torture and village destruction in *Ipek v. Turkey*
- See also the case of *Dogan and others v. Turkey* (29 June 2004) where the Court found Turkey's failures to allow the applicants access to their homes to represent an interference with their rights
- On 24 July 2003, the Court found the Turkish State, among other violations, to be responsible for village destruction in *Yöyler v. Turkey*

EC, 9 November 2005

"There are approximately 1,500 applications pending to the ECtHR regarding displaced persons, which account for approximately 25% of all cases pending against Turkey."

Ipek v. Turkey

KHRP, 17 February 2004

"In one of its strongest judgments for many years, the European Court of Human Rights (ECtHR) has today unanimously found that two men must be presumed dead following their unacknowledged detention by Turkish state security forces, in violation of the European Convention on Human Rights (ECHR). The Court also ruled that soldiers had destroyed villagers' homes, belongings and livestock, in addition to further ECHR violations (*Ipek v. Turkey*).

The case was brought by KHRP on behalf of the applicant, Abdurrezak Ipek, concerning the disappearance of his two sons, Ikram and Servet Ipek, as well as the destruction of his family home and property by security forces. The incidents had occurred in the course of an operation conducted in his hamlet of Dahlezeri, near Lice, on 18 May 1994. He also maintained that no effective investigation was carried out concerning either his sons' disappearance or the destruction of his property.

The European Court held unanimously that Turkey had multiply violated the right to life, prohibition of torture and ill-treatment, right to liberty and security, right to an effective remedy and right to respect for the protection of property under the ECHR (Articles 2, 3, 5, 13 and 38(1)(a) of the ECHR and Article 1 of Protocol No. 1).

The application was declared admissible on the 14 May 2002. Because the facts of the case were in dispute between the parties, KHRP requested a fact-finding hearing to resolve the facts of the case. The European Court complied and appointed three delegates to take evidence from witnesses at hearings conducted in Ankara between 18 and 20 November 2002.

Kerim Yildiz, Executive Director of the KHRP, says, 'This is one of the strongest condemnations yet of the actions of the Turkish state security forces and the Government's responsibility for disappearances, torture and village destruction. We believe the fact-finding hearing and the European Court procedure has provided crucial and much needed investigation of these serious human rights violations, as well as providing answers to the relatives of the 'disappeared'. KHRP will continue to monitor the case to ensure the Government now accepts its obligation to execute the judgment.'

Yöler v. Turkey

KHRP 24 July 2003

"The European Court of Human Rights has today ruled that Turkish security forces deliberately destroyed a man's house and possessions, thus forcing his family to leave the village, in violation of the European Convention on Human Rights (*Yöler v. Turkey*).

The applicant, Celatettin Yoyler, was the imam (religious leader) of Dirimpinar, attached to the Malazgirt district in the province of Mus. Gendarmes raided his village and burned down his house on 18 September 1994, prompting Mr Yoyler to leave the village with his wife and children. The house and possessions of a further six villagers around him were also destroyed.

Over 3 million people were forced from their homes and over 3,500 settlements destroyed during a campaign by Turkish security forces that peaked in severity in the mid-1990s. The ECHR has condemned the practice in a series of cases brought on behalf of displaced villagers by KHRP.

The Court noted that his home had been burned down in front of members of his family, depriving them of shelter and support and obliging them to leave their home and family friends. This was held to have constituted a violation of the prohibition on inhuman and degrading treatment (Article 3).

The Court also held that there was no doubt that the acts also constituted grave and unjustified interference with the applicant's rights to respect for his private and family life and home, and to the peaceful enjoyment of his possessions, in violation of Article 8 and Article 1 of Protocol No. 1 of the Convention.

The Court concluded that the authorities had failed to conduct a thorough and effective investigation into the applicant's allegations. Furthermore, access to any other available remedy, including a claim for compensation, had also been denied to him, in violation of the right to an effective remedy (Article 13)."

See also : [Dogan and Others v. Turkey](#)

UNDP, presentation by Rhodri Williams, July 2006

"In the Dogan decision, before Law 5233 was passed, the Court found Turkey's failures to allow the applicants access to their homes to represent an *interference* with their rights. Because Turkey had not yet passed measures allowing compensation for these interferences, they were found not to be proportional to a legitimate aim, meaning that they were *violations*."

Other judgements are available on the [website of the European Court of Human Rights](#)

HRW, 30 October 2002

"Principle 7(3)(f) of the U.N. Guiding Principles states that the right of displaced persons 'to an effective remedy, including the review of such decisions by appropriate judicial authorities, shall be respected.' Villagers burned out of their homes should be able to seek a remedy under Turkish domestic law. Article 125 of the Constitution provides that 'All acts or decisions of the Administration are subject to judicial review.... The Administration shall be liable for damage caused by its own acts and measures.' However, Decree with the Force of Law No. 430 exempts the administration of the state of emergency governor from legal action concerning acts in the state of emergency region (and provinces neighboring the state of emergency region) where almost all displacements occurred. An exception is made for acts of destruction 'without justification' but given the reluctance of the judiciary to investigate abuses committed by the security forces, identified by the European Court of Human Rights, it would be easy for the state to use this defense, simultaneously branding villagers as 'terrorists' and leaving them in a worse position than if they had not gone to court in the first place. In addition, under the Law on the Prosecution of Civil Servants and other Administrative Officials, no prosecution can be opened against an officer of the state unless it has been authorized by the office of the local governor (who is also the security forces' chief within the province).

A further difficulty in opening litigation is that, as indicated above, officials avoid committing administrative acts to paper that might later form the basis of a court action. None of the villagers Human Rights Watch interviewed had received written documents stating that they could not return to their homes, and the few who had been told that they could return for short periods in order to cultivate their fields had received only verbal permission from the governor and gendarmes. [...] As for creating the basis for a legal action relating to property rights and establishing the fact that the authorities are not permitting people access to their property, this is simple: it can be done by sending a registered letter. [...] A small number of displaced peasants have successfully sought international justice as a remedy, through the European Court of Human Rights (ECHR). This has not yet opened their path homeward, but there is no question that the series of shock decisions in the ECHR were key factors in forcing the military to halt its program of destruction. In its 1996 ruling in *Akdivar and Others v Turkey*, the ECHR corroborated the open secret and confirmed that Turkish security forces were indeed guilty of house destruction. From that moment on, gendarmes knew that bullying indigent villagers might not be costfree.

The European Court is considering how to cope with its growing burden of work. The rapporteur of the Council of Europe Parliamentary Assembly's Committee on Legal Affairs and Human Rights, Erik Jurgens, has said that responsibility for the increasing burden must be attributed in part to 'the Committee of Ministers, which does not exert enough pressure when supervising the execution of judgments.' An evaluation group established by the Committee of Ministers indicated that a substantial factor in creating the overload is the burden of 'clone' or 'repetitive' cases, like the series of house destruction actions from Turkey.

Clearly, ensuring execution of judgments in such cases might cut down the volume of clone violations and so, clone cases. In view of the considerable flow of information from southeast Turkey, it is regrettable that the Committee of Ministers did not identify the systematic pattern of village destruction at an earlier stage and bring pressure on the Turkish government to desist. Meanwhile, applications at the ECHR continue to pile up.[...] The ECHR judgments in the cases of house destruction in Turkey were effective in putting the forced displacement of Kurdish villagers on the national and international agenda. But these cases represent just a small sample of a much wider pattern, and unfortunately, the follow-up mechanisms to halt the continuing violation and tackle that wider pattern are slow and cumbersome. In addressing Turkey concerning the cases of house destruction, the Committee of Ministers asked what steps have been taken to avoid repetition of this serious violation. The Committee's resolution and the Turkish government's response only recapitulate the confrontation that took place in the ECHR:

Turkey presented an outline of the remedies open to victims of house destruction, while the Committee of Ministers noted that impunity and the lack of effective remedies were continuing problems and encouraged the Turkish authorities 'to continue their efforts in order to ensure rapid reparation for the victims of violations of the Convention committed by the security forces.'

For many years there was no effective and accessible domestic remedy at the national level (2001)

- The Turkish Constitution and other domestic legal provisions require compensation for government actions causing loss of property or injury
- No proceedings can be brought against governors within the state of emergency area
- There is no example of compensation or prosecutions in cases of property destruction carried out by security forces, according to the European Court of Human Rights
- As a result of the situation of civil strife in southeastern Turkey, effective and accessible domestic remedies do not exist for complaints

HRW June 1996, Turkey's legal obligations

"Turkish domestic law provides that citizens must be compensated for government actions that cause them loss of property or injury. In proceedings before the European Commission of Human Rights regarding a case of alleged forced evacuation and burning of a village by government security forces, the Turkish government submitted as relevant law Article 125 of the Turkish Constitution, which states, 'The administration shall be liable for damage caused by its own acts and measures.' This is not restricted by any state of emergency or war, and does not necessarily require proof of a fault on the part of the administration. Article 1 of Law 2953 of October 25, 1983, states, moreover, that, 'actions for compensation in relation to the exercise of the powers conferred by this law are to be brought against the Administration before the administrative courts.'"

"If these laws were enacted effectively, the number of petitions to the European Commission of Human Rights would be greatly reduced."

ECHR 30 January 2001, paras. 37-39

"Provisions on emergency measures

1. Extensive powers have been granted to the Regional Governor of the State of Emergency by decrees enacted under Law no. 2935 on the State of Emergency (25 October 1983), especially Decree no. 285, as amended by Decrees nos. 424 and 425, and Decree no. 430.

2. Decree no. 285 modifies the application of Law no. 3713, the Anti-Terror Law (1981), in those areas which are subject to the state of emergency, with the effect that the decision to prosecute members of the security forces is removed from the public prosecutor and conferred on local administrative councils. These councils are made up of civil servants and are under the authority of the provincial governors who also head the security forces.

3. Article 8 of Decree no. 430 of 16 December 1990 provides as follows:

'No criminal, financial or legal responsibility may be claimed against the State of Emergency Regional Governor or a Provincial Governor within a state of emergency region in respect of their decisions or acts connected with the exercise of the powers entrusted to them by this decree, and no application shall be made to any judicial authority to this end. This is without prejudice to the rights of individuals to claim indemnity from the State for damage suffered by them without justification.'

According to the applicant, this Article grants impunity to the Governors and reinforces the powers of the Regional Governor to order the permanent or temporary evacuation of villages, to impose residence restrictions and to enforce the transfer of people to other areas. Damage caused in the context of the fight against terrorism would be 'with justification' and therefore immune from suit."

Akdivar and Others v. Turkey judgement, pp. 1211, 70

"Regard must therefore be had in this case to the situation which existed in south-east Turkey at the time of the events complained by the applicant, which was characterised by violent confrontations between the security forces and members of the PKK (see the *Mentes and Others v. Turkey* judgement of 28 November 1997, Reports 1997-VIII, p. 2707, §58). In such a situation, as the Court has recognised in previous cases, there may be obstacles to the proper functioning of the system of the administration of justice."

Selçuk and Asker v. Turkey judgment, p. 908, 68

"The Court recalls that, despite the extent of the problem of village destruction, there appeared in these previous cases to be no example of compensation being awarded in respect of allegations that property had purposely been destroyed by members of the security forces or for prosecutions having been brought against them in respect of such allegations. Furthermore, there had consistently been a general reluctance on the part of the authorities to admit that this type of practice by members of the security forces had occurred. The Government had provided no information since that would lead the Court to reach any different conclusion."

Selçuk and Asker judgment, p. 908, 70-71

"Accordingly, the Court finds that it has not been demonstrated by the Government with sufficient certainty that effective and accessible domestic remedies existed for complaints such as the applicant's. Having regard to the circumstances in which her house and property, along with others in her village, were destroyed, the Court considers it understandable if the applicant considered it pointless to attempt to secure satisfaction through national legal channels. The insecurity and vulnerability of the applicant following the destruction of her home is also of some relevance in this context."

ECHR 30 January 2001, paras. 45-48

"The Court concludes that there existed special circumstances which dispensed the applicant from the obligation to exhaust domestic remedies."

ECHR 16 September 1996, para. 70

"As regards the application of Article 26 to the facts of the present case, the Court notes at the outset that the situation existing in South-East Turkey at the time of the applicants' complaints was - and continues to be - characterised by significant civil strife due to the campaign of terrorist violence waged by the PKK and the counter-insurgency measures taken by the Government in response to it. In such a situation it must be recognised that there may be obstacles to the proper functioning of the system of administration of justice. In particular, the difficulties in securing probative evidence for the purposes of domestic legal proceedings, inherent in such a trouble situation, may make the pursuit of judicial remedies futile and the administrative inquiries on which such remedies depend may be prevented from taking place."

PATTERNS OF RETURN AND RESETTLEMENT

Return movements

National IDP Survey reveals majority of displaced wish to return (2006)

- More than half of the displaced wish to return to their areas of origin
- The others would prefer to remain and reintegrate
- Tens of thousands of IDPs have already gone back

Brookings-Bern Project on Internal Displacement, December 2006, pp.3-4:

“The Survey also demonstrates that more than half of the displaced citizens now wish to return to their communities. The others would prefer to remain and reintegrate into society in the place where they have been living for the past years. In accordance with the Guiding Principles, it is essential that Turkish citizens can make this choice freely, and that they receive the necessary support for their decisions. Finally, it becomes clear from the results that tens of thousands have already gone back to their communities of origin. According to the Survey, most returnees who were asked said that they were happy with the conditions they found back home. Yet the concerns of those who were not need to be taken seriously and to be addressed to the extent possible, so that they, too, are able to rebuild their lives.”

See also academic papers on resettlements in Turkey by Joost Jongerden [From Productive Power to Blunt Control: Theses on the technology of \(re\)settlements in Turkey and the Kurds](#) and [Contested spaces in landscapes of violence. Displacement and return in Diyarbakir at the turn of the 21st century.](#)

Study in Van province finds that a majority of IDPs assessed wish to return (2006)

- Safety and security primary reasons for migration
- Findings suggest there are strong trends of migration in the region, which was triggered by terror and related security issues and intensified within a short time period
- Developing alternative resettlement policies towards IDPs based on their differentiated choices and preferences necessary
- Over a half of respondents indicated their wish to return, on certain conditions

Emin Yasar Demirci, Places of displaceds, July-August 2006, p. 30-32:

“

TABLE 36: FREQUENCY OF VISITING OF THE VILLAGES SINCE MIGRATION

	Frequency	%	Valid %	Cumulative %
Never visited	160	27,5	43,5	43,5
Not visited because it is not permitted	20	3,4	5,4	48,9
Not visited because of security	3	,5	,8	49,7
Not visited because it is run down	11	1,9	3,0	52,7
Visited few times	136	23,4	37,0	89,7
Visited each summer	38	6,5	10,3	100,0
Total	368	63,3	100,0	
Not applicable	161	27,7		
Missing	52	9,0		
Total	213	36,7		
Total	581	100,0		

According to the table %52,7 of the displaced have never visited their villages since they fled and %37 have visited only a few times where as those who visit their villages on regular basis makes up only %10,3. Off the %52,7 that have never visited their villages %5,4 claimed that their visits were not permitted, %08 marked the security as their reasons and %3 gave the reason that their villages were run down after they fled. The majority of %43,5 gave no reason although they were given options in advance. This supports our claim that displaced persons were actually potential immigrants before their displacements. This claim is important to develop alternative resettlement policies towards displaced persons based on their differentiated choices and preferences. In this context, let us have a close look at seemingly the most preferred “back to village” choice. The responses to the question “if they wish or not to wish to return back to their villages they left” are shown in the table below.

TABLE 37: WISH TO RETURN OR NOT TO RETURN TO THE VILLAGE LEFT

	Frequency	%	Valid %	Cumulative %
Wish to return if economic support provided	116	20,0	33,9	33,9
Wish to return provided that the village rebuilt	80	13,8	23,4	57,3
Never wish to return	146	25,1	42,7	100,0
Total	342	58,9	100,0	
Inapplicable	170	29,3		
Missing	69	11,9		
Total	239	41,1		
Total	581	100,0		

As seen in the table, %42,7 of the participants never want to return back to their villages whereas %33,9 wish to return on condition that economic support is provided and %23,4 wish to return provided that their villages are rebuilt. In other words, those wishing to return their villages on certain conditions make up %57,3 of total responses. As we checked this responses with

question “if they still wish to return should any support not provided” %57,9 changed their mind in favor of not to return whereas %42,1 insisted on their decision of return.”

Many returns tend not to be permanent (2005)

- Many internally displaced people stay temporarily in their villages during the summer holiday, and return to urban areas the rest of the year
- Villagers report that villages lack access to electricity and telephone and other basic services like schools
- Many displaced have been unable to reconstruct their houses in order to live in it during the winter
- Many displaced reported to Human Rights Watch that they would rather stay permanently in their villages

HRW, March 2005, pp. 21-22

“Many IDPs now stay temporarily in their village during the long summer school holiday and return to urban areas during the winter, leaving a much smaller number of permanent residents. Villagers reported that the main reason for the winter exodus was not that they could not resist the attractions of city life, but that winter in an unrehabilitated village is unsustainable and dangerous. Many villages lack access to electricity and telephone services, water and sanitation systems, and are inaccessible by road for up to three months a year. They also lack medical facilities and, most importantly, schools. The fact that any villagers choose to remain in such villages over the winter reflects just how miserable conditions are for the displaced in urban areas.

Some argue that wide seasonal fluctuations indicate that villagers are abandoning village life in line with the general process of urbanization since 1950, and that villages are becoming mere summer residences. The individual motivations of villagers are difficult to assess, but many reported to Human Rights Watch that they had no choice but to return to the city at the end of the summer because they wanted to put the children in school. Furthermore, they could not afford to reconstruct their ruined houses in order to make them habitable during the extremely harsh winter months. The *muhtar* of Saggöze village, near Genç, in Bingöl province said 'I cannot speak for others, but I know that if our village was provided with water, a road, and a school, it would be completely full.' [46]”

[Footnote 46] Human Rights Watch interview with former Saggöze *muhtar*, Genç, Bingöl, November 21, 2004. Name withheld.

See also paper in sources below, "Return Policy:As if..." which contains an analysis of return patterns

Figures on Return

Government figures on return (2007)

- The government estimated that some 151,470 people had returned, as of April 2007
- In December 2006, the government sponsored national IDP survey carried out by Hacettepe University was released, in which it was estimated that some 124,000 people had returned

- Official figures on return movements published prior to the release of the 2006 survey are documented below

Turkish Daily News, 6 July 2005

Official figure July 2005: 125,539 returnees

"Interior Minister Abdülkadir Aksu, in a move likely to please the European Union, has ordered the governors of 14 eastern and southeastern provinces to actively involve nongovernmental organizations in a project that aims to help internally displaced people return home.

In a circular sent to the governors, Aksu said about one-third of internally displaced people had returned home under the Return to Villages and Rehabilitation project, which was launched in 1994.

Aksu said the EU has cited the issue in its progress reports on Turkey and referred to cases filed against Turkey at the European Court of Human Rights by some villagers whose villages were evacuated because of the fight against separatist terrorists.

He said as of the beginning of June, 125,539 out of an estimated 360,000 displaced persons in 14 provinces were safely returned to their villages.

Aksu reminded the governors that the project's objective is to help those who want to return to their homes by providing sustainable living conditions and re-establishing the economic infrastructure. The active and wider involvement of NGOs was at the center of the Interior Ministry's plans for continued implementation of the project."

Permanent Mission of Turkey to the UN, 18 March 2004

Official figure for December 2003: 94,029 returnees

"Within the framework of 'Back to Village and Rehabilitation Project', 94,029 people have returned to their villages by the end of December 2003. This number represents more than 25% of the total number of displaced persons. The experience in Turkey and in other countries on displacements indicate that the number of people returning to their former rural dwellings is around 25%-30% of the total displaced"

U.S. DOS 25 February 2004, Sect. 2d

"Only a fraction of the total number of evacuees has returned. The Government claimed that 94,000 persons returned to the region from June 2000 to October. More than 400 villages and hamlets have reportedly been reopened with government assistance. These figures could not be independently verified."

Permanent Mission of Turkey to the UN letter to OHCHR, 7 November 2003

Official figures for June 2000 to January 2003: Approximately 82,000 returnees

"Due to the complex and multi-dimensional nature of the process, close coordination and cooperation among various Ministries and public institutions as well as allocation of necessary financial resources is essential. The progress achieved so far has been positive and encouraging. In this regard, tens of thousands of people have returned to hundreds of villages and other rural settlements and necessary assistance has been provided to these people. The number of returnees from June 2000 to January 2003 is around 82 thousand."

See also, "[Emptied villages renew life](#)", Zaman Online, 1 December 2003

EC, 5 November 2003, p.40

Official figures between January 2000 and 2003, 82,000 people returned

"According to official sources, 82000 people were authorised to return to their villages in the period between January 2000 to January 2003. There is, however, concern regarding the lack of transparency and adequacy of consultation in the development of this project and disquiet about the absence of a clear strategy that explains the project aims, scope and budgetary implications. The number of areas where access is still prohibited has been reduced, but authorisation to return is still difficult to obtain. Although limited financial assistance has been provided to some returnees, there is a more general lack of financial resources to support return to villages, to compensate villagers for the destruction of houses or dwellings and to develop basic infrastructure in areas previously subject to armed clashes."

HRW, 30 October 2002

Official figures for June 2002: 58,513 returnees

"Abdülkadir Aksu, the Interior Minister, announced that a total of 58.513 people had benefited from the Return to Village Project since June 2002. Aksu stated that in 11 provinces under a state of emergency TL 8.8 trillion has been spent so far for returnees."

Diyarbakir governor Cemil Serhadli, stated on 18 December that in 12 villages of Dicle and Kulp districts villagers have not been granted permissions for a return to their villages due to security reasons at present but would be granted in spring. Serhadli added that 48 villages and 58 hamlets had been opened for resettlement within the scope of Return to Villages Project and the total number of returnees within Diyarbakir was 8.568.

Semsettin Abi, who was forced to migrate from Akarsu village of Beytüssebap district (Sirnak) in 1994, reported that in response to his application to return to his village Van Governorate had offered him temporary houses in which there is no empty place."

Turkish Daily News 4 April 2002

Official figures for April 2002: 37,000 returnees

"Some 37,000 people have returned to their villages in the Emergency Rule Region in the last 20 months as part of the "Back to Villages and Rehabilitation Project," carried out by the Interior Ministry."

The project gained pace after peace was restored in the region when the fighting between the outlawed Kurdistan Workers' Party (PKK) and Turkish security forces stopped, and a total of 6,300 families returned to 460 villages and hamlets to take advantage of the financial assistance, having found it economically inviable to live in the cities because of the economic crisis.

The Interior Ministry provided a total of TL 4.5 trillion financial assistance to these families returning to their villages last year, while allocating a total of TL 5.6 trillion in funds for these families from its budget in 2002. As spring has arrived, more people are expected to return the villages from where they left in fear of terrorism in the past.

As houses and barns are being reconstructed, the farmers have started preparing for farming. Some 25 families, who left Mardin's Meseli Village 10 years ago, returned to their village and started to reconstruct their houses with the cement, iron and other materials given by the district governor's office.

[...]

The governor of Mardin's Mazidagi district, Mehmet Ozmen, said they were providing equipment assistance to the families returning to their villages and added that they were also continuing infrastructure works."

U.S. DOS 4 March 2002

Official figures for June 2000 to December 2001: 35,513 returnees

"According to the Interior Ministry, between June 2000 and December, 35,513 persons had returned to 470 villages or pastures; over 6,000 homes had been constructed and the state had given over \$3 million (4 trillion TL) in construction materials or other supplies. In August the governor of the state of emergency region estimated that since 1999, 18,600 persons had returned to their villages in that region with government assistance, with a total of 5,853 houses constructed for the 'citizens who were forced to abandon their villages due to terrorism.' In August the Tunceli provincial governor announced that he had given permanent settlement permission to 30 villages during the year and temporary settlement permission to 50 others. The governor stated that these villages would be resettled by families who migrated to big cities, noting that a total of 151 villages in the province had been abandoned or evacuated. The province provides some public services and financial aid to the returnees. In Diyarbakir 80 families applied to return to a village which was evacuated in 1992; they received financial aid and services from the Government, according to media reports. The Bitlis governor announced that 220 families (952 persons) had returned to 31 villages in 2000, and 35 more villages are scheduled to be reopened. Hakkari provincial authorities have distributed sheep to returning villagers, noting a return to normal economic production after a 2-year period of peace."

U.S. DOS February 2001, sect. 1g

Officials claim 10,000 people returned between June and August 2000 and 28,000 during the year (2000)

"After the middle of the year, there appeared to be an upsurge in the rate of returns and return requests. About 10,000 persons returned to their villages between June and August, according to the state of emergency governor. In July he declared that 65,000 of the 131,000 return requests filed with his office were 'appropriate'. According to the Jandarma, over 28,000 persons returned to the OHAL [State of emergency] region and adjacent provinces during the year. They state that there are an additional 238,900 applications for returns to 621 villages and 461 smaller hamlets, but only about a third of these claims are appropriate (mainly for security reasons) at this time. A July HADEP 'migrant commission' report claimed HADEP had over 23,000 additional requests for returns, each petition representing a family. However, some persons included on return petitions may not have been aware that a request had been made for them. Furthermore, many evacuees have neither the will nor the economic means to return."

USCR 2001, p. 263

"Although violence ebbed in 2000, returns of displaced people during the year appeared to be modest and sporadic, although returns did appear to increase toward year's end. By mid-year, more than 50,000 families, representing an estimated 400,000 people, had applied for permission to return to their places of origin, but nearly two-thirds were ruled 'inappropriate' applications, apparently because of continuing security concerns. By year's end, fewer than 50,000 were believed to have returned to their places of origin."

Government sponsored study finds that up to 12,1 percent of the population displaced returned (December 2006)

- In December 2006, the government sponsored national IDP survey carried out by Hacettepe University was released
- The survey found that at least 91.000 and at most 101.200 of the security related migrants of the last twenty years originating from the 14 provinces may have returned to their origins.
- When taking into account people displaced from urban areas as well, the estimation of the numerical size of the return migrants increases to 112.000-124.00.
- The numerical size of the return migrant population is estimated to be between 10,9 and 12,1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons

Hacettepe University, 6 December 2006

"TMIDPS's data show that at least 91.000 and at most 101.200 of the security related migrants of the last twenty years originating from the 14 provinces may have returned to their origins. When the migrants originating from the urbans are taken into account as well, the estimation of the numerical size of the return migrants increases to the interval 112.000-124.00. The numerical size of the return migrant population is estimated to be between 10,9 and 12,1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons."

Government figures on return by area of return (2005)

Ministry of Interior February 2005, Source: Hacettepe University, 4 May 2005

PROVINCE	APPLICATIONS FOR RETURN				RETURNEE			
	NUMBER OF APPLICATION	EXAMINATION	ACCEPTED	WAITING	VILLAGE		HAMLET	
					H.HOLD	POP.	H.HOLD	POP.
ADYAMAN	1.023	0	0	1.023	46	261		
AĞRI	621	0	0	621				
BİNGÖL	11.409	0	11.409	0	2.262	12.290	579	3.72
BİTLİS	14.334	0	10.958	3.376	1.103	7.297	382	2.20
HAKKARİ	6.763	0	6.778	3.355	1.967	17.259	873	5.25
MUŞ	4.082	1.144	2.889	7	137	1.040	91	70
TUNCELİ	2.311	0	0	0	1.137	3.676	0	0
VAN	5.795	0	4.034	1.761	945	5.855	592	3.51
ELAZIĞ	187	0	187	176	0	0	11	58
BATMAN	0	0	0	0	522	2.900	442	3.20
DİYARBAKIR	3.997	0	3.997	0	1.996	12.162	1.154	7.36
MARDİN	4.639	43	7.613	0	2.354	12.532	468	2.86
SİİRT	28.143	0	19.788	1.605	2.340	13.536	484	3.18
ŞIRNAK	9.484	5.128	4.409	3.221	1.266	10.043	96	82
TOPLAM	92.788	6.315	72.072	15.145	16.075	98.851	5.172	33.0

Comment on return figures (2005)

- National and international NGOs have found statistics on return useless in assessing the progress of return because they are inconsistent and contradictory
- Efforts to verify government statistics have also been impossible as government figures failed to list the settlements to which villagers returned
- In 1999, the government commissioned the Turkish Social Sciences Association to carry out a survey of the displaced which failed to produce any statistics
- The authorities have also hindered the efforts by independent organisations, including the Human Rights Association and Göç-Der, to carry out data collection
- In November 2004, the government provided a list of villages and hamlets indicating the pre and post displacement population figures to Human Rights Watch
- However, research by Human Rights Watch indicates that the figures do not correspond to the number of displaced or returns
- Human Rights Watch found that the statistics under-recorded the number of initially displaced people and over recorded the number of returnees

HRW, March 2005, pp.12-14

“Accurate and detailed statistics about movements of IDPs are a precondition for the Turkish government to begin planning how it can meet its obligations and commitments in relation to the internally displaced, and for the outside world to evaluate what is being done. For years, government figures have been increasingly upbeat but also contradictory and inconsistent. Moreover, because they never listed the settlements to which villagers returned, the statistics were impossible to verify.

In 1999, the government commissioned the Turkish Social Sciences Association to carry out a large survey of the displaced. After four years, the survey failed to produce statistics on the overall scale of displacement or the rate of return. Independent efforts to develop statistics have been unwelcome. In 2001, for example, the central government blocked an attempt by Diyarbakir municipality to collect reliable data about the number, conditions, and aspirations of the displaced. [23] The authorities prosecuted the organization Göç-Der for publishing a similar survey in April 2002, and in January 2004, as publisher of the report, Göç-Der director Sefika Gürbüz was sentenced to ten months’ imprisonment (converted to a fine) for ‘incitement’ under article 312 of the Turkish criminal code.

The European Commission’s October 6, 2004 Regular Report on Turkey stated that the Turkish government had provided information that ‘since January 2003, 124,218 IDPs (approximately one third of the official total of 350,000) have returned to their villages.’[24] Surprised at this unexpectedly brisk rate of return, Human Rights Watch visited the Turkish Embassy in Brussels on October 7, 2004, and requested a breakdown of the statistics provided to the European Commission, in order to evaluate their accuracy. On November 25, 2004, the Turkish Foreign Ministry supplied a list of villages and hamlets to Human Rights Watch with columns for pre- and post-displacement populations. Human Rights Watch wrote to the government formally on December 8, 2004, to welcome the list, which contains the first detailed and verifiable data about the return process.

In late November 2004, Human Rights Watch visited a small sample of the villages and hamlets listed, to compare the official numbers of pre-displacement and returned populations with figures given by village inhabitants. Human Rights Watch also looked at returnees’ conditions, and the extent of official support to individual returnees and communities.

Our evaluation indicated that the government’s return figures are not accurate, and identified two particular shortcomings. First, the statistics under-record the number of inhabitants in communities prior to displacement and therefore underestimate the scale of the displacement.

Second, the statistics overstate the number of returnees. In some settlements, the government list reports substantial numbers of returns that were either temporary, or did not take place at all.”

Footnotes

[23] Human Rights Foundation of Turkey, monthly bulletin for February 2001.

[24] European Commission, 2004 Regular Report on Turkey's progress towards accession, October 6, 2004, B.1.3.

Human Rights Watch: government return figures are inflated (2005)

- The government provided a list of pre and post displacement population movements to Human Rights Watch in 2004
- Based on field research, however, Human Rights Watch, found no evidence of the substantial numbers of returns claimed by the government
- Human Rights Watch concludes that either return figures are overestimated or the returns recorded by the government were only temporary

HRW, March 2005, pp. 17-19

"In some settlements, the government statistics show substantial numbers of returns that upon inquiry by Human Rights Watch appear either to be significant overestimates, or to include returns that were only temporary.

On November 18, Human Rights Watch visited Koçbaba village, near Hazro in Diyarbakir province. The government list indicates that there are currently twenty-seven households with 278 inhabitants. Human Rights Watch counted thirteen households with a total population of just sixty-nine. In the nearby village of Çiftlibahçe, by contrast, the government list figure of forty-nine households returned was accurate.

Some interviews with local displaced inhabitants produced figures which differ widely from the government list. A former *muhtar* of Yolaçti village near Genç in Bingöl province, and now living in Genç, reported that his village currently has eleven households with approximately fifty inhabitants, whereas the government list shows ninety-nine households with 449 inhabitants.[37] A former inhabitant of Yeniyazi village told Human Rights Watch that eight families have returned, whereas the government list indicates that sixty families have returned.[38]

According to official government figures, in Duru village in Lice, Diyarbakir province, there are now 207 households comprising 346 inhabitants, but two displaced former inhabitants of Duru told Human Rights Watch that there are currently fewer than ten households living in the village.[39] According to the government list, there are sixteen households at Dibek, Lice, whereas an inhabitant of a neighboring villager interviewed by Human Rights Watch strongly asserted that there are no permanent dwellings in Dibek and no families living there year-round.[40]

According to the Siirt branch of the Human Rights Association (HRA), the figures for Siirt province are accurate for some villages, but seriously inaccurate for others. Siirt HRA provided the following examples from the Erüh district: in Yerliçoban village, government statistics indicate that there are sixty-eight households but to the HRA's knowledge there are fewer than twenty; in Ballıkavak village, the government list states that there are twenty-two households but the HRA reports that only two houses in the village are occupied; in Yorulmaz village, the government list states there are fourteen households but the HRA indicates that the village has no permanent residents.[41]

According to the Mus branch of the HRA, the government list records significant returns in several communities where there are no permanent returns and currently no permanent residents at all, including: Yongali, where the government records the return of eighty-four households with a population of 500; Ilica where the list records the return of thirteen households with a population of seventy-six; and Demirci, in Korkut, where the list records the return of thirty-two households with a population of 213. [42]

According to the Bingöl branch of the HRA, fifteen households have returned to Inandik village, near Solhan in Bingöl province, while the government list records fortyfour households as having returned. The government list states that forty-two families have returned to the Asagi Yayikli and Yukari Yayikli hamlets of Mutluca village, but Bingöl HRA reports that no families have returned permanently. [43]

In some cases, the inhabitants of villages are shown as having returned when the villages have in fact been occupied by other communities, often members of the village guard. Çizmeli village in Siirt province, for example, is shown on the government list with thirty-two households and 230 villagers, while Siirt HRA report that the village is occupied by village guards who lease the lands to migrant livestock herders.

The government list also inflates the rate of return by including villages that were never evacuated. These entries generally relate to communities that joined the village guard corps. For example, according to Vetha Aydin, president of Siirt Human Rights Association, the villages of Otluk, Yayladag, and Mesecik near Sirvan, and Karasüngür near Pervari were never evacuated. On the government list the entire population of these villages is shown as having been evacuated and successfully returned. According to Bingöl HRA, the villages of Esmatas and Kirik were never evacuated. These also appear on the government list as having been evacuated and repopulated.

At present, official government statistics do not give a reliable picture either of the original displacement or the current state of returns. The Turkish government's claim that a third of the displaced are now back in their homes is based on inaccurate figures. It presents an over-optimistic picture that is not warranted by facts on the ground."

Footnotes

[37] Human Rights Watch interview with former *muhtar* of Yolaçti, Genç, Bingöl, November withheld.

[38] Human Rights Watch interview with former *muhtar* of Yenyazi, Genç, Bingöl, November

[39] Human Rights Watch interview, Diyarbakir, November 25, 2004. Names withheld.

[40] Human Rights Watch interview, Diyarbakir, November 25, 2004. Name withheld.

[41] Human Rights Watch telephone interview with Vetha Aydin, president of Siirt Human Rights Association, November 26, 2004.

[42] Human Rights Watch telephone interview with Sevim Yetkiner, president of Mus Human Rights Association, November 26, 2004.

[43] Human Rights Watch telephone interview with Ridvan Kizgin, president of Bingöl Human Rights Association, November 26, 2004.

[44] Letter to Human Rights Watch from Ambassador Duray Polat, Director General for Multilateral Political Affairs, Ministry of Foreign Affairs, Ankara, November 24, 2004.

HRW, 30 October 2002

"A cursory reading of government officials' figures on return suggests that villagers are heading home in large numbers, but as more and more upbeat statistics have emerged, the figures have begun to contradict one another. An undated letter sent by the Southeast Anatolia Project (GAP) to the Göç-Der received in May 2001 reported that 220 settlements were being resettled by 26,433 returnees. But Emergency Region Governor Gökhan Aydıner, speaking at a ceremony at

Saklat village, Diyarbakır province, on August 7, 2001, said that only 18,600 villagers had returned. The Interior Ministry stated in November 2001 that 30,224 villagers had returned in the previous seventeen months. Government sources informed the U.S. State Department that 26,481 people had returned by the end of 1999, and 35,513 between June 2000 and December 2001, a total of at least 61,994. On April 3, 2002, Emergency Region Governor Aydıner said that villagers had returned to 406 villages and 164 mezra between June 2000 and December 2001. On March 12, 2002, the Interior Ministry said that inhabitants had returned to 294 villages and 159 mezra in that period. The statistics are useless for the purpose of assessing the progress of return, not only because they are inconsistent, but also because they never list the settlements to which villagers have been able to return. Detailed lists would enable observers to compare government claims with the reality on the ground, and would reveal whether villagers are correct in claiming that most of the returns have been to communities that enrolled in the village guard system. A clear example of how partial information can be confusing or misleading is a letter written by the governor of Bingöl to Göç-Der headquarters, dated May 27, 2001, stating that U.S. \$570,000 had been spent on return in that province alone. The expenditure seems to have been mainly on reconstruction of roads, and few villagers have returned in Bingöl province. In a letter of October 25, 2001, Human Rights Watch asked the Turkish government for a detailed breakdown of statistics on return [...], but did not receive a reply.

Efforts to develop independent statistics have been confounded. The central government blocked an attempt by Diyarbakır municipality to collect reliable data about the number, conditions, and aspirations of the displaced. The State Statistical Institute approved the methods used by the municipality in its five-page questionnaire designed for distribution to displaced persons, but the Interior Ministry banned the study because it included questions concerning the reasons for migration and included 'pressure by security forces' as one of the optional responses. In the absence of reliable statistics that are open to analysis, it is impossible to make an accurate estimate of the number of genuine returns. Even if the government's most optimistic figures are correct, only 10 to 20 percent of the displaced population has returned. Nongovernmental organizations in close contact with displaced persons such as Göç-Der and the Human Rights Association (HRA) believe that all the government's conflicting figures are exaggerated and that in fact relatively few villagers have been able to return permanently."

Policy

Calls for reconciliation (2006)

- Those who committed abuses, including security forces, village guards and the PKK during the original process of displacement have rarely been prosecuted
- The Compensation Law's Preamble makes an allusion to the need for reconciliation in the Preamble which states among the law's aims "bolstering trust towards the state, rapprochement between the state and its citizens and contributing to social peace"

EC, 8 November 2006

"The issue of "reconciliation" is not addressed in the compensation approach in relation to past human rights violations committed against internally displaced persons – such as the burning and destruction of property, killings, disappearances and torture."

IDMC/TESEV Special Report, June 2006

"The issue of "reconciliation" was not addressed by the RSG in his recommendations to the Turkish government. The government's Framework Document does not address the issue of past

human rights violations committed against IDPs – such as the burning and destruction of property, killings, disappearances and torture – committed by security forces, village guards and PKK members in the process of displacement. However, the TESEV Working Group's fieldwork shows that there is a genuine and urgent need for the government to take steps towards answering the need for reconciliation between the parties to the conflict.

It should be noted that the Compensation Law's Preamble makes an allusion to the need for reconciliation. The Preamble states among the law's aims, "bolstering trust towards the state, rapprochement between the state and its citizens and contributing to social peace".[...] The Compensation Law, however, is limited to providing reparation for material damages, and precludes compensation for pain and suffering (see "Compensation Law" above). However, reconciliation and durable peace require confronting past human rights abuses and establishing restorative justice.

The Compensation Law has raised expectations among IDPs, civil society organisations and lawyers that it would open the way for the public admission of forced evictions by security forces as well as other human rights violations, and lead to either bringing the perpetrators before courts or at least paying reparation for pain and suffering.[...] The law does not require proof of fault on the part of the administration, but rests on the "doctrine of social risk based on the objective responsibility of the state".[...] However, in order for justice to be achieved it is essential that those responsible for violations are identified and brought before the court. The TESEV Working Group observed in Batman and Hakkâri that particularly some families whose relatives have disappeared or been killed by unidentified perpetrators believe that justice will not be achieved unless the perpetrators are prosecuted.

Those who committed abuses, including security forces, village guards and the PKK during the original process of displacement have rarely been prosecuted.[...] A recent development well-covered in the national media – the discovery of a mass grave near a village whose population was evicted in the Kulp district of Diyarbakir – triggered a wave of demands for bringing to justice the killers of 11 villagers. Local human rights organisations, Human Rights Association's Diyarbakir branch, the Diyarbakir Bar Association and two members of parliament called for the perpetrators to be brought to justice, echoing a call made time and again by the ECtHR in many cases involving human rights violations committed by security forces during the process of internal displacement.[...] Both organisations are demanding judicial and parliamentary investigations of the incident.[...] If a judicial process gets initiated on this matter as a result of pressure from civil society, it would set an important precedent. The emerging public debate about this case and several others on violations committed during the emergency rule suggests that the time may be ripe for initiating a candid discussion about setting up a mechanism of reconciliation to address issues of impunity."

[See the full report by TESEV and IDMC/NRC](#)

Concerns raised about return programme (2003)

- The International Federation for Human Rights and Human Rights Watch have expressed concern that the return programmes of the government are actually resettlement programmes
- The Turkish authorities have counted on the creation of "central villages" and "village townships" to implement return
- IDPs who have wanted to return to their hamlets have been told by the authorities that they could do so only if their hamlets were regrouped in new "village townships"
- International organisations have expressed concern that the programmes aim at resettling people in villages dominated by government control, such as the village guards

- There has also been concern that such operations could be used as means to gather international funds under the guise of a “return” programme

FIDH July 2003, p.16-17

“Return to village v. Resettlement: There is an unfortunate tendency to include resettlement operations among so-called ‘Return to village’ projects whereas ‘Return’ and ‘resettlement’ should not be confused. Resettlement, even in the case of people ‘resettled’ in the region from where they were displaced, means that these people will not go back to their house or village. This is the case when the Turkish authorities count on the creation of ‘central villages’ and ‘village-townships’ to implement the return to village projects. In its 2002 reports on displaced persons, Human Rights Watch provided extensive information on these central villages and village townships. The international organisation feared that these initiatives would aim at maintaining control on the people by resettling them in villages dominated, for example, by village guards. It also said that these operations could be seen as means to gather international funds, including World Bank funds, under the legitimacy of the ‘return to village’ objective. The investigation carried out by the FIDH in May 2003 confirmed fears expressed by HRW. For example, people who want to go back to the hamlets which are situated around Sirnak were reportedly told by public authorities that they could do so only if these hamlets were regrouped in new ‘villages-townships’. This perspective is very distressing for these people and does not provide for an incitement to apply for a ‘return to village’ authorisation.

In Ekinyolu village (Eruh district), 25 people made their application in November 2002 to come back to their village. The government said it would consider the question. In May 2003, these people had no further information on their application.

FIDH reminds that the UN Guiding Principles on Internal Displacement provide that international humanitarian organisation and other appropriate actors have the right to offer their services in support of internally displaced persons, and that such organisations should have unimpeded access to internally displaced persons. However, in practice, Turkish government has consistently cut non-state agencies out of the whole return plans’ process and NGOs have never been invited to give their input. Far from providing ‘appropriate actors’ access to internally displaced persons, the judicial authorities have relentlessly persecuted organisation, including GOC-DER and GIYAV that provide assistance to them.”

See also ["Displaced and Disregarded: Turkey's Failing Village Return Programme"](#) Human Rights Watch, 30 October 2002

Planned feasibility study on the “Return to Village and Rehabilitation Project” sheds little light on return policy (2002)

- The Office of the Prime Minister delegated management of the Village Return and Rehabilitation Project to the corporation South East Anatolia Project (GAP)
- As part of the return initiative, the Office of the Prime Minister, through GAP, requested research on the problem of displacement to be conducted by the Turkish Social Sciences Association
- HRW investigations into the planned feasibility study found that it is not designed to answer key questions, including the number of IDPs and the causes and reasons for displacement
- There has also been concern that the survey may be based on an unrepresentative sample of the displaced
- Experts interviewed by HRW also noted that the feasibility study has not been prepared in light of the Guiding Principles on Internal Displacement

HRW, 30 October 2002

"The Office of the Prime Minister delegated management of the Village Return and Rehabilitation Project to the giant South East Anatolia Project (Güneydogu Anadolu Projesi-GAP). [1] [...] Once tasked with the project of designing a return program, GAP decided that it was necessary to collect further information about the scope of the problem, and to this end put the task of preparing a feasibility study out to competitive tender. The tender was awarded to the Turkish Social Sciences Association (TSBD), a nongovernmental organization that finances and implements a wide variety of social research. In October 2002, most of the project data and feasibility plan had been delivered to GAP, with some cartographic work still outstanding. The TSBD director, Professor Oguz Oyan, described the feasibility study as developing 'a standard approach without going to a lot of expense. An attempt at something practical.' His staff was engaged in a one-year project to collect data and make proposals for a model for future village reconstruction.

They had talked to displaced people in provincial centers and had selected one hundred empty villages from a list of three hundred for more detailed study. Professor Oyan emphasized that one hundred was the number of villages chosen for deeper study and not the number of villages considered appropriate for repopulation. From the initial one hundred, they selected one village per province in the affected region, and for each of these the association was developing a reconstruction plan on the basis of large scale maps. According to Professor Oyan, the plans were mainly focused on the physical aspects of reconstruction—the layout of the houses and infrastructure including electricity and water supply, roads and sewage disposal—and did not go much into details of implementation. [...] First of all, the project leaves the most basic questions unanswered: how many people were displaced, how were they displaced and who are they? The Parliamentary Commission on Migration shed some doubt on the official figure of 378,335, calling it 'problematic' and suggesting that it may be an underestimate. Göç-Der estimates the number of displaced to be four-and-a-half times higher, at 1.7 million. The TSBD did not know whether the government had kept any complete register of displaced persons. In the absence of such information about the true number of people displaced, it is difficult to see how the government can set an effective budget for reconstruction. Without contact details for the displaced, government agencies will not be able to communicate with them in order to collect information, nor keep them informed of policies and potential benefits for which they qualify. If the government ignores the original circumstances of the displacement, it ignores its responsibility to provide full restitution. [T]he U.N. Guiding Principles state that the government has a duty to restore property and possessions, and that where this is not possible, it should provide or assist people to obtain appropriate compensation or another form of just reparation. In his meeting with Human Rights Watch, Professor Oyan was skeptical about the possibility of such reparation given Turkey's financial situation. He cautioned that the feasibility study had not been prepared in the light of the U.N. Guiding Principles, and that the TSBD's allocated task was 'not concerned with human rights though we are sensitive to human rights.'

It seems likely that the research sample may be at least unrepresentative and perhaps badly lopsided. The TSBD's plan will be based on interviews with displaced persons, and if this group is not representative of the overall population of displaced persons then it will produce misleading results. The TSBD identified the villagers for interview and the settlements for consideration as models from lists and petitions supplied by local governors. Local governors clearly have better relations with former village guard villages displaced by PKK activities than with non-village guard communities displaced by the security forces, and they usually do not accept petitions from villagers who declare that they were displaced by security forces.[...] In view of the description of the feasibility study as a 'practical' scheme, it is curious that the government had not given the TSBD a budget for the project, and had not asked the TSBD to prepare one. (Professor Oyan said that in spite of this the TSBD was anyway considering preparing a budget.) The lack of budgetary information is not consistent with the stated objective of avoiding expense (unless the

aim is to avoid expense altogether) and puts a question mark over the government's commitment to implementation.

Finally, the Village Return and Rehabilitation Project is moving so slowly that there must be some doubt whether it will ever bring practical benefit to the displaced. The TSBD planned to finish its initial field study in March 2002 (five years after the Return Project's original conception). It would then provide an assessment of one hundred villages and proposals as to how the return process might be carried out in twelve model villages—no more than 12 percent of the emergency region governor's estimate of evacuated villages (820), or 3 percent of the figure for all evacuated settlements including mezra (2,345).

The relevant ministries would then presumably begin deliberation about implementation of the program as a whole, and bargaining for resources. As this report went to press, in October 2002, it is unclear whether this process was in train. Until a comprehensive and fully-funded plan is up and running, villagers will remain cut off from their homes and livelihoods. The Parliamentary Human Rights Commission reported that the Interior Ministry's Village Return and Rehabilitation Project goal for 1999 was to secure the return of 1,017 families.⁹⁹ At this rate, the 10,539 families who have petitioned Göç-Der might expect to wait up to a decade before they could return to their homes, unless, as is widely feared, the Village Return and Rehabilitation Project will be limited to only a small number of selected settlements.

The Village Return and Rehabilitation Project has taken five years to get twelve model villages onto the drawing board. Those villages, for the reasons given above, are likely to be villages favored by the state because of a history of village guard membership. It would not be surprising if the other villagers, who do not have a special relationship with local governors and security forces, never benefit from the Village Return and Rehabilitation Project, and never return."

[Footnote 1] GAP is a corporation under the authority of the Office of the Prime Minister that is primarily responsible for coordinating the program of large-scale hydro-electric and irrigation projects in southeast Turkey.

Parliament declared return policy comprehensive and voluntary, but human rights activists disagreed (2001)

- A Turkish Parliamentary representative stated that the primary government project was based on voluntariness, unity, non-evacuation of settlements, development, and aid
- It was maintained that there were no obstacles to those who wanted to return, and that there was no pressure deriving from the presence of the village guards or no information to that effect
- Governor for the Region under a State of Emergency stated that 5,853 houses had been built and 18,600 people had returned to their homes
- A member of the Human Rights Commission reported how that the military authorities in particular hindered return
- He also testified to villagers being forced to sign papers to return and the lack of financial and other government support to IDPs

HRFT August 2001

"Deputy chair of the Bliss Party (SP) and member of the Human Rights Commission in the Grand National Assembly, Mehmet Bekaroglu tabled an official question to Prime Minister Bülent Ecevit on 9 June relating to the project 'Return to the Villages' and received an answer by State Minister Mustafa Yilmaz on 5 July.

The answer stated that the 'return to the villages' project was continuing according to the decree by the Prime Minister of 27 January 1998. The basics were named as follows:

- * The return is a voluntary act.
- * The principle of unifying settlements is being followed. It will not be allowed to establish sub-units to the villages.
- * Priority will be given to those settlements that do not require additional measures for security.
- * The settlements to be reopened for accommodation will not be subjected to migration for reasons of security or other reasons.
- * Priority of additional security measures and housing will be given to those settlements, whose inhabitants are without a home.
- * During all these activities efforts for economic, social and cultural development will continue.
- * All kinds of aid will be given to those citizens, who after leaving their villages build their own house in forms such as 'Help for those, who build their own home'.

Mustafa Yilmaz added that the last item had not been applied, because the families involved had not shown an interest in it. He said that the 'return to the villages' project had started in 1999 and was still continuing.

Minister Mustafa Yilmaz mentioned the fact that 9 families had been settled in Asagi Beyan village of Diyarbakir and 68 families had been settled in Kaymakam and Cesme villages of Sirnak. For the provinces Diyarbakir, Batman, Bingöl, Bitlis, Hakkari, Kars, Mus, Siirt and Van a total of 2859 families had been included in the project and the building works of 555 houses was continuing, while investigations were being carried out in 52 villages.

Mustafa Yilmaz maintained that there were no obstacles to those, who wanted to return and argued that after applications handed over to the governors a detailed investigation was carried out on security and social conditions and, if necessary, the families were shown alternative places and everything was done to secure the infrastructure. He stated that the village guards were part of the project and there was certainly no pressure deriving from them or at least there was no information to that effect. The Minister left the question on land mines open.

On 3 August Mehmet Bekaroglu stated that the answer was far from being satisfactory. He said that he had witnessed how the return to the villages was hindered and that the military authorities in particular imposed difficulties for the return. Mehmet Bekaroglu argued that a return to the villages was not possible as long as the village guard system existed.

Mehmet Bekaroglu reported that he had carried out inspections in Bingöl, Tunceli and Diyarbakir province. He had talked to people, who wanted to return to their villages, but were prevented from doing so. He said that the military authorities were discouraging the people by saying that the area was not safe and they could not guarantee for their security. 'The commander may say 'yes' or he may say 'no'. But since the answer is 'no' the people don't go back to their places.'

Mehmet Bekaroglu called the material aid provided by the governors arbitrary and demanded that this must change, if people are to be encouraged to return. He further said that one should stop to look at the people as 'potential criminal' and that it was high time for the people to get back to their homes.

Regarding the official answer Mehmet Bekaroglu complained that no answers had been given to the number of applications made so far; no details had been provided as to how the return is being planned. Figures on the money given to the governors were missing. He reminded of an incident in Hakkari, when 6 villagers went to collect nuts and were found dead. He asked for an investigation into this incident to find out, who the murderers were.

On 7 August Gökhan Aydin, Governor for the Region under a State of Emergency talked during a ceremony in Saklat village, Kocaköy district, Diyarbakir stating that the Ministry of the Interior had made available TL 3.2 billion for the project 'Return to the Villages'. 5,853 houses had been built and 18,600 people had returned to their homes. For Diyarbakir the figure was 3,000. In July 900 people had returned home. Saklat village had been evacuated in 1992 and was opened for accommodation again in May.

In July and August allegations that local governors forced the enforced migrants, who wanted to return to their villages, to sign papers. Lawyer Serdar Talay, chairman of the Diyarbakir branch of Göc-Der, said in July that the villagers were forced to sign statements saying, 'I left my village because of the pressure of terror. I want to return to my village and since there is no more pressure from terror I do not ask the authorities for any help.' Mr. Talay demanded that such a practice should be abandoned, the state of emergency should be lifted, the area should be cleaned from mines and the enforced migrants should be furnished with all constitutional rights."

Return and resettlement programmes

Ministry of Interior representative: 100 million Turkish Lira spent to improve conditions in return areas of southeast (2006)

UNDP, Minister Abdülkadir Aksu, 23 February 2006

"To this end, overall YTL 52.684.513 was spent from both general budget and budgets of the provincial administrations as well as the Foundations of Social Assistance and Solidarity. If the infrastructure expenses of other ministries and public institutions and organizations under the coordination of the offices of governors are added to these figures, it might be seen that the expenses are above YTL 100 million in fact. These expenditures by our offices of governors are used for the following purposes in the settlements to which people return:

- Infrastructure investments including road, water, electricity, sewerage;
- Repair and maintenance of schools, village clinics and mosques;
- Supply of construction materials to the citizens who return to their villages to build their own houses;
- Creation of employment through projects of agriculture, animal husbandry and handicrafts.

When we compare it to other countries which experience similar problems, despite limited budget opportunities, it is possible to argue that the project has so far been successful taking into account the fact that one third of migrated citizens returned to their villages."

Ministry of Interior: Background information on the Return to Village and Rehabilitation project (2006)

Ministry of Interior Presentation, 23 February 2006

"Return to Village and Rehabilitation Project has the following objectives: Establishment of sustainable livelihood conditions for the families that departed from their villages in the east and southeast anatolia due to various reasons, top among of which is security, and want to return voluntarily either to their own villages, vicinity of their villages or their villages or another place with suitable fields through construction of required social and economic infrastructure

§ PROVINCES IN THE SCOPE OF RVRP: 14
§ DISTRICTS IN THE SCOPE OF RVRP : 95

§ VILLAGES IN THE SCOPE OF RVRP: 945
 § SUB-VILLAGES IN THE SCOPE OF RVRP: 2.021
 § HOUSEHOLDS IN THE SCOPE OF RVRP: 58.859
 § (VILLAGE: 42.220; SUB-VILLAGE: 16.639)
 § PERSONS IN THE SCOPE OF RVRP: 358.335
 § (VILLAGE: 245.605; SUB-VILLAGE : 112.730)

Returns:

§ HOUSEHOLDS WHICH RETURNED TO THEIR VILLAGE: 17.036
 § POPULATION WHICH RETURNED TO VILLAGE: 99.093
 § HOUSEHOLDS WHICH RETURNED TO SUB-VILLAGES: 6.042
 § POPULATION WHICH RETURNED TO SUB-VILLAGES: 38.543
 § TOTAL HOUSEHOLDS WHICH RETURNED: 23.078
 § TOTAL POPULATION WHICH RETURNED: 137.636

Budget:

§ CONTRIBUTION IN KIND : YTL 39.104.479
 § CASH CONTRIBUTION : YTL 13.580.034
 § OVERALL CONTRIBUTIONS: YTL 52.684.513

Activities:

§ ONGOING INFRASTRUCTURE INVESTMENTS INCLUDING ROAD, WATER, ELECTRICITY, SEWERAGE ETC
 § REPAIR AND RESTORE OF DESTROYED SCHOOLS, VILLAGE CLINICS, MOSQUES
 § SUPPLY OF CONSTRUCTION MATERIALS TO CITIZENS WHO RETURNED TO THEIR VILLAGES TO BUILD THEIR OWN HOUSES
 § OPPORTUNITY CREATED TO THE CITIZENS TO LEARN A TRADE TO EARN THEIR LIVES THROUGH AGRICULTURE, ANIMAL HUSBANDRY AND HANDICRAFTS PROJECTS

The presentation includes information relating to the following measures related to the RVRP:

§ CIRCULAR OF THE OFFICE OF THE PRIME MINISTER DATED 27/01/1998
 § CIRCULARS OF THE MINISTRY OF INTERIOR AFFAIRS DATED 15/05/2000 NO 1014 AND DATED 01/07/2005 NO 68
 § RESOLUTION OF THE CABINET DATED 17/08/2005 AND ENTITLED "MEASURES ON INTERNALLY DISPLACED PERSONS AND RETURN TO VILLAGE AND REHABILITATION PROJECT"

These are excerpts from the presentation. The full presentation is available in sources below.

Van Plan to pave way for return (2006)

- Plan drafted with the technical assistance of UNDP and other numerous stakeholders
- It plans to highlight potential strategies to improve living conditions of IDPs in Van
- It consists of strategic measures at the provincial level, recommendations for national level policies, and framework with indicators to measure progress
- If properly implemented it may become an optimal international practice, says W. Kälin

Governorate of Van, 10 October 2006

"This Plan of Action has been drafted by the Governorate of Van with the technical assistance of the United Nations Development Program (UNDP) within the framework of the development of international cooperation. It succeeds the 2005 Action Plan developed by the Governorate of

Van, within the framework of the KDRP, with regard to priority fields of investment in basic infrastructural concerns such as housing, transportation, water, education and health services as well as income generating activities. This Plan of Action is in line with the GoT's Strategy Document, the *United Nations Guiding Principles on Internal Displacement* and counsel by the Representative of the Secretary-General on the Human Rights of IDPs. The content of the Plan is premised following extensive stakeholder dialogue and documentation review and based on the cumulative experience gained from completed and ongoing activities and the various initiatives such as UNDP-managed *Project for the Support and Development of IDPs* (managed by UNDP). Among the numerous stakeholders consulted with regard to development of the Plan are District Governorates, local administrations including municipalities and mukhtars, non-governmental organizations (NGOs), private sector representatives, business and professional chambers, employer organizations, labor unions, and – perhaps most importantly – IDPs themselves (Annex I).

The purpose of the Plan of Action is to highlight potential strategies that will improve the living conditions of IDPs in Van. Given the complexities of IDPs in Turkey, this document serves to provide an introduction to various methodologies (i.e. modes of integration) as well as strategic interventions and actions (i.e. provision of social services) that reflect international standards and the policies of the GoT. The aim is to provide a menu of possible options and recommendations that can be adapted and deployed by the Governorate of Van contingent on dictating socio-economic circumstances and other institutional variables such as the availability of financial and human resources. Moreover, rather than replicate or replace ongoing efforts by both governmental and non-governmental organizations, the Plan of Action has been designed to complement these initiatives.”

“The Plan of Action comprises three parts: strategic measures undertaken at the provincial level; recommendations for national-level policies that support provincial-level initiatives; and a logical framework with indicators to measure progress.”

“The Plan of Action proposes an incremental set of strategic measures addressing the following five categories: a) prerequisites for integration and resettlement, b) provision of basic infrastructure and other forms of social assistance and services, c) promotion of social and economic development, d) awareness-raising and communication, e) support for cooperation and partnerships with other actors, including IDP participation.”

Turkish Daily News, 15 October 2006

“The plan, launched last month, is called the Van Province Action Plan for IDPs Services Delivery. If it is fully, equitably and consistently implemented, it will both offer major a contribution to the building of social agreement in the country and will constitute an example of optimal practice for the international community, U.N. Representative on Internally Displaced Persons Walter Kälin believes.”

See also [Turkey to announce first action plan for IDPs](#), and [Gov't takes step to combat sad legacy of PKK conflict: internally displaced persons](#), and [No other way than social services to heal the wounds of IDPs](#), and [Efforts for a nationwide plan for IDPs under way](#), and [Van's action plan for IDPs may be key model for reaching social agreement](#).

UNDP supports government return programme (2006)

- The project's aim is to support the government and civil society in developing response to the displacement problem in Turkey

- Project covers technical support and advice, capacity building and awareness raising and developing appropriate policies and action plans
- Two four-month stages result in a number of national and international multifaceted initiatives

UNDP, Progress Report, 23 February-23 June 2006, pp. 3-4:

“In response to a request from the Government of Turkey to provide support for follow-up of the 2002 recommendations by UN Secretary-General Representative Dr. Francis Deng, the UNDP Turkey developed the project entitled “Support to the Development of an IDP Programme in Turkey.” The aim of the project has been to support government and civil society initiatives to develop a more comprehensive and robust response in identifying solutions for the IDP population in Turkey.

The project comprises four basic components designed to meet the overall project objectives, as follows:

Component 1: Provide technical support and advice to the government-funded qualitative and quantitative survey undertaken by Hacettepe University’s Institute of Population Studies.

Component 2: Provide capacity building, awareness-raising and training for civil society partners to enable them to provide more effective support to IDPs and advocate for their rights based on the UN Guiding Principles.

Component 3: Respond to Government and UN Country Team needs for technical and other expertise on a demand basis; provide a flexible funding mechanism to respond to emerging priorities and needs identified by the government, civil society and the UN Working Group on IDPs in order to more effectively support the national response.

Component 4: Initiate and develop a provincial level pilot for a “service delivery” model to ensure that responses by government, NGOs and other relevant stakeholders address the social service needs of IDPs who choose to return to their communities of origin as well as those who choose to integrate into a new community.

The UNDP Project for the Support to the Development of Internally Displaced Persons (IDPs) Program in Turkey was formally signed by the Ministry of Foreign Affairs on 18 January 2006. This event signaled the Government of Turkey’s full endorsement of UNDP support for the government’s IDP-related efforts and designated the Ministry of the Interior’s Strategy Development Board as the UNDP’s primary counterpart within the Government.

The signing of the project agreement enabled the UNDP to move forward with the implementation of the project, which was formally launched on 23-24 February 2006 with a two-day IDP Conference in Ankara. The aim of the conference was to bring together representatives of government institutions and NGOs to strengthen their work in the area of IDPs; to engage in dialogue on issues of mutual concern, including the Hacettepe University Survey and implementation of the Compensation Law; and to disseminate and learn from global experiences and perspectives surrounding the issue of displacement.”

UNDP, Progress Report, 24 June-24 October 2006, pp. 3-5:

“Since the release of the First Progress Report in June 2006, a number of significant policy and project related initiatives have taken place to fulfill the project’s specific objectives, and more strategically to further advance Turkey’s efforts in developing an IDP response both as part of its own national development/reform agenda and in line with the EU Political Criteria.

As detailed in the Second Progress Report, specific initiatives that have taken place between June and October 2006 include:

- Realization of a “training of trainers” workshop by the Norwegian Refugee Council on September 4-7 for participants from the civil society to develop capacity within Turkey, which previously has been limited to provide awareness and training to NGOs and communities related to human rights and service delivery for IDPs;
- Development of a policy paper outlining critical areas for NGO engagement which underlines possible policy lines for the NGOs, public authorities, and international organizations to increase productive cooperation on IDP related issues;
- Dissemination of the UN Guiding Principles, its Annotations, and a Summary in Turkish to more than 8,000 individuals or organizations throughout Turkey;
- Provision of Technical Support to the Ministry of Interior to develop a “Valuation Matrix” Approach for a more systematic and effective implementation of the Law on Compensation, drawing on concrete international experiences from Bosnia, Iraq, and Germany provided at a UNDP-organized training and benefiting from the technical expertise of the International Organization of Migration and the Brookings Institution-University of Bern Project on Internal Displacement
- Provision of Technical Support and advice to the Ministry of Interior, particularly the General Directorate of Provincial Administration, to establish a Secretariat to review decisions of the Damage Assessment Commissions, again in the context of the Law on Compensation
- Provision of technical support and facilitation of consultative mechanisms for the development of a provincial level “Van Action Plan for Service Delivery” in Van Province, near the border of Iran, to ensure that response by government, NGOs, and other relevant stakeholders address the social service needs of IDPs who choose to return to their communities of origin as well as those who choose to integrate into a new community;
- Support to a high-level, public meeting on September 29th at which the Minister of Interior, Governor of Van, RSG Walter Kalin, and UNDP RR/RC Mahmood Ayub publicly commented on the importance of Turkey’s support to IDPs, government ownership, the relevance of the Van Action Plan at a national level, and an overview of strengths and challenges of the Plan by RSG Kalin. The meeting resulted in important media coverage to further disseminate the Government’s commitment and plans related to IDPs, and also provided a road-map for additional technical support and services that may be provided by UNDP/Turkey.”

Six years on: Implementation of the “Return to Village and Rehabilitation project” (2005)

- The current government programme for the displaced is the Return to Village and Rehabilitation Project (RVRP) was launched in 1999
- The European Commission (EC) expressed concern regarding the lack of transparency and adequacy of consultation in the development of the project
- The EC also expressed “disquiet” regarding the absence of a clear strategy
- The number of areas where access is still prohibited has been reduced but authorisation to return is still difficult to obtain

- The Turkish government has produced numerous return initiatives since 1995, the majority of which have been superficial and which have failed due to lack of funding and political drive
- IDPs have not received sufficient financial support to return to villages, to fix destroyed properties and to develop basic infrastructure in areas previously subject to armed clashes
- The project has also failed to restore damaged and destroyed infrastructure in villages to which populations are returning

EC, 5 November 2003, p.40

"Implementation of the Return to Village and Rehabilitation Project has continued, though at a very slow pace and inconsistently, some regions progressing quicker than others. According to official sources, 82000 people were authorised to return to their villages in the period between January 2000 to January 2003. There is, however, concern regarding the lack of transparency and adequacy of consultation in the development of this project and disquiet about the absence of a clear strategy that explains the project aims, scope and budgetary implications. The number of areas where access is still prohibited has been reduced, but authorisation to return is still difficult to obtain. Although limited financial assistance has been provided to some returnees, there is a more general lack of financial resources to support return to villages, to compensate villagers for the destruction of houses or dwellings and to develop basic infrastructure in areas previously subject to armed clashes."

HRW, March 2005, pp.21-24

"The Turkish government's current chosen vehicle for providing assistance to IDPs is the Return to Village and Rehabilitation Project. Successive governments have produced various return initiatives since 1995, all of them hobbled by a lack of funding and insufficient political drive. [...] These initiatives appear largely to have been motivated by a desire to create the impression of government action, in order to deflect questions from petitioning villagers, parliamentary deputies from the southeast, and foreign diplomats. The plans may also have served to relieve pressure on the government from metropolitan populations and municipalities concerned about the influx of peasants squatting on vacant land and erecting *gecekondus* (shanty dwellings).

In March 1999, then prime minister Bülent Ecevit launched the Return to Village and Rehabilitation Project with the following description: 'Within the framework of the project, those families who wish to return to their villages will be identified; infrastructure facilities of the villages will be completed; housing developments will be increased with the labor of families; and social facilities will be completed to increase the standard of living of the local people, especially in [the areas of] health and education. Moreover, activities such as beekeeping, farming, animal husbandry, handicrafts and carpet weaving will be supported so that these families can earn a living.' [...] The Return to Village and Rehabilitation Project has now been running for almost six years. Human Rights Watch has long criticized its poor performance. In 2001 and 2002, Interior Ministry officials said that the government would expand and formalize assistance to returning displaced persons once a survey had been completed and a returns model established. The survey was finished in 2002, but no model for return was ever developed, and governors continue to dole out meagre assistance through the project on an ad hoc basis.

Between 1999 and 2002, the state allocated approximately U.S. \$19 million to the scheme, but in the villages visited by Human Rights Watch, there was not much to show for the expenditure.

Returning residents in Koçbaba village had received no assistance for the reconstruction of their houses. At Seren village, situated by the main road in Hani, Diyarbakir, several villagers had reconstructed their homes, but they had paid for the work out of their own pockets. The village muhtar stated that many villagers had signed petitions for assistance under the Return to Village and Rehabilitation project 'but shame upon them [the government], only three families received anything. They received seventy bags of cement each, and 500 kg of reinforcing steel. We are

none of us rich, but these were the poorest of the families. I have made more than a hundred petitions for assistance [on behalf of villagers]. [...] The sub-governor of Hani told Human Rights Watch that he had applied to the Interior Ministry for urgent assistance for reconstruction, and hoped that this would be allocated soon. [...]

The former muhtar of Yolaçti village and the muhtar of Saggöze near Genç in Bingöl told Human Rights Watch that their villages had received no government reconstruction assistance. [...] Government assistance in the Genç district consisted of twenty bags of cement and a hundred tabaka (timber sheets) each to 250 families, but the government list indicates that 1,280 families have returned in that area. [...] According to the Siirt Human Rights Association, villages in the Eruh district of Siirt province received no assistance for reconstruction. Villages in the Sirvan district have received some material assistance, but the amounts received by each villager were insufficient to rebuild a home. [...] The Return to Village and Rehabilitation project has also failed to restore damaged and destroyed infrastructure in villages to which populations are returning. The Saggöze muhtar stated that his village had no road, water, electricity, or school. [...] According to the former muhtar of Yeniyazi, and the muhtar of Büyükçag near Genç in Bingöl, their villages still have no road. [...]

The Return to Village and Rehabilitation Project is supposed to provide income support to returnees. Yet such support has been sporadic and insufficient. In the village of Koçbaba, for example, returning residents arrived without livestock (sold at the time of displacement in 1991 in order to pay for accommodation and food) to find that their orchards had been burned annually until they died at the roots. Several villagers told Human Rights Watch that they could not afford to purchase any livestock. [...] They said that in 2003 the gendarmerie had distributed five kilos each of oil, sugar, and rice to each family on one occasion, and that in 2004 the local governor had distributed 150 NTL (approximately U.S. \$113) to each family. The Koçbaba residents were grateful for the assistance, but regretted that it was much too little to meet their needs. No inhabitants from any other village interviewed by Human Rights Watch in November 2004 had benefited from income support grants, though several villagers were aware of other communities who had received assistance in the form of livestock or sapling trees.

Clearly, the Return to Village and Rehabilitation Project is not doing its job in its current form. The project is under-funded. There are no clear guidelines about what a community or a particular villager can expect. Assistance is distributed in an arbitrary and inconsistent manner. Work in repairing infrastructure has not even kept up with the existing slow rate of return.

Other assistance programs also seem to be missing their target. For example, farmers receive agricultural assistance money from the Ministry of Village and Agricultural Affairs based on the area of their arable land. In Seren village, however, agricultural support for the entire village was stopped on the grounds that some villagers had made claims relating to non-arable areas. The village muhtar pointed out that these areas were arable fields that had returned to scrub because for a decade the villagers had been given no access to farm the land. Other villagers in the province reported that after they had been forced off their lands, inhabitants of neighbouring villages had illicitly claimed agricultural support in respect of the lands left vacant.”

Overview of government return initiatives (1994-2003)

- The first major plan initiated by the government in 1994 attempted to encourage return to a number of “centralized” villages
- The second plan, announced in 1995, the 'Return to the Village Project of the Southeast Restoration Project' was designed to resettle the displaced population in stages to relieve the pressure on the cities

- The third plan was to provide assistance to displaced persons to return to their villages or relocate to new, centralized villages in the region
- The government's return policy and projects have been overwhelmingly critiqued for being consistently under-funded and ill conceived and falling far short of established international standards
- The return projects have also frequently required displaced people to fill out special applications to return which are subsequently rejected by the government
- In other cases, villagers given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military

KHRP/Goç-Der/HRA September 2003, p.41-43

The Centralised Villages Project (1994)

"The first major plan was aimed not at enabling the displaced to return to their original villages, but at concentrating them in more easily controllable large settlements. This was the '*Centralised Villages Project*': a plan to settle mountain villagers into large 'centralised' villages near population centres.[...] Announcing the programme in November 1994, Prime Minister Tansu Çiller said that as a first step, the Government would create 'secure areas' in Southeast Turkey for 12,000 displaced families. The Government says the programme is designed to consolidate some of the abandoned hamlets in order to make it easier 'to deliver infrastructure and services and attract jobs'. [...] However, the Turkish authorities will not agree to return to the previous set up of Kurdish communities, particularly those small isolated communities in the mountains, fearing a return to armed struggle.[...]"

In order to fund the Centralised Villages Project, Turkey applied for 10 trillion liras (an estimated U.S. \$275 million) from the Council of Europe. In its application, the government avowed that the programme would be entirely voluntary, promising to establish resettlement sites in the provinces of Batman and Diyarbakir. When Turkey's application was rejected, with the Council of Europe expressing concern that the funds would be used to coerce people to resettle, that particular project foundered.[...] Despite this setback, Turkish governments have continued to try to create centralized villages aimed at establishing manageable settlements ancillary to towns and cities in the Southeast as a solution for displaced Kurds.

[...] Some centralized villages have indeed been created. By November 2000, the resettlement programme had spent U.S. \$100,000 on a pilot project to rebuild Cetinkol, a village located outside of the provincial capital of Siirt. Other centralized villages have been established at Basagac, Konalga and Bayrakli. By June 2001, the government had established a system of satellite settlements organized around the larger urban centres of Southeastern Turkey. The US State Department Report for 2001 stated that 4,000 people lived in the centralized villages.[...] The centralized village project has encountered considerable criticism from many quarters. [...] The programme was developed without consultation with those affected or any public debate, and was apparently prepared in its entirety (including field research) in only 9 weeks.[...] Crucially, the project has been criticized as inappropriate for the region and inattentive to its people's culture, skills or desires.[...] In some cases, it is village guards that have moved in rather than displaced persons.[...] [T]he government has been accused of a lack of commitment to the programme and of intentionally delaying the return of displaced villagers by withholding funds from the project; by the spring of 2000, the government had dispensed only 10% of the project's estimated budget of TL 700 million.[...] The military and regional State of Emergency officials also actively opposed the programme.

Göç-Der has stated that almost 40% of internally displaced persons have never heard of the Centralised Village project. Among the ones who heard about this project only 6% of them agreed to go to the city-village."

KHRP/Goç-Der/HRA September 2003, p.43-44

The Return to the Village Project of Southeast Restoration Project (1995)

"In 1995 the Government proposed the 'Return to the Village Project of the Southeast Restoration Project'. The new programme was designed to resettle the displaced population in stages so as to relieve the pressure on the cities. In order to mitigate the economic burden that would be borne by those who relocated, the programme provided financing to encourage traditional agrarian occupations, such as bee keeping, animal husbandry, and weaving. The government proceeded with the programme and in November 2001 Interior Minister Kazim Yucelen declared that the government had allocated 3.2 trillion liras for the *Return to the Village Project*.[...] But once again, the military and regional State of Emergency officials claimed that the project posed serious security risks. [...] As a result, individuals wishing to return were required to submit special applications. Only a few villagers have been given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military. [...] Sharp criticism came from Human Rights Watch, who suggested that the project was largely fictional with most abandoned settlements remaining no-go areas, which in some cases have been occupied by government-armed village guards. [...]"

KHRP/Goç-Der/HRA September 2003, p.44-45

East and Southeast Anatolia Action Plan (2000)

"In a further plan announced by the Turkish government, the 'East and Southeast Anatolia Action Plan' began in May 2000. [...] The plan provides assistance to displaced persons to return to their villages or relocate to new, centralized villages in the region. The Turkish Daily News reported in May 2000 that 7.5 trillion Turkish lira had been allocated to the East and Southeast Anatolia Action Plan, whereas according to the Mayor of Diyarbakir, 700 trillion was actually needed to address the problem. [...] In November 2001 Interior Minister Kazim Yucelen announced that programmes relating to health, education and social, economic and cultural fields were underway within the framework of the East and Southeast Anatolia Action Plan.

Human Rights Watch has stated that these schemes, 'have consistently been under-funded and ill conceived, falling far short of established international standards. In fact, it is difficult to avoid the conclusion that the government's main goal is to gain time and wear the villagers down to a state of resignation. The Village Return and Rehabilitation Project announced in March 1999, for example has since yielded nothing more than an unpublished feasibility study for return to twelve model villages. A mere twelve, when even according to official statistics it is acknowledged that more than three thousand villages and hamlets were evacuated".

For more information:

"[Turkey fails displaced villagers](#)" and "[Displaced and Disregarded](#)" reports by Human Rights Watch , 30 October 2002

The "central villages" or "village-town" relocation scheme (1994-2001)

- The project aimed to settle people from mountain villages into large centralized villages on state lands under the surveillance of security forces
- Several problems affected the implementation of the project including lack of international support, lack of consultation with the beneficiaries, and deficient planning
- Only 4,000 displaced persons were living in such central villages by the end of 2000
- There were reports that villagers were admitted to central villages only if they joined the village guards

USCR 1999, pp. 20-21

The Central village project was announced by Prime Minister Tansuiller in November 1994

"The Village Centers (*merkez köy*) Project was intended to settle people from mountain villages into large centralized villages on state lands near major population centers. The state planned to provide housing and arable land based on loans to be paid back within a 15-to-20 year period. Although the general outlines of the plan were not geared specifically to the displaced (or even to southeastern Turkey), in announcing the plan, Prime Minister Tansuiller said that its first beneficiaries would be 12,000 homeless families from Ovacik. The Netherlands Kurdistan Society traced the history of the idea of a centralized villages in Turkey:

Similar projects have been proposed in the 1970s in more peaceful circumstances, both by the left-of-centre Republican People's Party (CHP) of Mr. Ecevit and the right-wing Nationalist Movement Party of Mr. Türkeş. Then named 'village-town' (köykent) and 'agricultural town' (tarm kent), the foreseen large settlements were to provide the rural population with better infrastructure and employment opportunities than would be possible in the myriad of existing villages and hamlets. Never implemented, the idea was revived in 1992 or 1993 by the late President Turgutzal, who posthumously published position paper on the Kurdish question recommended the massive resettlement of Kurdish mountain villages in more easily controllable large settlements.

The government requested \$278 million from the European Resettlement Fund of the Council of Europe to implement the Village Centers Project. It reportedly failed to secure the funding, and, therefore, did not move forward with the project."

IHF 2001, p. 303

"[T]he Government lacked a clear will to return all displaced villagers to their original homes and was still pressing forward with its projects for 'central villages' (köykent), into which some villagers would be permanently resettled on government land in communities under the eye of the security forces. In any event, returns to villages were slow: the U.S. Department's annual human rights report for 1999 quoted a government figure amounting to no more than 6.59% of the Parliamentary Commission's conservative figure."

HRF, January 2001, sect. 2

"The victims of forced displacement did not show much interest in officials projects such as the project of central villages or village-town, that were developed by the government in order to present conditions for return. These projects were developed without the wish and intent of the victims and rather than securing an atmosphere of social peace and trust only represented the official ideology. Considering the rural way of productivity they also do not carry much weight for the future. All kinds of criticism and alternative models for solution that either the victims themselves or NGOs developed, were not taken into consideration.

[...] In a speech of 12 December [2000], Diyarbakir Governor Cemil Serhadli accepted the fact that the village-town project had not raised much interest. He pointed out that in Diyarbakir alone, the building of 5,864 houses was still continuing and added that out of 23,000 people who had asked to return to villages in Diyarbakir province only 3,000 had done so. The governor did not deal with the criticism on conditions and permission for a return and claimed that the migrants wanted to stay in town. 'Some are sending their children to school and other have set up their own work. The youth has become used to life in town.' However, the longer necessary steps are not being taken to allow for the return of the migrants and as long as they are forced to move to other settlements the problems of them will only increase.

USCR 2001, p. 263

"The government's organized return program appeared toward establishing heavily guarded and controlled 'central villages' in the southeast. About 4,000 displaced persons were living in such central villages at year's end."

HRF February 2001, sect. 2

"The only civilian project (even though partly) of the government on the issue of forced displacement presently is the project for building 'City Villages' (Köy Kent) or concentration and urbanisation of groups of villages in pre-determined locations. The implementation of the project has started without any public or political debate. The Chairman of the Chamber of Agricultural Engineers under the TMMOB, Prof. Dr. Gürol Ergin, commented in a speech he made in February that the project had no chance of success even within its own logic. He emphasised that rural development was one of the prerequisites of return to villages, and that people should be able to return on voluntary grounds. In this sense, he said, the State of Emergency regime should be abolished and the land should be cleared of mines. Prof. Ergin also projected that the villagers should be given monetary aid of 18 billion TL for reconstruction. He commented that huge amounts of public funds were spent for the project without any discussion in detail or in general, implementing technically insufficient and badly prepared projects on the basis of commands. He also commented that even the defenders of the 'Köy Kent' were not taking it seriously. He said, the fact that the entire project was prepared within 9 weeks including the field research justified concerns about the quality of the project."

HRW September 2000, endnote 52

"It appears that resettlement into central villages may be conditional on security checks. In May 1999 Human Rights Watch was informed that villagers had been told that they would not be admitted to the 'central village' of Konalga village, near Van, unless they agreed to join the village guard corps."

Turkish Daily News, 30 January 2001

Opinion of the Chairman of the Parliamentary Committee on Displacement in Southeastern Turkey, Mr. Hasim Hasimi, Member of the Turkish Grand National Assembly

"TDN: What do you think about Prime Minister Ecevit's Village-Town project?

HASIMI: There are two striking examples that put on record that the Village-Town does not work. One of these involve the Dogankent experience in Hakkari in 1994. The Dogankent settlement was built for the inhabitants of the Uzungecit area. However, people did not settle in Dogankent. They migrated to Van. This is because there were no resources in Dogankent which would enable them to earn a living. The second example involves what happened in Sirnak's Basagac Village six months ago. That village [built to serve as a central town to provide basic urban services to the villages in the vicinity] lacked drinking water. The settlements get constructed in such an unplanned, unprogrammed manner.

Furthermore, the Village-Town project is not in line with the realities of the East and the Southeast. At that time due to security problems villagers were unable to go to their fields or vegetable plots. The project envisages to merge several villages into one. And people would go to their hamlets, fields or vegetable plots in the morning and return in the evening. But there wouldn't be enough time for them to do that. Also, there is another hazard. When you bring together the population of several villages how will you enable them to earn a living? Due to local factors people have blood feuds and some other disputes and, as a result, avoid being together. They go away and set up a hamlet of their own. When even the inhabitants of the same village who know one another and are even related to one another cannot live together, how can people who do not know one another get along?

There is no sense in continuing to stubbornly implement a project that has met with failure right from the start. I say that the money to be spent on that project will be wasted."

Obstacles to return and resettlement

Overview of obstacles to return (2007)

- Security is an issue in some parts of the southeast
- The 2004 compensation law has been applied unevenly thereby resulting in some displaced people receiving very low amounts and others being excluded altogether
- Many IDPs stay temporarily in their village during the summer and return to urban areas during the winter
- Villagers told Human Rights Watch that the main reason for the winter exodus was that village life in winter is unsustainable and dangerous
- Many villages lack access to electricity and telephone services and are inaccessible by road for up to three months a year.
- Villages also lack medical facilities and schools
- MRG reported that prohibitions on animal husbandry occurs in areas where there are so called security concerns thereby discouraging returns
- Human Rights Watch noted in a 2004 report several attacks on civilians by village guards in areas of return, including in the provinces of Diyarbakir, Mus, Mardin and Hakkari
- The discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return

HRW, January 2007

“The Turkish government has failed to facilitate the return of the estimated 378,335 internally displaced persons (IDPs) from the southeast who were forced by the army to flee their villages during the armed conflict with the PKK in the 1980s and 1990s. The government has failed to rehabilitate the basic infrastructure of most villages destroyed by the army during the conflict; many villages have no electricity, telephone access, or schools. What is more, the security situation in some regions remains poor; the 58,000 village guards—Kurds armed and paid by the government to fight the PKK—often occupy or use vacated lands, and have killed 18 people, including would-be returnees, in the past four years.

IDPs who do return to their villages cannot afford to rebuild their homes or re-establish agriculture. A 2004 compensation law, which could have provided the financial means to support IDPs who want to return to their villages, has been interpreted and applied by some provincial compensation commissions so as to pay derisory sums (often as low as US\$3,000) or exclude eligible IDPs from compensation altogether.”

EC, 8 November 2006, p.23:

“Several factors affect negatively the return of IDPs: the absence of basic infrastructure, the lack of capital, limited employment opportunities and the security situation. In particular, large numbers of landmines [...] constitute a strong disincentive to return. Moreover, the discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return.

MRG, 2006, pp.16-17:

“The prohibition on accessing pastures

This prohibition is mainly implemented in rural areas where clashes have occurred. Such bans are a major obstacle for villagers and nomadic groups who make their livelihood from stockbreeding. The clashes themselves are also a disincentive to return, especially

for those who work in animal husbandry."

EC, 9 November 2005

"Several factors hamper the return of IDPs: the continued relative economic underdevelopment of the East and Southeast, the absence of basic infrastructure, the lack of capital, limited employment opportunities and the security situation. [...] Moreover, the discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return."

HRW, 15 December 2004

"In November 2004, Human Rights Watch carried out field research on the current conditions for return in southeast Turkey. It found that government statistics on return overstated the true number of returns and masked the wretched conditions under which returns were taking place. Most returning villagers had received little or no state support or compensation. A large number of internally displaced persons stay temporarily in their village during the long summer school holiday and return to urban areas during the winter, leaving a much smaller number as permanent residents. Villagers made it clear that the main reason for the winter exodus was that village life in winter is unsustainable and dangerous. Many villages lack access to electricity and telephone services and are inaccessible by road for up to three months a year. They also lack medical facilities and, most importantly, schools. That any villagers choose to remain in the villages over the winter reflects the miserable conditions for the displaced in urban areas.

Civil servants sometimes cite the extremely primitive conditions in some villages to argue that these remote settlements are not viable but it is important to note that all these villages had electricity and telephone connections fifteen years ago prior to their destruction. In most cases, road access deteriorated as a result of a decade of neglect. Most villages also had ready access to schools before the late 1980s, the turning point when the PKK began its policy of killing teachers, and the state began destroying school buildings and other infrastructure.

Return is a risky process. Returnees are not viewed with much sympathy by the security forces, and are under threat by government-sponsored village guard neighbors, who in some cases have occupied their lands. In the last three months Human Rights Watch has noted several attacks on civilians by village guards in areas of return, including in the provinces of Diyarbakir, Mus, Mardin and Hakkari. The fear and intimidation that kept many villagers out of the countryside has to some extent diminished in the two years since Human Rights Watch's 2002 report on the village return program. However, the recent shootings are an alarming reminder of the continued potential for lethal state violence against civilians. They substantiate the fears the internally displaced have for their personal security, a key obstacle to their return."

HRW 26 January 2004

"Lack of progress on the internal displacement of Kurdish villagers remained a key human rights concern. During their bitter armed conflict with the illegal armed Kurdish Workers' Party (PKK) from 1984 to 1999, Turkish armed forces forcibly evacuated hundreds of thousands of Kurdish villagers from their homes in the southeast. Most villagers are still unable to return to their property because of the threat posed by paramilitary village guards and uncleared mines, or because they cannot afford to restore their homes and local infrastructure."

U.S. DOS 25 February 2004, Sect. 2d

"Citing security concerns, southeastern provincial authorities continued to deny some villagers access to their fields and high pastures for grazing, but have allowed other villagers access to their lands. Voluntary and assisted resettlements were ongoing. In some cases, persons could return to their old homes; in other cases, centralized villages have been constructed. Only a fraction of the total number of evacuees has returned. The Government claimed that 94,000 persons returned to the region from June 2000 to October. More than 400 villages and hamlets

have reportedly been reopened with government assistance. These figures could not be independently verified.

HRW 26 January 2004

“Moreover, return is still a hazardous process. Three newly returned villagers were killed by landmines in separate incidents in 2003. In July 2002, Yusuf Ünal and his two sons Abdurrahim and Abdulsamet were killed when they returned to Nureddin village in Muş province to collect their hay crop. Family members reported that a truck full of village guards came to stop them collecting the crop, and that they began to beat the three men. Fleeing relatives heard gunshots shortly afterwards. Twenty-four village guards are currently on trial for the murders, but to date courts have been very reluctant to convict serving members of the security forces, including village guards, for such offences.”

UN expert identifies remaining obstacles to IDPs’ returns (2006)

- Among obstacles to IDPs’ returns, the expert names:
- precarious and reportedly deteriorating security situation
- socio-economic factors such as lack of employment opportunities and inadequate infrastructure
- the institution of village guards

UN, 16 November 2006:

“Obstacles to return still remain, such as the precarious and reportedly deteriorating security situation in the region, exacerbated by landmines in roads to and from villages.

According to non-governmental sources, in 2005, 373 persons lost their lives. There has also been an increase in extrajudicial killings/murders by unknown perpetrators. In 2005, there were 43 extrajudicial killings and 56 were injured. A further 48 persons died because of bombs and explosives, and 72 were injured.

Also, socio-economic factors prevent many people from returning, including the lack of employment opportunities in the South-East and inadequate infrastructure in the villages (electricity, water and sewage systems, the collapse of previous sources of revenues). This in turn affects the right to education, health, housing, freedom of movement, and property.

A further issue complicating the return of internally displaced persons is the institution of village guards, who are appointed for the purpose of assisting the law enforcement authorities in countering terrorist and violent acts pursuant to article 74 of the Village Law No. 442. In accordance with article 16 of the Provisional Village Guards Regulation, village guards are under the instruction and command of the Commander of the Jandarma Headquarters, to which they are affiliated. According to many reports, the village guards hamper the right to return either because they occupy houses and farms of IDPs, or because of the distrust the institution as such nurtures among IDPs. The Special Rapporteur was assured by government authorities that the village guard system is being phased out. The 58,750 village guards active in December 2001, had been reduced to 57,246 by December 2005, which shows that the pace of implementing the phasing-out is quite slow. A clear plan with benchmarks and time limits needs to be established to follow up the policy.”

Deterioration in security could undermine return process (2005)

- An improvement in the security situation in the former conflict areas in recent years has been an important factor encouraging returns
- Villagers interviewed by Human Rights Watch (HRW) noted that the atmosphere was less tense, though the situation varies from province to province
- Most villagers interviewed by HRW noted that the relation with local gendarmerie has improved
- There is concern that the PKK/Kongra Gel's return to armed activities in June 2004 could undermine the return process

HRW, March 2005, p.p.8-9

"Security is a crucial factor in returns. There would be no returns at all if personal security in the rural areas of southeast Turkey had not improved much in recent years. All villagers interviewed by Human Rights Watch affirmed that the atmosphere was much less tense attributable to the decline in political violence, although the degree of improvement varies from province to province, and from district to district. Returning villagers told Human Rights Watch that their villages are no longer being visited by armed militants looking for food and recruits, and that relations with the local gendarmerie have improved. While some mentioned harsh words and threats from the military, most indicated that the routine brutality of the past had, in general, been replaced by a level of tolerance and respect.

It is important to emphasize that the relative improvement in personal security mentioned by returned villagers will evaporate very quickly if there is a return to open conflict in the region. It was the PKK's exploitation of Kurdish villagers for food, money, and recruits that made those villagers, in turn, targets of state persecution. Kongra Gel's return to armed activities in June 2004 risks provoking a heavy-handed government response that may harm Kurds and derail the whole process of return. That risk was identified by the nongovernmental organization Göç-Der7 in an October 2004 report examining the situation of the displaced. The report urged Kongra Gel to renew its unilateral ceasefire and pursue peaceful means in the interests of the displaced. [8]"

[Footnote 8] Türkiye'nin AB Sürecinde Göç Sorunu ve Çözüm Önerileri,' (Turkey's Migration Problem and Proposals for Solutions in the context of the EU Process), Göç-Der, Istanbul, October 16, 2004. The publication also contained a series of recommendations to the E.U. and the Turkish government.

Destroyed housing and poor infrastructure hinder sustainable return (2006)

- The overall socio-economic situation in the Southeast remains difficult and the European Commission 2006 report notes there is no comprehensive plan to address this issue
- The east and south east regions of Turkey suffer from a chronic lack of social facilities and infrastructure
- Many villages in the former conflict areas do not have telephone connection, electricity supply, schools, health facilities, water and sanitation systems
- In many cases, access to villages in former conflict areas is difficult because roads have deteriorated

EC, 8 November 2006

"The overall socio-economic situation in the Southeast remains difficult and there is no comprehensive plan to address this issue."

EC, 6 October 2004, p.51

"The return of IDPs is hampered by the relative economic underdevelopment of the East and Southeast"

See also "[Turkey: Explanatory Memorandum by the co-rapporteurs](#)", Parliamentary Assembly Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee), Co-rapporteurs Mrs Delvaux-Stehres and Mr. Vand den Brande, March 2004

HRW, March 2005, pp.7-8

"The violence that was used during the forced evacuation of the villages, coupled with a decade of neglect, means that villagers face return to near wilderness punctuated with piles of stones where their homes once stood. Their fields are overgrown, and their pasture turned to ungrazeable scrub. Many villages in the former conflict areas have no telephone connection, no electricity supply, no school, no health centre, no water or sanitation system, and often no passable road.

Civil servants sometimes cite the extremely primitive conditions in some villages to argue that the settlements are fundamentally and intrinsically non-viable, but it is important to note that fifteen years ago, prior to their destruction, the villages had electricity and telephone connections. In most cases, road access deteriorated as a result of a decade of neglect. Most villages also had ready access to schools before the late 1980s, when the PKK began its policy of killing teachers, and the state began destroying school buildings and other infrastructure.

Most villagers were not rich, even at the beginning of the 1990s. But they were impoverished by the wholesale destruction at the point of evacuation, and grew poorer still during ten years in internal exile. Today, most of the displaced lack the resources to properly resume their previous lives as farmers and stockbreeders. For return to be viable, displaced villagers need the ruined infrastructure of their communities restored, assistance with rebuilding their homes, and support during the transition stage while they are re-establishing their livelihoods.

The challenges were illustrated starkly during a November 2004 visit by Human Rights Watch to Koçbaba village, near Hazro in Diyarbakir province. The village lacks the basic elements needed to be a viable community. The population of Koçbaba consists almost entirely of ageing villagers because, in the absence of a local school, families with children have to stay in Diyarbakir. Several elderly villagers were living in huts constructed of branches and plastic. The average nightly temperature during January in Diyarbakir province is consistently below freezing.

Apart from an earth road and a stream, infrastructure at Koçbaba was non-existent. Koçbaba inhabitants described a deadlock over the village's telephone and electricity connection, since the governor and suppliers expected the villagers to erect the poles to carry the supply, whereas the villagers felt that this was not their job since they had not destroyed them.

Destruction of housing and infrastructure was total for most cleared villages, but the degree of current recovery varies considerably. Recovery depends on the natural advantages of the village, including its proximity to a road, the energy of its village muhtar [6] and his relationship with the sub-governor. The reconstruction and re-opening of the village school seems to be a determining factor. In villages with access to schooling, the population seems much more likely to stay the whole year round and include residents across the range of ages. Çiftlibahçe village, near Hazro, Diyarbakir province, for example, is clearly thriving with high morale and plenty of youngsters around. The village school had been destroyed during the forced evacuation, but a new school building has been constructed with funds provided by Galatasaray, one of Istanbul's leading football (soccer) clubs."

[Footnote 6] A villager elected to represent the community in its dealings with the state.

Overview of international and national response to village guards, by Human Rights Watch (2006)

- Numerous international and regional bodies, like the UN and the EU have called for abolition of the village guards system
- At the national level, the Turkish Grand National Assembly's 1995 parliamentary commission also found that the village guard system contributed to social problems and should be abolished
- In April 2006, the Human Rights Commission of the Grand National Assembly referred to the village guards as a mistake
- Human Rights Watch notes condemns the government's inaction

HRW, 8 June 2006

"The Turkish Grand National Assembly's 1995 parliamentary commission on political killings and the Grand National Assembly's 1998 parliamentary commission on internal migration called for an end to village guard service. The Grand National Assembly's 1997 parliamentary commission on the Susurluk affair found that "[t]he existence of the feudal structure in the east and southeast ... and the social problems created by the provisional guard system created the circumstances for tribes to get involved in narcotic and weapons smuggling. The Provisional Village Guard System must be abolished, and until that time, it should be reduced and kept under tight control." The April 2006 report on the Pemdinli bombing prepared by the Human Rights Commission of the Grand National Assembly stated: "The state is responsible for the safety of the citizen. The legitimate security forces of the state are the police and armed forces. By this measure, the village guard system was a mistake. Because under the village guard system, the citizen began to be viewed as either on the side of the state, or as a potential threat to the state, at least among local people. Some village guards seized other people's property and abused their status in disputes between tribes, and thereby increasing tension in the region. It was also observed that some village guards assisted the terrorists."

The United Nations (U.N.) Special Rapporteur on extrajudicial, summary or arbitrary executions said in 2001, "The village guard system, to which a large number of extrajudicial killings have been attributed, should be disarmed and disbanded without delay." The Representative of the U.N. Secretary-General on the human rights of internally displaced persons said in 2002, "The Government should take steps to abolish the village guard system and find alternative employment opportunities for existing guards. Until such time as the system is abolished, the process of disarming village guards should be expedited."

The Parliamentary Assembly of the Council of Europe concluded, in 2002, that Turkey should "abolish the village guard system." The European Union has likewise identified the village guard system as an issue that must be resolved if safe returns of displaced persons are to be made possible throughout the region. The European Commission's 2004 Regular Report on Turkey's progress toward accession described the village guard system as one of the "major outstanding obstacles preventing IDPs [Internally Displaced Persons] from returning to their villages..." It continued, "Very few Syriac origin citizens have attempted to return from abroad, in particular, because they face harassment from the village guards and the gendarmerie. The issue of the village guards remains unresolved. Notwithstanding the judicial procedures against village guards involved in murders, official figures state that 58 416 village guards are still on duty (as opposed to 58 551 last year [2003]) ... In many cases, authorization to return to villages is reportedly conditional on the willingness of the returnees to serve as village guards."

The European Court of Human Rights has made numerous judgments against Turkey with respect to village guard abuses. In May 2005, in *Acar and Others v. Turkey*, the court found the

Turkish government responsible for violating the right to life of six villagers from Çalpýnar near Midyat in Mardin province on April 14, 1992. In December 2004 eight village guards were sentenced to life imprisonment for the killings.

The Turkish government's inaction

Despite the widely-held view that the village guard system must be abolished, fifteen successive Turkish governments have failed to take action to bring an end to the murders and other criminality of the village guards. The village guard system remains in place and virtually unchanged since its foundation.

The village guard system combines lethal force with a convenient level of deniability. In some of the cases contained in this letter, individual village guards have been indicted and prosecuted, and in one case convicted and sentenced. But institutional responsibility for their crimes has been completely avoided. Village guards make up about 40 percent of the personnel under the gendarmerie's control, and work under the command of gendarmes in the field but appear institutionally invisible. Village guards are not mentioned in Law 2803 on the Organization, Duties and Powers of the Gendarmerie, nor do they appear on the organogram of the Gendarmerie General Command's website.

To Human Rights Watch's knowledge, at no time in the past twenty years has Gendarmerie General Command ever answered for the scores of murders committed by village guards operating under their command, even when their responsibility for the crime has been confirmed by Turkish and international justice. On April 20 1992, village guards from Kutlubey near Midyat in Mardin province stopped a minibus carrying villagers from nearby Çalpýnar who had refused village guard service. The guards lined the villagers up and shot them, killing five men and one child. In December 2004 the Turkish Supreme Court confirmed sentences of life imprisonment imposed on eight village guards from Kutlubey. In May 2005, the European Court of Human Rights found the Turkish government responsible for violations of the right to life, and failing to carry out an adequate and effective investigation into the deaths and injuries. Gendarmerie General Command made no statement of apology or even acknowledgement of the killings.

Your own government is inconsistent in its statements about the village guard system. In 2002 you assured the then Representative of the U.N. Secretary-General on the human rights of internally displaced persons, Dr. Francis Deng, that although village guards could not be made summarily redundant, "the Government was in the process of disarming village guards and was finding them alternative employment opportunities." In August 2004, however, you told the Turkish parliament that "the abolition of the village guard system is not being considered." By May 2005 your government had apparently revised its view again, because the new U.N. Representative on internally displaced persons, Dr. Walter Kälin, said that in his meetings with the administration he had been "impressed by the willingness shown by his interlocutors to approach the problem of internal displacement with an open mind, to develop a new strategy on internal displacement that addresses all obstacles to return, including the role of village guards."

In November 2004, a senior foreign ministry official informed Human Rights Watch of plans to establish a new agency to coordinate policy and activities on behalf of IDPs, including developing a policy for demobilizing the village guard corps. Over a year later, however, the new agency has yet to be established, and no steps have been taken toward abolition of the guard system.

The strong impression given is that your government wishes to appear responsive when challenged by international bodies about village guard abuses, but is as unwilling as its predecessors to take any actual steps."

Village guards remain perceived security threat for displaced (2006)

- In a letter to the Ministry of Interior, Human Rights Watch outlines ongoing concerns related to the village guard system
- Research by Human Rights Watch found that the presence of village guards is deterring displaced people from returning to their former homes
- Displaced people continue to face pressure to join the village guards
- Village guards continue occupy displaced persons' houses or land
- The letter outlines a number of grave human rights violations by village guards as recently as 2003-2004
- Village guards have also been involved in criminal activities

HRW, 8 June 2006

"For more than eighteen years Human Rights Watch has been receiving reports of violations by village guards—murders, rapes, robberies, house destruction, and illegal property occupation, among others. We have received, from various sources, numerous complaints relating to village guards, not all of which we have confirmed first-hand.

Nevertheless, the prevalence of such complaints and incidents suggests that there are serious and unresolved problems. In the past three-and-a-half years village guards have killed at least thirteen unarmed villagers, and attacked many others. Continuing violations are severely hindering resolution of the problem of widespread internal displacement in the southeast: the threatening presence of village guards is deterring displaced people from returning to their former homes; village guards occupy displaced persons' houses or land; and displaced villagers fear that on return they will again be put under pressure to join the village guards. There is no legal requirement to join the village guard corps, but security forces often make village guard service an informal requirement for return. Returning villagers who join expose themselves to attack by the Kurdish Workers' Party (PKK). Any returning villager faces the ever present threat of violence from village guards who may carry out reprisals for attacks by forces of the PKK, pursue blood feuds and tribal conflicts, or engage in any of the other forms of prevalent criminal behavior ranging from rape to theft. It is no coincidence that rates of return are particularly low in areas such as Býrnak province, where the village guard system is particularly entrenched.

[...]

Continued pressure to join the village guard system

Despite official claims to the contrary, some displaced persons are being told that they may only return to their homes in the southeast if they take up arms for the state. In April 2004 former residents of Uluköy village near Kýzýltepe in Mardin province, who had been forced out of their homes in 1993 because they refused to join the village guards, were given permission by the local governor to return to their village. However, when they attempted to return, local gendarmerie told them they would have to agree to village guard service. Also in April 2004, according to the Turkish Human Rights Foundation, villagers returning to Altýnsu village, near Þemdinli in Hakkari province, reported that a local gendarmerie commander held a meeting at which he demanded that returning villagers become village guards.

When villagers returned to Ayrancılar in Bitlis province in 2003, the local gendarmerie began again to demand that if they were to stay in the village they must serve as village guards. In March 2005 the villagers reported that gendarmes from Bitlis left six weapons in the village, insisting that villagers take responsibility for them or leave. According to Gýyasettin Gültepe, president of the Van branch of the human rights nongovernmental organization Göç-Der, who interviewed them, the Ayrancılar villagers had reluctantly accepted the weapons, thereby exposing themselves to increased risk of attack by the PKK.

In 1994 security forces drove 160 families out of Dönertaş village, near Tatvan in Bitlis province, because they had refused village guard service. In recent years the inhabitants have begun to return, and by 2005 fifty families were permanently resident in the village. According to the Van branch of Göç-Der, gendarmes are again insisting that Dönertaş villagers become guards. For example, villager Cevdet Tapdemir reported that the gendarmes had told him that he must leave the village after he refused to join the village guards. He and his family of seven had moved from Istanbul all the way back to Dönertaş, relying on assurances from the government that villagers were now free to return.

Unlawful occupation of land by village guards

Human Rights Watch is still receiving reports that village guards use their armed force and favored status to confiscate land, or usurp the use of it, from neighboring non-village guard communities. The examples given below may well be representative of a broader pattern.

Selyazı, near Çınar, Diyarbakır province

According to an account given to Human Rights Watch by an inhabitant of Selyazı, about seventy-five people from the village were forcibly evacuated in 1990 and made homeless. Other families from the village decided to accept village guard service and were not evacuated, and they in turn invited other village guards from Mazıdağı in Mardin province to move to Selyazı. Village guards have occupied the houses and lands of the displaced, even though the displaced villagers have the ownership documents for the properties. Displaced Selyazı inhabitants attempted to plant crops on their lands in 2004 and 2005, but were attacked by the occupying village guards. The displaced villagers say that they have applied to the local and provincial governor for permission to go back, but that there has been no official response to their petitions.

Yukarımezra, near Derik, Mardin province

In 2002 villagers from Yukarımezra village, forcibly evacuated in 1991, began to return. On January 31, 2005, the villagers reported to the Diyarbakır branch of the nongovernmental Human Rights Association (HRA) that village guards from nearby Sakızlı village had seized Yukarımezra's grazing land. Yukarımezra inhabitants said that they had complained to government officials, but the authorities had taken no action to restore the use of the land to the returning villagers.

Tepeli, near Yıldil, Bırnak province

Village guards from Tepeköy in Bırnak province are reportedly occupying Tepeli, a district of nearby Kuyulu village near Yıldil, and cultivating the surrounding fields. According to Halit Nerse, former headman of Tepeli, now living in Istanbul, Tepeköy village guards marched into the settlement in 1995 and ejected the inhabitants from their homes, instructing them to leave. Since village guards in the area had recently killed Bükür Yıldız, Ali Bozan and Mehmet Gül from the nearby village of Filfil, the Tepeli villagers felt that it would be dangerous to resist, and left. The village guards from Tepeköy lived in the Tepeli villagers' homes, but when displaced villagers started to return in the Yıldil area in about 1999, the guards knocked down the original houses and, with the help of state funds, constructed new houses.

Hüseyin Seyitoğlu, legal counsel for the original inhabitants of Tepeli, stated that he had repeatedly applied, unsuccessfully, for a court order to halt the construction of new dwellings. The Tepeli villagers petitioned the authorities to remove the village guards from their property, also without success. In 2002 they applied to the local court for the recovery of their land based on notarized ownership documents. The local court, unusually, insisted on examination of the originals deposited at the local land registry office, but these were found to have mysteriously gone missing. The court consequently rejected the action for repossession, but this decision was overturned by the Supreme Court in 2005, and the case is once again being heard by the Yıldil primary court.

Kýrkkuyu, Býrnak province

The inhabitants of Kýrkkuyu village were forcibly displaced by security forces in 1994 when they refused to serve as village guards. According to displaced Kýrkkuyu villagers, village guards not only immediately occupied the vacant lands, but also attempted to have the land registered under their names. The original Kýrkkuyu villagers challenged this, and the issue is currently being examined by the local court. Meanwhile, the Kýrkkuyu villagers are unable to return home. A villager told Human Rights Watch in August 2005, "It is impossible to go back at the moment. The government is giving us no support or assistance, and the village guards consider us terrorists. It is a dangerous situation."

Cevizli, Mardin province

Hasan Keren, forced out of Cevizli village in Mardin province in 1994, reported to Mardin HRA that since returning to his home in 2000, he and his family had been subjected to attacks by village guards who were unlawfully using their land. On January 29, 2004, following a dispute about grazing animals, Keren was beaten by village guards, resulting in injuries to his eyes, head and back that required hospital treatment and fifteen days recuperation. Keren reported the incident to the Mardin public prosecutor, who opened an investigation, which is apparently still pending at this writing.

Serespi yaylasý, near Kulp, Diyarbakýr province

On June 1, 2005, villager N.Y. (identity withheld) of Düzpelit hamlet, Baðcýlar village near Kulp, applied to Diyarbakýr HRA stating that village guards from Kulp had occupied the 5,625 hectare high pasture of Serespi (Teli Meskisi), owned by N.Y.'s family for more than a century. Since 1991 village guards have been renting the land out to a third party. When N.Y. attempted to use the land in 2005, he was threatened by relatives of these guards. In May 2005, while traveling to a wedding, N.Y. and his family were attacked by village guards, who shot and wounded a member of the party with a pistol. Two village guards were arrested in connection with the shooting; as of this writing it is unclear whether they are being prosecuted.

Recent attacks by village guards

Human Rights Watch has received many reports like the two immediately above of village guard violence ranging from beatings to shootings, some of them fatal. Most attacks arise from disagreements that are common in any rural community—land disputes, grazing problems, and other longstanding resentments—but where village guards are involved, the potential for violence is greatly increased. Guards are licensed by the state to exercise lethal force. In the aftermath of any incident where they transgress the boundaries of legitimate use of force, including lethal force, initial arrests are often followed by release, long drawn out proceedings and ultimate acquittal. In effect, guards often benefit from a degree of impunity.

The cases of the thirteen Kurdish civilians allegedly murdered by village guards in the past three-and-a-half years are outlined below. Eight of those killed were displaced villagers who had recently returned.

Yusuf Ünal, Abdurrahim Ünal, and Abdulsamet Ünal, Nureddin village, Mup province

Yusuf, Abdurrahim and Abdulsamet Ünal of Nureddin village, Mup province, were killed, apparently by village guards, on July 9, 2002. The Ünal family had been expelled in 1994 when security forces destroyed the village, but on July 1, 2002, the family had applied to the local governor and gendarmerie for permission to stay temporarily in their village to gather their hay crop. According to eyewitness Dilaver Demir, village guards came and argued with Yusuf Ünal, saying that he could not sell the hay. Village guards then beat Yusuf Ünal and attacked other members of the family. There was a melee, and Demir ran off with members of the Ünal family to nearby Konakkuran gendarmerie station. Gunshots were heard, and Yusuf, his son and his brother were killed. Fourteen village guards were arrested in connection with the killings; over three years later the trial continues.

Nezir Tekin, Ikram Tekin, and Agit Tekin, Uđrak village, Diyarbakýr province

Under pressure to join the village guard system, the Tekin family of Uđrak village, near Bismil in Diyarbakýr province, left their homes in 1994. As soon as they left, neighboring village guards moved into the Tekin family's houses, and began farming their fields. The Tekin family moved back to Uđrak on September 26, 2002, but within hours of their return village guards attacked the family, killing Nezir Tekin, Ikram Tekin, and five-year-old Agit Tekin, and gravely wounding six other members of the family. Ten village guards were charged with the killings and are now on trial at Diyarbakýr Criminal Court No. 3.

Pemsettin Sarýhan, Pamil Sarýhan, Remzi Sarýhan, Mustafa Sarýhan, and Ali Sarýhan, Akpazar village, Ađrý province

Five village guards are currently on trial at Dođubeyazýt Criminal Court for the killing of Pemsettin, Pamil, Remzi, Mustafa and Ali Sarýhan in pastures near the village of Akpazar, near Diyadin in Ađrý province, on July 31, 2004. The Sarýhans had not been displaced. They seem to have been targeted for their longstanding refusal to serve as village guards. According to a survivor, the Sarýhans were grazing flocks in the high pasture when two village guards came to their tent and invited Pamil Sarýhan to tea. An argument broke out, and the two village guards machine-gunned the family.

Mustafa Koyun, Tellikaya village, Diyarbakýr province

On September 25, 2004, the son of a village guard from a nearby village shot and killed Mustafa Koyun and wounded Mehmet Kaya in Tellikaya, near Çýnar in Diyarbakýr province. Koyun and Kaya, who were not village guards and, according to fellow villagers, not armed, challenged guards who were grazing stock on their cultivated land. An argument ensued, and the son reportedly shot them with his father's weapon. He is now on trial for the murder of Mustafa Koyun. Relatives of Mustafa Koyun who left Tellikaya before the killing told Human Rights Watch that they had been forced to abandon their homes by intense pressure from village guards.

Selahattin Gýnbay, Dýzce village, Mardin province

The most recent reported killing by a village guard was that of thirteen-year-old Selahattin Gýnbay on March 19, 2005. Selahattin Gýnbay and two of his relatives were grazing sheep near the village of Dýzce, near Nusaybin in Mardin province, when village guards warned them not to graze their animals in that area. When Selahattin Gýnbay took no notice, one of the village guards shot him dead with an automatic weapon. Four village guards were arrested in connection with the killing and are awaiting trial.

The following cases of non-lethal violence by village guards have also been reported:

Abdurrahman Aydýn, Bađgöze village, near Eruh, Siirt province

Abdurrahman Aydýn reported to Siirt HRA that on October 20, 2004, village guards from a neighboring village took him from his house to a nearby pasture. There, a waiting gendarmerie officer accused Aydýn of sheltering PKK militants. According to Aydýn's account, when he threatened to complain to the HRA, the gendarmerie officer started to beat him, and ordered the village guard to kill him. Village guards ordered Aydýn to undress. When he refused, they tore his clothes, and attempted to strip him naked. He resisted, and they beat him with the butts of their rifles and kicked him, as a result of which he was bedridden for three days. Aydýn later learned that his cousin Resul Aydýn had been subjected to a similar assault. Siirt HRA president Vetha Aydýn (no relation) confirmed that she saw cuts and bruises on the faces of Abdurrahman and Resul Aydýn when they came to make a complaint.

Kamer Pemci, Aktaþ settlement of Kaynarþýnar village, near Karlýova, Bingöl province

Kamer Pemci complained to Bingöl HRA that on the night of November 29, 2004, five village guards from Taplýçayýr village, near Karlýova in Bingöl province, accompanied by five plainclothes persons (one of whom he recognized as a gendarmerie officer), raided his house in

Aktaþ settlement of Kaynarþýnar village. Pemci reported that one of the village guards immediately accused him of feeding armed militants, insulted him, and threatened to break his teeth. The group fired shots into the ground between his wife and his son Öðren Pemci, and beat his son and another villager, Mehmet Açıđ. The village guards and plainclothes officers occupied Pemci's house for two days while carrying out an operation in the area. During that time, the guards demanded food and threatened violence if Semci's family refused. Pemci made a formal complaint, but learned in February 2005 that the local prosecutor had decided not to prosecute.

Nebahat Mert, Naima Sayak, Songül Mert, Belkýs Biçer, Zübeyde Mert, Aziz Mert, Atik Mert, Yakup Mert, Özal Sayak, Ýsmet Sayak, and Celalettin Mert, Burmataþ settlement of Hasanova village, near Karlýova, Bingöl

According to a complaint made to Bingöl HRA, village guards from Tablýçayýr were again accompanied by gendarmes when they raided Burmataþ on June 12, 2005, claiming that Burmataþ villagers were sheltering PKK militants. The gendarmes and village guards allegedly beat Nebahat Mert, Naima Sayak, Songül Mert, Belkýs Biçer, Zübeyde Mert, Aziz Mert, Atik Mert, Yakup Mert, Özal Sayak, Ýsmet Sayak, and Celalettin Mert. The female villagers were reportedly insulted, and the security forces fired shots at random around the village, killing livestock. No PKK militants were found in the village, and no villagers were arrested. The villagers submitted a complaint to a local sub-governor, but according to the villagers this official tore up their complaint. A complaint to the local gendarmerie allegedly produced a threat from the gendarmerie to burn the village.

Kazým Ben, Kumgölü village, near Silvan, Diyarbakýr province

Kazým Ben reported to Diyarbakýr HRA that on February 17, 2005, two provisional village guards whom he knew drove up to his house and told him that their father had summoned him. According to his account, the village guards took him to a deserted valley 1.5 kilometers from the village and beat him severely. Ben complained to the gendarmerie, but was told that "if you do not abandon your complaint against these people we will find a way to have you found guilty and punished." Kazým Ben dropped his complaint, but later decided to make the attack and threats public.

Ýshak Tekin, Tapoluk village, near Varto, Muþ province

Ýshak Tekin believes that village guards were responsible for an attack that he barely survived in October 2004. Ýshak Tekin lived in Karapýnar village, near Varto in Muþ province, until the mid-1990s when security forces successively drove out any family that refused to join the village guard system. Tekin moved to the nearby settlement of Tapoluk, where he had some land. Tapoluk had accepted village guard service, and most of the male adult population was either a voluntary or professional guard, but Ýshak Tekin did not enroll.

Between 1999 and 2004, a period when the PKK carried out far fewer attacks, about fifteen members of Tekin's family took advantage of the relative stability to move back to Karapýnar. In 2002 a village guard from Tapoluk was killed, apparently in a PKK attack. Ýshak Tekin was never under suspicion for that killing since he was far away at the time it occurred, but after that date he was repeatedly threatened and physically attacked by village guards or relatives of village guards. On the evening of October, 2004, Tekin was machine-gunned as he was parking his car in his garage. He was hospitalized for three months with extensive injuries: the attack blinded his right eye and deprived him of the function of both hands. He still has bullets and bullet fragments in his neck and nose. Witnesses reported seeing five people running away from the scene of the shooting. Four members of a village guard family were arrested, two of whom are on trial at Muþ Criminal Court (the other two were minors, and were released). The fifth person identified, the adult son of the village guard shot in 2002, and whom Ýshak Tekin believes is himself an enrolled village guard, fled abroad.

Other criminal behavior

The village guard system is also implicated in thousands of acts of common criminality, and would deserve to be shut down on those grounds alone. Over 23,000 village guards were dismissed for involvement in crime in the first ten years of the village guard system. Over the first twelve years of the system, 296 village guards were involved in cases of manslaughter and murder, and 78 were involved in the abduction of women.

Narcotics arrests of village guards are occasionally reported—for example, two village guards were found with five kilograms of heroin (with a wholesale value of U.S.\$750,000 according to the U.S. Drugs Enforcement Agency) at Bölücek village in Pýrnak in 2002—but the national press tends not to report the subsequent trials. Nevertheless, Turkish government officials have admitted that village guards are very involved in the narcotics trade. According to an Interior Ministry statement, reported in Cumhuriyet (Republic) of January 26, 1999, 1,073 village guards were convicted of drugs smuggling between 1985 and 1999.”

See also BBC report, "[Local guards divide Turkish Kurds](#)", 4 August 2006

Village guards are a key obstacle to safe returns (2005)

- Many IDPs are reluctant to return, fearing for their security, due to the ongoing presence of village guards in some post-conflict areas
- In areas where the village guard system is particularly strong, returns have been minimal
- The system of “village guards” , armed and paid by the government, was introduced in 1985
- It is estimated that there are still about 57,601 village guards (as of November 2005)
- All surveys on return (including one carried out by the Turkish parliament in 1995) urge the abolition of the Village Guard System, notes HRW
- A 1995 report by the Turkish Parliament's Commission on Unsolved Political Killings confirmed that village guards were involved in a wide range of lawless activities and called abolishment of the system
- Most international human rights organisations and UN Representatives have also called for the disbanding of the Village Guards
- A European Commission Report on Turkey describes the village guard system as one of the ‘major outstanding obstacles’ to the safe return of IDPs (October 2004)
- Village guards have directly responsible for the original displacement and have opposed the return of IDPs including with threats and murder of returnees
- Village guards have also occupied the homes and lands of displaced people
- Several cases of violence continue to be reported, for example in June 2004 Village Guards allegedly killed five villagers near the village of Akpazar, near Diyarbakir, in Agri province
- Some displaced persons were told that they would only be able to return to their homes if they joined the village guards
- Village guards have rarely been held accountable for their crimes

EC, 9 November 2005

“No progress has been made in addressing the problem of *village guards*. Reports indicate that village guards have on occasion attacked returning IDPs. Official figures state that 57 601 village guards are still on duty (as opposed to 58 551 last year). Moreover, although the Turkish authorities state that no village guards have been appointed since 2000, NGOs suggest that new village guards have been recruited in response to the increasing number of clashes between security forces and illegal armed groups. Reportedly, authorisation to return to villages is sometimes only granted if returnees are willing to serve as village guards.”

USCR, 16 June 2005

"In August, soldiers reportedly forced residents out of Ilıcak in Sirnak Province but local officials allowed them to return three days later. In September, provincial officials evicted 20 village guards who were occupying the homes of returning Syriac Christian IDPs in Sarikoy. The IDPs reportedly paid the authorities 126 billion lira (\$93,700) for their help. The trial of 10 village guards in connection with the 2002 killing of 3 IDPs returning to their homes in Ugrak continued with one defendant in custody."

HRW, March 2005

"The continuing presence of village guards in some communities constitutes a major impediment to improved security and confidence among displaced villagers. This in turn has a major impact on their willingness to return. In Sirnak province, for example, where the village guard system is particularly strong, the government's own statistics indicate that returns are running at less than half the rate of the best-performing province.

Displaced persons are understandably reluctant to return to remote rural areas where their neighbors, sometimes from a rival clan, are licensed to carry arms, as members of the village guard. [...] Many villagers were originally displaced precisely because they refused to become village guards. Most village guards, like the displaced, are Kurds. As of August 2004, there were 58,416 village guards in Turkey.[...] Village guards were involved in the original displacement, and in the intervening years have continued to commit extrajudicial executions and abductions. In some cases, village guards are now occupying properties from which villagers were forcibly evicted. They are sometimes prepared to use violence to protect their illegal gains. The failure of successive Turkish governments to hold accountable members of the security forces and village guard for abuses has created a climate of impunity.

In 2002, village guards allegedly killed three villagers who returned to Nureddin village, in Mus province.[...] In June 2004, village guards were implicated in killing of five villagers in pastures near Akpazar village, near Diyadin, in Agri province.¹² On September 25, 2004, a village guard in Tellikaya village in Diyarbakir province allegedly shot and killed Mustafa Koyun, a returnee villager. [...] On or about October 7, 2004, villager Ishak Tekin was wounded in an attack by village guards at his home in the settlement of Axçana, near Varto in Mus province.[...] He was shot at close quarters, and lost an eye in the attack.

The October 6, 2004 European Commission Regular Report on Turkey describes the village guard system as one of the 'major outstanding obstacles' to the safe return of IDPs. There have been repeated calls for the abolition of the village guard system both inside and outside Turkey. Those recommending the abolition of the system include: the Turkish Grand National Assembly's parliamentary commission on political killings in its 1995 report, the Turkish Grand National Assembly's parliamentary commission on internal migration in its 1998 report, the U.N. Special Rapporteur on extrajudicial, summary or arbitrary executions in her 2002 report on her visit to Turkey, the UN Special Representative on Internal Displacement in his 2002 report on his visit to Turkey, and the Parliamentary Assembly of the Council of Europe in its resolution on Turkey of June 2004. Returns will continue to be slow unless and until the village guard system is dismantled and its members disarmed."

HRFT, April 2004

"On 13 April inhabitants of Uluköy in Kiziltepe district (Mardin), who had been forced to leave their villages in 1993, because they refused to become village guards, asked the local governor for permission to return. Reportedly the governor granted permission to Ali Aslan, M. Emin Aslan, Mehmet Aslan, Nuri Aslan, Sabiha Aslan, Halef Aslan, Sükrü Yalçinkaya and Mahmut Yalçinkaya, but the gendarmerie hindered them saying that they needed permission from the military. Ali Aslan stated that he went to the command of the gendarmerie in Kiziltepe on 19 April:

"I told the officer Kemal Tekin that the governor had allowed to go to our villages, but the commander said that we could only return, if we became village guards. We told him that we would not have left our villages, if we had agreed to become village guards. The governor responded saying that we could go, but he could not guarantee for our safety."

On 21 April the governor of Semdinli district (Hakkari), Yasin Öztürk, gathered the headmen from the region. İrfan Kaya, the commander of the local gendarmerie forces spoke at the meeting and told the headmen that people, who wanted to return to their villages had to become village guards. Hayrullah Ferik, headman of Altinsu village, said about the meeting:

"First everybody talked about the existing problems. From our village and the neighboring villages many people have left and I said: 'Everybody should be allowed to return, because they are in a bad situation at the places, where they went. Some will even go to Iraq, if they are not allowed to return.' İrfan Kaya said: 'Nobody will go anywhere. Those, who go to Iraq, will be deprived of their citizenship. It is also not possible that anyone can return just like that. The return must be carried out under the supervision of the State. Those, who come, have to be village guards. If they do not accept that they cannot come back.'"

FIDH July 2003, p.15

"The system of 'temporary village guards' was introduced by amendment of the Village Law n° 442 on 4 April 1985. The temporary system became systematic and permanent in the OHAL region. Armed and paid by the government, village guards became uncontrolled but locally powerful militias. They were found to be responsible for a large number of human rights violations. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that village guards were the part of society that had most intensely been involved in 'dirty jobs'. In 2002, village guards reportedly committed 11 killings[...]. Not only do village guards maintain the region in a state of violence, they are also resented as a move backward, the recreation of a feudal society in rural areas.

This situation might be the most important obstacle to the return of displaced persons; village guards repeatedly oppose the return despite official authorisation. It is frequent that villagers who were granted the permission to go back to their village have to face strong, and sometimes armed opposition, from the village guards. This was reportedly the case, for example, in Bayramlı Village (Siirt region). In Sept. 2002, in Urlak village, despite official authorisation, the opposition of village guards to the return of former inhabitants resulted in the killing of 3 people and 4 were injured. In April 2003, village guards had reportedly installed checkpoints at some places around Sirnak, while returning to their village, some men also fear to be forced to become village guards themselves."

HRW March 2003

"Village guards are mainly Kurdish paramilitaries armed and paid by the Turkish government to fight the PKK. There are still about 90,000 village guards in southeastern Turkey. A 1995 report of the Turkish Parliament's Commission on Unsolved Political Killings confirmed that village guards were involved in a wide range of lawless activities, including killing and extortion, and called for the corps to be abolished. Almost every intergovernmental human rights mechanism that has since reported on southeastern Turkey has echoed that plea, including most recently the U.N. Special Rapporteur on extrajudicial, summary or arbitrary executions who recommended in her December 2001 report to the U.N. Human Rights Commission: 'The village guard system, to which a large number of extrajudicial killings have been attributed, should be disarmed and disbanded without delay.'"

Village guard abuses continue in southeastern Turkey. Even in the relative calm and stability of the past eight months, it has been reported that village guards have deliberately killed five

displaced villagers attempting to return to their homes. In view of the evidence linking village guards with drug smuggling, abduction, killings, and 'disappearance,' Human Rights Watch was surprised and alarmed to hear reports that in early 2003 the Turkish army began to train several hundred village guards in the border area under the name of 'Lightning Group' (*Simsekler Grubu*) for service in Northern Iraq. Village guards who have undergone this training have been told that they may be required to work in the camps along the border that have been established to prevent a refugee influx into Turkey."

KHRP/Goç-Der/HRA September 2003

"Many Kurds still fear to return to their villages until the Village Guards are abolished.[...] Village Guards shot and killed three returning villagers in Nurettin village in July 2002, and two returning villagers and one child in Ugrak, Diyarbakir, in September."

HRW, 30 October 2002

"Villagers considering return are even more afraid of village guards than they are of the gendarmerie. The village guard system has been recognized for years as a corrupt and destructive institution. The April 1995 report of the Turkish Parliament's Commission on Unsolved Political Killings confirmed that village guards were involved in a wide range of lawless activities, including killing and extortion, and called for abolition of the village guard system. [...] Villagers are extremely wary of heading back into an unstable countryside where their former neighbors, sometimes from rival tribal groups, are paid and licensed by the government to bear arms. The government armed the village guards and permitted them to acquire considerable de facto power in the region. Human Rights Watch heard accounts from several provinces that village guards had taken over the lands vacated by the displaced, stolen timber, or exploited the land by renting it out to others.

[...] Returning villagers have had considerable difficulties recovering their lands from village guards. In June 2002, inhabitants attempting to return to Kaçan and Evrek villages in the Beytüşebap district of Sýrnak were reportedly turned back by a village guard chief from the nearby town of Mezra. The villagers applied to the local governor but were forced to return to Van where they have been living since they were forcibly displaced in 1994."

UN OHCHR, 27 November 2002

"The Representative also raised allegations that displaced persons who had obtained permission from provincial governors to return to their villages were subsequently prevented from doing so by the security forces or *jandarma* and by village guards. [...]

The Representative referred to reports of expropriations by village guards of property belonging to the displaced and threatening those displaced persons who had returned and tried to reclaim what was rightfully theirs. In this connection, the Representative also noted that the village guard system was considered in various quarters as a major obstacle to the return process and that there had been calls for its abolition, most recently by the Rapporteur of the Committee on Migration, Refugees and Demography of the Parliamentary Assembly of the Council of Europe. The Minister of the Interior acknowledged two incidents of illegal occupation of land by village guards and stated that in both cases, appropriate action had been taken and the property returned to its lawful owners. The Minister told the Representative that the same steps would be taken in any other such cases that were brought to his attention. As for the abolition of the village guard system, the Minister noted that the system had been an instrumental part of the Government's attempts to combat the PKK threat and that while that threat had essentially been contained, the Government could not simply make the guards redundant. However, he assured the Representative that the Government was in the process of disarming village guards and was finding them alternative employment opportunities."

USCR 2002

"The government's return programs often involve a political loyalty test, such as agreement to participate in the Village Guards. In fact, many of the displaced fled their homes under threat from

the Village Guards themselves or were forced to leave for refusing to join the Village Guards in the first place. The government's organized return program appeared geared towards establishing heavily guarded and controlled 'central villages' in the southeast. Several thousand formerly displaced persons were living in such central villages at year's end."

Human Rights Foundation of Turkey January 2001, sect. 2

"One of the most serious obstacles for a return is the fact that the land belonging to the evacuated villages has been occupied by village guards. Sefika Gürbüz, chairwoman of the migrants' association Göç-Der, said that they had forwarded 17,914 petitions for a return to the villages to the Grand National Assembly of Turkey (GNAT). Adding that those willing to return met with physical obstacles, she stated: 'In the first place these are obstacles directly deriving for the state of emergency. The second biggest obstacle are the village guards. The land of many villagers who left their homes has been confiscated by village guards. They are trying to prevent people from returning in order not to lose that land. The village-town project that was developed by Prime Minister Bülent Ecevit did not meet the expectations. Only village guards moved there, but the areas are not suitable for agriculture or cattle breeding and, therefore, the people have problems to make their living.' The former chairman of Göç-Der, Mahmut Özgür, said that the people who return to their villages are faced with a variety of problems. They have to establish a new order, must repair their homes and need money to buy animals. For all this they have to get compensation. Forced displacement is a problem that deeply affects Turkey's social, political and economic life. The illegal import of meat and the fraud termed 'Buffalo' can easily be linked to this problem. Before the forced displacement Turkey was exporting meat, but now has to import it."

HRFT, February 2001, sect. 2

"Oppression and threats targeting the villagers who attempt to return their villages to settle or to work in their property continued. A few villagers attempted to utilise the remedies apparently available in theory. For instance, a villager named Kadri Yasa filed an official complaint with the Kocaköy Public Prosecutor" Office against the village guards for threatening him, for illegally possessing his own property and for cutting down thousands of his trees. He had been forced to emigrate from Kırmatap village of Diyarbakır in 1995.

Efforts of internally displaced persons to resort to national remedies often put them into risk of at least getting threatened by, for instance, village guards."

See also: [The Human Rights Foundation of Turkey monthly reports on the situation of human rights in the country](#). A section on abuses committed by the Village Guards is frequently included in the HRFT's reports

A report issued by the Human Rights Association, "[DIYARBAKIR PROVINCE BISMIL DISTRICT UGRAK VILLAGE RURAL GUARD ATTACK OBSERVATION- INVESTIGATION REPORT](#)" which documents an armed attack of the rural guards on families displaced in 1994, who returned to their villages for settlement in 2002, September 2002

["Village Guards under the spotlight"](#) Turkish Daily News, 16 August 2003

Killings and attacks by gendarmerie also discourage return (2005)

- Along with security concerns relating to the village guard system, the displaced have also been reluctant to return because of attacks and killings by gendarmerie
- In 2004, three cases of unlawful killings by security forces of internally displaced people were reported
- In November 2004, a provincial governor announced the killings of two terrorist after security forces shot dead a displaced villager from Mardin province and his twelve year old child

- The Human Rights Association of Turkey investigated the incident and found no supportive evidence to suggest the involvement of the villager and his son in terrorist acts
- These crimes have never been investigated by an independent committee, rather, the authorities have relied on a public prosecution service
- Members of the security forces have not been held accountable for their crimes
- The UN Special Representative on IDPs also received allegations that displaced people were unable to return due to threats from local security forces (2002)

HRW, March 2005, pp. 11-13

"In addition to security concerns arising from the village guard system, attacks on civilians by the gendarmerie discourage return. Three unlawful killings by security forces in late 2004, underscored the continued potential for lethal state violence against civilians in general, and IDPs in particular.

On November 21, security forces shot dead Ahmet Kaymaz, a villager displaced from KöprülÜ village in Mardin province, and his twelve-year-old son Ugur Kaymaz in the nearby town of Kiziltepe.[...] Neighbors told the Human Rights Association of Turkey (HRA) that Kaymaz and his son had been preparing their commercial vehicle for a forthcoming journey and were unarmed at the time of the shooting. The provincial governor issued a statement that 'two terrorists have been captured dead following a clash.' [...] An HRA delegation investigated the incident and concluded that there was little evidence to suggest that Kaymaz and his son had been involved in an armed clash with security forces, as the official incident report claims. The HRA noted that since Kaymaz was a full-time truck driver and that his son had an uninterrupted attendance record at his local primary school, they were unlikely to be members of any guerrilla force. Kaymaz had recently appointed a lawyer to deal with his application for compensation for his displacement, and the autopsy report noted that related documents were on his person at the time of death.

A week after the Kaymaz killings, on November 28, gendarmes shot dead Fevzi Can, a shepherd who resided in the partially evacuated village of Ortaklar, in Semdinli, Hakkari province.[...] A local newspaper reported claims by Fevzi Can's uncle that the military authorities had taken the body away and refused to release it unless Can's relatives signed a statement saying that 'a terrorist who failed to respond to a call to halt was killed.' [...] Official statements described Can as a livestock smuggler [...] but the village *muhtar* and Fevzi Can's brother denied this, and pointed out that the animals in his possession had not been confiscated by the authorities, as is usual in smuggling cases, following Fevzi Can's death. Efforts to coerce the relatives and conflicting stories about 'terrorism' and 'livestock smuggling' have provoked suspicions that this was an unlawful killing.

Four members of the Turkish Army Special Operations Team were indicted in December 2004 by the Mardin Chief Prosecutor's Office for the killings of Ahmet and Ugur Kaymaz. The first hearing was held on February 12 at Mardin Criminal Court No. 2. The trial continues. An investigation has been opened against gendarmes thought to be responsible for the death of Fevzi Can. Prosecutions in southeast Turkey for similar crimes in the past have rarely resulted in convictions, giving cause for scepticism about whether those responsible for these offences will be held to account.

The discovery on November 4, 2004, of a common grave containing the bones of eleven people in the Kepre district of Alaca village has renewed awareness of the region's history of violence and impunity. DNA samples are currently being tested, but clothing and objects indicate that the remains belong to eleven villagers detained by soldiers and 'disappeared' at the time of the forced evacuation and destruction of Alaca in 1993. [...] In 2001, the European Court of Human Rights (ECHR) found the Turkish government responsible for violations of the right to life in respect of the eleven men. In its judgment, the Court was 'struck by the lack of any meaningful

effort' by public prosecutors to investigate the 'disappearances' at Alaca.[...] Villagers told the court that commandos from Bolu took the villagers away, but no soldiers from that unit were indicted.

According to the U.N. Principles on the Effective Prevention and Investigation of Extra-Legal, Arbitrary and Summary Executions, killings such as those described above should be investigated by independent expert commissions. [...] The Turkish authorities have consistently resisted this route, preferring to leave the job to the public prosecution service that, over the past two decades, has proven itself either unable or unwilling to hold the members of the security forces to account.

Unless the Turkish government radically alters the manner in which allegations of killings by the security services and the village guard are investigated, and the perpetrators brought to account, impunity will continue, and many internally displaced will lack the confidence to return to their homes."

HRW, 30 October 2002

"The armed forces present a more threatening obstacle to return even than the civilian authorities. Outside the cities, police duties are entirely in the hands of gendarmes, the same military units that carried out the original displacements. Many villagers told Human Rights Watch how they were turned back by gendarmes after receiving official permission to return.[...] Several communities who have resettled their homes have been displaced a second time as a consequence of a divergence of attitude between the civilian and military authorities."

UN CHR, 27 November 2002

"The Representative also raised allegations that displaced persons who had obtained permission from provincial governors to return to their villages were subsequently prevented from doing so by the security forces or *jandarma* and by village guards. The Minister of the Interior informed the Representative that the role of the *jandarma* in the context of return was limited to giving advice on which villages were suitable for return and on the strategic location of new resettlement areas, noting that with some 4,000-5,000 PKK fighters still present in the border regions, it was not feasible to allow the displaced to settle in vulnerable areas and that they should have an opportunity to resettle elsewhere and begin their lives anew."

Presence of landmines in return areas hinders return (2006)

- Villagers that had been displaced in Hakkari province were said still to be reluctant in early 2006 to return to their villages due to the threat of landmines
- In 2003, Turkey signed the Convention on the Prohibition of Anti-Personnel Mines and on their Destruction and in 2005 it cleared 17,886 of the landmines on its own territory
- The PKK, also viewed as a contributor to the landmine problem, recently signed a 'Deed of Commitment for Adherence to a Total Ban on Anti-Personnel Mines and for Cooperation in Mine Action'
- NGOs have expressed concern however that landmine clearance remains inadequate and no landmine education campaign has been launched
- As a result of 15 years of conflict in the south-east, predominantly rural areas are covered by landmine fields; government estimates in 2002 indicated over 900,000 mines
- Many evacuated villages are mined in the south east
- According to the Landmines Committee of the Human Rights Association, the most mined areas include Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van and Bingöl provinces

- In 2003, the International Federation for Human Rights expressed concerns about allegations of new landmine fields along the Iraqi border laid by the Turkish army in response to the situation in Northern Iraq

Landmine Monitor Group, July 2006

"It has been claimed that in the east and southeast of the country, mines in and around evacuated villages have impeded the return and settlement of displaced people. Mines were reportedly laid around villages, military installations, border areas, water springs, feeding grounds, pathways and mountain caves, posing a serious threat to returnees.[...] For example, in Hakkari province and its surroundings, which are believed to have experienced some of the most intense fighting, the government evacuated population centers and relocated people to more central villages or to camps. Villagers that had been displaced were said still to be reluctant in early 2006 to return to their villages due to the threat of landmines.

[...] The Hakkari Anti-Landmine Awareness Campaign (the Hakkari Group), a civil society entity made up of legal professionals, has undertaken a survey of injuries caused by explosive devices. During a survey, they stated that Hakkari town and Yenimahalle district were severely contaminated with both mines and UXO, especially near Turkish military installations, and that livestock were killed by these.

[...] Casualties reported in the media indicate that, in addition to mines, UXO pose a significant threat in some parts of Turkey, and that the number of mine/UXO incidents has increased over the last few years. At least 220 military and civilian casualties from mines and UXO were reported in 2005, a significant increase from previous years (see section Landmine/UXO Casualties in this report)."

MRG, 2006, pp.16-17:

"The landmine problem, briefly touched on above as a factor in displacement, is a deterrent to return because of the threat to life it presents. There have been some positive developments in recent years. In 1996 Turkey announced that it had ceased the production, sale and transfer of landmines, and in 2001 the Landmine Monitor (LM) removed Turkey from its list of countries that produce landmines. On 25 September 2003, Turkey signed the Convention on the Prohibition of Anti-Personnel Mines and on

their Destruction and in 2005 it cleared 17,886 of the landmines on its own territory. However, Turkey has never instigated or sponsored an educational campaign about landmine hazards, and landmine clearance remains inadequate. No national structure to implement the policy on landmines has yet been developed.[...] The PKK, also seen as a contributor to the landmine problem, recently signed, through the organization Geneva Call, a 'Deed of Commitment for Adherence to a Total Ban on Anti-Personnel Mines and for Cooperation in Mine Action', for which the government of the Canton of Geneva acts as guardian.[...]"

EC, 9 November 2005

"In particular, the existence of a large number of landmines constitutes a strong disincentive to return. Reports suggest that landmines killed 20 people and injured 20 in the first seven months of 2005."

Landmine Monitor Group, October 2004

"The Landmines Committee of the Human Rights Association reported in November 2002 that in the southeast a number of evacuated villages are mined, which is an important obstacle to the return of displaced people. The most mined areas were in the provinces of Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van, and Bingöl."

HRW, 4 October 2004, p.5

“Unexploded mines and ammunition present an additional risk for returning villagers. Thirty people were accidentally killed by mines and other explosives in the southeast during the first eight months of 2004. To date, however, the government has provided no guarantee that villages due for return will be cleared of unexploded ordinance.”

FIDH July 2003, p.16

“The 15 years conflict in the Southeast resulted in a large amount of rural areas covered by landmines fields. Here is a major problem that has to be faced by the government, regardless of the question of who is responsible for the placement of these engines. The idea of freedom of circulation tends to be sadly ironic in many areas of the South East, where casualties caused by landmines regularly take place.

It is obvious that this danger is an obstacle for the return of displaced persons. Returning to the homelands implies a minimum level of safety; it is hardly surprising that many people do not want to come back to their village when they fear that landmines will kill their children and prevent them from working in the fields. Without undermining the efforts made by the government to tackle this issue, the FIDH found out during the mission in May 2003 that the situation is still very serious.

In Kasric Village, landmines have reportedly killed 3 persons and seriously injured 3 others since 1992, not counting the casualties on animals. The last casualty took place in April 2003, and resulted in one person being seriously injured. The victims and their relatives in Kasric are reportedly experiencing pressure from security forces to avoid the introduction of complaints.”

FIDH July 2003, p.16

“[T]he FIDH is also very much preoccupied by allegations that new landmines fields are being established near the Iraqi Border. In February and March 2003, in relation with the situation in Northern Iraq, the Turkish Army increased its presence in the region around Cizreh and Sirnak; since then, between 2 and 3 accidents take place every month due to landmines explosions in the fields and mountains around Cizre, which leads the people the FIDH’s delegation interrogated think that the Army has installed new landmines fields without telling the population. This average of casualties is likely to increase dramatically during spring and summer, as the weather will allow more people to go out of the city. A delegation reportedly went to the Gendarmerie and the municipality to ask information on these events and, at the very least, communication on the places where the new mines were inserted. The authorities responded in saying that the PKK-KADEK is responsible for these new landmines fields, which seems hard to believe as one can legitimately wonder what would be the interest of the PKK-KADEK in doing so.

While the fact-finding mission could not inquire further on the subject due to the lack of time, it found the source of information very credible. The FIDH therefore urges the government to urgently investigate and ensure, if this information is verified, that the population is immediately informed of the places where the mines are, that these places are soon cleared and that these events, which remind the worst period of the conflict in the Southeast, may not happen again.”

Landmine Monitor Group August 2003

“In May and June 2002, Turkish officials declared that 900,000 to 935,000 mines were laid between 1956 and 1959 to prevent ‘illegal border trespassing;’ these were said to be ‘all marked, monitored and covered by fencing or other means to ensure the effective protection of civilians.’[...]

There were reports of continuing casualties from mines and UXO, especially to children, in 2003. [...]

HRW, 30 October 2002

“Southeast Turkey has been a battlefield for fifteen years, during which both sides in the conflict used anti-vehicle and anti-personnel mines. According to press reports, hundreds of people—many of them children—were killed by landmines and unexploded shells or rockets between 1992 and 1998. Villagers considering return therefore understandably seek some level of reassurance from the authorities that at least the immediate vicinity of their homes has been cleared of explosives. A villager who had returned, with government assistance, to the former village guard community of Besbudak told Human Rights Watch that soldiers had spent a month checking the area for mines before it was reoccupied. The local governor of Çatak province mentioned that the asphaltting of roads was a priority as a protection against mining, and the deputy provincial governor of Van confirmed that within his area of authority, villages would be cleared of mines before reoccupation by villagers. But several villagers told Human Rights Watch that the authorities had given permission to return while giving no information about mine-clearing. [...] We have received no confirmation that it has been cleared of mines.’ Inhabitants of eleven villages in the Berwar district of Hakkari, evacuated in 1996, applied to the office of the Van provincial governor asking that their villages be cleared of mines and that they be given assistance to return. In early 2002 the governor reportedly called the headmen of the villagers to his office and told them to reapply, saying that in their new applications, they should not mention mine clearance or assistance.

[...]

That there is a genuine risk of lethal mines is beyond question, but soldiers may also have used stories about mines as a way of keeping the villagers at a distance. A villager from the Kulp district said that when villagers burned out in 1992 had prematurely tried to return in 1993, soldiers had warned them off by saying that the area was mined: ‘When they did not want us to go back to the mezra, they told us that there were mines there. I do not think there are any mines actually and that they just said this in order to scare us.’”

Displaced people face problems returning due to administrative procedures (2005)

- Displaced persons have faced problems returning to their villages of origin due to the practice employed by the government of requiring returnees to complete “return” forms
- The forms request the applicant to provide a reason for his or her displacement yet provide no option for those evacuated by government security forces
- Another reported problem with the forms is the inclusion of a declaration on the form which states that the applicant will not seek compensation from the state
- The government denied the existence of the clause on compensation, though NGOs were able to produce copies of the form
- IDPs who refused to sign the declaration were withheld permission to return
- Most reports of such cases date occurring date to before 2002 with the exception of a report by USCR in June 2005

USCR, 16 June 2005

“The Government reportedly did not allow some IDPs to return to the southeast unless they signed a statement that they had been displaced by terrorism, rather than by government actions, and that they would not seek government assistance.”

UN OHCHR, 27 November 2002

“In discussing the return issue, the Representative referred to reports of problems confronting displaced persons who wished to return. Reference was made to the practice of requiring persons who wished to return to complete printed application forms, including stating the reason for their displacement. While there is nothing inherently wrong in requiring the displaced to apply formally for return, as this would provide the authorities with an indication of the numbers involved

and the resources required to facilitate the exercise, concerns were raised about the need to indicate on the form the reason for the original displacement. A number of possible options were given, including 'employment', 'health' and 'terror'. There was, however, no option for those evacuated by the security forces, and it was alleged that only those persons who stated that they had been displaced as a result of 'terror' were allowed to return.

Reports also suggested that the reverse side of some forms bore a printed declaration which the applicant had to sign and which stated that they would not seek damages from the State. Refusal to sign this declaration reportedly resulted in being denied permission to return.

These problems were raised with the Minister of the Interior, who explained that knowing the reason for flight was required for statistical purposes. This nevertheless raised the question of why there was no express option regarding evacuation by the security forces. According to one official, as the purpose was to collect statistical data, an 'evacuations' option was unnecessary as the Government possessed that information already. The Governor of OHAL, on the other hand, stated that the 'terror' category applied to those displaced by both PKK and the security forces. The Minister of the Interior denied the existence of a non-litigation clause and a copy of the form shared with the Representative and copies provided by the Governor of Sirnak contained no such clause. However, in Diyarbakir, an NGO provided the Representative with a form bearing the non-litigation clause on the back.

On his return to Ankara, the Representative brought this to the attention of officials at the Ministry for Foreign Affairs. While they doubted the form's authenticity and its legal standing, were it to be contested in court, they undertook to examine the matter further and suggested that it might be addressed within the context of an administrative inspection of the functioning of the judicial system in Diyarbakir, which had been initiated by the State Minister for Human Rights."

HRW, 30 October 2002

"Villagers are reluctant to collude in the official cover-up of the illegal forced displacement by signing such declarations. They also know that by signing, they will probably lose any chance of making a claim against the state for compensation for the abuses they have suffered. At the same time, the temptation to sign is strong. If they do sign it may open the way to their early return; if they do not, they know that they may be struck off any central register of the displaced, forfeit the chance to get even the most meager state assistance to return, and perhaps never be permitted to go home."

CoE 22 March 2002

"Human rights organisations informed the Rapporteur that the application form for those willing to return includes a question concerning the reason for leaving the village. According to their evidence the only 'acceptable' answer for the authorities evokes the actions of the PKK as a reason for leaving. Any other reply implies a negative decision concerning the authorisation for return and financial assistance. Furthermore, reportedly only villages within the village guard system are likely to be given authorisation for return."

B. Peker, April 2002, in *Turkey and Refugees*, p.3

"Moreover, consistent allegations and reports by villagers and human rights groups, most significantly by the IDP organization Göc-Der, suggest that returned villagers are constantly intimidated by the Jandarma and other paramilitary forces. [...] Furthermore, when the government authorities accepted applications for relocation by the IDPs, authorities forced the IDPs to sign forms where they indirectly declared that they "left their villages due to terrorism", and excluded those who were unwilling to sign such forms. Under Article 14 of the Bill, families entitled to be relocated, including those to be relocated for concerns of national security, "*shall lose their entitlements for resettlement, and shall not apply for resettlement again*"."

NATIONAL AND INTERNATIONAL RESPONSES

National and international response

Overview: International and national response to internal displacement in Turkey (2007)

IDMC, 26 July 2007

NATIONAL RESPONSE: Progress in national policy

“National authorities have the primary duty and responsibility to provide protection and humanitarian assistance to internally displaced persons within their jurisdiction (UN Guiding Principles, Principle 3)”.

There was a shift in national policy towards IDPs following the visit of the UN Representative on IDPs, Francis Deng, to Turkey in 2002. Before that, the government had been for the most part unwilling to assist internally displaced people. National authorities long denied the role of government forces in displacement and claimed two decades of terrorism as the root cause of internal displacement in Turkey (UN CHR, 7 November 2003). In 2002, the Council of Europe Parliamentary Assembly, Committee on Migration, Refugees and Demography concluded: “It has to be made clear that generally, the Turkish Government has failed to provide emergency assistance to people forcibly displaced in the south-east, including persons displaced directly as a result of the actions of Turkish military and security forces. These people have not been provided with any shelter or food in the immediate aftermath of the displacement. The Government has not arranged for any temporary accommodation in tents or collective facilities and the displaced persons could count only on their relatives or scarce assistance from humanitarian organisations.” (COE, 18 February 2002). Rather, local NGOs such as Göc-Der, the Human Rights Foundation of Turkey and the Human Rights Association of Turkey were instrumental in assisting IDPs in the aftermath of displacement. In a bid to meet the conditions of EU membership, the Turkish parliament has in recent years adopted extensive legislative reform relating to human rights protection, in areas such as religious freedom, freedom from torture, freedom of association and expression, and has permitted media outlets to broadcast in minority languages including Kurdish. The EU accession process has helped put the issue of minority rights, including the rights of the primarily Kurdish displaced population, on the political agenda (BBC, 7 September 2004).

Important progress has been made by the government in the last four years towards improving the overall national policy and legal frameworks and identifying and facilitating durable solutions for Turkey’s displaced. A number of these initiatives respond to recommendations made by the UN Representative on IDPs in his 2002 report. These measures include the adoption of a national IDP strategy in which the government commits itself to addressing the IDP situation in line with the international standards contained in the Guiding Principles on Internal Displacement. Other key steps include the government’s efforts to collect data on the IDP population and the amendments and procedural guidelines adopted to improve implementation of the compensation law. At the provincial level, the province of Van has adopted a strategic policy framework for IDPs, the Van Action Plan, based on broad consultation with civil society. Several of these measures are outlined below:

A significant step is the adoption of the “Law on the Compensation of Losses Resulting from Terrorist Acts and the Measures Taken Against Terrorism” (Law 5233), in July 2004, which

constitutes an important step towards reparation for those who suffered loss or damage as a result of “action by terrorist organisations and measures taken by the government to combat it” during the period 1987-July 2004 (COE/PA March 2004, p.45; Permanent Mission of Turkey to the UN Geneva, 18 March 2004). In response to concerns expressed by the international community and national NGOs that many displaced did not have adequate time to put together applications, the authorities have extended the deadline twice.

In addition to the adoption of the Compensation Law, the government funded a comprehensive survey to determine the size and needs of the displaced population. The survey aimed at documenting the situation of IDPs with quantitative and qualitative data is being carried out by an independent body, the [Institute of Population Studies at Hacettepe University](#). The quantitative results of the survey were released in December 2006.

National authorities have also strengthened cooperation with international agencies. See section on international response below.

The government adopted a new national strategy on internal displacement in Turkey and notes that the UN Guiding Principles on Internal Displacement are the basis of the document. It has also said that the Strategy will include a blueprint for dealing with the issue of the village guards (GoT/UN Mission, 27 September 2005).

In February 2007, the Ministry of Interior designated its General Directorate of Provincial Administration as responsible for all IDP-related policies and programmes. The Directorate is responsible for overseeing overall national IDP policy as well as the compensation law and the national RVRP return programme (GoT/UN Mission, 27 June 2007; UNDP, 18 July 2007). The establishment of such an office could facilitate a more coordinated response and facilitate the continued development of relationships with civil society organisations working with displaced people, though some of them have reportedly not yet been informed of the creation of this new role. Relations between NGOs and the authorities in relation to internal displacement in Turkey have improved generally, but interaction is often *ad hoc* and difficult (IDMC, October 2006; Ayata, December 2006). Human Rights Watch reported the detention of one of its researchers in 2006.

The government has stated that it is willing to cooperate with NGOs working with IDPs. There has been some consultation with NGOs in the preparation of the IDP survey. The central government sends circular to provincial governors instructing the governors to involve NGOs in the government's return programme (Turkish Daily News, 29 August 2005). Civil society organisations have called for more transparency and the opportunity to participate meaningfully and systematically in the development and implementation of IDP policy and programmes (IDMC/TESEV, June 2006).

The government has stated its intention to formulate a national IDP plan of action, but it has not yet produced it. The current UN Representative on the Human Rights of IDPs has called for the plan of action to be developed in consultation with civil society and IDPs; and it should be based on the extensive new data on the displaced population provided by the IDP survey. The Van Action Plan provides a concrete model for addressing IDP needs at the provincial level, based on which the government plans to develop further action plans for the other provinces. Implementation of the Van Action Plan began in September 2006, and the government says that 84 planned projects (requiring funding of close to 92 million Turkish lira or \$72m) have been submitted to relevant national ministries (GoT/UN Mission, 26 June 2007; UNDP, 18 July 2007). Some NGOs report however that implementation of projects has progressed slowly due to factors including insufficient resources

Prime Minister Erdogan recognised the Kurdish issue publically (Aljazeera, 30 August 2005).

The data provided by the national IDP survey provides a much fuller picture of the displaced population and their wishes and needs, which should also be taken as the basis to review the national return policy and the RVRP return programme. This programme, which was launched in 1994, has been extensively criticised on many grounds, including an overall lack of transparency and clear strategy and a lack of consultation with IDPs. The national return policy has also been found to be inconsistent, discriminatory, and underfinanced (HRW, 26 January 2004; CoE/PA, March 2004; EC, 5 November 2003). The national IDP survey found that 88 per cent of displaced people surveyed who had returned to their villages said that they did so without assistance from the government (Hacettepe University, December 2006). Given that many IDPs will not return, there is also a need to provide concrete solutions for displaced persons who opt for local integration or resettlement. The government's national IDP strategy aims to explore "the possibilities to provide support and assistance in order to facilitate the new living conditions for those citizens who do not wish to return and their integration into their new places of settlement" (GoT, August 2005).

There has also been a call by civil society organisations for reconciliation initiatives from the government to address the issue of past human rights violations against IDPs, including killings, abductions, torture and the burning and destruction of property, committed by the security forces, village guards and PKK during displacement. This recommendation is linked to the analysis that steps the government takes on the IDP issue should be part of a wider solution to the Kurdish issue in order to ensure success (Turkish Daily News, 11 July 2006; IDMC/TESEV, June 2006).

Non-governmental organisations and IDP lobby groups

Local organisations have provided a range of support services to the internally displaced for many years, including humanitarian assistance, legal, medical and psychological support. Local organisations have also undertaken surveys and assessments documenting the needs of the displaced. The key organisations assisting and advocating for the rights of the internally displaced include the [Human Rights Association](#) (IHD), the [Immigrants Association for Social Co-operation and Culture](#) (Göç-Der), Organisation of Human Rights and Solidarity for Oppressed People (Mazlum-Der), Union of Chambers of Architects and Engineers of Turkey (TMMOB), the [Human Rights Foundation of Turkey](#) (HRFT), the Turkish Medical Association (TTB), [Foundation for Society and Legal Studies](#) (TOHAV) and the Diyarbakir Bar Association

Research and public discussion relating to IDPs has increased. In 2006, the Turkish Economic and Social Studies Foundation (TESEV) organised a conference, entitled "[Internal Displacement in Turkey and Abroad: International Principles, Examples and Policy Proposals](#)" to foster public debate and solutions on the IDP issue in Turkey.

INTERNATIONAL RESPONSE: Increasing engagement with international community

Progress made in Turkey to address internal displacement issues has been substantially influenced by regional and international actors. The May 2002 visit of the UN Representative on IDPs, Francis Deng, brought national attention to the issue and resulted in a series of recommendations to the government. The current Representative has maintained this dialogue over several visits to the country and has made subsequent recommendations to the government.

The issue has also been raised a number of times by the UN human rights treaty monitoring committees in evaluations of Turkey's commitments under the international human rights treaties to which it is party (UN CAT, 27 May 2003; UN CRC, 9 June 2001 for example). Regional inter-governmental structures have likewise issued extensive recommendations and reports on the situation (COE/PA, 3 June 1998, 29 May 2002; 3 March 2004). In its latest resolution, the Council of Europe's (COE) Parliamentary Assembly found that Turkey has demonstrated its commitment and ability to fulfil its obligations as a COE member state; however it called on the government to "move from a dialogue to a formal partnership with United Nations agencies to work for a return,

in safety and dignity, of those internally displaced by the conflict in the 1990s” (Resolution 1380 (2004)).

The European Court of Human Rights (ECtHR) has held the Turkish state responsible in a large volume of cases for its involvement in the forced displacement of its citizens, particularly in judgments regarding property destruction and disappearances. In June 2005, the Council of Europe's Committee of Ministers adopted an Interim Resolution assessing Turkey's compliance with more than 70 judgments of the ECtHR relating to a wide range of human rights abuses committed by the security forces, handed down between 1996 and 2004 (COE, 7 June 2005).

Turkey was recognised as an EU candidate in 1999. In successive reports assessing Turkey's progress in fulfilling the necessary criteria to start the accession negotiation process, the EU has called for the government to address the situation of IDPs, drawing attention to obstacles to return and calling for the improvement of socio-economic conditions in the south-east.

Until the visit of the UN Representative on IDPs, Francis Deng in 2002 the UN largely avoided “open discussion of the problem with the authorities and refrained from providing protection and assistance to those displaced by the conflict” because of the “alleged sensitivity of the Government to the issue” (UN 5 June 2002). Some UN agencies however carried out programmes in areas of the country in which the displaced were located but no programmes specifically targeted IDPs (UN, 5 June 2002; USCR 1999, pp. 33-34). Following RSG Deng's visit in 2002, the government requested the UN in Turkey, in collaboration with the World Bank and the EU, to support its efforts and initiatives related to the follow-up on his recommendations.

No UN agency is currently systematically monitoring return movements in the country nor is the UN providing assistance to IDPs. However, A formal agreement was reached in February 2006 between the UN country team and the government to implement a project entitled “[Support to the development of an IDP Programme in Turkey](#)”. The UN country team has established an IDP working group, through which it provides advice to the government. In the framework of the project, the United Nations Development Programme has translated the Guiding Principles on Internal Displacement into Turkish to increase the awareness and knowledge of international standards relating to internal displacement among the government and civil society. UNDP has also coordinated training to government and civil society organisations and worked with the local authorities of Van province on a pilot return and reintegration strategy which can be replicated in other provinces.

See also

[From Denial to Dialogue - An Analysis of Recent International and National Policies on the Problem of Internal Displacement in Turkey](#), Ayata, Bilgin, December 2006

[A belated awakening: National and international responses to the internal displacement of Kurds in Turkey](#), [New Perspectives on Turkey](#), no. 32, [New Perspectives on Turkey](#), Ayata Bilgin and Yüksek, Deniz, December 2005

[“Asylum, Immigration, Irregular Migration and Internal Displacement in Turkey: Institutions and Policies”](#) Kirisci, Kemal (2004) for further information

Legal framework and national policy

Parliament revises Law to Fight Terrorism (2007)

AI, 23 May 2007

"In June, Parliament revised the Law to Fight Terrorism, greatly widening the scope and number of crimes punishable as terrorist offences, introducing articles liable to further restrict freedom of expression, and failing to restrict the use of lethal force by law enforcement officials. In July the President approved the Law but applied to the Constitutional Court for the annulment of two articles relating to sanctions against the press."

Steps taken to combat violence against women and children (2007)

AI, 23 May 2007

"There was little progress in implementing the provision in the 2004 Law on Municipalities, which stipulated the need for shelters for women victims of domestic violence in towns with a population of more than 50,000. Women's organizations called for additional funds from the government to implement the law. A circular from the Prime Minister in July, outlining measures to combat violence against women and children, and to prevent so-called "honour killings", represented a step towards acknowledging an entrenched and endemic problem. In December, Parliament passed revisions to the Law on the Protection of the Family, widening its scope."

Human rights conventions ratified by Turkey (2007)

- Turkey is party to most international human rights instruments

AI, 23 May 2007

"During the year, Turkey ratified both the (first) Optional Protocol to the International Covenant on Civil and Political Rights (ICCPR) and the Second Optional Protocol to the ICCPR, aiming at the abolition of the death penalty."

EC, 6 November 2006

"Concerning the *ratification of human rights instruments*, the Second Optional Protocol to the International Covenant on Civil and Political Rights (ICCPR) on the abolishment of the death penalty was ratified in March 2006. Protocol No 13 of the ECHR, on the abolishment of the death penalty at all times was ratified in February 2006. Protocol No 14 of the ECHR, amending the control system of the Convention entered into force in May 2006. The UN Convention against corruption entered into force in June 2006. Turkey ratified the revised European Social Charter on 27 September 2006. The European Social Charter was accepted with reservations on Article 5 (right to organise) and Article 6 (right to bargain collectively) as well as on paragraph 3 of Article 2 (minimum annual holidays) and paragraph 1 of Article 4 (remuneration and decent standard of living). Turkey has lifted previous reservations on the European Social Charter's provisions, namely the right of children and young persons to protection and the right of disabled persons."

OHCHR, August 2005

CAT-Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment

CCPR-International Covenant on Civil and Political Rights

CEDAW-Convention on the Elimination of All Forms of Discrimination against Women

CEDAW-OP-Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women

CERD-International Convention on the Elimination of All Forms of Racial Discrimination

CESCR-International Covenant on Economic, Social and Cultural Rights

CMW-International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families

CRC-Convention on the Rights of the Child

CRC-OP-AC-Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict

CRC-OP-SC-Optional Protocol to the Convention on the Rights of the Child on the sale of children child prostitution and child pornography

Ratification

Ratification

Accession

Ratification

Ratification

Ratification

Ratification

Ratification

Ratification

Ratification

EC, 6 October 2004

(as at end of September 2004)

Adherence to following conventions and protocols	Turkey
ECHR (European Convention on Human Rights)	✓
Protocol 1 (right of property)	✓
Protocol 4 (freedom movement et al.)	
Protocol 6 (death penalty)	✓
Protocol 7 (ne bis in idem)	
European Convention for the Prevention of Torture	✓
European Social Charter	✓
Revised European Social Charter	
Framework Convention for National Minorities	

HRW 26 January 2004

"In 2002 Turkey made a substantial contribution to the international movement for abolition of the death penalty by removing capital punishment for all peacetime offences, and in November 2003 made permanent this commitment by ratifying the sixth optional protocol to the European Human Rights Convention. In January 2004 Turkey completed abolition of the death penalty by ratifying article 13, which covers wartime executions"

HRW 26 January 2004

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OHCHR November 2003

On 23 September 2003, Turkey ratified the United Nations International Covenant on Civil and Political Rights and the UN International Covenant on Economic Social and Cultural Rights. Both conventions entered into force in December 2003.

Permanent Mission of Turkey to the UN observations on report of the UN Special Representative on IDPs (2003)

- The letter of the Permanent Mission of Turkey to the UN (August 2003) outlines observations by the government in response to the visit of Mr. Deng, Special Representative on IDPs in 2002
- The government claims two decades of terrorism as the root cause of internal displacement in Turkey
- The government notes that it is incorrect to portray the cause of displacement as the equal responsibility of the authorities and the terrorist organisation (the former PKK, presently KADEK)
- The government claims that activities of the former PKK displaced the majority of citizens whereas a small number of settlements were evacuated by state authorities as a safety measure
- The importance of the Government's return/resettlement programme is highlighted, noting a key factor of the programme is providing suitable conditions for return/resettlement
- The document indicates that 82,000 people have been able to return between June 2000 and January 2003

UN OHCHR, 7 August 2003

"OBSERVATIONS OF THE GOVERNMENT OF TURKEY REGARDING THE REPORT OF THE REPRESENTATIVE OF THE SECRETARY GENERAL ON INTERNALLY DISPLACED PERSONS

At the invitation of the Government of Turkey, Mr. Francis Deng, Representative of the Secretary General on internally displaced persons, visited Turkey from 26 May to 2 June 2002. The visit of Mr. Deng falls within the scope of a series of visits to Turkey by the thematic procedures of the Commission on Human Rights. Turkey is among the countries which have extended a standing invitation to the thematic procedures of the Commission on Human Rights and is committed to closely cooperating with these procedures. Mr. Deng's visit to Turkey was another example of such cooperation. Like other mandate holders who visited Turkey, he enjoyed full cooperation of the Turkish authorities. It is noted with satisfaction that Mr. Deng recognized the Government's contribution to the success of the visit and that the visit took place in an atmosphere of openness, transparency and cooperation.

Mr. Deng's report regarding his visit to Turkey (E/CN.4/2003/86/Add.2) has been carefully examined by the relevant Turkish authorities with a view to benefiting from its findings and conclusions. This document aims to outline the observations of the Turkish Government on the said report.

The root cause of internal displacement in Turkey has been the scourge of terrorism that Turkey has suffered for two decades. Large number of our citizens were compelled to leave their homes due to the terrorist organization PKK's intimidation, harassment and attacks. A small number of settlements had to be evacuated by the relevant authorities to ensure the safety of our people as a precaution. This being the case, it is indeed incorrect to portray the cause of displacement as the equal responsibility of the terrorist organisation and the authorities.

PKK (alias KADEK today) is a terrorist organization responsible for the death of over 30,000 Turkish citizens particularly in the south-east of Turkey. It is internationally labeled as such. Therefore, lack of reference to the PKK as a terrorist organisation in the report constitutes a serious shortcoming.

The Turkish Government attaches great importance to the successful return of our displaced citizens on a voluntary basis. In that regard, Back to Village and Rehabilitation Project has been launched with the purpose of enabling return and resettlement as well as the establishment of

necessary social and economic infrastructure and sustainable living standards. The ongoing efforts within the project also aim to increase the productivity capacity of the people as well as their education level. With this perception in mind, the project comprises measures to promote activities such as agriculture, animal husbandry and handicrafts. A campaign to promote education is stipulated under the coordination of governors.

The project aims not only to enable voluntary return to original settlements but also to create a more balanced and effective settlement pattern with a view to enabling a more rational and effective distribution of public investments and public services. To this end, centralization of settlements will be encouraged and supported. In that regard, one model village in every province covered by the project is chosen, areas for resettlement are identified, and their construction and development plans are prepared accordingly.

A significant dimension of the voluntary return process is to maintain the economic, social and cultural development in the region and to eradicate terrorism, which are interlinked. The state of emergency was completely lifted as of 30 November 2002. Maintaining the security situation in the region remains significant in the realization of regional development and the voluntary return process.

Due to the complex and multi-dimensional nature of the process, close coordination and cooperation among various Ministries and public institutions as well as allocation of necessary financial resources is essential. The progress achieved so far has been positive and encouraging. In this regard, tens of thousands of people have returned to hundreds of villages and other rural settlements and necessary assistance has been provided to these people. The number of returnees from June 2000 to January 2003 is around 82 thousand. In spite of the budgetary restraints and serious economic difficulties, the Government continues to allocate increasing amount of resources for the effective implementation of the project. However, availability of resources remains a dominant factor affecting the pace of the realisation of the project.

Turkey will continue to take all feasible measures for the success of the voluntary return process and stands ready to maintain the ongoing cooperation with the Representative.”

Call for a paradigm shift to solve the problem of displacement in Turkey (2006)

- Dialogue between government and international community results in a problem of language and further alienates IDPs
- Lack of public discussion on displacement
- New international development discourse does not give justice to the circumstances of the displaced
- Lack of necessary paradigm shift to the displacement problem in Turkey
- Stronger participation of the displaced indispensable to help tackle the problem from the inside

Bilgin Ayata, “From denial to dialogue,” International Symposium: Internal Displacement in Turkey and Abroad: International Principles, Examples, Policy Proposals, 5 December 2006:

“For one, the dialogue between the government and international community has resulted in a significant problem of language which alienates IDPs and the public from international and national policy makers. In an effort to streamline the national responses to displacement the

international community has been pushing Turkey to adopt a literal translation of the term internally displaced persons into Turkish. Since 2004 the terms “yerinden olmus” and “yerinden edilmiş” have been alternately appearing in the public. So the government the UNDP and other intergovernmental organizations are using the term “yerinden olmus” which is a passive interpretation of the term while civil society organizations such as TESEV, scholars and Human Rights Watch are using the term “yerinden edilmiş,” an active interpretation of the term. Well with respect to the first “yerinden olmus” term I just want to point out that abbreviation for “yerinden olmus kisiler” is “yok” y-o-k which means non-existent in Turkish. So I invite you to think what establishment of the term would mean in practical manners, somehow we are soon going to talk about “yoklar” non-existing. This polite fight between officials and policy makers about the acronym’s translation is in my view not only unnecessary since the phenomenon of internal displacement has been commonly referred in the Turkish society as “zorunlu göç” forced migration for many years now in Turkey. I also think that both versions of the translation are alienating since the displaced persons in the domestic public are confronted with a new vocabulary without any public discussion on how this new vocabulary came even about.

So far neither the Compensation Law nor the dialogue at the diplomatic level has led the government to facilitate public discussion on displacement. Instead it seems to me that there is a dual policy of dialogue and openness on an international level while domestically there is great discomfort for the state to even name the issue. There is no dialogue so far of the government with the displaced persons themselves or with the society at large in this respect. I’m sure that participants of this conference who come from the affected regions can elaborate further on their experiences.

The imposition of a new vocabulary suggests a new beginning and the international community might be patient enough to give the government a chance for incremental adjustment and change. For millions of Kurds however who has been suffering over a decade from the consequences of displacement under conditions that have led to lasting effects in the social structure of the Kurdish population in Turkey such patience is hard to grant. They will need more than promises and weak prospects after almost sixteen years of neglect. They deserve an apology, a sincere acknowledgement and a home. And with home I don’t just mean a house with running water which is very important but also the restoration of the feeling of a rightful and equal belonging. Now I am aware that the international framework on the protection of the human rights of IDPs aims to facilitate these goals. However my observations on the emerging IDP regime in the course of the dialogue have cast serious doubts on the implementation and effectiveness of the international framework. I am worried that the international community is so concerned with maintaining its dialogue with Turkey that it accommodates the sensitivities of the Turkish government on the expense of the displaced Kurds. Now let me explain this. The emerging regime on internal displacement in Turkey has resulted in a policy process of regulation which effectively disentangles the Kurdish conflict from the forced displacement. Basically the dialogue is solely built on the consequences of displacement by sidelining the causes and the politics of displacement. Instead of discussing this displacement as part of the Kurdish conflict it has been framed in a developmental paradigm where the efforts are concentrated on the socio-economic reconstruction of the region and on material compensation. Since the state denies the existence of a political conflict vis-à-vis its Kurds at this course of modernization and development has been a crucial element of the state to control and shape that contentious regions. I see also Mesut Yegen in the audience who has written extensively on this issue.

Important partners of the present dialogue such as the UN and the UNDP nourish now this regulatory and developmental discourse due to their own institutional interest. As a result the problem of displacement has been presented as a temporary isolated phenomenon which could be undone with the cooperation of the state and international aid expertise. Well I am very doubtful of this process and I would just like to exemplify this approach by also looking at the program of this conference which is my only criticism of otherwise an excellent conference but I

would like to point out that the word Kurd or Kurdish does not appear anywhere in the program. Is the displacement in Turkey a problem of a number of individuals or is it a collective problem of a distinct population? Nor is there a panel unfortunately on the causes of displacement or to put it more concretely on the Kurdish conflict in Turkey. I hope that these aspects will be addressed in later panels. If we don't regard it as a miracle incidence that the internal displaced are overwhelmingly Kurds and as long as we do not assume that they have been accidentally displaced we have to inquire the rationale behind the massive displacement. We do need to ask why and how the Kurds have been displaced. A single focus on the socio-economic and the psychological consequences of displacement strips the underlying deeper political issues from the problem and reduces it to a matter of policy rather than politics.

[...]

The refusal by the government to acknowledge its involvement in the displacement along with the concerted effort to disentangle the Kurdish issue from the displacement does not indicate a paradigm shift. Rather it seems that while talking about the future of the displaced in effect the recent past is getting rewritten and suppressed. How can these aspects of a dialogue be all reversed into a process of durable and sustainable piece on reconciliation? Well I believe that this is possible with a much stronger participation of those who are either critical to or even unaware - of this dialogue and you know this would mean first informing also the displaced themselves. The displaced Kurds or their representatives have to seize the moment and take a strong position towards the ongoing diplomatic dialogue between the government and the UN and the other international bodies. This dialogue has been too much shaped by the sensitivities of states so far. Both Kurdish representatives as well as human rights organizations in Turkey have so far remained rather passive in this process. Some were trapped between the mistrust towards the state and the sudden interest of the international community. They did not really claim their position in this dialogue and have become observers rather than participants. One reason for this is that the Kurdish parties and NGOs have blatantly failed to make the issues of displacement to the top agenda by prioritizing other aspects of the Kurdish conflict. Another reason for not claiming their position yet is certainly also the new vocabulary in the new form of politics which the international community is always bringing into such a dialogue I mean the humanitarian language and the toolbox. So those who the displaced Kurds regard as a representatives (and that question is also still up in the air), should either become versatile with the humanitarian toolkits and the language and participate actively in this process or they should demonstratively stay out of it. But no matter which option they embarked on I believe that a strong sense in either direction needs to be taken up urgently. We might see then the tough nut actually will be best cracked from inside out."

See also the report of [International Symposium Report: "Internal Displacement in Turkey and Abroad: International Principles, Examples and Policy Proposals - Conference Report.](#)

Government adopts legislation for accession to Mine Ban Treaty (2003)

- On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was also signed by the President

Landmine Monitor Group August 2003

"On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was subsequently signed by the President. On 3 May 2003, the foreign ministers of Greece and Turkey issued a joint statement that they would proceed to adhere to the treaty simultaneously. Also in May 2003, Turkey announced that its armed forces had started planning the destruction of the stockpile of antipersonnel mines. Turkey announced that mine clearance along the Turkish side of the border with Bulgaria was completed in mid-2002. Clearance elsewhere is ongoing. The government reported 21 new mine casualties in

2002, as compared to 58 new casualties in 2001. On 26 April 2003, Turkey without Mines organized the first national conference on antipersonnel mines, held in Istanbul.”

Turkey continues legislative reform process in its bid to join EU (2003)

- The first reform package came into effect in January 2003, addressing a number of issues including provisions addressing torture, the right of minority communities to acquire property
- A second ‘reform package’ came into effect in February 2003 granted the right to automatic retrial for those who the European Court of Human Rights ruled had suffered a violation of the ECHR
- A ‘sixth reform package’ includes: the abolition of article 8 of the Anti-Terror Law (crime of spreading separatist propaganda); lifting restrictions on Kurdish broadcasting on private television and radio stations
- The sixth reform package also includes lifting of prohibition on non-Turkish (Kurdish) names; and upholding the right of all detainees to have immediate access to legal counsel
- A ‘seventh adjustment package’ envisaged, among other measures, changes in the organization and status of the National Security Council.

AI 1 October 2003

“The first ‘adjustment package’ this year came into effect on 11 January and included a number of important provisions. Among these was the stipulation that sentences for the crimes of torture and ill-treatment could no longer be converted to fines, suspensions on probation or postponement. The requirement to secure permission from the relevant senior official in order to proceed with investigation and prosecution of an official accused of acts of torture or ill-treatment was lifted. Medical examinations of prisoners on being transferred to and from prison were made obligatory. Detainees other than those detained for offences under the remit of the State Security Courts were given the right to meet with a lawyer immediately after being detained. The Press Law was amended to uphold the right of journalists not to disclose their sources. Foundations connected with the religious minority communities of Turkey were granted permission to acquire property. The process of initiating the closure of a political party was changed to become more formalized and extended. However, the People’s Democracy Party (HADEP) was closed down by a Constitutional Court ruling on 13 March.

A second ‘adjustment package’ that came into effect on 4 February granted the right to automatic retrial for those who the European Court of Human Rights (ECHR) had ruled had suffered a violation of the European Convention of Human Rights as a result of a court judgment in Turkey. This opened the way for a retrial of the four imprisoned Democracy Party (DEP) deputies – Leyla Zana, Hatip Dicle, Orhan Dogan and Selim Sadak – who, according to an ECHR ruling, had been found not to have received a fair trial in 1994.

Further legislation in the form of the reforms known as the ‘sixth adjustment package’ had been fully agreed upon but not implemented by June. Reforms included: the abolition of article 8 of the Anti-Terror Law (the crime of spreading separatist propaganda); lifting of restrictions on non-Turkish-language (thus Kurdish) broadcasting on private television and radio stations; lifting of prohibition on non-Turkish (thus Kurdish) names; and upholding the right of *all* detainees (including those detained for offences falling under the remit of the State Security Courts) to have immediate access to legal counsel. A ‘seventh adjustment package’ envisaged, among other measures, changes in the organization and status of the National Security Council.”

For more information on political developments since 2001 see also Section B of the report by the COE Parliamentary Monitoring Committee, "[Turkey: Explanatory memorandum](#)", by the co-

rapporteurs, Mrs. Mady Delvaux-Stehres and Mr. Luc Van den Brande (Co-rapporteurs) March 2004

For information on the “Seventh reform package”, see [“Turkey reform targets army power”](#) BBC News, 30 July 2003

Turkish government passes Amnesty Bill (July 2003)

- Parliament adopted a law offering reduced prison sentences to PKK/KADEK/KHK members and other “terrorist” organisations who agree disarm and to provide information to the authorities
- The government reported that as of December 19, 2003, over 2,400 prisoners had applied for benefits under the law and over 580 active militants had surrendered

US DOS 25 February 2004, Sect.2d

“In July, Parliament adopted a ‘Reintegration Law’ offering reduced prison sentences to combatants belonging to the PKK/KADEK/KHK and other terrorist organizations as identified by the Government who agreed to lay down their weapons and provide information to authorities. The law offered full amnesty to those guilty of providing non-lethal support to terrorist organizations. At year’s end, most of those who had applied for benefits under the law were already serving prison sentences; the Government reported that, as of December 19, 2,486 prisoners had applied for benefits under the law and 586 active militants had turned themselves in.”

Significant legislative reform in preparation for EU accession (2002)

- Four legislative reform packages were ratified in 2002 in preparation for EU Accession, including the removal of several restrictions on minority language education and broadcasting
- The death penalty in peace time was abolished and steps were taken to prevent the use of torture
- The state of emergency was lifted in the remaining two provinces where it had remained in force (Diyarbakir and Sirnak)
- Despite the reform packages, Turkey must fulfill a number of other conditions to adhere to European human rights, economic, and political standards
- Among the human rights issues which remained unaddressed is support for the return of thousands of internally displaced people

IHF, 8 May 2003

“In 2002, many positive human rights developments took place in Turkey: the death penalty was abolished; several restrictions on minority language education and broadcasting were removed; and some necessary but not yet sufficient formal steps were taken to prevent the use of torture. On November 30, the 15-year-long state of emergency was lifted in the two provinces (Diyarbakir and Sirnak) where it had remained in force. The state of emergency had seriously restricted some basic human rights, particularly those related to arrest, detention and investigation of criminal suspects.

Three legislative reform packages were ratified in February, March, and August 2002, and a fourth one was announced in December 2002. The changes were mainly intended to meet European Union (EU) human rights accession standards in advance of the EU Copenhagen

Summit in December 2002, which concluded the membership negotiations with ten countries, reinforced the candidate status of two others and decided on the candidate status of Turkey.

Despite the reform packages, many of the steps detailed in the EU document *Accession Partnership - 2000*, as necessary for Turkey to take in the economic and political spheres in order to qualify for membership negotiations, remained outstanding. Restrictions on freedom of expression persisted, exacerbated by the courts' failure to adhere to the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR). Turkish police and gendarmes still commonly tortured or ill-treated detainees. The recommendation of the European Committee for the Prevention of Torture (CPT) to guarantee immediate access to all detainees was not followed in respect to detainees subject to state security court jurisdiction.

Former Kurdish parliamentarians remained imprisoned; thorough reform of the Law on Associations was long overdue; and problems in the prison system needed urgent solution. Human rights defenders continued to be persecuted, and there was insufficient support for the return of hundreds of thousands internally displaced people (IDPs).

[...]

The fourth harmonization package in December included a major improvement in the field of freedom of expression: editors-in-chief and news journalists no longer needed to reveal their sources to authorities. But serious concerns remained. As of the end of 2002, Turkish legislation still included hundreds of provisions, which inhibited free expression. Serious moves to abolish any of these provisions were met with accusations of willingness to compromise with 'separatism,' 'religious extremism,' 'betrayal of the state' and even 'treason.' Despite a large number of independent media outlets and active debate in the media, certain topics remained forbidden: criticism of the power of the military and the plight of the Kurdish minority as well as dissenting views about the role of Islam frequently resulted in judicial proceedings and prison sentences. This was frequently done under the pretext of incitement to racial, ethnic or religious enmity, punishable under article 312 of the Criminal Code. Criticism of authorities or, for example, the introduction of the F-type prison system, were often interpreted as insulting the state and its officials under article 159 of the Penal Code. Both articles were amended under EU pressure but were still used to restrict freedom of expression.

The prison term under article 159 was reduced from the maximum of six years to three years (the minimum length remained one year) and fines were abolished. Later a clause was added to the article specifying that speech intended to criticize, but not insult, state institutions shall no longer constitute a reason for punishment."

UK Home Office, April 2003

"On 3 August 2002 the Turkish Parliament formally approved a package of key democratic reforms, designed to improve Turkey's chances of EU membership. The package consisted of the following measures:

- i. An end to the death penalty in peacetime and its replacement with life imprisonment without the possibility of parole. Capital punishment will, however, remain on the statute books for wartime.
- ii. TV and radio broadcasts allowed in languages other than Turkish but not in contravention of principles of national sovereignty laid out in the Constitution. This change allows broadcasts in Kurdish. The Turkish Radio and Television Supreme Council will act as regulator.
- iii. Kurdish dialects to be taught in special courses at private schools, under the regulation of the Ministry of Education.
- iv. An end to penalties for written, vocal or pictorial criticism of state institutions, including the armed forces.
- v. The easing of restrictions on public demonstrations and association, allowing 48 hour notification to the authorities.
- vi. The easing of restrictions on both foreign and local non-governmental organisations working in Turkey.

- vii. Tougher penalties for people- and organ-smugglers, and those who help them, especially if the lives of immigrants are endangered.
- viii. Greater freedom for non-Muslim minority religions.
- ix. Revision of press laws and regulations.
- x. Changes to laws and regulations defining the duties of the police.
- xi. Prison sentences of up to 10 years for persons found to be profiting from forced labour.

The European Commission welcomed the package as an important signal of the determination of the majority of Turkey's political leaders to align Turkey further with the values and standards of the European Union. The EC's statement said that these reforms were significant steps towards better protection of human rights and the rights of minorities in Turkey. Stressing that the overall reform package needed to be carefully analysed in order to assess fully its impact, the EC said that this would be done in the regular report to be presented in the autumn. It added that much would depend on the package's practical implementation, which would be closely monitored in the months to come. Commissioner Günter Verheugen, responsible for EU enlargement, said 'I welcome the courageous decision of the Turkish Parliament. This decision would not have been possible without a clear European perspective that the EU has developed for Turkey since the European Council of Helsinki in 1999. The Turkish decision also shows that the EU is right in being firm as regards human rights and the protection of minorities... Not to give in on these issues makes our partners better understand why we so strongly defend our values, and that they are precious to us.'

One Turkish human rights activist described the reforms as 'the most positive changes made during the history of the Turkish Republic'. Another, Osman Baydemir, who leads the Diyarbakır branch of Turkey's Human Rights Association, said, in referring to the Kurdish role in Turkey, 'For the first time the differences were accepted - a denial has stopped - they actually acknowledged that cultural differences exist.' [...] Human Rights Watch commented 'During the past year we have seen more substantial human rights improvements than any year since the 1980 coup. Instead of the previous tiny grudging steps, we have seen two major strides and the promise of further improvements.' HRW added, however, that there were two areas in particular where Turkey must still act in order to demonstrate that it has broken with its history of human rights abuses: torture and freedom of expression.

The European Commission's October 2002 'Regular Report on Turkey's Progress Towards Accession' welcomed the fundamental reforms which Turkey has introduced since the decision in 1999 on candidate status for European Union membership. (The political criteria for membership are that countries must have achieved 'stability of institutions guaranteeing democracy, the rule of law, human rights and respect for and protection of minorities'.) The report noted the major constitutional reform of October 2001, which strengthened guarantees in the field of human rights and fundamental freedoms, and restricted the grounds for capital punishment. A new Civil Code was adopted in November 2001. Three sets of reform packages were adopted in February, March and August 2002. The death penalty had been lifted in peacetime. The state of emergency had been lifted in two provinces on the southeast, and the decision had been taken to lift it by the end of 2002 in the two provinces where it still applied. The building of political consensus around these major changes (which were adopted under difficult political and economic circumstances) was prepared by an intensive public debate about EYU accession, a debate which took place with the participation of political parties, civil society, business as well as academic circles. The report concluded that, overall, Turkey had made noticeable progress towards meeting the political criteria for EU membership since 1998, and in particular in the course of the year ending October 2002. The August 2002 reforms were particularly far-reaching. Taken together, the reforms provide much of the groundwork for strengthening democracy and the protection of human rights in Turkey. They open the way for further changes which should enable Turks progressively to enjoy rights and freedoms commensurate with those prevailing in the EU.

Nonetheless, the Commission concluded that Turkey does not fully meet the political criteria for EU membership for the following reasons:

(i) The reforms contain a number of significant limitations on the full enjoyment of fundamental rights and freedoms. Important restrictions remain, notably to freedom of expression, including in particular the written press and broadcasting, freedom of peaceful assembly, freedom of association, freedom of religion and the right to legal redress.

(ii) Many of the reforms require the adoption of regulations or other administrative measures, which should be in line with European standards. Some of these measures have already been introduced and others are being drawn up. To be effective, the reforms will need to be implemented in practice by executive and judicial bodies at different levels throughout the country. The Commission considers that the decision of the High Electoral Board to prevent Mr Erdogan, the leader of a major political party, from participating in the November 3 general election did not reflect the spirit of the reforms.

(iii) A number of important issues arising under the political criteria have yet to be adequately addressed. These include the fight against torture and ill-treatment, civilian control of the military, the situation of persons imprisoned for expressing non-violent opinions, and compliance with the decisions of the European Court of Human Rights.

In the light of the noticeable progress made in recent years and of the remaining areas requiring further attention, the Commission encouraged Turkey to pursue the reform process to strengthen democracy and the protection of human rights, in law and in practice. This will enable Turkey to overcome the remaining obstacles to full compliance with the political criteria.

It emerged in late October 2002 that Europe's leaders might make, at the Copenhagen summit in December 2002, a firm pledge on membership talks with Turkey. Many EU states had come under pressure from USA to make concessions to Turkey, which the USA sees as a reliable NATO ally and a friend in the campaign against terrorism. Plans to give new encouragement to the Turks were urged by Greece and the UK; the British Foreign Secretary said that UK was 'extremely positive about helping Turkey's accession to the EU'.

[...]The European Union summit in Copenhagen on 12 and 13 December 2002 decided that Turkey would have to wait until December 2004 before a review that could lead to negotiations for Turkey to join the EU. The review would decide whether Turkey met human rights criteria."

EU monitors Turkey's ability to assume obligations of membership (2000)

- EU recognized Turkey as a candidate for membership in the union in December 1999
- "Copenhagen criteria" for membership include the stability of institutions guaranteeing human rights and respect for and protection of minorities
- In 2000, Turkish State released proposals for reforms for a better protection of fundamental rights but failed to indicate precise timeline for implementation
- European Parliament proposed the linking of aid package to progress on Kurdish cultural rights and the economy in the southeast (September 2000)
- EU Partnership Draft Agreement with Turkey did not address the issue of internal displacement (November 2000)

IHF 2000, pp. 296-297

"At its Helsinki Summit in December 1999, the EU recognized Turkey as a candidate for membership in the union. It decided that prior to actual negotiations for membership Turkey must meet the political criteria for EU membership established in Copenhagen in 1993. The necessary steps include 'stability of institutions guaranteeing democracy, the rule of law, human rights, and respect for and protection of minorities.'

Turkey's first real indication of its readiness for the Accession Partnership appeared in the 28 February 2000 *Report on the Political Criteria of the Special Committee on Turkey - E.U. Relations* prepared by the Special Committee on Turkey–EU relations attached to the Turkish Prime Minister's Office. Another indication was the document entitled *Calendar for Democracy, the Rule of Law and Human Rights*, produced by the Secretariat of the High Coordinating Council for Human Rights of the Office of the Prime Minister in mid-2000, after the above-mentioned report was published. Both documents contained a large number of proposals for constitutional, legal and administrative reform in the direction of better protection of fundamental rights, including, for example, measures for reshaping the National Security Council (a powerful semi-military body established under the Constitution to advise the state leadership on national security matters); abolishing the death penalty; redrafting laws in order to ensure freedom of expression; establishing judicial police; abolishing incommunicado police detention and combating domestic violence. The documents also proposed the signing and ratification of the ICCPR and the ICESCR, both of which were signed by Turkey on 15 August 2000. However, the omissions and the lack of precision regarding the final shape of such reforms, as well as the time line for reforms indicated in the Calendar (by the end of 2001 or 2002), left room for concern because numerous changes were already long overdue, for example those regarding freedom of expression and torture, incommunicado detention, language rights, and asylum issues."

HRW 2000, p. 329

"The particular emphasis that the European Union places on minority rights in Turkey was a cause of friction. In September [2000], the Turkish Foreign Ministry expressed irritation that the European Parliament on releasing an aid package of 135 million euros (U.S.\$117 million) to Turkey had proposed linking the funds to progress on Kurdish cultural rights and the economy in the southeast."

KHRP Summer/Autumn 2000, p. 1

"On 8 November [2000], just under a year since Turkey acquired its EU candidacy status, the European Commission publicly announced its EU Accession Partnership Draft Agreement with Turkey. Although there is much to commend within the document, there are a number of glaring omissions to the agreement which include the absence of the words 'Kurd' and 'Kurdish' throughout. Equally worrying is the fact that the crucial issue of internally displaced peoples in Turkey is not specifically addressed in the criteria to be met by Turkey for EU membership. In addition, most of the agreement's criteria are general with no specific deadlines or benchmarks in place to mark Turkey's progress in cleaning up its appalling human rights record."

See also the Turkish National Programme for the adoption of the *acquis communautaire* (Introduction and Political Criteria), Appendix IV of the Report of the PACE Monitoring Committee "Honouring of obligations and commitments by Turkey", Doc. 9120, 13 June 2001 [[Internet](#)]

Consult the website of the European Commission for more EU documents regarding Turkey's accession [[Internet](#)]

For background information on EU accession criteria and the Copenhagen Criteria, see website of the European Union [[Internet](#)]

Policy and recommendations from international actors

Kurdish Human Rights Project and Bar Human Rights Committee of England and Wales recommendations (2006)

KHRP/BHRC, December 2006, pp. 49-50:

“KHRP and BHRC have the following recommendations regarding the Return to Village and Rehabilitation Project and Law 5233:

We urge the Turkish Government:

- To address the issues highlighted within this report, including the introduction of necessary legal reforms, in particular the provision of non-pecuniary damage for suffering and trauma;
- Within this legislative drafting process, to consult local NGOs, human rights organisations and civil society groups, and invite their input into the reforms;
- To release the data collected by the Hacettepe survey so that accurate information regarding the actual situation of IDPs is imparted to NGOs and other bodies, in order for their living conditions to be improved and appropriately addressed;
- To adequately investigate and punish the perpetrators of the violence towards IDPs, both in the past and on an ongoing basis;
- To abolish the village guard system and initiate an anti-landmine campaign, to include the safe removal and disposal of landmines and an educational programme about their dangers for the local community;
- To create viable conditions for IDPs to return to their villages and rehabilitate themselves.

We encourage local NGOs, human rights organisations and civil society groups:

- To request that the Turkish Government engage with civil society organisations and lawyers to improve the situation of IDPs, including in the context of legislative reform;
- To place pressure on the Turkish Government to comply with the above recommendations.

We urge the international community:

- To monitor the operation and working methods of both of Turkey's IDP programmes: this applies in particular the UN Special Representative on the Rights of Displaced Persons;
- To produce regular reports on the ongoing situation and to continue to place pressure on the Turkish Government to introduce the necessary reforms;
- To enter into dialogue with the Turkish Government regarding the potential of international actors to address the situation of IDPs, and further to encourage Turkey to engage in this respect.

We request the European Commission:

- In relation to the European Commission Delegation to Ankara, to monitor the working methods of the two programmes detailed in this report and to provide a concrete and accurate evaluation for inclusion in the next regular report on Turkey;
- Given that the return and resettlement of Turkey's vast number of IDPs may be too large a logistical and financial burden for the Turkish Government to bear alone, we urge the EU to enter into dialogue with the Turkish Government regarding its potential to address the situation of IDPs, and further to encourage Turkey to engage in this respect;
- To make Turkey's EU accession conditional upon the Turkish Government's acceptance of the involvement of EU and other international actors in the return and resettlement of Turkey's IDPs, through the provision of reconstructive, logistical and financial assistance rebuild their villages and livelihoods.”

IDMC recommendations to improve partnership and dialogue between government and civil society (2006)

IDMC, October 2006, pp.7-11:

“The relations between NGOs and the Turkish authorities in general, and in relation to internal displacement in particular, have considerably improved in recent years, thanks to the process of EU accession engaged in by Turkey. These positive developments should enable the authorities to use more constructively the vast experience and knowledge available within the NGO

community with regard to the protection of IDPs in the country. However, the relations between NGOs and the national authorities in Turkey remain difficult and ad-hoc....

Recommendations to the national authorities

1. All arbitrary restrictions on the freedom of expression and association of NGOs should be ended. Legislative and regulatory provisions limiting the ability of NGOs to voice their concerns publicly should be removed. The right of civil society organisations to conduct non-violent advocacy on behalf of minorities, including the Kurdish minority, should be protected. Furthermore, the government of Turkey should encourage all state organs and officials to develop open and constructive relations with NGOs, and regard them as essential resources and partners.

2. All efforts should be done to ensure that all the recent initiatives taken to address conflict-induced displacement in Turkey are followed through, and lead to concrete changes on the ground. This is essential to restore the confidence of the NGO community in the authorities. The action plan developed in the province of Van, under the leadership of UNDP and with the participation of all relevant actors, should be adequately funded and implemented by the Turkish state, with external support where necessary.

3. Authorities should replicate the consultation process, as conducted in Van province, with the objective of developing action plans in all provinces concerned. National authorities should support the setting up of mechanisms at the national, provincial and local levels, comprising representatives of key NGOs involved in the protection of IDPs, with the mandate of steering the development, implementation and evaluation of the action plans, in line with the government's Framework Document.

4. Where dormant or ineffective, existing structures of dialogue between authorities and NGOs should be revitalised at the local and provincial levels. The relevant authorities should be instructed to reactivate such forums, while the necessary reforms should be undertaken to restore their credibility (in particular with regard to their independence).

5. The authorities should strengthen their efforts to raise awareness of the situation of IDPs among the general public, with the objective of widening space for a peaceful and constructive dialogue with civil society actors on the displacement issue. The survey conducted by the Hacettepe University's Institute of Population Studies should be made public as soon as possible. Events to discuss the finding of the survey should be organised jointly with NGOs and other relevant stakeholders and the media.

6. The authorities should ensure a more systematic participation of NGOs in the formulation of policies relating to IDPs in Turkey. In line with the *Framework for National Responsibility*, the mandate of the IDP focal point within the Ministry of the Interior should include the responsibility to liaise with NGOs at the national level on a regular basis, to share information on government initiatives, plans and policies, collect the views and inputs of NGOs and channel them to relevant officials. The focal point should also promote and monitor the development of partnerships between authorities at the provincial and local level and NGOs.

Recommendations to the NGO community in Turkey

7. NGOs who participated in the training of trainers on the protection of IDPs, organised by UNDP Turkey and the IDMC, should organise and conduct training events to continue the dissemination of the Guiding Principles and train other NGOs on the protection of IDPs. Where possible, NGOs should also encourage authorities at the local and provincial level to support the development of workshops and invite relevant officials as resource persons or participants. As much as possible, training workshops should be used by NGOs as a tool to reinforce the dialogue between them and the authorities in a non-confrontational environment.

8. Cooperation among NGOs should be reinforced, with the objective of strengthening their position towards the authorities and reinforcing the impact of their advocacy work. The creation of a consortium of NGOs interested in the protection of IDPs should be envisaged, for instance with a secretariat rotating among consortium members. One mandate of such a consortium, at the national level, could be to coordinate advocacy activities in international and regional forums

(Human Rights Council, Council of Europe, OSCE, EU, treaty bodies). Consortiums at the provincial level could also play a role in monitoring the return process and the implementation of the authorities' commitments in support of local integration. Exchange of information and consultation between NGOs from different provinces should also be facilitated.

9. NGOs should join forces to continue raising awareness of the situation of IDPs among the public. For instance, NGOs could organise annual events (conferences) at the national and provincial levels to discuss the situation of IDPs and the progress made regarding the implementation of durable solutions. Representatives of the relevant national authorities should be invited to co-organise and take part in such events.

10. Bar association members of the damage assessment commissions should be encouraged to liaise with the NGO community at the provincial level. Bar associations should request their members to report about their activities and consult about policies relating to the application of the Compensation law. As the only members of the Commissions originating from civil society, bar associations should also organise consultations with other interested NGOs on the role of the civil society member of the Commission. NGOs should also advocate for change in the structure of the commissions in favour of a more balanced representation of civil society and the public sector.

Recommendations to the United Nations actors

11. Access of NGOs to relevant training opportunities should continue to be promoted. Any training project developed to strengthen the capacity of authorities to better respond to the protection needs of IDPs should also be opened to the relevant NGOs. In particular, training on housing, land and property issues organised for members of the damage assessment commissions should also be extended to bar associations in general and NGOs which have shown an interest in the issue. More training opportunities for NGOs should be developed, in particular with regard to communication with the public and the media, and negotiations skills.

12. Access of NGOs to key documents and materials related to IDPs in general, and in Turkey in particular, should be reinforced. All relevant reports, resolutions, recommendations, policy documents, from regional (EU, Council of Europe, for example) and international bodies (the UN system, Brookings) should be translated systematically, and made available to the NGO community in Turkey. UNDP could support the systematic translation of these documents and use its webpages in Turkish to make them available.

Recommendations to the European Union

13. The European Union should continue to closely monitor the response of the national authorities to the displacement caused by the violence in Southeastern Turkey. In doing so, due attention should be paid to whether NGOs are meaningfully involved by the authorities in the planning, implementation and monitoring of IDP-related policies and action plans.

14. EU funds should be directed to the implementation of IDP action plans developed after meaningful consultation with the Turkish NGOs. The EU should also ensure that Turkish NGOs can directly contribute to the implementation of the action plans, through the development of field-based projects and advocacy initiatives. This requires that NGOs have access to EU funding, in accordance with their expertise and contact with IDPs."

Recommendations of RSG on the human rights of IDPs after his working visit to Turkey in September 2006

UNDP:

"The Representative of the Secretary General on the Human Rights of Internally Displaced Persons (RSG), Mr. Walter Kälin, carried out a working visit to Turkey from 28 September to 1 October 2006 on the invitation of the Governor of Van Province, Mr. Niyazi Tanirli. In Ankara, he met with representatives of the State Planning Office (SPO) and the Hacettepe University

Institute of Population Studies on their Migration and Displacement Survey and TESEV (Turkish Economic and Social Studies Foundation). On 29 September he spoke at a conference in Van convened to launch the “Van Provincial Action Plan for Responding to IDP Needs” (Action Plan) in the presence of Mr. Abdulkadir Aksu, Minister of Interior, the governors of the fourteen South-Eastern Anatolian provinces, local authorities, representatives of the international community and of civil society, as well as the media. On 30 September, he visited a returnee village in Gürpınar District and social projects assisting internally displaced persons (IDPs) in Van. The visit concluded with a debriefing meeting with Governor Tanirli on 1 October.

At the end of this visit the RSG draws the following *conclusions*:

1. During the last two years, significant progress has been made in Turkey, both in terms of the adoption of laws and policies addressing internal displacement, and more generally in the commitment demonstrated by the Turkish Government to find solutions for the displaced in open cooperation with civil society and the international community. The adoption of the Van Provincial IDP Action Plan and the political support provided to it by the Government of Turkey provide a unique window of opportunity to find durable solutions for many of the IDPs and a momentum that must be seized as a matter of urgency.
2. The Van Action plan elaborated within a short time is comprehensive and holistic. It provides an important and adequate instrument to address displacement with a view to find durable solutions. Its strengths include: (i) the reflection of the Guiding Principles on Internal Displacement and the human rights principles they are based upon, in particular the principle that IDPs can freely choose between return to their places of origin, local integration where they presently live, or resettlement to another part of the country; (ii) the consultative and participatory process involving a wide range of stakeholders; (iii) the focus on displaced persons as active citizens, rather than only passive beneficiaries, whose needs are at the center both of the process and the envisaged outcomes of the plan; and (iv) its comprehensive and holistic nature, as demonstrated by the combination of, on the one hand, activities aimed at the physical reconstruction of infrastructure and homes and the safeguarding of property rights for those wishing to return, with, on the other hand, numerous measures aimed at the social and economic reintegration of IDPs and the provision of public service. The integration of the reconstruction of rural settlements into the South Van Rural Development Plan not only benefits IDPs and returnees themselves, but also other affected groups such as host communities.
3. The implementation of the Action Plan might be faced with the following challenges and obstacles: (1) insufficient resources; (2) weak coordination of implementation activities; and (3) lack of security in rural areas of return, including landmines and the presence of village guards that are, or might be perceived as, a threat by returnees.

The RSG recommends:

1. *To the Governorate of Van:*
 1. To use a phased approach when implementing the Action Plan and in this regard to identify – in close cooperation with UNDP – priorities of certain objectives and activities whose realization is more urgent than that of others.
 2. To ensure, at the provincial level, strong coordination between all relevant actors and implementing partners to regularly assess progress and identify obstacles as well as agree on next steps.
 3. To continue emphasizing transparency of the process as well as consultation with and active participation of IDPs and other relevant stakeholders at each stage of the Action Plan's implementation in order to create the necessary degree of ownership.
 4. To continue close cooperation with civil society as implementing partners.
 5. To place equal importance on the facilitation of urban integration as is given to return to rural areas, for those persons among the displaced who choose to re-build their lives in urban areas.
2. *To the Government of Turkey:*

1. To dedicate, in its next budget, additional resources beyond the considerable means already provided, and to seek the support of the international community for further funding.
2. To encourage and facilitate the elaboration and adoption of similar IDP action plans in the other provinces of Southeastern Turkey.
3. To establish, at the national level, an IDP unit with sufficient staff and resources to ensure coordination of displacement related activities.
4. To elaborate a national IDP action plan that builds upon and complements the provincial plans in order to ensure that comprehensive and coordinated activities are undertaken in all affected provinces.
5. To continue to improve the process of compensating victims on the basis of Law No. 5233 by further capacity building and, where necessary, through amendments to the law, including by giving consideration to the suggestions made by the RSG to the Turkish Government in a letter dated 31 March 2006.
6. To proactively address security problems that might constitute obstacles to return, including through the removal of landmines and a review of the village guard system, as recommended by the RSG in the same letter.
7. To make public, without any further delay, the quantitative as well as the qualitative results of the Hacettepe IDP survey in order to assist all relevant actors in basing their planning and implementation activities on a realistic assessment of the situation of IDPs in Turkey.

3. *To Civil Society:*

To actively participate in the implementation of the Action Plan and, at the same time, to continue to play the role of constructive but critical observers of the process.

4. *To the Donor Community:*

To support and assist the Governorate of Van Province as well as the national authorities in the implementation of the Van Action plan and similar plans that might be adopted in the future, and to complement the resources assigned by the State as needed.

Experience from other countries shows that three elements must be in place for making solutions durable: (i) safety at the place of return or local integration/resettlement, (2) restitution of or compensation for lost property and reconstruction/upgrading of homes; (3) social and economic conditions guaranteeing the sustainability of return, such as availability of and access non-discriminatory access to livelihoods and public services.”

See also [UN Expert on internally displaced persons travels to Turkey](#).

HRW recommendations regarding the village guards (2006)

- Village guards perpetrators of human rights violations and criminal acts and an obstacle to returns of displaced villagers
- HRW recommends abolishing the village guards system, restitution of confiscated property and bringing perpetrators to justice

HRW, 8 June 2006

“The Turkish government must take immediate steps to abolish the system of village guards, which has given rise to some of the most serious human rights violations in southeast Turkey, and continues to present an obstacle to the return of displaced villagers in that area.

[...]

Human Rights Watch urges you to act upon the 2002 recommendation of the Representative of the U.N. Secretary-General on the human rights of internally displaced persons by abolishing the village guard system, commencing with immediate disarmament, and continuing with the provision of alternative employment opportunities for existing guards.

In addition, Human Rights Watch urges that all property confiscated or occupied by village guards as a result of the forcible evacuation of villagers since the 1980s is returned to its pre-conflict owners.

Human Rights Watch also urges that the perpetrators in the above cases be brought to trial. In addition to this, the gendarmerie command must respond to the pattern of violations with internal investigation of gendarmerie officers responsible for village guards who have committed grievous violations while acting under their authority and control. Disciplinary proceedings and judicial proceedings should be initiated against officers found responsible for negligence or collusion in such acts. These investigations should begin with violations of the right to life identified in rulings at the European Court of Human Rights such as the killings at Kutlubey village.

Gendarmerie General Command should publicly account for its failure to restrain the abuses of village guards over the past two decades. Investigations should be made in respect of gendarmerie officers who were responsible for village guards convicted of murder and other serious crimes, and disciplinary or criminal sanctions applied where appropriate.

Most observers agree that abruptly shutting off government funding to the village guard communities would be counterproductive, and several have suggested that the money that has previously been spent on the village guards might continue to go to the southeast region in the form of a rural support program. These are constructive proposals provided, firstly, that village guards are swiftly disarmed, and secondly, that any system of rural support is non-discriminatory, in accordance with the U.N. Guiding Principles on Internal Displacement and should be used to support village guard and returning displaced persons alike in the encouragement of industry, agriculture, and a return to peace.”

Recommendations of RSG on Integrated Strategy Document, Compensation Law and Hecettepe study (2006)

- Adoption of Integrated Strategy Document commendable
- Need to publicise the strategy, in particular towards civil society and the internally displaced themselves
- Necessity of working out a concrete Plan of Action built on the principle of voluntariness and recognition of the freedom of movement and choice of residence
- Setting up an office within the Ministry of Justice to deal with the issues of displacement valuable
- Full, equitable and consistent implementation of Compensation Law a step in implementing Integrated Strategy Document
- Hacettepe study to be finalized should provide springboard for the Action Plan and should be benefit from civil society feedback

Recommendations from the RSG, March 2006, pp.1-2:

"Progress has been made in Turkey, both in substantive terms of specific law and policy and more generally in the willingness to engage with interested parties ranging from the United Nations Country Team to civil society on issues of internal displacement in an open, constructive fashion. I was encouraged in this respect by the candid dialogue between Government officials and civil society that took place in the course of the multi-stakeholder meeting on Thursday, 23 February, followed by the clear political commitment demonstrated by H.E. the Minister of the Interior Mr. Abdulkadir Aksu to the Colloquium of Governors on Friday, 24 February to address the issue of internal displacement. This approach bodes well for future positive progress towards

lasting solutions for internally displaced persons in Turkey. In particular, continued, structured consultations with civil society would be important. In this context, I also welcome the agreement reached between your Government and the United Nations Country Team with respect to the execution of a project on "Support to the Development of an IDP Program in Turkey," which should strengthen the partnership between the Government and the local United Nations representation on internal displacement issues. I further emphasise my satisfaction with the wide range of Governors able to attend Friday's policy session, and the openness shown by them and officials of the Ministry of the Interior towards my exploration of the way forward in dealing with displacement issues, from the point of view of the standards of the United Nations Guiding Principles on Internal Displacement.

Turning to substantive matters, the period of time since May 2005 has been marked by two major issues. The first is the substantial experience gained of the July 2004 adoption and subsequent initial implementation of the Law No. 5233 on the Compensation of Damages that Occurred due to Terror and the Fight against Terror, as well as subsequent amendments and implementing regulations. The second development is the adoption at Cabinet level of the national strategy on internal displacement. I welcome both these developments as important steps forward, which demonstrate Turkey's commitment to make concrete progress on issues of internal displacement. I valued the opportunity in the course of my visit to become more familiar with each of these steps and how their implementation has played out on the ground.

Integrated Strategy Document on Internal Displacement

The adoption by the Council of Ministers on 17 August 2005 of the Integrated Strategy Document on internal displacement entitled "Measures on the Issue of Internally Displaced Persons and the Return to Village and Rehabilitation Project in Turkey", responds to an earlier recommendation I had made and is a statement of signal importance for future steps. I appreciate in particular the focus on the guidance provided by the United Nations Guiding Principles on Internal Displacement. As an initial matter, I would strongly recommend that your Government take measures to publicise widely and in accessible fashion the Integrated Strategy Document, in particular towards civil society and internally displaced persons, in order that there is general awareness of the policy decisions taken at highest Executive level and consciousness of the foundation upon which next steps will build.

As an overarching strategy, the Integrated Strategy Document is necessarily composed in relatively general and abstracted terms of principle. The next step forward, which is my primary recommendation emerging from this working visit, would be for the Ministry of the Interior, in conjunction with other pertinent parts of Government and in consultation with civil society and internally displaced persons themselves, to develop a specific Plan of Action in order to turn the framework of the Integrated Strategy Document into concrete, practical measures of implementation. In doing so, I would recommend continued use of the Guiding Principles on Internal Displacement to inform the formulation of the elements of the Plan of Action. The Guiding Principles serve in this respect as a useful reference tool to ensure that the Plan of Action is consistent with the international human rights obligations entered into by Turkey, and contribute strongly to the likelihood that the results achieved by the Plan of Action will be lasting, long-term outcomes rather than of a transitory nature.

As a pillar of this Plan of Action, I would recommend that the Plan build on the recognition of the principle of voluntariness set out in the Integrated Strategy Document and explicitly recognise the major implications of the right to freedom of movement and to choice of residence; that is, internally displaced persons must have a real and genuine choice between (i) integrating themselves locally in the generally urban environments to where they have moved, (ii) returning to the places from which they originally fled; or (iii) moving to another part of the country. For each of these choices to be genuinely open to internally displaced persons, the Plan of Action will need to flesh out a series of measures with respect to each of these environments in order to

ensure that each of these choices is realistically open to the displaced persons in question. In particular, the exercise of the right to freedom of movement and to choice of residence depends on substantial measure on the security of affected persons, questions about which were raised by members of civil society with regard to return. Several recommended a review of the village guard system and in this connection, I would note that there is need to reconcile ensuring personal safety for persons wishing to return with the need for ensuring State security; rather than being antithetical to one another, the two should be seen as mutually depending on each other. By assuring genuine exercise of the three solutions outline above, true closure to internal displacement in Turkey can come within reach.

To ensure implementation of the Plan of Action, it would be valuable to have a dedicated office at the Ministry of Justice devoted to the issue of internal displacement. Such a body should have staff specifically focused on promoting solutions to internal displacement and have sufficient authority to provide leadership in implementing the policy and in coordinating and monitoring the activities of the various government offices involved.

Compensation Law and implementation issues

In implementing the Integrated Strategy Document in a manner that facilitates voluntary and durable solutions to internal displacement, implementation of the Compensation Law represents one of the most important concrete steps Turkey has before it. If this legislation is implemented in a manner that is *full, equitable and consistent*, Turkey will have set a significant international precedent for providing remedies to the victims of internal displacement. Initial experiences with the Compensation Law reveal several positive trends: the Damage Assessment Commissions have begun their work and early concerns about the law have been addressed through extension of the claims deadline and broadening of the categories of evidence that can be brought to support claims. Perhaps most important, Turkish civil society organizations and academic institutions have begun monitoring and analyzing the process and providing constructive suggestions on how it could be improved. The multi-stakeholder meeting on 23 February demonstrated how greater formal involvement of civil society in the implementation, monitoring and progressive development of Turkey's compensation program could be of great assistance in ensuring that it provides IDPs with durable solutions.

A good example of the role of civil society could play relates to the need for *full* implementation of the Compensation Law. In order to secure effective remedies for IDPs and legal finality for Turkey, it is in everyone's interest to ensure that all potential claimants under the law have had a full opportunity to make a claim. However, as discussed on 23 February, some IDPs have been so marginalized by their displacement that they may not have access to information about the claims process, even where it has been published in the mass media. Reports indicate that other IDPs have been traumatized by their experiences and therefore may fear negative consequences for claiming their legal rights. Under these circumstances, many potential claimants remain at risk of losing their opportunity to make a claim despite the extended deadline. These concerns highlight the importance of ensuring that planned public information campaigns include a role for civil society in outreach to the most vulnerable IDPs, including poor families, traumatized individuals, female-headed households, the elderly and the handicapped – those who need assistance finding durable solutions the most but are least likely to be able to access the compensation process on their own. It is vital to ensure that public information on the compensation claims process is clearly endorsed by the state, in order to address any concerns of traumatized IDPs. However, civil society organizations are often best placed to provide information directly to marginalized IDP communities and should be encouraged to do so. A logical extension of this approach would be to encourage qualified civil society organizations – and particularly bar associations – to provide free legal advice and representation to IDPs in filing and pursuing their claims. This would benefit not only claimants but also the Commissions, which should be able to process their caseloads more efficiently if claims have been consistently well prepared prior to filing.

A second issue concerns the *equitability* of the damage calculation process. In order to meet the goal of providing durable solutions to displacement as well as formal legal remedies, the damages awarded by the Commissions should consistently be high enough to allow IDPs to recover some measure of the economic self-sufficiency they would currently enjoy had they never been displaced. Based on initial reports, some damage awards have been low and methods of calculating compensation have varied between the affected Provinces. A leading principle in the application of the law should be the need to preserve a measure of proportionality between the losses IDPs have suffered and the compensation they receive. However, a significant obstacle appears to be presented by the level of discretion the current law and regulations permit the Commissions to exercise, not only in the calculation of damages but also in taking many other decisions during the claims adjudication process. While there is every indication that the Commissions are working in accordance with the law, the law itself does not appear to give the Commissions sufficiently specific guidance to ensure consistently equitable outcomes.

This raises a third general issue related to the overall *consistency* with which the Compensation Law is applied. Ensuring consistent application of the law would help to answer criticisms regarding the perceived independence of the largely government-staffed Commissions. Although proposals to increase the representation of non-civil servants or professionalize the Commissions should be seriously considered, the less room the Law and implementing regulations leave for interpretation, the less of a concern the formal independence of the Commissions is likely to be. Clear legislative guidance that minimizes administrative discretion can protect the Commissions from accusations of partiality or undue influence while they address applicants' concerns that ambiguities in the legal framework could prejudice the resolution of their claims. It is always difficult for legislators to anticipate all possible shortcomings in legal drafts, particularly in an area as novel and untested as the Compensation Law. However, this underscores the importance of considering a formal review of implementation of the law to date, resulting in a new implementing instruction and, if necessary, amendments to the Law, which would comprehensively address concerns raised by the Commissions themselves, as well as claimants and civil society observers of the process. The result would be a process that would provide all parties with consistent, fair and foreseeable outcomes. Areas where concrete concerns have already been raised about discretion in the application of the law include:

Admissibility findings: It should be clarified that claims should not be rejected as inadmissible merely because the applicant has received some form of prior state assistance. Prior assistance may be deducted from compensation awards, but only after consideration of the full merits of each claim including calculation of compensation for other harms not addressed by any prior assistance. As a general matter, given the widespread nature of displacement during the state of emergency period in Turkey, claims should be presumed admissible unless evidence to the contrary exists, and decisions rejecting claims should be subject to appeal.

Claims processing: The current requirement that claims be processed within six months from their receipt appears likely to be unachievable. Although it is important to ensure that claims are processed without unjustified delay, international experience indicates that the *order* in which claims are processed may be a more decisive factor than speed. Consideration should be given to chronological processing, with claims decided strictly in the order they were filed. This approach would allow lists of claims to be made, updated and published, showing applicants precisely where their claim stood in the order of processing and approximately when they might expect a decision. Strict adherence to chronology will also shield the Commissions from any accusation of manipulation of the order of claims processing for inappropriate reasons.

Damage calculation: Clearer guidance on what types of harms can be claimed and standardized rules on calculating compensation would help to ensure consistency. For example, the legal framework should precisely regulate compensation for typical costs of displacement such as lost

revenues from assets that claimants did not hold formal title to but which they possessed and used legally in accordance with local customs and practices. Another example is the cost of living in displacement, and particularly private rental payments. Since such revenue flows and costs can be calculated in general terms, claims proceedings would be far more efficient and outcomes more consistent if standardized compensation awards for different types of lost revenues (e.g. per head of cattle or acre of arable land per year) or costs (e.g. average rent in different regions of Turkey per family member per year) were set out in the law or instructions. This approach would accord with international best practice, replacing burdensome individualized damage calculation with streamlined evidentiary proceedings. Similar procedures can and arguably should allow calculation of standardized non-pecuniary damages in relation to criteria prescribed in the legal framework.

Appeals process: Although it is currently possible for applicants who dispute the Commissions' decisions to seek a judicial remedy, this procedure cannot be thought of as an appeal. Such court proceedings represent an entirely new cause of action and do not give unsuccessful compensation applicants an opportunity to receive a hearing on whether the Compensation Law was correctly applied in their case. Although clearer and more comprehensive rules will help prevent inconsistent application of the Compensation Law, the only way to guarantee consistency would be a centralized administrative appeals procedure, allowing determinations to be made with regard to appeals on both admissibility and damage calculation.

There are many international precedents for legislative review processes resulting in improved remedies for IDPs, and my colleagues and I would be happy to provide further technical advice and discuss comparative international experience in the context of such a process. Indeed, we would be willing to send experts to Turkey to convene appropriate meetings specifically on property and compensation issues. One important general principle is that a review process should include appropriate consultation with persons affected by the law, as well as civil society groups and academic institutions with demonstrated expertise in monitoring the implementation of the Compensation Law. In addition, the resulting changes to the legal framework for compensation should be retroactive, in the sense that claims decided or rejected on the basis of the old rules should be eligible for reconsideration under the new rules. This consideration argues for making any changes sooner rather than later, so as to minimize the potential administrative burden of having to re-open cases and re-examine claims.

Follow-up to the Hacettepe study

At the time of my working visit, the Study by Hacettepe University on "Turkey Migration and Internally Displaced Population Survey" had not yet reached its conclusions, though I understand that this is now imminent. I reiterate my earlier remarks that a study independently conducted represents an example of best international practice, which I welcome. While the Study should shed a degree of light on the numbers of internally displaced persons in Turkey, it should also be useful for the breakdown of disaggregated data on the internally displaced persons surveyed. Such disaggregation will usefully illuminate the scope of particularly vulnerable groups and their various specific needs, and provide valuable pointers for areas that the Plan of Action will need to particularly address. I would see the Study as providing a springboard for the elaboration of the Plan of Action, based on clearer data than has generally been the case heretofore, and would encourage use of the Study's findings in this fashion. I would also invite the Government to provide an opportunity for public and civil society feedback on the Study as published, in order to set its findings within a wider context before proceeding to an implementation phase by way of the Plan of Action."

Recommendations of UN Representative on the Human Rights of IDPs following his visit to Turkey (2005)

Press release from UNDP, 9 May 2005

"A planned new strategy of the Turkish government brings new hope to the internally displaced persons in Turkey. This is what the Representative of the UN Secretary General on the Human Rights of Internally Displaced Persons, Prof. Dr. Walter Kälin, concluded at the end of a working visit to Ankara from 4 - 6 May 2005 which he undertook on the invitation of the Turkish Ministry of Foreign Affairs. The Representative held talks with high ranking officials at the Ministries of Foreign Affairs, Interior and Justice, the State Planning Organization and the Southeast Anatolia Project. He also attended a workshop on the 'Turkey Migration and Internally Displaced Population Survey' presently undertaken by Hacettepe University, Institute of Population Studies and participated in a training workshop on the UN Guiding Principles on Internal Displacement for Deputy Governors and other officials conducted by the Norwegian Refugee Council and met with academics working on issues of internal displacement.

The Representative was informed about past and present efforts of the Turkish government to allow for the return, rehabilitation and re-integration of those displaced from their villages in Southeastern Turkey and the progress achieved that far within the framework of the Return to Village and Rehabilitation Project and on the basis of Law No 5233 on Compensation for Damage Arising from Terror and Combating Terror. The Representative was also informed about the on-going preparation of a new strategy document on internally displaced persons in Turkey that would allow addressing the problems faced by the displaced persons in a more efficient way.

The Representative was impressed by the willingness shown by his interlocutors to approach the problem of internal displacement with an open mind, to develop a new strategy on internal displacement that addresses all obstacles to return, including the role of village guards and the problem of landmines, in an comprehensive manner, and to provide the necessary means to make implementation a success. In his discussions he stressed that the notion of internally displaced person as accepted at the international level encompasses all those who left their homes and places of residence involuntarily and expressed his hope that the new governmental strategy on internal displacement would be based on this notion and be in line with the UN Guiding Principles on Internal Displacement. He suggested that the final version of the strategy should be based on and reflect the results of the independent research presently undertaken by Hacettepe University. He also stressed the need to create an institution that would have sufficient authority to provide strong leadership for a timely and effective implementation of the strategy and underlined the importance of consultation with and participation of the displaced and of civil society in this regard in order to achieve tangible results in the near future. Finally, he suggested an extension of the deadline for applications under Law No 5233 on Compensation in order to allow all those entitled to receive compensation to submit their claims and expressed his concerns about the rather high rate of applications that have been rejected. The Representative welcomed the positive responses given to his suggestions and expressed his hope that Turkey may, in the near future, be able to solve the problem of internal displacement and thus overcome one of the saddest legacies of its recent past."

HRW recommendations to the Turkish government and the international community (2005)

HRW, March 2005, p.3

To the Turkish government:

Government Agency for Internally Displaced Persons

- Promptly establish the proposed government agency for IDPs. This body should:

- publish a clear statement of government policy vis-à-vis IDPs;
- prepare a timetable for the return process;
- clarify government commitments to provide infrastructure to returnee communities, including electricity, water, sanitation, telephone connection, road access and access to health care and education;
- ensure that adequate resources are available to ensure that all returning families have sufficient building materials to establish warm, and dry accommodation; and,
- publish detailed budget provisions to cover payments under the Compensation Law, infrastructure reconstruction, income support for returning villagers, and support for the integration of IDPs who choose to remain in the cities.

Return to Village and Rehabilitation Project

- Begin immediate reform of the Return to Village and Rehabilitation Project. This reform need not await the findings of the Hacettepe University Institute of Population Studies, but may benefit from the data emerging during the course of the study.

Village Guard Corps

- Develop a comprehensive plan and timetable for disarming and demobilizing the village guards corps.

UNDP project

- Approve the UNDP project for the support of IDPs, and ensure its swift implementation.

Compensation Law

- Enhance the independence of Compensation Law assessment commissions, and ensure their work is timely, fair, and consistent.

• In order to ensure that those who have relevant information are willing to come forward, Commissions should undertake not to disclose the identity of witnesses or the content of their evidence to other government agencies where witnesses have asked for these details to be withheld, and should make arrangements to safeguard anonymity in commission hearings where witnesses request this.

Commissions should also undertake to investigate thoroughly any reports of intimidation of, or reprisals against, witnesses or proposed witnesses, and refer evidence of any abuses to the judicial authorities.

- Create an independent appeals body to review decisions by Compensation Law assessment commissions.
- Ensure that sufficient funds are provided to meet payments under the Compensation Law.
- Conduct a review of the operation of the law in mid-2005 after provincial assessment commissions have processed an initial group of applications.

Persons who remain displaced

- Ensure that those villagers who cannot return due to the continuing risks posed by the armed activities of Kongra Gel, or other illegal armed organizations, receive support, access to medical care and compensation, in accordance with the U.N. Guiding Principles on Internal Displacement

To the European Union and its Member States:

- Task the European Commission Delegation to Ankara with monitoring the new government agency for IDPs, to ensure that its work is in conformity with the recommendations of the The United Nations Special Representative of the Secretary General for Internally Displaced Persons (SRSG) on internally displaced persons and the U.N. Guiding Principles on Internal Displacement. The delegation should provide an evaluation of reform to the Return to Village and Rehabilitation Project in mid-2005 for inclusion in the next regular report on Turkey.

- Task the European Commission Delegation to Ankara with monitoring the operation and working methods of Compensation Law assessment commissions.

The delegation should provide an evaluation on the work of the assessment commissions in mid-2005 for inclusion in the next regular report on Turkey.

- Ensure that the revised Accession Partnership planned for mid-2005 continues

E.U. scrutiny and support for the return and integration of IDPs.

- Urge the Turkish government to ensure that the work of the Compensation Law assessment commissions is timely, fair, and consistent.

- Consider funding directly projects for return of IDPs and support of the integration of IDPs in cities.

To the United Nations Country Team in Turkey:

- Monitor the new government agency for IDPs to ensure that its work is in conformity with the recommendations of the SRSG on internally displaced persons and the UN Guiding Principles, and provide an evaluation in mid-2005 on reform of the Return to Village and Rehabilitation Project to donor governments and the Turkish authorities.”

See also Human Rights Watch’s recommendations in “Displaced and Disregarded, Turkey’s Failing Village Return Program”, 30 October 2002 [[Internet](#)]

UN Committee against Torture requests further information on the internally displaced (2003)

UN Committee Against Torture, 2 May 2003

“Serving as Rapporteur on the report of Turkey was Committee Expert FERNANDO MARIÑO-MENENDEZ, who remarked among other things that it had been 13 years since consideration of Turkey’s initial report, and obviously the Turkish State had undergone major changes, including through its participation in the Council of Europe and through the activities and rulings of the European Court of Human Rights. Recent changes had been so rapid, especially after the lifting of the state of emergency, that it was difficult to discern the current situation in Turkey. It was praiseworthy that so many reforms had been carried out by the Government.

[...]

He also queried the Government delegation about standards for the detention of children -- if they were provided with legal counsel from the moment of detention, and if they were protected from maltreatment, including from other children; about minorities and how they were treated, including the Kurdish population, as there had been consistent complaints of a policy of the demolition of dwellings and the forced displacement of Kurdish populations in some locations; about reports of sexual violence against women in custody; about allegations that impunity for acts of torture or maltreatment was a problem, in part because of slow functioning of the judicial system when State officials had been charged with such offenses; about reports that complaints of ill-treatment were often ignored; and if examples could be cited where prosecutors or judges had been dismissed because of corruption, as there were consistent complaints of judicial corruption.”

The Committee recommends that the State party: Provide in the next periodic report information on the implementation of the ‘Return to Village Programme’ regarding internally displaced persons [...] The State party is invited to submit its next periodic report, which will be considered as the third, by 31 August 2005.”(UNOHCHR/CAT 27 May 2003)

See also the 2nd Periodic Report submitted by Turkey to the Committee, “[Second periodic reports of States parties due in 1993: Turkey](#)” 22 July 2002, CAT/C/20/Add.8 (State Party Report)

For more information, see [the website of the Committee Against Torture](#)

UN Representative on IDPs conclusions and recommendations (2002)

UN Representative on IDPs, 27 November 2002, paras. 33-45

“On the basis of discussions with government ministers and other officials, the Representative is firmly of the view that an opportunity now exists for the international community, national NGOs

and civil society to work with the Government of Turkey in the challenging task of addressing the needs of those still displaced and facilitating the voluntary return, resettlement and reintegration of the displaced population. An open and constructive partnership with all concerned would serve to facilitate the timely and effective implementation of the Government's return and resettlement policy, while at the same time alleviating the concerns expressed by various sources and improving the perception of the problem and the official response to it, both within and outside the country. With these considerations in mind, the Representative makes the following recommendations.

Clarification and dissemination of government policy on internal displacement: In order to reconcile the disparity between the prevailing negative perceptions of government policy and the positive attitude which the Representative witnessed during his mission, there is an urgent need for the Government to clarify its policy on internal displacement, including return, resettlement and reintegration, to make that policy widely known, to create focal points of responsibility for the displaced at various levels of the government structures, and to facilitate coordination and cooperation among government institutions and with NGOs, civil society and the international community.

Addressing the current conditions of the displaced: While the improved possibilities for return must be welcomed, it should be recognized that the return of the displaced to their original homes and lands may be a lengthy process and that there is a need for the Government, in the meantime, to enhance its efforts to address their current conditions, which are reported to be poor, in cooperation with NGOs and United Nations agencies. It should be acknowledged that many of the social and economic problems affecting the displaced also confront the host communities and that measures to address these are ongoing, including within the context of the South Eastern Anatolia Project (GAP) and in cooperation with local NGOs and United Nations agencies. However, attention should be paid to addressing those problems that are specific to the displaced, such as access to adequate housing, health care and psychosocial care for women and children.

Collection of data on the nature and scale of the problem: In order to gain a more accurate picture of the immediate needs of the displaced vis-à-vis the larger population, and in view of the Government's current efforts to facilitate return and resettlement, there is a need for more comprehensive and reliable data on the number of persons displaced as a result of the actions of both the Kurdistan Workers Party (PKK) and the security forces, on their current whereabouts, conditions and specific needs, and on their intentions with respect to return or resettlement. It is recommended that the Government, in cooperation with local NGOs and civil society organizations which are in daily contact with displaced communities in the south-east and throughout the country, undertake a comprehensive survey of the displaced population to better inform ongoing efforts to meet their needs and to facilitate return and resettlement.

Clarity and consultation on the return issue: In view of the various return initiatives and the apparent lack of clarity about how these initiatives relate to one another, at which segments of the displaced population they are aimed and the concerns to which these issues give rise, the Government is strongly encouraged to facilitate broad consultation with the displaced and the NGOs and civil society organizations working with them. Assuming that the Village Return project remains the Government's principal vehicle for facilitating large-scale return and resettlement in the south-east, the Government should consider producing a document that clearly outlines the objectives, scope and resource implications of the project. Furthermore, the GAP administration should make available, if it has not already done so, the results of the feasibility study undertaken by the Turkish Social Sciences Association and facilitate an open discussion with the displaced and NGOs on the findings of this study and the steps which should be taken to implement them.

Cooperation with international agencies: In its efforts to meet the current needs of the displaced and to facilitate their return and resettlement, it is strongly recommended that the Government examine areas of possible cooperation with the international community. So far, the international community has not contributed to the Government's return efforts, and the Government has not requested any such international assistance. However, the task ahead of the Government is a formidable one for which assistance from international agencies would be a significant asset. The Government might consider convening a meeting with international agencies, including the World Bank, and representatives of the potential partners to explore ways in which the international community could assist the Government in responding to the needs of the displaced.

Enhanced role for United Nations agencies: In connection with the foregoing, it is recommended that United Nations agencies in the country review their activities with a view to identifying ways in which they might enhance their role in supporting the Government in its efforts to assist the displaced. The Representative also recommends that the United Nations Development Assistance Group expressly request the Resident Coordinator to develop, in cooperation with the United Nations Country Team, a strategy to assist the Government, in particular with regard to its efforts to return and resettle the displaced. In addition, and with a view to facilitating cooperation between the Government and United Nations agencies, the Resident Coordinator and Country Team are encouraged to consider the establishment of a thematic group on internally displaced persons to bring together the relevant United Nations and government actors and provide a forum for regular dialogue on this issue.

Ensuring non-discrimination in return: The Government should ensure a non-discriminatory approach to return by investigating and preventing situations in which former village guards are allegedly given preference in the return process over those persons perceived as linked to PKK. In order to avoid such problems, or the perception that such practices are taking place, it is recommended that local authorities review the need for the displaced to indicate the specific reason for their displacement when applying to return or, alternatively, present a single option which clearly applies to displacement as a result of both terrorist activities and evacuation by the security forces. The authorities should also investigate allegations concerning the use of forms bearing a non-litigation clause. In this connection, the Representative would appreciate receiving information from the Government on the outcome of the administrative inspection of the judicial system in Diyarbakir which provided a context in which, according to officials in the Ministry for Foreign Affairs, this issue might be addressed.

Clarifying the role of the security forces in the return process: The Government should ensure that the role of the security forces, or *jandarma*, in the return process is primarily one of consultation on security matters, as the Government told the Representative was the case. Displaced persons who have been granted permission by the authorities to return to their villages - the decision being based on the advice of the *jandarma* - should be allowed to do so without unjustified or unlawful interference by the *jandarma*.

Disarmament and abolition of the village guards system: The Government should take steps to abolish the village guard system and find alternative employment opportunities for existing guards. Until such time as the system is abolished, the process of disarming village guards should be expedited.

Mine clearance: Given the Government's commitment to accede to the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-personnel Mines and on Their Destruction and its expertise and role in demining activities overseas, and in view of the serious obstacle which landmines pose to the safe return of displaced persons, the Government is strongly urged to undertake mine clearance activities in the relevant areas of the south-east to which displaced persons are returning, so as to facilitate that process.

Compensation: The Representative welcomes the steps that are being taken within the Government to develop legislation providing compensation to those affected by the violence in the south-east, including those who were evacuated from their homes by the security forces. While aware of the fiscal pressures under which the Government is currently operating, the Representative encourages the early submission of this legislation to Parliament and in the meantime urges the Government to begin considering the modalities of establishing a system for the efficient handling of claims that will arise under the proposed legislation.

Finally, it should be reiterated that the mission of the Secretary-General's Representative on Internally Displaced Persons provided him with the opportunity for a constructive dialogue with the Government, which, contrary to the general view that had prevailed internationally about its denial of the problem, was remarkably open and receptive to a candid discussion of the situation and expressed interest in exploring positive solutions in cooperation with the international community. A number of factors may account for the perception that had prevailed before the mission that the Government was reluctant to address the issue of internal displacement, whereas the Representative found the climate to be positive. Among these factors, perhaps the most significant was that the violence generated by PKK and the Government's anti-insurgency campaign in the south-east had virtually come to an end and that the situation had gradually returned to normal, which allowed significant numbers of displaced persons to return. Whatever the explanation, the Representative is grateful not only for the invitation extended to him by the Government, but also for all that was done to facilitate the success of the mission. What is important now is for the Government and the international community to provide protection and assistance to those still displaced and to facilitate the voluntary return of the displaced, in safety and with dignity, or to provide opportunities for alternative resettlement to those not wanting to return, and to assist both the returnees and the resettled to integrate into their communities."

UN Committee on the Rights of the Child recommendations regarding internally displaced children (2001)

Committee on the Rights of the Child, 9 July 2001

"The Committee recommends that the State party continue to develop a system of data collection and indicators consistent with the Convention and provide additional support to the Child Information Network (this system should cover internally displaced children)

[...] The Committee recommends that the State party take appropriate measures to prevent and combat discrimination. It also recommends the collection of appropriate disaggregated data to enable monitoring of discrimination against all children, in particular those belonging to vulnerable groups (such as internally displaced children), with a view to developing comprehensive strategies aimed at ending all forms of discrimination.

In line with the Guiding Principles on Internal Displacement, the Committee recommends that the State party ensure that internally displaced children and their families have access to appropriate health and education services and adequate housing. Further, it invites the State party to collect data and statistics in order to know how many children are displaced and what their needs are, with a view to developing adequate policies and programmes."

USCR recommendations to the OSCE (1999)

USCR 1999, p. 38

"The High Commissioner on National Minorities (HCNM) should reassess the Kurdish situation in Turkey and determine whether engagement on the Kurdish question fits within the HCNM mandate. The HCNM should take into account the PKK's formal renunciation of terrorism and

whether the restriction in the HCNM's mandate against considering the cases of minorities in 'situations involving organized acts of terrorism' still applies to the situation in Turkey.

The OSCE should revisit the HCNM's mandate generically to ensure that the existence of relatively small terrorist groups does not preclude the HCNM from becoming engaged on behalf of an entire minority group, whose members may not identify or support the terrorist group in question.

The Council of Ministers should use the OSCE's human dimension mechanism to initiate good offices missions and dialogue with the Turkish government relating to internal displacement in Turkey. If consensus cannot be reached with the Turkish government, the OSCE should use its 'consensus-minus-one' authority to authorize investigation of Turkish compliance with OSCE commitments without Turkey's consent.

The Office for Democratic Institutions and Human Rights (ODIHR) should work with Turkey for the creation of an ombudsman on human rights for Turkey.

The OSCE ought to consider appointing a contact point within the ODIHR to consider Kurdish issues (comparable to the contact point established with regard to Roma and Sinti issues)."

OSCE 2004

"The mandate contains a number of provisions restricting the High Commissioner's activities.

Explicitly excluded from the High Commissioner's mandate are individual cases concerning persons belonging to national minorities. With regard to the High Commissioner's activities in general, and to his information-gathering and fact-finding activities in particular, his mandate does not permit him either to consider national minority issues in situations involving organized acts of terrorism or to communicate with or acknowledge communications from any person or organization that practices or publicly condones terrorism or violence."

See also "[Turkey's Foreign Minister Blocks OSCE Visit](#)", in Info-Turk, October 2000
The OSCE website for more information on the [High Commissioner for National Minorities](#)

Policy and Recommendations from european actors

Revised EU Accession Partnership for Turkey names priorities to be addressed (2006)

European Parliament, 10 March 2006, pp. 4-5:

"Based on the assessment by the European Commission in its Progress Report of 9 November 2005 and a relevant Commission proposal for a revised Accession Partnership, the Council, on the basis of the political agreement reached on 12 December 2005, adopted on 17 January 2006 a Decision on the principles, priorities and conditions contained in the revised accession partnership with Turkey (15671/05) [...].2.

The revised Accession Partnership is an important document to focus Turkey's preparations for accession and to adapt priorities to the evolving needs. The revised Accession Partnership includes a set of priorities which relate to Turkey's capacity to meet the criteria defined by the Copenhagen European Council of 1993 and the requirements of the negotiating framework adopted by the Council on 3 October 2005.

This third Accession Partnership (after 2001 and 2003) is based on the provisions of Council Regulation (EC) No 390/2001 which provides that the Council is to decide, by a qualified majority and following a proposal from the Commission, on the principles, priorities, intermediate objectives and conditions contained in the Accession Partnership, as it will be submitted to Turkey, as well as on subsequent significant adjustments applicable to it.

It lists short and medium-term priorities for the country's preparations for further integration with the European Union. The country is expected to respond to the Accession Partnership by preparing a plan, including a timetable and specific measures to address the Accession Partnership's priorities. The progress in implementing the priorities will be monitored through the framework of the mechanisms established under the Association Agreement (i.e. including for example the EU-Turkey Joint Parliamentary Committee) and through the Commission's Progress Reports.

The priorities listed in the Accession Partnership have been explicitly selected on the basis that it is realistic to expect that the country can complete them or take them substantially forward over the next few years. A distinction is made between short-term priorities, which are expected to be accomplished within one to two years, and medium-term priorities, which are expected to be accomplished within three to four years. The priorities concern both legislation and the implementation thereof. The revised Accession Partnership indicates the priority areas for Turkey's membership preparations.

Priorities in the area of human rights are regarded in any event as short term priorities.

Turkey will, in the end, nevertheless have to address all issues identified in the Progress Report."

pp. 7-8:

"Minority Rights, Cultural Rights and the Protection of Minorities

- Ensure cultural diversity and promote respect for and protection of minorities in accordance with the European Convention on Human Rights and the principles laid down in the Council of Europe's Framework Convention for the Protection of National Minorities and in line with best practice in Member States.
- Guarantee legal protection of minorities, in particular as regards the enjoyment of property rights in line with Protocol No 1 to the European Convention on Human Rights.
- Ensure effective access to radio/TV broadcasting in languages other than Turkish. Remove outstanding obstacles, particularly with regard to local and regional private broadcasters.
- Adopt appropriate measures to support the teaching of languages other than Turkish.

Situation in the East and Southeast

- Abolish the village guard system in the Southeast. Clear the area from landmines.
- Develop a comprehensive approach to reducing regional disparities, and in particular to improve the situation in Southeast Turkey, with a view to enhancing economic, social and cultural opportunities for all citizens.
- Pursue measures to facilitate the return of internally displaced persons to their original settlements in line with the recommendations of the UN Secretary General's Special Representative for Displaced Persons.
- Ensure fair and speedy compensation to those that have suffered loss and damage as a result of the security situation in the Southeast."

Situation of IDPs an issue of concern, EC indicates (2005 and 2006 Progress Reports)

EC, 8 November 2006, p.23:

"There has been no further progress on the establishment of a new governmental body responsible for implementing the "Return to Village and Rehabilitation Programme and to

developing policy on IDP return. A study on IDPs carried out by the Hacettepe University should provide a thorough analysis and policy guidance, however its publication has been delayed.”

No progress has been made in addressing the problem of village guards[...]. No action was taken to phase them out. A return to normality in the Southeast can only be achieved by opening a dialogue with local counterparts. A comprehensive strategy should be pursued, to achieve the socio-economic development of the region and the establishment of conditions for the Kurdish population to enjoy full rights and freedoms. Issues that need to be addressed include the return of internally displaced persons, compensation for losses incurred by victims of terrorism, landmines as well as the issue of village guards.”

EU, 9 November 2005

“There has been very little progress in dealing with the situation of *internally displaced persons*, and in particular their return to villages in the Southeast. Turkey is encouraged to intensify its efforts to promote safe return, including through the removal of obstacles such as inadequate infrastructure, landmines and village guards.”

Multi-faceted policies required to reverse the process of IDPs’ social exclusion (2006)

European Commission, Deniz Yüksek, 2 November 2006, pp. 53-55:

“To reverse the processes of IDPs’ social exclusion requires multi-faceted policies. First of all, the restitution of their violated rights has to be ensured. Second, there should be specific policies targeting IDPs in order to facilitate their return (if they want to do so) or to improve their lives in urban centres. However, in practice it is unlikely that such policies would be able to reach all IDPs, not only because many families may be outside the scope of the definition of internal displacement used in official documents (the compensation law, the RVRP, etc.), but also because gender and generational differences may benefit older and male members of extended families at the expense of daughters and younger sons. Third, we also need broadbased economic and social policies in the eastern and south-eastern regions that would reach greater numbers of people.

Legal Measures

- Law No. 5233 should be implemented fairly and in a way that would ensure the payment of damages to the largest possible number of eligible IDPs. Although the amount of compensations in individual cases may not provide full retribution for material damages, effective implementation of the law would restore a degree of trust among IDPs towards the state.
- The law should be modified so as to give compensation for “pain and suffering” (*manevi tazminat*) in addition to material damages. This would not only help facilitate a rapprochement between the state and its citizens in the region, but it would also provide some level of retribution to landless IDPs who were evicted from their homes.

Return and Resettlement

- Returning to villages or other habitual places of residence should be recognized as a right. Returning to villages should be free and voluntary.
- The RVRP should be effectively implemented. Applying for aid through the RVRP should be voluntary and there should be no discrimination at the application procedure.
- Infrastructural investments should be undertaken in rural regions to make evacuated villages habitable again. This would include the building of roads and supplying piped water and electricity.
- Schools and healthcare clinics should be reopened in rural areas where people are returning to their homes and should be provided with personnel.

Economic Policies

- Given that many people are likely to prefer to remain in the urban centres where they have been living for the past decade, policies should be adopted with a view to improving their living conditions. In view of this, cheap loans for small business start-ups and home ownership may be provided to IDPs.
- Employment creation in urban centres of the south-eastern and eastern regions: This would require incentives for investments in agricultural industries as well as the commercial, service and industrial sectors. It should also entail cheap loans for small-scale businesses in the region.
- Agriculture and animal husbandry in the rural areas should be revitalized. This may require preferential farming credits as well as providing returning families with seeds, animals and agricultural supplies.

Social Policies

- Education: Measures have to be taken in order to ensure that all school age children are enrolled in school and that they stay in school. This would also require measures to combat the exploitation of child labour.
- Adult education and job training: Free courses should be made more available and accessible for adult IDPs who never went to school. Courses geared towards skill acquisition for income-generating activities should also be made more widespread. Such adult education and training services should especially target women.
- Health: The Green Card should be made available to a maximum number of IDP families regardless of whether they own rural property, which, in any case, they have been unable to reach since their eviction from their villages. Healthcare clinics and services in the south-eastern region should be made more widely available."

European Commission against Racism and Intolerance urges government to address plight of displaced (2005)

ECRI, 15 February 2005

"ECRI strongly recommends that the Turkish authorities take action to address the plight of the Kurds who have been displaced by armed conflict in the South-East of the country. It recommends in particular that the authorities find ways of helping those living in severe economic and social hardship.

ECRI recommends that the authorities continue and significantly reinforce the voluntary return programmes for displaced persons. In this respect, ECRI strongly encourages the Turkish authorities to seek international assistance and to co-operate fully with the NGOs. It is important to swiftly remove any administrative or other barriers to return. ECRI urges the authorities to rapidly resolve the problems arising from the continued presence of armed guards in the South-East. It emphasises the need for displaced persons to be able to return home, receive compensation and/or recover their property as quickly as possible."

COE Committee of Ministers recommendations regarding actions of security forces (2005)

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, p. 46

"On 9 June 1999, the Council of Europe 41-member ministerial committee made an unprecedented criticism of a member state when it criticised Turkey for 'repeated and serious' human rights violations which security forces have committed against Kurds. In the interim resolution (Interim Resolution DH (99) 434) the ministerial committee refers to the European Court of Human Rights condemning Turkey in the previous two years in more than a dozen cases related to the security forces. The committee stated that 'no significant improvement' was evident

in the past two years. It called upon the Turkish authorities to take the necessary measures to halt torture, destruction of property, illegal killings and disappearances."
The Committee of Ministers adopted related resolutions in 2002 and 2005.

COE, 7 June 2005

"The Committee of Ministers of the Council of Europe today adopted a new Interim Resolution regarding progress achieved and outstanding issues in Turkey's compliance with some 74 judgments of the European Court of Human Rights delivered between 1996 and 2004. These judgments relate to numerous breaches of the Convention by the Turkish security forces due notably to homicides, torture and ill-treatment, disappearances and destruction of property. All these cases also highlighted the lack of effective domestic remedies against the State officials responsible for these abuses.

Whilst noting that most of these violations took place against the background of the fight against terrorism in the first half of the 1990s, the Committee recalls that each Contracting State, in combating terrorism, must act in full respect of its obligations under the Convention, as set out in the Court's judgments, and developed in the Council of Europe Guidelines on human rights and the fight against terrorism.

The Committee expresses satisfaction at the results of the numerous reforms adopted in response to the aforementioned Court's judgments and the Committee's two previous Interim Resolutions of 1999 and 2002, which highlighted the need for comprehensive general measures to prevent new similar violations. The Committee welcomes the authorities' 'zero tolerance' policy against torture and ill-treatment, as evidenced in particular by the introduction of additional procedural safeguards and of deterrent minimum prison sentences for torture. The Committee also welcomes the recent constitutional reform reinforcing the status of the Convention and of the Court's judgments in Turkish law.

The Committee stresses the need for strict implementation of the new legislation and encourages Turkey to adopt further measures to that effect and, in particular: to consolidate their efforts to mainstream human rights into initial and in-service training of the security forces, judges and prosecutors; to ensure that the new constitutional principle of the Convention's supremacy in Turkish law be translated into daily practice of all authorities; to ensure the prompt and efficient implementation of the new Law on Compensation of the Losses Resulting from Terrorism and to reconsider its present limited time-frame; to remove any ambiguity regarding the fact that administrative authorisation is no longer required to prosecute any serious crimes allegedly committed by members of security forces."

COE, 7 June 2005

On the issue of adequate compensation for damage caused, the Committee notes:

Noting the continuing practice of the administrative courts of ensuring reparation by the state for damage caused as a consequence of actions of the security forces;

Noting with interest that, further to the undertaking in Interim Resolution ResDH(2002)98 (see §§ 16-17), a new Law on Compensation of Losses Resulting from Terrorism and from Measures Taken against Terrorism and the relevant implementing regulations have been adopted.

Noting also that this legislation provides an alternative avenue for obtaining directly from the administration, compensation for pecuniary damages caused by natural or legal persons as a result of terrorist activities and operations carried out in combating terrorism during the period 1987 to 2004, and that judicial review of decisions taken in this respect is available;

Stressing that the authorities must now ensure that this legislation is implemented in an effective and impartial manner so as to provide prompt and adequate compensation to all persons having suffered losses as a result of the fight against terrorism during the period in question;

[...]

Conclusions of the Committee of Ministers

Welcomes the adoption of a number of important reforms as well as the ongoing efforts to ensure full compliance with the Convention in these cases;

Expresses satisfaction with the results obtained so far, while encouraging the authorities:

- to ensure the prompt and efficient implementation of the new “Law on Compensation of the Losses Resulting from Terrorism and from the Measures Taken against Terrorism”, to reconsider its limited

time-frame so that all claims can be processed in an impartial manner, and to ensure that individuals do not have to bear a disproportionate burden as a result of lawful actions of the security forces;

- to take the necessary measures to remove any ambiguity regarding the fact that administrative authorisation is no longer required to prosecute any serious crimes allegedly committed by members of security forces”

Click to see full text of the Interim Resolution [[Internet](#)]

See also the full texts of the 1999 [[Internet](#)] and 2002 [[Internet](#)] resolutions

Conclusions and recommendations of the European Commisison on Turkey's progress towards accession (October 2004)

EC “Recommendation”, 6 October 2004, p.13

“The state of emergency, which had been in force for 15 years in some provinces of the Southeast, was completely lifted in 2002. Provisions used to restrict pre-trial detention rights under emergency rule were amended. Turkey began a dialogue with a number of international organisations, including the Commission, on the question of internally displaced persons. A Law on Compensation of Losses Resulting from Terrorist Acts was approved. Although work is underway to define a more systematic approach towards the region, no integrated strategy with a view to reducing regional disparities and addressing the economic, social and cultural needs of the local population has yet been adopted. The return of internally displaced persons in the Southeast has been limited and hampered by the village guard system and by a lack of material support. Future measures should address specifically the recommendations of the UN Secretary General’s Special Representative for Displaced Persons.

“In conclusion, Turkey has achieved significant legislative progress in many areas, through further reform packages, constitutional changes and the adoption of a new Penal Code, and in particular in those identified as priorities in last year’s report and in the Accession Partnership. Important progress was made in the implementation of political reforms, but these need to be further consolidated and broadened. This applies to the strengthening and full implementation of provisions related to the respect of fundamental freedoms and protection of human rights, including women’s rights, trade union rights, minority rights and problems faced by non-Muslim religious communities. Civilian control over the military needs to be asserted, and law enforcement and judicial practice aligned with the spirit of the reforms. The fight against corruption should be pursued. The policy of zero tolerance towards torture should be reinforced through determined efforts at all levels of the Turkish state. The normalisation of the situation in the Southeast should be pursued through the return of displaced persons, a strategy for socio-economic development and the establishment of conditions for the full enjoyment of rights and freedoms by the Kurds.”

COE Parliamentary Assembly Monitoring Committee recommendations and resolutions (2004)

Resolution 1380, 2004

"The Assembly therefore invites Turkey, as part of its authorities' current reform process, to:

viii. reform local and regional government and introduce decentralisation in accordance with the principles of the European Charter of Local Self-Government (ETS No. 122); as part of the reform, to give the relevant authorities the necessary institutional and human resources and arrange redistribution of resources to compensate for the underdevelopment of certain regions, particularly south-east Turkey, and move from a dialogue to a formal partnership with United Nations agencies to work for a return, in safety and dignity of those internally displaced by the conflict in the 1990s;"

Recommendation 1563, 2002

" The Parliamentary Assembly therefore recommends that the Committee of Ministers:

i. urge Turkey to take the following steps:

- a. lift the state of emergency in the four remaining provinces as quickly as possible;
 - b. refrain from any further evacuations of villages;
 - c. ensure civilian control over military activity in the region and make security forces more accountable for their actions;
 - d. step up investigations into alleged human rights violations in the region;
 - e. properly implement the rulings of the European Court of Human Rights;
 - f. abolish the village guard system;
 - g. continue its efforts to promote both the economic and social development and the reconstruction of the south-eastern provinces;
 - h. involve representatives of the displaced population in the preparation of return programmes and projects;
 - i. speed up the process of returns;
 - j. allow for individual returns without prior permission;
 - k. not to precondition assistance to displaced persons with the obligation to enter the village guard system or the declaration on the cause of their flight;
 - l. present reconstruction projects to be financed by the Council of Europe's Development Bank in the framework of return programmes;
 - m. adopt measures to integrate those displaced persons who wish to settle in other parts of Turkey and provide them with compensation for damaged property;
 - n. grant full access to the region for international humanitarian organisations, and provide them with support from local authorities;
- ii. urge the member states to step up financial assistance with a view to fostering economic development in the south-eastern part of Turkey;
- iii. invite the Council of Europe Development Bank to consider positively the projects related to the returns of displaced persons in the south-eastern regions of Turkey."

Recommendation 1377, 1998

"The Parliamentary Assembly therefore recommends that the Committee of Ministers:

- i. invite Turkey to take steps to dialogue and reconciliation in the provinces of south-eastern Turkey inhabited mainly by Kurdish people through appropriate action and a programme of confidence-building measures including full protection of the civil population and care in the deployment of armed forces;
- ii. instruct its appropriate committees to intensify their efforts to remedy the concrete problems connected with migration movements of Kurds;

- iii. draw up a series of measures designed to combat the conditions which foster clandestine migration in all its forms, with provision for penalties for traffickers and employers who exploit illegal immigrants, in consultation with the Budapest Group;
- iv. invite Turkey:
 - a. to find a non-military solution for the existing problems in the south-eastern provinces;
 - b. to protect the civilian population of the regions concerned against any kind of armed violence;
 - c. to expedite and intensify its efforts to promote the economic and social development and reconstruction of the south-eastern provinces;
 - d. to sign and ratify the Framework Convention for the Protection of National Minorities and the European Charter for Regional and Minority Languages and apply its provisions to the Kurds;
 - e. to bring to light the fate of the missing persons;
 - f. to adopt policies and take adequate measures to enable Turkish citizens of Kurdish origin to exercise their cultural and political rights;
 - g. to restore the rule of law in the south-east of the country, and in particular to lift emergency rule in the south-eastern provinces, to ensure effective protection of villages, to exercise civilian control over military activity in the region, including the keeping of records and observance of human rights, and to prosecute anyone who violates human rights;
 - h. to abolish the village guard system;
 - i. to undertake additional effective measures aimed at the reconstruction and revival of the economy in the south-eastern provinces;
 - j. to take further steps to reconstruct schools and hospitals in the area;
 - k. to implement, in co-operation with international humanitarian organisations, a major programme with a view to encouraging those members of the Kurdish population who so desire to return to their homes;
 - l. to ensure particular protection for returning women, children and elderly people;
 - m. to present reconstruction projects to be financed by the Council of Europe's Social Development Fund, in the framework of return programmes;
 - n. to adopt measures to integrate those displaced persons of Kurdish origin who wish to settle in other parts of Turkey, and provide them, as well as returnees, with compensation for damaged property;
 - o. to grant access to the region for international humanitarian organisations, and provide them with support from local authorities;
 - p. to continue to facilitate the transfer of supplies for humanitarian purposes to Iraq;
 - q. to lift the geographical limitation to the 1951 United Nations Convention Relating to the Status of Refugees and its 1967 protocol, and in particular abstain from deportation of asylum-seekers without prior consultation with the Office of the United Nations High Commissioner for Refugees (UNHCR), and abolish the five day limit for making asylum applications;
 - r. to refrain from military incursions into northern Iraq"

Links to texts:

Recommendations

Recommendation 1563 (2002) of the Parliamentary Assembly on Humanitarian situation of the displaced Kurdish population in Turkey [[Internet](#)]

Recommendation 1377 (1998), Humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq [[Internet](#)]

Resolutions

Resolution 1380 (2004), Honouring of obligations and commitments by Turkey [[Internet](#)]

Resolution 1256 (2001), Honouring of obligations and commitments by Turkey [[Internet](#)]

Reports

Turkey: Explanatory Memorandum by the co-rapporteurs, Parliamentary Assembly Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe

(Monitoring Committee), Co-rapporteurs Mrs Delvaux-Stehres and Mr. Vand den Brande, March 2004 [\[Internet\]](#)

Report of the Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee): Honouring of obligations and commitments by Turkey, Doc. 9120, 13 June 2001 [\[Internet\]](#)

Information report of the Committee on Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe: Honouring of obligations and commitments by Turkey, Doc. 8300, 15 January 1999 [\[Internet\]](#)

Report of the Committee on Migration, Refugees and Demography: Humanitarian situation of the Kurdish refugees and displaced persons in South-east Turkey and North Iraq, Doc. 8131, 3 June 1998 [\[Internet\]](#)

Background

COE 3 March 2004

In 1996, the Parliamentary Assembly adopted Recommendation 1298 [\[Internet\]](#) in which it instructed its committees concerned to open the monitoring procedure under Order N° 508 (1995) [\[Internet\]](#). In 1998, the Assembly also adopted Order N° 545 [\[Internet\]](#) on the humanitarian situation of the Kurdish refugees and displaced persons in south-east Turkey and northern Iraq, in which it instructed its Monitoring Committee to study the issue of the Kurdish minority in the framework of the monitoring procedure concerning Turkey. The monitoring process of the Committee of the Parliamentary Assembly was officially ended in June 2004, where the COE found that Turkey had “clearly demonstrated its commitment and ability to fulfil its statutory obligations as a Council of Europe member state and the monitoring procedure under way since 1996 should therefore be closed...”. “But the parliamentarians were also in favour of a ‘post-monitoring dialogue’ with Turkey on a twelve-point list of outstanding issues, including a major reform of the 1982 constitution, further recognition of national minorities, continued efforts to combat violence against women, the fight against corruption and amendments to the electoral code.”

EU Regular Report: “serious efforts” needed to address problems of IDPs (2003)

EC 5 November 2003, Sect. C

Selected issues raised in the 2003 Regular Report on Turkey’s progress towards accession

“Over the past year the Turkish government has shown great determination in accelerating the pace of reforms, which have brought far-reaching changes to the political and legal system. It has also taken important steps to ensure their effective implementation, in order to allow Turkish citizens to enjoy fundamental freedoms and human rights in line with European standards. Four major packages of political reform have been adopted, introducing changes to different areas of legislation. Some of the reforms carry great political significance as they impinge upon sensitive issues in the Turkish context, such as freedom of expression, freedom of demonstration, cultural rights and civilian control of the military. Many priorities under the political criteria in the revised Accession Partnership have been addressed.

Progress is being made in streamlining the functioning of public administration and government. The government has, in particular, started reforms with a view to promoting a more transparent management of human resources in the public service. This also serves to strengthen the fight against corruption.

[...] More efforts are still needed to enhance the efficiency and the independence of the judiciary. Already, the judicial system has been strengthened with the establishment of a new system of family courts. The competence of military courts to try civilians has been abolished. Positive changes have been made to the system of State Security Courts, in particular the abolition of

incommunicado detention. However, the functioning of these courts still needs to be brought fully in line with the European standards in particular with the defence rights and the principle of fair trial.

On the ground, implementation of the reforms is uneven. In some cases, executive and judicial bodies entrusted with the implementation of the political reforms relating to fundamental freedoms adopted by Parliament have narrowed the scope of these reforms by establishing restrictive conditions, hindering the objectives initially pursued. The government has recognised that the reforms are not being put into practice systematically and has set up a Reform Monitoring Group in order to ensure their implementation.

Turkey has ratified the Civil Law Convention on Corruption, so that on 1 January 2004 it will become a member of the Council of Europe's Group of States against corruption (GRECO). However, in spite of several initiatives, corruption remains at a persistently high level and affects many spheres of public life.

Turkey has ratified major international as well as European Conventions such as the International Covenant on Civil and Political Rights, on Social and Economic Rights as well as Protocol 6 of the European Convention on Human Rights.

It is, however, of great concern that Turkey has not executed many judgements of the ECtHR, by means of ensuring payment of just satisfaction or reversing decisions made in contravention of the ECHR. One example is the *Loizidou* case, as it is now five years since the ECtHR ruled on this matter.

The fight against torture and ill-treatment has been strengthened and the Turkish legal system has come closer to European standards in this respect. The scale of torture has declined but there are still reports about specific cases, which continues to cause concern.

The reform of the prison system has continued and rights of detainees have been improved. In practice, the right to access a lawyer is not always ensured.

The possibility of retrial has been introduced but in practice few cases have been subject to retrial. In the case of *Zana* and others, retrial has so far largely resulted in a repetition of the previous trial, leading to persistent concerns about the respect for the rights of defence.

The adoption of the reform packages has led to the lifting of several legal restrictions on the exercise of freedom of expression. The enforcement of the revised provisions of the Penal Code has led to many acquittals although cases against persons expressing nonviolent opinion continue to occur. A number of persons imprisoned for non-violent expression of opinion, under provisions that have now been abolished, have been released.

Notable progress has been achieved in the area of freedom of demonstration and peaceful assembly where several restrictions have been lifted. Nevertheless, in some cases of peaceful demonstration, the authorities have made a disproportionate use of force.

As regards freedom of association, some restrictions have been eased, but associations still experience cumbersome procedures. Cases of prosecution against associations and particularly human rights defenders continue to occur.

The law on political parties has been amended to make closure of parties more difficult. However, HADEP has been banned by the Constitutional Court and DEHAP is facing proceedings in view of its closure.

Concerning freedom of religion, the changes introduced by the reform packages have not yet produced the desired effects. Executive bodies continue to adopt a very restrictive interpretation of the relevant provisions, so that religious freedom is subject to serious limitations as compared with European standards. This is particularly the case for the absence of legal personality, education and training of ecclesiastic personnel as well as full enjoyment of property rights of religious communities.

Measures have been taken to lift the ban on radio and TV broadcasting and education in languages other than Turkish. So far, the reforms adopted in these areas have produced little practical effect.

The lifting of the state of emergency in the Southeast has in general eased tensions amongst the population. There has been greater tolerance for cultural events. The programme for the return to villages proceeds at a very slow pace. Serious efforts are needed to address the problems of the internally displaced persons and the socioeconomic development of the region in a comprehensive fashion and of cultural rights in general.

[...] Overall, in the past 12 months Turkey has made further impressive legislative efforts which constitute significant progress towards achieving compliance with the Copenhagen political criteria. Turkey should address the outstanding issues highlighted in this report, with particular attention to the strengthening of the independence and the functioning of the judiciary, the overall framework for the exercise of fundamental freedoms (association, expression and religion), the further alignment of civil-military relations with European practice, the situation in the Southeast and cultural rights. Turkey should ensure full and effective implementation of reforms to ensure that Turkish citizens can enjoy human rights and fundamental freedoms in line with European standards.

Furthermore, Turkey should provide determined support for efforts to achieve a comprehensive settlement of the Cyprus problem.”

See also: The full “[2003 Regular Report on Turkey's progress towards accession](#)” European Commission, 5 November 2003

The 1998 – 2002 regular reports on Turkey's progress towards accession are available on the [website of the European Commission](#)

Policy and Recommendations from Turkish civil society

IDMC/TESEV Recommendations on the implementation of the recommendations by the RSG to the UN Representative on IDPs (2006)

“[T]his report makes the following recommendations, thematically organised on the basis of the RSG's report, with the addition of a new recommendation under the heading of “reconciliation.”

Clarifying and Disseminating the National Policy

The government's acknowledgment of the internal displacement problem, its expression of political will to address the issue in accordance with the Guiding Principles on Internal Displacement (“Guiding Principles”) and its commitment to develop a strategy based on the Framework Document constitute significant progress. However, they are also belated steps, which follow a period of inaction of more than ten years. The lack of transparency and NGO participation are also grounds for concern. In order to facilitate the meaningful participation of civil society and to raise awareness among the affected IDP communities about government policy, the Framework Document should be immediately and widely distributed. The government should

systematically consult NGOs on putting together and implementing a strategy based on the Framework Document. As regards establishing a structure for the implementation of its policy, the government should create a focal point of responsibility within the interior ministry, which would coordinate cooperation with government institutions, civil society organisations and the international community, and set aside a transparent and accountable budget with sufficient funds.

Data Collection

The commissioning of Hacettepe University to conduct a comprehensive study on IDPs is a very significant step towards understanding the causes of internal displacement, and identifying the current conditions and needs of the displaced. The initiation of the survey has raised expectations that the findings would facilitate the development of government policy, international cooperation and possible future NGO projects. However, Hacettepe University has not yet shared the findings of the study, the quantitative component of which was completed in November 2005. The findings of both the qualitative and quantitative components of the Hacettepe Survey should be disclosed completely and without further delay. The authorities and the Hacettepe University should take steps to ensure that the academic freedom of scholars studying internal displacement is respected.

Protection

The “village guard” system poses a risk in terms of the protection of human rights and an obstacle to IDP returns in the region. Both provisional and voluntary village guards should be disarmed and the system should be disbanded. As part of their rehabilitation, village guards should be provided with social security coverage and employment opportunities in peaceful sectors. In order to facilitate peace and security, PKK militants need to be reintegrated into society through complete disarmament. The government and NGOs should cooperate in developing policies about the social reintegration of all parties to the conflict. The landmines issue is of great concern due to the lack of comprehensive statistics on their locations and numbers. Landmines and unexploded ordinance also pose a significant threat to returning IDPs. The government and the armed forces should cooperate with local NGOs and international institutions to effectively and expeditiously tackle this problem. As a first step, the government needs to ensure that all mined and potentially mined areas are fenced off and marked with clear signs. The government should also launch a centrally-coordinated mine risk education programme in Turkish and Kurdish, in cooperation with civil society, local administrations and international institutions.

Current Conditions of the Displaced

The majority of the IDP population in Turkey has been living in urban centres for nearly ten years. Since there are no programmes specifically addressing the current conditions of the displaced, they have had to face enormous problems such as endemic unemployment, abuse of child labour, lack of access to education and health care services, and almost no psychosocial care for women and children. The government, UNDP and civil society organisations urgently need to cooperate in order to develop projects that would specifically target the problems of urban IDPs. These projects should address children’s education, adult literacy and skills training as well as employment creation and preferential loans for small business startups. The numbers of community, women’s and children’s centres should be increased and they should be given capacity building training to serve the particular needs of the displaced.

Return

Security forces no longer hinder returns on the grounds of lack of safety in most areas where original displacement took place with the notable exception of Hakkâri. However, given that PKK assaults and military operations have increased in the past two years, fear for personal safety as well as perceptions of lack of security continue to prevent many IDPs from considering return to their original homes. The government should take further measures to provide security for returnees. Local NGOs and public authorities in the region should cooperate in building trust between IDPs and the state in order to remove perceptions of lack of safety in places where this is not the case. Other obstacles to return are the paucity of aid under the government’s Return to Village and Rehabilitation Project (RVRP), lack of infrastructure and public services in the rural areas from which original displacement took place and resistance against centralised settlements.

The government should clarify its implementation of the RVRP in line with the Framework Document, and in consultation with NGOs. Concrete steps should be taken to rebuild the rural economy and public infrastructure so that returns may become sustainable.

Property

The shortcomings in the Compensation Law and the problems in its implementation undermine its significance. The time-scale and scope of the law should be extended so as to cover all IDPs who were forcibly evicted or were obliged to flee due to the armed conflict. The law should be amended to provide non-pecuniary damages in accordance with European Court of Human Rights (ECtHR) case law, in order to compensate the pain and suffering of IDPs whose rights to life, liberty and security, and property have been violated. The government should initiate a public information campaign on the law in Turkish and Kurdish, in collaboration with NGOs and local administrations. The Turkish Bar Association and local bar associations should advise their members on codes of professional conduct and monitor their implementation of the law. The commissions should be allowed to determine all types of damages on a case-by-case basis, taking into account the subjective circumstances of each case. The two-year period for evaluating petitions should be extended to a more realistic timeframe. To ensure unity in implementation, the government should develop a clear position on the law; send the commissions binding implementing guidelines and instruct them not to abide by strict formal evidentiary rules in processing claims; and cooperate with civil society to provide training not just to the governors and their deputies, but to all members of the commissions. As a first step, the government should publicly express its political support for the effective and just implementation of the law. The Commissions should not attribute evidentiary weight to the information provided by the *jandarma* (security forces). An administrative appeal body should be set up to evaluate the decisions of the commissions within a time limit of two-three months. To ensure their access to courts, IDPs should be exempted from legal fees in administrative courts and be provided with legal aid upon need. The structure of the commissions should be changed in favour of a balanced representation of civil society and the public sector. The commissions should be professionalised, their numbers should be increased, and their working conditions should be improved.

Cooperation with International Partners

Since RSG Deng's visit in 2002, an active cooperation has developed between the government and the UN on the IDP issue, culminating in the signing of an agreement in 2005 between the UNDP and the government to support the development of an IDP programme. There is also a need for more systematic cooperation between the UN and NGOs. The UN and the government should encourage NGOs to participate in the implementation of policies targeting IDPs on the issues of return and reintegration. The European Commission has played a significant role in encouraging Turkey to take steps to address its IDP problem since the Helsinki Summit in 1999 when Turkey became a candidate for EU accession. The Commission should be more proactive in providing consultation and guidance to the government on its evolving IDP policy. The government may involve the EU into the policy implementation process through socioeconomic and other projects related to IDPs' return and reintegration.

Reconciliation

IDPs, NGOs and the government express the need for rebuilding "trust towards the state" and "social peace", goals identified in the Compensation Law. Establishing social rehabilitation in the wake of a traumatic period of conflict and ensuing displacement cannot be limited to issues concerning the payment of reparations, return and reintegration, but should also include reconciliation. Although achieving reconciliation may take a long time, the government should take steps to initiate that process. The state's public acknowledgement of responsibility for village evictions, introducing compensation for pain and suffering, and declaration of a will to identify and prosecute – where possible – those who committed human rights violations during displacement and return may be among such measures. However, it is also important to bear in mind that reconciliation would require the PKK to demonstrate a similar will to assume its responsibility for the human rights violations it has committed. A dialogue should be initiated between the civil society and the government to set up a structure for reconciliation, bearing in mind the examples of truth and reconciliation commissions elsewhere in the world."

For more detailed recommendations, [click for the full report](#)

TOHAV and bar associations recommendations on the compensation law (2006)

- The government should implement Law 5233 using the standards established by the ECtHR, and especially the ownership criteria indicated in *Dogan and others v Turkey*.
- Necessary administrative and legal measures must be promptly taken to halt the arbitrary practices of the Damage Assessment Commissions established under Law 5233, which cannot be reconciled with the state's serious responsibilities in this matter. Otherwise, Law 5233 will inevitably prove ineffective and insufficient, and the consequence of this will be that large numbers of applicants apply to the European court.
- The government must show political will to ensure that the Damage Assessment Commissions operate in a more just, effective and transparent manner that is accessible for victims and their legal counsel.
- The requests of victims for compensation should not be perceived as unjustified to secure personal gain. Victims actually have quite realistic expectations in terms of justice and compensation. They should not be subject to excessive demands for proof and documentation. We therefore support the call made by the Special Representative of the U.N. Secretary General Walter Kälin in his September 7, 2005 report for the Turkish government to establish a compensation mechanism that will allow victims of enforced internal displacement to return to their villages in dignity to make a new life, or, if they do not wish to return to the village, to make a new start in the place in which they are currently living.

Signed

AGRI BAR, DİYARBAKIR BAR, FOUNDATION FOR SOCIETY AND LEGAL STUDIES, GÖÇ-DER, HUMAN RIGHTS ASSOCIATION, HUMAN RIGHTS WATCH

TESEV Working Group Recommendations (2005)

A. Definition and Statistics

- The definition of internal displacement which informs Law no. 5233, the Return to Villages and Rehabilitation Project (RVRP), and other policies needs to be brought into conformity with the United Nations Guiding Principles on Internal Displacement (GPID).
- The figures of internally displaced persons (IDPs) cited in official documents and statements should be clarified and brought into conformity with each other.
- A large-scale study is necessary to assess the locations, problems, and needs of IDPs as defined by the GPID.

B. Practices Concerning IDPs

- The prime minister and state officials should emphasize the problem's multifarious nature and their will to solve the problem.
- IDPs should be guaranteed that they can make an informed and voluntary decision about whether to (1) return to their original place of residence; (2) stay where they presently are; or (3) resettle in another part of the country.
- In order to facilitate such a choice, socio-economic measures should be taken in addition to Law no. 5233 and the RVRP.
- Social policies should be developed separately for the above-mentioned three groups, particularly keeping in mind the special needs of women and children, who have been the biggest victims of internal displacement.
- The state should acknowledge physical and psychological healthcare needs caused by forced migration and should ensure the NGOs' more active involvement in this field.

C. How to Ensure Return to the Habitual Places of Residence

- The state needs to acknowledge that people have a *right* to return to their places of residence, and it has to ensure that all IDPs can exercise this right.
- Return to places of habitual residence should not only mean return to *villages*.
- Aid under the RVRP should be given to all IDPs without conditions and in a way that completely covers their losses.
- Economic policies for infrastructure, agriculture, and animal husbandry need to be developed and implemented swiftly in order to ensure return. Policy-makers should take measures to alleviate poverty.
- In order to facilitate IDPs' return in peace and safety, steps should be taken for solving the animosities among combatants, village guards and villagers once armed clashes cease.
- The village guard system must be abolished.
- In order to establish mutual trust between citizens and state, the RVRP's aid should be accessible to all victims, without discriminating between village guards and civilians.
- Concerning the return to the villages, the state should collaborate with NGOs and international organizations.
- The state should increase its support to improve returnees' access to healthcare.
- In case IDPs currently residing outside the country want to return to Turkey, they should be able to receive aid from the RVRP.

D. Urban Problems

- The state should acknowledge the existence of IDPs living in cities.
- The state needs to develop policies that would create employment opportunities for urban IDPs and which would facilitate their integration into urban social life. In this context, funds should be set aside to meet the educational needs of women and working children.
- The state needs to develop special policies to solve the IDPs' physical and psychological health problems.
- The state should increase its support to improve urban IDPs' access to healthcare.
- Effective and productive communication between the state and IDPs needs to be established.

E. The Solution of the Problems in the Content and Implementation of Law no. 5233 I. Recommendations for Publicizing the Law

- The government should stand behind the law and inform the public about its significance and purpose by means of mass communication.
- In order to calm the fear and mistrust of citizens hesitant to file petitions, the state should ensure the citizens they feel that the state stands behind them. Any attempt to hinder citizens from filing petitions should be prevented.
- The Prime Minister and state officials should emphasize that filing a petition under the law is a basic *right*.
- The Prime Minister and state officials should emphasize that the law serves the purpose of reconciliation by compensating for past human rights violations.
- In order to inform all victims about the law's content and the petition filing process, a large-scale information campaign should be launched with the contribution of local administrations, NGOs, bar associations, and the government.
- In order to ensure that displaced persons outside the country can also benefit from these communication campaigns, these persons should be informed and provided with the necessary conditions to file petitions.

II. Recommendations Concerning the Content of the Law

In order to harmonize the law with the GPID and thus to achieve its inclusion of all victims within its scope, the following changes need to be made:

- The term “or suffered due to the armed conflict” needs to be added to Articles I and II of the law.
- The scope of the law should be extended to start from 1984.
- The petition deadline should be extended by one year.
- Compensation for pain and suffering should be provided.
- The compensation paid for death, bodily harm, and disability should either be allowed to be determined by commissions in the light of the incident’s and the victims’ circumstances, or should be increased to a morally appropriate and just amount.
- The compensation for damages to immovable property should not be made contingent on return, as this contradicts the GPID’s principle of voluntary choice; therefore, inkind compensation should not be given priority.
- The present two-year period for evaluating petitions should be extended to a more realistic timeframe, considering the difficulties in the law’s implementation.

III. Recommendations Concerning the Implementation of the Law

In order to ensure consistency in the law’s implementation, to break the commissions’ resistance, and to show that the government firmly stands behind the law, the following measures should be taken:

- An “explanatory note” discussing each and every article of the law should be prepared and sent to all commissions.
- The commission members should be widely informed and educated on Law no. 5233, the GPID, and the jurisprudence of the ECtHR.
- By way of a circular, the commissions should be instructed to implement the recent amendment in the regulation, which alleviates the victims’ heavy burden of proof.
- A higher administrative body needs to be established in order to re-evaluate the decisions of inadmissibility made by the commissions; the evaluation process should be limited to a time-period of two to three months.
- A special legal arrangement specific to this law should ensure that victims who exercise their right to bring their cases to an administrative court can do so free of legal fees.

In order to speed up the petition evaluation process, the following steps should be taken:

- The commissions should be given a professional structure. Accordingly, their members should not take on any responsibilities other than serving on these commissions during their appointment, and should receive a salary in return for their services.
- The number of commissions should be increased.
- An operational fund should be set aside for each commission.
- The commissions should receive adequate technical equipment, personnel, and office space.
- Sufficient amount of allowance should be set aside in order to pay the compensations awarded by the commissions.
- Advance allowances should be made to the commissions so that they can immediately disburse compensation for concluded petitions.

To ensure the citizens’ belief and trust in the due course of law, the following steps need to be taken:

- The commissions which are currently dominated by public officials should be restructured to reflect a balance between NGOs and public officials. For this purpose, the following persons should be included in the committees:
 - village headmen (*muhtar*)
 - legal experts from human rights NGOs □ representatives of NGOs working on migration issues
 - officials of municipalities affected by migration

- Furthermore, the inclusion in the commissions of a lawyer specialized in public law as a representative of the public would serve to alleviate the fears of commission members who do not want to take risks.
- There should be no discrimination between village guards and civilians in the process of evaluating petitions.
- Commissions should not be able to receive information from the gendarmerie, either directly or indirectly, when procuring documentation and information.

GOC-DER recommendations (2004)

Goc Der, 8 December 2004

Recomandations to Turkey

- Great social turmoils and internal conflicts require a general amnesty. In order to reconstitute social reconciliation and stability in Turkey, it is necessary to declare an amnesty without any discrimination.
- Before all, military operations and conflicts have to be brought to an end. This would be a significant contribution to social reconciliation.
- The unfortunate system of village guardship should be abolished and the destruction created for many years by that system should be compensated. To solve the question of employment for ex-guards, it can be created new employment areas, like foresting again the now burned and damaged forest areas, or caleaning of stony areas (such as Karacadag) in order to make these areas convenient for cultivation and agricultural production. Hence, the social adaptation problem of village guards will be solved that way.
- The state should clear landmines from villages and surrounding farmland, and give villagers documentary evidence that their village has been cleared of mines and munitions before they return.
- The laws which com with 12 September military coup should be changed, and a new civilian Constitution should be prepared in line with EU norms.
- Because one should not regard the problem of displacement as seperate from Kurdish question in general, the problem of displacement should be recognised as part of Kurdish Question, and constitutional guarantee and protection for rights of Kurds should be considered as contribution to the displacement problem.
- As part of facilitating the return of the displaced, the state should ensure that infrastructure for villages and hamlets is restored at least to the standard prior to their destruction and evacuation, at state cost. Where villages are inaccessible for security reasons or because they have been mined, state should pay appropriate levels of compensation, including maintenance for the displaced, and ensure their access to health, education, and employment or other basis for an adequate standard of living. Feasible projects with social, economic, health, educational, and cultural aims should be implemented for the solution of the problems of the displaced.
- After a conflict of twenty years, state should pay compensations to the damaged, without any prejudice and discrimination. establish an interim program for practical and financial support of villagers before, during, and after return, without prejudice to subsequent litigation they may open in the courts.
- For those who do not want to return from big cities, state shoud develop projects of social adaptation. First of all, the projects for education, language and culture, and health, psychological consultation and rehabilitation centers, shelter units for women, and employment projects should urgently be implemented.
- The social developments we are facing today point out that we are proceeding through a pocess of social reconciliation. So, a commission for investigation of the facts about the displaced will contribute to that process.

Recomandations to KONGRA-GEL

- The people who would make sacrifices for peace and democracy are those who most needs them. In the name of fraternity of peoples, and of building up a peace and democracy, a cease-fire period is urgent even if it will be a unilateral one.
- We support peace against war, and we regard life to be sacred as against death. We believe that no more destruction has to be made against our ecology. The peace should be declared for exalting again high values of humanity in the first centers of humanity, Anatolia and Mesopotamia.

Recomandations to EU

- Solving the problem of forced displacement can not be conceived independent of solving the Kurdish question. In order to solve Kurdish question through peaceful and democratic ways, EU should contribute to the solution by naming the problem properly and by considering the Kurds as a side in the solution of displacement problem.
- State budget by itself would be insufficient in financing reconstruction of infrastructure, rebuilding destructed villages, redevelopment of agriculture and stockbreeding as well as providing employment. So, EU countries should contribute to feasible projects for carrying out of these ends.
- EU should support national and international projects which aims at psycho-social adaptation – first of all, solving language problem and then health, nutrition, employment, education, and occupational education-, and which treat returnees and those who choose to remain in city centers as two separate groups.
- EU countries should start research about urban problems caused by forcible displacement and about living conditions of displaced people. For such a scientific research, EU countries should ask collaboration of universities, migration agencies, and other relevant NGOs in Turkey.
- EU should take into consideration that village evacuations and other displacements are part of the assimilation against Kurdish population rather than ‘terrorist action.’ So, EU should not use the term ‘terrorism’ as against Kurdish population.
- The new legislation with the EU accession process can not be seen to be in practice for certain laws. We consider necessary that the laws should be observed in practice.
- In order for examining how it is put in practice ‘the law (5233) on compensation for people who suffered loss or damage as a result of action by terrorist organisations and measures taken by the government to combat it,’ EU should constitute a monitoring unit.’

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